

A
HISTORICAL
AND
DESCRIPTIVE NARRATIVE
OF
TWENTY YEARS' RESIDENCE
IN
SOUTH AMERICA,

IN THREE VOLUMES;

CONTAINING TRAVELS IN ARAUCO, CHILE, PERU, AND COLOMBIA,
WITH AN ACCOUNT OF
THE REVOLUTION, ITS RISE, PROGRESS, AND RESULTS.

BY W. B. STEVENSON,

FORMERLY PRIVATE SECRETARY TO THE PRESIDENT AND CAPTAIN GENERAL OF QUITO,
COLONEL, AND GOVERNOR OF ESMERALDAS, CAPTAIN DE FRAGATA, AND LATE
SECRETARY TO THE VICE ADMIRAL OF CHILE,—HIS EXCELLENCY
THE RIGHT HONOURABLE LORD COCHRANE, &c.

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Engraved for Stevenson's Narrative of South America.

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CHAPTER I.

First Revolutionary Symptoms in South America....Morales and Quiroga....Character of Morales....Of Quiroga....Discovery made by Captain Salinas to two Friars....Their Report to the Government....Imprisonment of Morales, Quiroga, Salinas, and Riofrio....Character of Salinas....of Dr. Riofrio....Liberation of the Prisoners....Junta formed at Quito....Advice of to the President, Count Ruis....Manner in which the Revolution was conducted....New Oath....Marquis of Selva Alegre....Character of....Dissensions in the New Government....Count Ruis reinstated....Arrival of Troops from Lima and Santa Fé....Imprisonment of the Insurgents....Trial of....Character of the Count Ruis....Of the Oidor Don Felipe Fuertes Amar....Of the Fiscal Arrechaga....Of Colonel Arredonda....*Proceso* sent to Santa Fé.

Shortly after the arrival of his Excellency the Count Ruis de Castilla at Quito, the capital of his government, the collegians of San Fernando presented him with four theatrical representations, at which the whole of the nobility attended as spectators. The pieces chosen were Cato, Andromacha, Zoraida, and the Araucana, the whole of them tending in their design and argument to inculcate a spirit of freedom, a love of liberty, and principles of republicanism. However, as is often the case with people who visit public exhibitions with a predetermination to be pleased, this tendency passed unobserved by the president and the other members of the government. Inattentive to what the state of affairs in the mother country might produce in the colonies, the American rulers judged that they themselves were surrounded by the same obedient vassals whom their predecessors had governed, without ever dreaming that the people were awake to what was actually passing in the parent state; for, although the opportunity of deriving information from the press was prevented by the government, yet the Americans who resided in Spain at this period were very actively employed in communicating to their friends in America the true state of affairs, and the natives were generally better informed of what passed in the mother

country, than the Spaniards resident in America or even the government itself; because Spanish correspondents being loath to place their property in America in jeopardy, or judging that the colonists had only to obey whatever orders they might receive, either gave indistinct or favourably exaggerated accounts; or else treated the Americans with that contempt which as their superiors they fancied they had a right to exercise.

After the performance of the pieces, I became gradually acquainted with the individuals who had selected them—Dr. Quiroga and Don Manuel Morales; the former an advocate of some respectability, a native of Arequipa in Peru, married in Quito; the latter, a native of the city of Mariquita in the Viceroyalty of Santa Fé de Bogotá, had been secretary to the government when the Baron de Carondelet was President; but having offended him, Morales was discarded from his situation by the orders of the Baron. He hoped to have been restored on the arrival of the Count Ruis; but this chief having in his suite a young advocate of the name of Don Tomas Arrechaga, whom he had educated, and for whom he wished to provide, the claims of Morales were disregarded, and Arrechaga was nominated secretary to the government.

Morales was possessed of a strong mind, had received a liberal education, and having been employed many years in the secretary's office, had obtained a knowledge of the affairs of the government and an insight into the intrigues of the Spanish court. He considered himself unjustly dealt with by the Baron de Carondelet, and more so by the Count Ruis, who could only know his failings through the too often distorted medium of report: he saw his situation filled by a stranger, himself an exile, and was determined to be revenged on those whom he regarded as the supporters if not the authors of his disgrace. To this end circumstances that could not possibly escape his observation aided him; and had not rashness prompted him to execute his designs prematurely, he might have succeeded, and have lived to receive the thanks of his countrymen; whereas, his ashes can only be revered by them, his name can only dwell in their memories with painful regret, or gratitude drop a tear at the recollection of his untimely death.

Quiroga was of an unquiet aspiring disposition, rash and undaunted in his undertakings, but very self-opinionated: unable to brook controul in any shape, but open to conviction when persuasion was the medium. He was

successful as a pleader at the bar, loquacious and eloquent, but even here his hasty temper drove him into difficulties; he was repeatedly reprimanded by the tribunal, and at length was not only mulct, but even suspended from the exercise of his office as an advocate. In one instance, when a fine was imposed upon him, he declared that he could in no manner pay it, because the tribunal was not competent to levy it; that the Regent and Oidores had taken possession of their seats on the bench contrary to law, or held them contrary to justice; and he proved his assertions by stating the cases, quoting the laws, and citing the regulations of the tribunal. This necessarily drew down upon him the hatred of the members, and obliged him to leave the bar. Quiroga was the constant companion of Morales, and, like him, expected that on the arrival of Count Ruis, an appeal to his Excellency, as President of the royal audience, would restore him to the exercise of his profession; but a report from the Regent Bustillas prevented the fulfilment of his expectations, and this circumstance drove him to despair.

These two disappointed individuals chose the dramatic pieces which were performed at the college of San Fernando in October, 1809, selected perhaps in order to probe the government; if so, the result was completely satisfactory to their views, for not the least suspicion was evinced, nor any alarm taken.

In February, 1809, Captain Salinas, who was commander of the infantry at Quito, informed two friars, Father Polo and another, of a plan that was about to be formed to depose the Spanish authorities in Quito, and to elect others from among the most respectable citizens, as substitutes. The information was immediately reported by the friars to the President, and a secret commission was given to the Oidor Fuertes Amar to proceed against all suspected individuals according to law. Don Pedro Muños was appointed to act as privy secretary, but this man had no other qualification than that of being a native of Spain. Quiroga, Morales, and the parish priest of Sangolqui, Dr. Riofrio, and Captain Salinas, were apprehended, and placed under an arrest in the convent of La Merced. Their declarations were taken down in writing by Muños, and every possible means employed to prevent the people from becoming acquainted with the state of the *proceso*; no person was allowed to see the prisoners, and they were deprived of the means of communicating to their friends any particulars relating to their situation; the secretary was not allowed the assistance of an amanuensis,

and every inquisitorial practice was brought into action. In the beginning of April, when Muños was going in the evening to the palace to report on the proceedings to the President, the papers were stolen from him. This accident produced considerable confusion; many who were really concerned in the plot were assured that their names had never been mentioned by the prisoners, who uniformly denied having any knowledge of it; and Salinas protested against having mentioned any thing concerning it to the friars. Thus by a fortunate accident the plans of the government were frustrated, the prosecution ceased, and the prisoners were liberated. This occurrence, however, taught them to be more on the alert, and to be more careful in future; but the torch was lighted, and although the flame had been smothered for a short time, it was not extinguished.

The character of Salinas was well known to Morales and Quiroga. He was a true Quiteño, volatile and variable, embracing every novel object with avidity, without reflection, or discrimination; the pursuit of any new scheme was as ardently begun by Salinas, as it was easily abandoned the moment it ceased to be new, or the moment that another was suggested; but as this officer was at the head of the infantry, which consisted of about four hundred men, with part of which he had been formerly stationed at Panama, and which in their opinion was considered a campaign in a foreign country, he had become the idol of the soldiers; so that it was absolutely necessary that Salinas should be brought over to second the plans of Morales and Quiroga; and this was easily effected—the plan was novel, and promised a succession of what was most congenial to his feelings.

Dr. Riofrio was a secular clergyman, of a sullen morose temper, ready to coincide with any set of men whose plans were calculated to bid defiance to any thing that did not please him; yet, whether from natural imbecility, or natural cowardice, he seemed to be only an instrument, and probably became acquainted with the plans in agitation by being a frequent visitor at a house in Quito where Morales had lived, and on account of his own house being sometimes the residence of Morales, when he was estranged from Quito by the President Carondelet. This man and Salinas were both natives of Quito, but neither of them of families of rank or fortune, although from the situations which both had held they were very respectable.

After the release of the four denounced conspirators, Salinas and Riofrio returned to their former occupations; Quiroga to his home, more injured than ever; and Morales went into the country, without having reaped any advantage except experience. The government now appeared quite satisfied in having declared the acquittal of the prisoners honourable; they were pleased that no act of injustice had been committed, and flattered themselves that the papers lost by Muños had fallen into the hands of some pick-pocket, or that having been dropt in the street, they had ceased to exist in a shape which might betray their intentions. But they were deceived; the papers found their way into the study of Quiroga, who drew such conclusions from them as best suited his own ends, and disseminated their contents among such individuals as he judged most proper to entrust them with. From April to August, 1809, nothing particular occurred, except new advices from Spain; so that the abdication of Carlos, the accession of Fernando, the imprisonment of the King, and the invasion of the country by the French, were the subject matter of every conversation. But still tranquillity reigned in every part of the colonies, and their inhabitants seemed to vie with each other in enthusiastic demonstrations of loyalty and attachment to their *amado Fernando*. Every new advice from Spain served to increase the apprehension and the dismay of the governments and Spaniards residing in America; and their whole attention was so engrossed with the state of affairs in the country to which they belonged, that they had not time to meditate on the effects which might be produced by it in the country in which they were stationed—satisfied that the colonies must follow the fate of the parent state, just as if it had been annexed to it by the ties of nature, instead of being attached to it by the most unnatural connexions. But the bubble burst when and where it was perhaps least expected to happen, and although the effects of the explosion were soon repressed, yet it rent the veil, and laid the foundation of that emancipation which the whole of the heretofore enslaved nations of the new world now enjoy.

On the morning of the 10th of August, 1809, at an early hour, two natives of Quito, Ante and Aguire, waited on the president with a letter. The orderly who was at the door of the antechamber objected to carry any letter or message to his Excellency at so unusual an hour; but Ante persisted in the necessity of its immediate delivery, saying, that it contained matters of

importance from the JUNTA SOBERANA, sovereign junta, a name as new in the ears of the orderly as was the body itself new in America. The orderly awoke the president, delivering the letter, and repeated the words which he had heard, as an excuse for his untimely errand. The president having read the superscription—"From the sovereign junta to the Count Ruis, ex-president of Quito," dressed himself, and read the following:

"The present unsettled state of Spain, the total annihilation of the lawfully constituted authorities, and the dangers of the crown of the beloved Ferdinand VII. and his domains falling into the hands of the tyrant of Europe, have impelled our trans-atlantic brothers to form provincial governments for their personal security, as well against the machinations of some of their traitorous countrymen, unworthy of the name of Spaniards, as against the arms of the common enemy: the loyal inhabitants of Quito, resolved to secure to their legitimate King and Master this part of his kingdom, have established a sovereign junta in this city of San Francisco de Quito, of which, and by the command of his Serene Highness the President and the vocal members, I have the honour to inform your lordship, and to announce to you, that the functions of the members of the old government have ceased: God preserve your lordship many years. Hall of the junta in Quito, August 10th, 1809: Manuel Morales secretary of the interior."

After reading this unexpected epistle, his Excellency entered the antechamber, and walked towards the messengers, who inquired whether he had received the note, and on being answered in the affirmative, they bowed, turned round, and retired. The count followed them to the outer door and attempted to pass it, but he was prevented by the sentry. He now sent his orderly to call the officer of the guard, who politely answered, that he could not consistently with the orders he had received, speak with the *Count*, pronouncing the last word with considerable emphasis. A great number of people began to assemble in the square before the palace, at six o'clock, when a royal salute was fired, and the military music, stationed on the esplanade in front of the palace, continued playing some national airs till nine o'clock. At this time the members of the new executive government met, the Marquis of Selva Alegre, president, the vocal members, the Marquis of Orellana, Marquis of Solanda, Count of Casa Guerrero, Marquis of Miraflores, Don Manuel Zambrano, Don Manuel Mateus, and Don Pedro Montufar, the two ministers. Morales and Quiroga: the declaration of the

installation was published, and the form of the oath to be administered to all persons employed under the new government was drawn up. The Bishop of Quito was elected vice-president, but he refused to assist at this or any subsequent meeting.

The whole of the revolutionary change was effected in the night of the ninth. Morales came to Quito, and, with Quiroga, convened a meeting; he informed the members of the risk in which the country at large stood, set forth the intention of the government to acknowledge Napoleon as their sovereign, because the Kings of Spain had ceded their sovereignty to him, and exhorted them at the same time to preserve themselves and this part of the Spanish dominions from the fate that awaited the rest; and this he told them could only be done by establishing a provincial government in the name of Fernando, and of removing all suspicious persons from their offices. This harangue was nothing but a matter of form, because all the preliminaries had been agreed on beforehand. Salinas, being present, was deputed to bring over the soldiers, which he immediately did; he went to the barracks, and having formed the infantry in the square or patio—he informed them that their beloved King was a prisoner in France; expatiated on his sufferings; told them that the existing governments in America were determined to deliver up the country to the common enemy, and concluded by asking them, whether they would defend their beloved Ferdinand, or become the slaves of Bonaparte? The deluded soldiers immediately shouted Viva Fernando Septimo! Viva Quito! The commandant of the cavalry, Don Joaquin Saldumbide, received orders for the same purpose, and executed them in the same manner. On the return of these two individuals to the junta, they were commanded to give the necessary orders to the different guards, and to administer to the troops the following oath:

"I swear by God and on the cross of my sword, to defend my legitimate King, Ferdinand VII.; to maintain and protect his rights; to support the purity of the holy Roman Catholic Church; and to obey the constituted authorities."

After the conclusion of this ceremony, the necessary orders were given to the officer of the guard at the president's palace, barracks, and prisons: a guard was placed at the door of each suspected person, particularly at those

of the Regent and Oidores; and the members of the government retired to their houses.

An express was immediately sent to Chillo, an estate belonging to the Marquis of Selva Alegre, with the news of what had taken place, and a request that his lordship would immediately come to Quito, and take possession of the supreme command of the government of the kingdom. Thus, in one night, without bloodshed or even without any popular commotion, a government which had been established for more than three centuries was displaced, and a new one erected on its basis.

The Marquis of Selva Alegre arrived on the morning of the tenth, and was visited by the members of the new government, while the two ministers proceeded on their duty to place new officers and clerks in the secretary's office, and to take charge of the archives belonging to the royal audience.

The character of Selva Alegre is almost indefinable. As a private man he was extremely kind and polite, having more of the polished courtier about him than might be supposed to exist in an individual born in what may be termed a sequestered country. Both in his town and country house a great deal of taste and splendour were exhibited, in a manner somewhat uncommon at Quito; yet neither his income nor his popularity could in any way be compared to those of Miraflores nor Solanda. As a public character Selva Alegre was extremely unfit; wavering and timid, wishing rather to reconcile the two parties than to support either; fond of show and parade, but frightened at his own shadow, as if it mocked him. At the gaze of the people he would, like a peacock, have allowed his gaudy plumage to fall to the ground; he would have endeavoured to hide himself, or, as the most enthusiastic Quiteños expressed themselves, "his shoes did not fit him."

On the thirteenth the new government visited the church of the Carmen Alto, the different members dressed in their robes of ceremony; His Serene Highness in the full costume of the Order of Charles III., of which he was a knight; the members of the junta in scarlet and black; the two ministers were distinguished by large plumes in their hats; the corporation, officers of the treasury, and other tribunals, in their old Spanish uniforms, and the military in *blue*, faced with *white* instead of *red*, as heretofore.

After the thirteenth of August, anarchy began to preside at all the meetings of the junta. Morales insisted on a reform in the regulations of the tribunals; Quiroga, that preparations offensive and defensive against the neighbouring provinces which did not follow the example of Quito should be made; Selva Alegre and the members wished that every thing might remain as it was. However the army was increased, and detachments sent to Guallabamba against the Pastusos, and to Huaranda, to prevent an invasion by the Guayaquileños. The people began to shew marks of discontent, particularly dreading a scarcity of salt, which article was procured from Guayaquil. The governor of Guayaquil first threatened to invade the provinces, next the Viceroy of Santa Fé, and lastly the Viceroy of Peru. Advices arrived that troops from these different quarters were absolutely on their march, and to complete the consternation of the people, the Count Ruis retired from his palace into the country, to a small *quinta*, or country seat, two leagues from the city, where he remained, till on the night of the eighth of November a deputation from the sovereign junta waited on him with proposals for his reinstatement in the presidency, to which he acceded. On the part of the president the condition was, that the members of the junta should retire to their respective homes, and become quiet citizens, as before the tenth of August; and on the part of the junta, that what had passed should be referred to the central junta in Spain, and that no prosecution should take place against them until the resolution of the representative authority of Spain should be known. These simple preliminaries being agreed to, his excellency the Count Ruis entered Quito on the following morning, and was received with the most enthusiastic demonstrations of joy; the inhabitants and the members of the ex-junta presented themselves, and made a tender of their several titles, which were accepted by the president, and with all the acts and other papers belonging to the intrusive government, as it was stiled, were ordered to be burnt; but Arrechaga, instead of obeying the order given to him, kept them with the most depraved intention for the most execrable purposes.

On the second of December the auxiliary troops arrived from Lima and Guayaquil, composed of five hundred infantry, and fifty artillery men, under the command of Colonel Arredonda. The inhabitants of Quito, relying on the fulfilment of the conditions agreed to by the Count Ruis, erected triumphal arches to receive them, and strewed flowers along the streets as

they passed; but scarcely had they taken quiet possession of the city, and disbanded the native troops, than Arrechaga, who had been appointed fiscal on the death of Yriarte, advised Arredonda to solicit of the president an order for the apprehension of all persons who had taken an active part in the late revolt, grounding his solicitude on the law of power, that good faith ought not to be kept with traitors. The count had the weakness to accede to the request of Arredonda, and an order was immediately issued commanding Don Manuel Arredonda, Colonel of Infantry, and Commandant of the Pacifying Troops, *tropas pacificadoras*, to arrest all the persons who had been concerned in the late rebellion, the names of whom were subministered by Arrechaga, and on the twelfth of December upwards of fifty of the most respectable inhabitants of Quito were dragged from their homes, and immured in cells in the barracks. Judge Fuertes Amar was again appointed to form the *proceso criminal*. Every succeeding day brought new victims to the prison, for not only those who had taken an active part in the affair were apprehended, but many individuals also to whom letters had been written by the insurgents; and some because they had not declared themselves hostile to the revolutionary government; however the Regent, Oidores, Fiscals, and other persons who had remained neuter, and some Spaniards in office who had kept their places during the administration of the junta, were not included in the number; but the Bishop, who, being an American, was included in the list of insurgents, and accused of having connived at the treason of his flock, because he did not anathematize them, interdict the places of public worship, and sentence to everlasting torments all schismatics to royalty and passive obedience.

Two hundred more soldiers arrived from Santa Fé de Bogotá, and brought with them a greater security to the ministers of despotism, and the whole of the provinces of Quito groaned under their tyranny. Many of the most wealthy inhabitants fled to their estates in the country, and many, although totally unconnected with the affairs of the junta, were afraid of being swept away by the torrent of persecution. Among those who fortunately absconded, and eluded the vigilance of the government, was the Marquis of Selva Alegre: the Marquis of Miraflores died of grief in his own house, and a guard of soldiers was placed over him even till he was interred.

Not content with imprisoning those persons who might be termed the ringleaders, the soldiers were taken into custody, and placed in a separate

prison, called the presidio. This alarmed the lower classes, who began to steal into the country, and seek in the mountains and woods an asylum against the systematic persecution that now pervaded the miserable hut of the labourer as well as the residence of his employer—the cabin of the indigent as well as the mansion of the wealthy. Provisions became daily more scarce in the city, the soldiery in the same ratio became more insolent, when, to crown the state of desperation among all classes of the inhabitants, except the natives of Spain who resided here, the examination of the prisoners was concluded, and the *vista fiscal* was drawn up. This horrible production, worthy of its author, Arrechaga, divided the prisoners into three classes, but sentenced them all to death: their number was eighty-four, including the prisoners and the absent, who were outlawed; even the Bishop was not excluded, although, according to the laws of Spain, he could only be tried by the council of Castile. Distress, affliction, and grief now reigned triumphant: mothers, wives, and daughters filled the air with their cries for mercy on their sons, their husbands, and their brothers, who had been torn from them and immured in dungeons, where they were not allowed to visit them; and who lay under sentence of an ignominious death, no hopes being left, except that the president would not confirm the sentence, and in this hope they were not deceived.

When the proceso was concluded, and required no more than the veto of the president, it was presented to him; but instead of concurring in the opinion of the fiscal, and giving way to the entreaties of Colonel Arredonda, he ordered the papers to remain in his cabinet. The agitation of the old count was now truly distressing, and he frequently said to me, that he would prefer signing his own death-warrant to the sacrificing of so many deluded victims, the greater part of whom had only committed an error of judgment, founded, perhaps, on a mistaken sense of loyalty; at last he determined to refer the case for revision to the Viceroy of Santa Fé, to the inconceivable chagrin of Fuertes, Arrechaga, and Arredonda, who all founded their hopes of preferment in Spain on the execution of the prisoners, who had been denominated traitors.

The Count Ruis was at this time eighty-four years of age; he had resided in America upwards of forty; first in the capacity of Corregidor of Oruro, then of Governor Intendent of Huancavilica, afterwards as President of Cusco, and lastly of Quito. When at Huancavilica he commanded the troops, in

1780, against the unfortunate Tupac Umaru, who was taken prisoner, and quartered alive in the plaza mayor at Cusco, by being tied to four wild colts, which were driven to the four opposite angles of the square.

When President of Cusco, the unhappy victims of Spanish jealousy and cruelty, Ubalde and Ugarte, in 1796, were executed on an ex-parte evidence. This proceso was conducted by the Oidor Berriosabal, afterwards Count of San Juan and Marquis of Casa Palma, and who was afterwards, in 1821, proscribed in Lima by San Martin. The Count Ruiz as a private individual was remarkably kind and familiar, and excessively charitable: in his public capacity he was too easily overruled, especially by persons in authority under him, and when he could be induced to believe them to be actuated by motives of justice; but he was obstinate in the greatest degree if he once suspected their integrity. The court of Spain was so well convinced of the virtuous character of this nobleman, that in 1795 a royal order was issued inhibiting him from a residenciary investigation at the expiration of his first government of Cusco: an honour which I believe was never conferred on any other governor in the Spanish colonies.

The Oidor Don Felipe Fuertes Amar was remarkably timid, in fact he was a complete coward, and this weakness brought him to the gallows, during a commotion of the indians in 1810.

The Fiscal Don Tomas Arrechaga was a native of Oruro, said to be the offspring of a friar of San Juan de Dios and a mestisa of Oruro. The Count Ruiz took him when a boy under his protection, educated him, and brought him to Quito to establish him in the profession of the law, which he had studied. Arrechaga was brutal in his looks, his manners, and his actions; he was possessed of all the subtle cruelty peculiar to the caste of chinos, which is a mixture of African and indian blood: his mother was of the latter race, and his father was not entirely exempt from the former. Arrechaga would have waded through the blood of his countrymen to secure promotion; and from the first discovery of the country this had been too often the means of obtaining it.

Don Manuel Arredonda was the son of the Viceroy of Buenos Ayres, and nephew to the Regent of the Royal Audience of Lima; he was in search of reputation, fame, and promotion—not in the cannon's mouth—no, for

indeed he was the original fop described by Hotspur, he was effeminate, proud and cruel, the general qualifications of a coward soldier; an imperious tyrant when in prosperity, but the most abject of all wretches when in adversity.

The person chosen to convey to Santa Fé the whole of the proceso was Dr. San Miguel, a young advocate who had become the constant companion to Arrechaga. Not less than six reams of written paper formed the important charge, for the safety of which a piquet of horse was ordered to escort San Miguel as far as Pasto, lest some of the outlaws might surprize him on the road. The prisoners expected no favour at the hands of the Viceroy, because he was the uncle of the Oidor Fuertes who had tried them. It was natural to suppose that he would not extend his mercy against what he would consider the justice of the law as expounded by his nephew; for, although it may appear very strange in England, that the inclinations of persons in such elevated situations should be biassed by personal interest, this was too frequently the case in South America.

CHAPTER II.

Second Revolution at Quito....Massacre of the Prisoners....General Meeting held....Spanish Troops leave Quito....Revolution at Santa Fé....Arrival of Don Carlos Montufar at Quito....Arredonda invades Quito....Arrives at Huaranda....Flies from....Montufar marches towards Cuenca....Desists from attacking the City....Returns to Quito....My Appointment to Esmeraldas....Capture and Escape....General Montes enters Quito....Death of Montufar....Quito taken by General Sucre.

After the departure of San Miguel for Santa Fé many of the soldiers who had belonged to the insurgent army returned to the city, supposing that the prosecution had closed; but they were apprehended, and sent to the presidio. Several individuals also who came from different parts of the country were apprehended on suspicion, and, although they were liberated after examination, the alarm flew from one place to another, so that none would bring their produce to market, and a consequent dearth of provisions began to be experienced in the city. This, instead of producing conciliatory measures for procuring them, enraged the Spanish soldiers, who committed several depredations, and the injured individuals through fear abstained from complaining to the officers, or if they ventured to do it, they were insulted with the epithets of rebels, insurgents, and traitors. Thus the evil increased daily till the second of August, 1810, when some of the soldiers confined in the presidio surprized the guard, and depriving them of their arms, and putting on their uniforms, ran to the barracks at one o'clock in the afternoon; the disguise prevented all suspicion on their approach, and they succeeded in driving the sentry from his post at the door, and securing the officer of the guard: at this moment a bell was rung in the steeple of the cathedral, as an alarm: the officers who had just sat down to dinner in the palace rushed into the plasa mayor, and observing a considerable degree of commotion at the door of the barracks not fifty yards from that of the palace, the guard was ordered to fire on those at the barracks, which firing was returned by the opposite party. This lasted about ten minutes, when, all being silent, an officer ran to the barracks to inquire into the cause of the

disturbance: on being informed of what had taken place, as well as that all was then safe, he returned with the report to his commandant, Arredonda. Another officer was immediately sent to inquire into the state of the prisoners, and he as briefly returned with the news, that they were all dead. Some had been shot during the uproar by the sentries placed over them, and many had been murdered by a zambo boy, one of the cooks to the soldiers, who had entered their cells, and despatched them with an axe. Terror and consternation for a moment were visible in the countenances of the president and officers, when, on a sudden, the Spanish soldiers rushed from the barracks into the streets, shouting revenge! revenge! our captain is murdered. Scarcely was the alarm given, when the infuriated soldiers abandoned their posts, and running up and down the streets, murdered every individual they met with, without distinction either of age or sex: the drums in different parts of the city beat an advance, and murder and pillage raged in this horrid manner till three o'clock, all the officers standing on the esplanade of the palace, without making any effort to check the massacre: at length, the soldiers having expended their stock of cartridges began to return to the barracks, some of them so laden with plunder, that they had left their arms they knew not where.

The number of prisoners confined in the cells, many of whom were secured with irons, and who fell a sacrifice to the insubordination of the soldiery, and the imbecility of the officers, was seventy-two; a clergyman of the name of Castelo, and an individual of the name of Romero, were the only prisoners that escaped, and they saved their lives by feigning to be dead. Morales, Quiroga, Riofrio, and Salinas perished; but to the memory of these, and their fellow sufferers, the government of Venezuela ordered a day of mourning to be kept annually; thus paying to them the greatest possible respect; they also afterwards determined to call them the martyrs of Quito. In the streets of Quito about three hundred individuals perished, including seven of the Spanish soldiers, who were killed by some indian butchers, whom they had repeatedly insulted. Such was the fury displayed by the pacifying troops, that a party of them having met a captain in his uniform, who belonged to the Guayaquil cavalry, a soldier seized the sword of his captain, and ran him through the body with it, laying him weltering in his gore not fifty yards from the door of the barracks.

No powers of language can describe the anxiety which this dreadful affair excited in the minds of the inhabitants, who, ignorant of the origin, considered it as an unprovoked slaughter of their countrymen, and consequently dreaded that it might be again repeated in the same manner. Only five of the soldiers who left the presidio entered the barracks—had twenty entered, they would doubtlessly have succeeded in liberating the prisoners; but these were murdered while those were engaged with the guard at the door.

The streets of the city were entirely deserted; groups of people were scattered about on the neighbouring hills, looking wistfully at their apparently desolated town; dead bodies were strewn about the streets and squares, and all was horror and dismay. During the night the bodies of the prisoners were conveyed to the church of San Augustin, and those that were murdered in the streets, to the nearest churches. The two succeeding days, the third and the fourth of August, the inhabitants kept within their houses, and, except the soldiers, not an individual ventured into the streets. The government now began to fear that the whole of the provinces would rise *en masse*; and as the news of the revolution at Caracas, which took place on the nineteenth of April, 1810, had reached their ears, this, with their ignorance of what was passing in the mother country, except that Bonaparte had taken possession of Madrid, suggested to them an effort at reconciliation, but without in the least reflecting on their own baseness and treachery, in having violated the conditions which had replaced the president in his authority, and thus branded themselves with the name which they most justly deserved, that of *infames traidores*, INFAMOUS TRAITORS.

On the fifth an order was published for the heads of all the corporate bodies, officers, and principal inhabitants to meet at the palace, and resolve on such means as were most likely to restore peace, tranquillity, and confidence to the country. Accordingly the persons who were summoned met; the president took the chair, having the Bishop on his right, and Colonel Arredonda on his left, the Regent, oidores, fiscals, attorney-general, and other officers and persons of distinction took their seats. The president rose, and in very few words expressed his sorrow for what had happened, and his sincere wish to restore peace and unanimity among the people. The Bishop in a short speech answered, that he was afraid such wishes would never be

fulfilled, until those persons who had advised his Excellency to forget his promises made to the people were removed from that part of the country. Arrechaga rose and observed, that his lordship recriminated on his conduct; to which the prelate replied, that years and dignity precluded any recrimination on Don Arrechaga from him. This debate induced the president to request, that Arrechaga would leave the hall, which request was reluctantly complied with; although such a rebuff from the Bishop would only four days before that of the meeting have shewn him the way to a dungeon.

Dr. Rodrigues, a secular priest, greatly revered for his wisdom and his virtue by all who knew him, rose from his seat, and, advancing to the centre of the hall, delivered a most eloquent and animated speech, which lasted for more than an hour. He portrayed the character of the Quiteños in general, explained the causes of the late revolution with evangelical charity, and dwelt on the fatal results with the truest symptoms of grief, in such a manner, that, not through sympathy but sensibility, conviction, shame, and remorse, the big tear flowed down the cheeks of his hearers. He concluded by repeating what his prelate had said, and added further, that the people of Quito could no longer consider their lives and property secure, unless those individuals who had so lately forfeited their title of pacificators were removed from the country. "I allude," said he, "to the officers and troops; they have already made upwards of three hundred unoffending fellow-creatures, as faithful Christians and as loyal subjects as themselves, the peaceful tenants of the grave, and, if not stopped in their career of slaughter, they will soon convert one of the most fruitful regions of the Spanish monarchy into a desert; and future travellers, while execrating their memory, will exclaim, 'here once stood Quito!'"

Don Manuel Arredonda, trembling for his personal safety, now rose. He observed, that he was fully convinced the government of Quito ought to rely on the loyalty of the Quiteños, and allow *him* to retire with the troops under his command. This was immediately agreed to, and the act of the meeting having been drawn up, was signed by the President, the Bishop, the Commander of the troops, and several other members. Preparations for the evacuation of the city immediately commenced, and the troops under the command of Arredonda began their march on the following morning, leaving the two hundred soldiers from Santa Fé and the government to the

mercy of a populace driven almost to despair by their cruel and murderous conduct.

A few days after the departure of Arredonda and the soldiers, Dr. San Miguel returned from Santa Fé, bringing tidings of an insurrection having taken place in that city. It commenced on the twenty-third of July, 1810, the day before the arrival of San Miguel with his cargo of papers. When he presented himself before the new authorities at Santa Fé, he was commanded to repair to the plaza mayor with his papers, and here he was ordered to deliver them into the hands of the hangman, who immediately committed them to the flames. Thus a trial was concluded, which, perhaps, in point of infamous intrigue was unparalleled in any age or nation; and had the conductors of it suffered a similar fate at the same time, numbers of Americans would have had just cause to have been satisfied. The return of San Miguel only served to throw the government of Quito into greater consternation, and the citizens who had lost their relatives or their friends on the second of August into deeper sorrow.

The insurrection of Santa Fé was conducted, like that of Quito, without any bloodshed; the news of the commission conferred on Villaviencio by the central junta of Spain, to visit his native place, and to make any such alterations in the form of the government as might appear necessary for the preservation of the country, had arrived at Santa Fé. The friends of this American wished to prepare a house for his reception; one of them begged the loan of a chandelier of a European Spaniard, who, chagrined at the idea of a royal commission having been conferred on a colonist, insulted the borrower; this conduct produced an altercation between the parties, a mob collected at the door, the Spaniard attempted to drive the people away with threats and insults, which at last produced a cry of *Cabildo Abierto!* an open meeting at the City Hall. Scarcely had the shout been re-echoed by the mob, when it was extended to every part of the city, and *Cabildo Abierto* became the watchword. Crowds of people flocked to the plaza mayor, the doors of the town hall were thrown open, and several individuals, all natives, ranged themselves round the table. At this juncture some one advanced to the door, and asked the populace why they had collected in that manner, at this particular time? Some one answered, *queremos gobierno nuevo, fuera Españoles!* We want a new government—out with the Spaniards! Nariño was then sent to request the presence of the Viceroy Amar, as president of

the meeting. His excellency refused; a second message was sent, and met with the same refusal: this conduct exasperated the people, and the cry of *fuera Españoles! fuera chapetones!* again resounded from every quarter. A third messenger was shortly after sent to inform Don Antonio Amar, that his functions, with those of all European Spaniards in the government, had ceased. Amar now volunteered to go and preside at the meeting; but he was told, that only his baston of command was requested; this, after a little altercation, he delivered up. The new government took possession of the barracks, the park of artillery, and the government stores. The ex-vice-roy and some of the ex-oidores were sent to Carthagená to be embarked for Spain. In one day the change in the government was completed, and on the following the people retired to their several homes and occupations in the most perfect order, after witnessing the public burning of the papers brought by San Miguel.

In the month of September of the same year, Don Carlos Montufar, son to the outlawed Marquis of Selva Alegre, who with several others had again presented himself publicly in Quito, arrived, bringing with him powers from the central junta of Spain, to establish such a government, or make such changes in the one existing, as might ensure the allegiance of the country to Ferdinand on his restoration. The joy which this arrival would have occasioned a short time before it took place was considerably damped by the recollection of the second of August. However, to support, and as it were to exculpate the conduct of the government with respect to the treatment of the unfortunate victims who had perished on that day, Montufar and his friends determined on re-establishing the junta. A meeting was convened at the hall of the university, at which the Count Ruis presided; the commission conferred on Montufar was read, and the formation of a junta proposed, which was immediately agreed to. The Count Ruis was nominated president, and the Marquis of Selva Alegre vice-president; the members for the city were elected by the five parishes, and those for the country by the parishes of the heads of the provinces.

Don Carlos Montufar, desirous of preserving tranquillity, and maintaining a good understanding with the Viceroy of Peru in particular, immediately forwarded to his Excellency Don Jose de Abascal his original commission; but the innovation was so great, and the decrease of Spanish authority so alarming to the Viceroy, that he returned the papers with an assurance, that

he "should exert himself in the support of his own authority, and that of all the faithful subjects of the crown of Spain." This imprudent and ill-timed answer, accompanied by a knowledge of the present state of affairs in Santa Fé and Venezuela; of the revolt of San Miguel and el Valle de los Dolores in Mexico, which took place on the nineteenth of August; of that of Buenos Ayres on the twenty-sixth of May, 1819; together with the condition of the mother country—distracted the attention of the Spaniards, and first disseminated the whisper of Independence: a whisper which was confined to private conversations, and was heard only among the higher classes.

Colonel Arredonda and his troops were at first ordered to remain at Guayaquil; but on the arrival of the news communicated by the newly-established government of Quito, he was commanded to invade the territory belonging to that jurisdiction, and to declare war against the newly-established authorities, as being traitors to the Crown of Spain. At the same time that Arredonda began his march, Montufar collected the armed force of Quito, began to discipline new troops, and proceeded with them to Riobamba. Popayan and Pasto, under the influence of Samano the governor of the former place, declared their adherence to the old government, and avowed their intention of invading Quito to the northward, while Arredonda should attempt the same to the southward. A few troops placed by Montufar at Guaitara precluded all fear with regard to Samano, and Montufar waited at Riobamba the advance of Arredonda.

A sentinel placed at an advanced post at the Ensillada was alarmed early one morning by a sudden report, caused by the ice on Chimboraso, which, when the rising sun first illumines it, sometimes cracks with a tremendous report. Alarmed at what he heard, he abandoned his post, and communicated intelligence of the approach of Montufar with a train of artillery. Arredonda was now filled with the greatest possible consternation, and without waiting to inquire into the cause of the alarm, or to investigate the report, he mounted his horse, and fled: the officers and soldiers followed the example of their chief, and, leaving every thing behind them, placed their safety in their heels. Montufar, being immediately apprised of what had passed at Huaranda, Arredonda's late head quarters, went and took possession of the abandoned stores, consisting of eight hundred muskets, six field-pieces, a quantity of ammunition, the military chest, and all the public as well as private property belonging to the tropas pacificadoras.

The city of Cuenca declared its attachment to the royal cause, as it now began to be called, in opposition to the insurgents, and Montufar, flushed with his good fortune at Huaranda, marched towards that city; the Bishop, Quintian Aponte, who with a crucifix in one hand and a sword in the other had marshalled the natives, and exhorted them with more than pastoral eloquence, fled on receiving advices that the insurgents were within ten leagues of the city, and left his flock at the mercy of the very man whom he had described the day before as a ravenous wolf.

In this state of affairs, when every thing seemed to promise success to the insurgents, a post arrived from Spain, bringing the news of the dissolution of the junta central, and the formation of a Regency and Cortes, and commanding all his Majesty's faithful subjects to abjure the traitorous junta, and to take the oath of allegiance to the newly-constituted authorities. An order of the Regency commanded that every thing in the colonies should remain in the same state in which it might then be, until the Regency and the Cortes should decide. Carlos Montufar, on the receipt of this intelligence, communicated to him by the Viceroy of Peru, answered his excellency, that as a loyal subject, and trusting that the conduct of his excellency would evince equal loyalty and deference to the supreme order received, he should immediately retire to Quito with the troops under his command.

A small detachment of soldiers continued on the heights of Guaitara, and every thing in Quito remained tranquil until the middle of November, when General Molina arrived at Cuenca, and, by the order of the Viceroy Abascal, peremptorily insisted on the dissolution of the junta, which was objected to. Captain Villavicencio arrived from Guayaquil to treat with the government on the proposals made by General Molina, and such was the spirit of party, and the dread of again being oppressed by pacifying troops, that on the arrival of Villavicencio, a woman, named Salinas, a servant to Captain Salinas, who was murdered on the second of August, collected a body of females, who armed themselves with lances, and escorted Villavicencio to the house prepared for him, where they remained on guard till he quitted the city. Nothing could be more ridiculous than the appearance of this naval hero when he had to attend the meeting of the junta, marching along the street with an Amazonian guard, composed of twenty-five females with lances, who conducted him to and from the hall.

During the time that Montufar was absent from the city with the troops, several popular commotions took place, particularly of the indians; these were principally excited by a native of the name of Peña, who had had a son slain in the massacre of the second of August. During this time, the Oidor Fuertes and the postmaster-general attempted to escape, with an intention of proceeding down the Marañon, but they were seized by the indians, brought back to Quito, and before the respectable part of the inhabitants could relieve them from the danger in which they were placed, the indians erected a temporary gibbet in the plaza mayor, and hanged them: being in the street myself, the indians seized me also, and were hurrying me along towards the place of execution, but I was providentially rescued by the interference of an old clergyman, to whom I was known, and to whom I undoubtedly owe the preservation of my existence.

The adherence of Popayan and Pasto to the Spanish governors precluded all communication between Quito and Santa Fé, Venezuela, and other places. The junta determined to open a communication by the coast with Cali and Buga, and also with those parts of the country which had established the same form of government as themselves. Owing to the knowledge which I had acquired of the coast, the title of governor of Esmeraldas, and military commander of the coast, with the rank of lieutenant-colonel of artillery was conferred on me; and on the fifth of December I left Quito with fifty soldiers, took possession of my command, opened the communication, and secured the depôt of arms belonging to the Spaniards at Tumaco.

During my residence on the coast of Esmeraldas, nothing particular occurred in the capital, except preparations for defence: General Molina died at Cuenca, and the Bishop of Cuenca at Guayaquil. Aymerich, the governor of Popayan, solicited a brig of war, which was sent by the governor of Guayaquil; with this assistance Esmeraldas was invaded, and I was taken prisoner in May, 1811; but with the permission of Captain Ramires I made my escape from the brig. Don Toribio Montes was appointed by the Regency president of Quito, and immediately took the command of the troops stationed at Guayaquil and Cuenca, and began his march on Quito. The president, Count Ruis, retired to a small convent in the suburbs of Quito; but a popular commotion of the indians in the city occurred, a party of them went to the convent and dragged the venerable good old man into the street, where they murdered him. Montes had a few

skirmishes with the Quiteños; but he entered the city, and caused several of the principal individuals who had been concerned in the late transactions to be put to death. Among these was Don Carlos Montufar, who, being sentenced as a traitor, was shot through the back, his heart taken out and burnt. Some of the indians who had been the ringleaders in the death of the Count Ruis were hanged, and their heads placed in iron cages in different parts of the city, where they remained until taken down by order of General Sucre.

From the year 1811 Quito continued to be governed by the Spanish authorities, till May, 1822, when General Sucre entered by force of arms, and at that time it became a part of the republic of Colombia.

CHAPTER III.

State of Lima in 1811....Constitution proclaimed....Some Effects of....Wishes of the Inhabitants of Lima....Manifest of Venezuela.

On my arrival in Lima I found the same spirit of revolutionary principles disseminated among all ranks of creoles, excepting some few individuals who possessed lucrative employments under the government. The Viceroy Abascal endeavoured to check the spirit of rebellion by the mildest measures possible, avoiding all acts of persecution; he established a regiment, called *de la Concordia*, of concord, from the respectable inhabitants of the city, constituted himself the colonel of it, and nominated the officers from among the more leading individuals, whether Spaniards or creoles: this for a short time lulled the spirit of insurrection. The victory of Guaqui, gained by General Goyoneche over the army of Buenos Ayres, was welcomed with feasts and rejoicings; but the scarcity of wheat, the ports of Chile being closed, began to be very apparent.

In 1812 the constitutional government was proclaimed, and copies of the constitution of the Spanish monarchy were the only books that were read, consulted, and studied by all classes. The formation of a constitutional corporation, cabildo, and the election of constitutional alcaldes, caused some uproar in the city; but the measures became alarming to the Spaniards when the election of deputies for the cortes took place. The Spaniards, accustomed to consider the natives as inferiors, and almost as intruders in their own country, had now to brook their contempt in return, to bear with their opposition, and sometimes with their reproaches. The poll was conducted in the patio, or principal cloister of the convent of La Merced; several collegians of San Carlos placed themselves on the hustings, and, according to the *Ley de Partido*, no native of Spain is permitted to reside in the colonies without a special license of the Casa de Contratacion of Seville, or in the employ of the government, and the latter were declared by the constitution, tit. 2, cap. iv. art. 24, to have no vote. Thus as no Spaniards in Lima could produce a license, or passport, they were not allowed to vote; and this excited in them the most frantic rage and chagrin. One Spaniard

presented himself with his passport, and insultingly advanced towards the hustings to vote; but one of the collegians, looking over the paper, found that the voter was a native of the Canary Islands, which being African islands, and all Africans, or descendants of Africans, being declared by art. 22, tit. 2, cap. IV. of the constitution, as not having an elective vote, unless they had obtained a letter of denizenship from the cortes, he was obliged to retire amid the shouts of the creoles, and the curses against the cortes of the Spaniards.

Nothing could possibly be more favourable to the colonies than the publication of a constitutional form of government, and the liberty of the press, as it was sanctioned by the cortes. The restrictions were such as would have produced a clamour in England, but to a slave an hour of rest is an hour of perfect freedom, and to men whose pens had been chained by political trammels and inquisitorial anathemas, a relief from such restrictions was hailed as an absolute immunity. Those colonies that still remained faithful to the mother country had an opportunity of reading the periodical papers, a thing unknown at this time, unless we except the government gazette; and although such news as was unfavourable to the Spanish system did not appear in print, yet the barefaced falsehoods of the old ministerial paper were checked in their exaggerations, by the appearance of authentic intelligence in the new papers, and the public were informed of such facts as had taken place: they were apprised of the establishment of republican governments in Mexico, Colombia, Buenos Ayres, and Chile—facts that would have been disguised by the old established authorities, and the people would have been stigmatized by the name of banditti, of discontented indians, a gang of traitors, or a horde of highwaymen and freebooters.

The inhabitants of Lima wished for a change in their form of government as ardently perhaps as those of any other part of America; and for not having established one, they have been considered by many as a race of effeminate listless cowards, and have been reported as such—but most undeservedly. Although in a cause adverse to their own interest, for many years they sustained the brunt of the war against all the forces that could be brought to the field by those whom they were taught to consider as enemies. Soldiers are instructed by the precepts and the examples of their commanders, and rarely reflect on what is right or wrong; otherwise history would not present

us with such numberless instances of armed forces acting in open hostility against their very homes, their friends, and their parents; wherever a city is garrisoned by a military force, the inhabitants as well as the soldiers must submit to the will of the commanders. Such was the state of Lima: many of the soldiers it is true were Limeños, but many were from different parts of Peru, and nearly the whole of the officers were Spaniards, and those who were not were under the suspicious eye of jealous masters.

At first, the several provinces that revolted, and which had established new governments, most solemnly declared, that it was not their intention to separate from the crown of Spain, but to govern themselves in such a manner as would secure to that crown the possession of America. The Regency of Spain, however, invested with the authority to govern the peninsula, insisted on the prerogative of governing the American colonies, forgetting that the famous grant of America made by Pope Alexander VI. annexed America to the crowns of Castile and Arragon, and not to the nation nor to any representative body belonging to that nation. Every individual that was apprehended during the first years of commotion was treated as a traitor. At Quito the words "constituted authorities" contained in the oath which was administered were converted into high treason, and there is no doubt but Arrechaga would have solicited the sentence of capital punishment on all those who had taken it, had not their number included many of his friends.

Declarations of independence, and manifestos containing the motives for at once separating from the mother country, now began to circulate among the natives of Peru; and although some of them contained exaggerations, and the government of Lima became possessed of copies of them, yet such was the apathy or the timidity of the chiefs, that no attempt at refutation was ever made. The following are translations of papers from Venezuela, which fully express all the grievances of which the Hispano-Americans complained. They were drawn up for the purpose of instilling into the minds of their countrymen a determination to shake off those grievances, and to convince the world at large that the insurrection of the Spanish colonies had become a matter of necessity and not of choice:

"Manifesto made to the world by the confederation of Venezuela in South America, of the reasons on which it founds its absolute independence of

Spain, and of every other foreign power. Done by the general Congress of the United States, and ordered to be published.

"Spanish America, condemned for more than three centuries to exist only for the purpose of increasing the political preponderance of Spain, without the least influence in, or participation of her greatness, would, according to the order of events in which she had no other part than that of sufferance, have been the victim and the sacrifice of the disorder, corruption, and conquest, which have disorganized the nation her conqueror, if the instinct of self-preservation had not dictated to the Americans, that the moment of action had arrived, and that it was time to reap the fruits of three centuries of patience and forbearance.

"If the discovery of the new world was to the human race an occurrence highly interesting, the regeneration of this same world, degraded from that period by oppression and servitude, will not be less so. America, raising herself from the dust, and throwing off her chains without passing through the political gradations of other countries, will in her turn triumph over the world, without deluging it in blood, without enslaving it, without brutifying it. A revolution most useful to mankind will be that of America, when she shall constitute her own authorities and govern herself, opening her arms to receive those people of Europe who may be trampled on by policy, wish to fly from the evils of war, or escape the persecution and the fury of party. The inhabitants of one hemisphere will then cross the ocean to the other in search of peace and tranquillity; not with the lust nor perfidy of conquest, like the heroes of the sixteenth century—as friends, not as tyrants: as men willing to obey, not as lords to command—not to destroy, but to save—not as ravenous tigers, but as human beings, who, horror-struck at the account of our past misfortunes, were taught to estimate them by their own—who will not convert their reason into a spirit of blind persecution, nor wish to stain our annals with blood and misery. Then shall navigation, geography, astronomy, industry, and trade perfected by the discovery of America, though until now the source of her debasement, be converted into the means of accelerating, consolidating, and making more perfect the happiness of the two worlds.

"This is not a flattering dream, but the homage of reason to prudence, whose ineffable wisdom designed that one part of the human race should

not groan under the tyranny of another; consequently, the great fiat of what should precede the dissolution of the world could not take place before one part of its inhabitants had enjoyed their inherent rights. Every thing has long been preparing for this epoch of felicity and consolation. In Europe the shock and the fermentation of opinions, the contempt and the inversion of the laws; the profanation of those bonds which ought to have held states together; the luxury of courts, the cessation of industry, the consequent unproductiveness of lands, the oppression of virtue, and the triumph of vice accelerated the progress of evil in one world, while the increase of population in America, of the wants of foreign countries dependent on her, the development of agriculture in a new and fertile soil, the germ of industry under a beneficent climate, the elements of science under a privileged organization, the means of a rich and prosperous trade, and the strength of a political adolescence, all, all contributed to accelerate the progress of good in the other.

"Such was the advantageous alternative that enslaved America presented to her mistress, Spain, on the other side of the ocean, when oppressed by the weight of every evil, and undermined by every principle destructive to society, America called upon her to ease her of her chains that she might fly to her succour. Fortunately prejudice triumphed, the genius of evil and disorder seized on the government, goaded pride usurped the seat of prudence; ambition triumphed over liberality, and substituting deceit and perfidy for generosity and integrity, those very arms were turned against us which we ourselves used when impelled by fidelity and good faith; we taught Spain herself the way to resist her enemies, under the banners of a presuming king, unfit to reign, and void of all title except the generous compassion of the people and his own misfortunes.

"Venezuela was the first in the new world to pledge to Spain that generous aid which she considered as a necessary homage; Venezuela was the first to pour the consoling balm of friendship and fraternity into her wounds when afflicted; Venezuela was the first that knew the disorders which threatened the destruction of Spain; she was the first to provide for her own safety, without severing the bonds that linked her to the mother country; the first to feel the effects of her ambitious ingratitude; she was the first on whom war was declared by her brethren; and she is now the first to recover and declare her independence and civil dignity in the new world. In order to justify this

measure of necessity and of justice, she considers it an incumbent duty to present to the universe the reasons which have urged her to the same, that her honour and principles may not be doubted, nor endangered when she comes to fill the high rank which Providence restores her to.

"All those persons who are aware of our determinations know what was our fate previous to the late inversion of things, which alone dissolved our engagements with Spain, even granting that these were legal and equitable. It would be superfluous to present again to impartial Europe the misfortunes and vexations she has so often had cause to lament, at a time when we were not allowed to do so; neither is it necessary to assert the injustice of our dependence and degradation, when every nation has viewed as an insult to political equity, that Spain unpeopled, corrupted, and plunged into a state of sloth and indolence by the measures of a despotic government, should have exclusively usurped from the industry and activity of the rest of the continent, the precious and incalculable resources of a world constituted in the fief and monopoly of a small portion of the other.

"The interest of Europe cannot oppose the liberty of one quarter of the globe, which now discovers itself to the interest of the other three; yet a mere peninsula is found to oppose the interests of its government to those of its nation, in order to raise the old hemisphere against the new one, since the impossibility of oppressing it alone for any longer period is now visible. In opposition to these endeavours, more fatal to our tranquillity than to our prosperity, we will disclose to the world the causes which operated on our conduct on the fifteenth of July, 1808, and the acts that have wrested from us the resolutions of the nineteenth of April, 1810, and of the fifth of July, 1811. These three epochs will form the first period of the glories of regenerated Venezuela, when the impartial pen of history shall record the first lines of the political existence of South America.

"Our manifests and public papers testified almost all the reasons that influenced our resolutions, as well as our designs, and all the just and decorous means that were employed to realize them; it might be supposed that an exact and impartial comparison of our conduct with that of the late governments of Spain would of itself suffice to justify not only our moderation, not only our measures of security, not only our independence, but also even the declaration of an irreconcilable enmity to those who

directly or indirectly have contributed to the unnatural system now adopted against us. Nothing in truth should we have to do if good faith had been the spring of action, used by the partisans of oppression against liberty; but, as the last analysis of our misfortunes, we cannot extricate ourselves from the condition of slaves without being branded with the disgraceful epithets of ungrateful rebels. Let those therefore listen and judge us who have no part in our misfortunes, and who are now desirous of having none in our disputes, in order not to augment the prejudices of our enemies, and let them not lose sight of the solemn act of our just, necessary, and modest emancipation.

"Caracas was apprised of the scandalous scenes which took place at the Escorial and Aranjues at a time when she was already convinced of what were her rights, and the state in which they were placed by those extraordinary occurrences; but the habit of obedience on the one hand, the apathy that despotism had produced on the other, and in fine our fidelity and good faith, were at that moment paramount to every other feeling. After the communication of Murat, the kingly substitute of Joseph Bonaparte, had reached the capital of the monarchy, the authorities did not even hesitate respecting the reception of it, the people only thought of being faithful, consistent, and generous, without premeditating on the evils to which this noble and gallant conduct would expose them. Without any other view than that of honour, Venezuela refused to follow the opinions of the leading characters in Madrid, some of whom, in support of the orders of the French Regent of the kingdom, exacted of us the oath of allegiance to the new king; others declared and published that Spain had received a new existence since her old authorities abandoned her, since the cession made by the Bourbons and the entrance of the new dynasty; that they had recovered their absolute independence and liberty, and that they offered the same alluring terms to the Americans, who by the same means might procure the same rights. But the first step we took for our own security convinced the junta central that there was something in us besides habits and prejudices, and they began to change their tune respecting liberality and sincerity; they perfidiously adopted the talisman Ferdinand at first practised in good faith; they suppressed, but with cunning and suavity, the plain and legal project of Caracas in 1808 to form a junta, and to imitate the representative system of the governments of Spain; and they began to set up a new species of

despotism under the factitious name of a king, acknowledged only from a principle of generosity, and destined to oppress and tyrannise us by those who had usurped the sovereignty.

"New governors and judges initiated in the new system projected by Spain against America, decided in the support of it at our expense, and provided with instructions for even the last political change which might occur in the other hemisphere, were the consequences resulting from the surprize that our unparalleled and unexpected generosity caused to the central junta. Ambiguity, artifice, and disorder were the springs employed to keep in motion this short-lived administration: as they saw their empire exposed and tottering, they wished to gain in one day what had enriched their ancestors for many years; and as their authority was backed by that of their parasites, all their endeavours were directed to the support of each other under the shadow of our illusion and good faith. No statute or law against these plans was effective; and every measure that favoured the new system of political freemasonry was to have the force of law, however opposed it might be to the principle of equity and justice. After the declaration of the Captain-general Emparan made to the *audiencia*, that in Caracas there was no other law nor will but his own, and this fully demonstrated in several arbitrary acts and excesses, such as placing on the bench of the judge the King's accuser-general; intercepting and opening the papers sent by Don Pedro Gonsales Ortega to the central junta; expulsing from the provinces this same public functionary, as well as the captain, Don Francisco Rodrigues, and the assessor of the consulate, Don Miguel Jose Sanz, who were all embarked for Cadiz or Porto Rico, as well as sentencing to labour in the public works without any previous form of trial a considerable number of men, who were dragged from their homes under the epithet of vagrants; revoking and suspending the resolutions of the royal audience, when they were according to his caprice and absolute will, after naming a recorder without the consent of the corporation; creating and causing the assessor to be received without either title or authority for the same, after he had supported his pride and his ignorance in every excess; after many scandalous disputes between the audience and the corporation, and after all the law characters had been reconciled to the plan of these despots, in order that these might be more inexpugnable to us, it was agreed to organize and carry into effect the project of espionage and duplicity.

"Of all this there remains authentic testimony in our archives, notwithstanding the vigilance with which these were examined by the friends of the late authorities: there exists in Cuenca an order of the Spanish government to excite discord among the nobles and among the different branches of American families. There are besides many written and well-known documents of corruption, gambling, and libertinism promoted by Guevara, for the purpose of demoralizing the country; and no one can ever forget the collusions and subornings publicly used by the judges, and proved in the act of their residencia.

"Under these auspices the defeats and misfortunes of the Spanish armies were concealed. Pompous and imaginary triumphs over the French on the peninsula were forged and announced; the streets were ordered to be illuminated, gunpowder was wasted in salutes, the bells announced the rejoicings, and religion was prostituted by the chanting Te Deums and other public acts, as if to insult Providence, and invoke a perpetuity of the evils we groaned under. In order to allow us no time to analyze our own fate, or discover the snares laid for us, conspiracies were invented, parties and factions were forged in the imagination of our oppressors, every one was calumniated who did not consent to be initiated in the mysteries of perfidy; fleets and emissaries from France were figured as being on our seas, and residing among us; our correspondence with the neighbouring colonies was circumscribed and restricted; our trade received new fetters, and the whole was for the purpose of keeping us in a state of continual agitation, that we might not fix our attention on our own situation and interests.

"When our forbearance was once alarmed, and our vigilance awakened, we began to lose all confidence in the governments of Spain and their agents; through the veil of their intrigues and machinations we perceived the horrid futurity that awaited us; the genius of truth, elevated above the dense atmosphere of oppression and calumny, pointed out to us with the finger of impartiality the true fate of Spain, the disorders of her governments, the unavailing energy of her inhabitants, the formidable power of her enemies, and the groundless hopes of her salvation. Shut up in our own houses, surrounded by spies, threatened with infamy and banishment, scarcely daring to bewail our own situation, or even secretly to complain against our vigilant and cunning enemies; the consonance of our blinded sighs exhaled in the moments of the most galling oppression, at length gave uniformity to

our sentiments and united our opinions. Shut up within the walls of our own houses, and debarred from all communication with our fellow-citizens, there was scarcely an individual in Caracas who did not think that the moment of being for ever free, or of sanctioning irrevocably a new and horrid slavery, had arrived.

"Every day discovered more and more the nullity of the acts of Bayonne, the invalidity of the rights of Ferdinand, and of all the Bourbons who were privy to the arrangements; the ignominy with which they delivered up as slaves those who had placed them on the throne in opposition to the house of Austria; the connivance of the head functionaries in Spain to the plans of the new dynasty; the fate that these same plans prepared for America, and the necessity of forming some resolution that might shield the new world from the calamities which from its relations with the old were about to visit it. All saw their treasures buried in the unfathomable disorders of the peninsula; they wept for the blood of Americans spilt in defence of the enemies of America, in order to support the slavery of their own country. Notwithstanding the vigilance of the tyrants, all saw the very interior of Spain, where they beheld nothing but disorder, corruption, factions, misfortunes, defeats, treacheries, dispersed armies, whole provinces in the hands of the enemy and their disciplined troops, and at the head of all a weak and tumultuary government formed out of such rare elements.

"Dismay was the general and uniform impression observed in the countenances of the people of Venezuela by the agents of oppression sent from Spain to support at any hazard the infamous cause of their constituents; a word might cause proscription, or a discourse banishment to the author; and every attempt to do in America what was done in Spain, if it did not shed the blood of the Americans, it was at least sufficient to occasion the ruin, infamy, and desolation of many families, as may be seen by the act of proscription of several officers and citizens of rank and probity, decreed on the twentieth of March, 1810, by Emparan.^[1] Such a miscalculation could not fail to produce or multiply the convulsions, to augment the popular reaction, to prepare the combustible, and dispose it in such a manner that the least spark would kindle it, and create a blaze that would consume, and even efface every vestige of so hard and melancholy a condition. Spain needy and almost desolate, her fate dependent on the generosity of America, and almost in the act of being blotted out from the

list of nations, appeared as if transported back to the sixteenth or seventeenth centuries, she again began to conquer America with arms more destructive than iron or lead; every day gave birth to some new proof of the fate that awaited us, a fate that would place us in the sad alternative of being sold to a foreign power, or obliged to groan for ever under a fresh and irrevocable bondage, whilst we alone were expectant on the happy moment that might bring our opinions into action, and join us in such a manner that we could express them, and support them.

"Amidst the sighs and imprecations of general despair, the entrance of the French in Andalusia, the dissolution of the central junta brought about by the effects of public execration, and the abortive institution of another protean government, under the name of regency, reached our ears. This was announced under ideas more liberal, and on perceiving the efforts of the Americans to avail themselves of the opportunity which the vices and nullities of so strange a government presented to them, they endeavoured to strengthen the illusion by brilliant promises, by theories barren of reform, and by announcing to us that our fate was no longer in the hands of viceroys, ministers, or governors; at the same time that all their agents received the strictest orders to watch over our conduct, and even over our opinions, and not to suffer these to exceed the limits traced by the eloquence that gilded the chains forged in the captious and cunning promise of emancipation.

"At any other period this would have sufficed to deceive the Americans, but the junta of Seville, as well as the central junta, had already gone too far in order to remove the bandage from our eyes, and what was then combined, meditated, and polished to subject us again with phrases and hyperboles, only served to redouble our vigilance, to collect our opinions, and to establish a firm and unshaken resolution to perish rather than remain any longer the victims of cabal and perfidy. The eve of that day on which our religion celebrates the most august mystery of the redemption of the human race, was that designated by Providence to be the commencement of the political redemption of America. On Holy Thursday, April nineteenth, 1810, the colossus of despotism was thrown down in Venezuela, the empire of law proclaimed, and the tyrants expelled with all the suavity, moderation, and tranquillity that they themselves have confessed, so much so in fact, as to

have filled with admiration of, and friendship for us the rest of the impartial world.

"All sensible persons would have supposed that a nation recovering its rights, and freeing itself from its oppressors, would in its blind fury have broken down every barrier that might place it directly or indirectly within the reach of the influence of those very governments that had hitherto caused its misfortunes, and its oppression. Venezuela, faithful to her promises, did no more than ensure her own security in order to comply with them, and if with one strong and generous hand she deposed the authors of her misery and her slavery, with the other she placed the name of Ferdinand VII. at the head of her new government, swore to maintain his rights, promised to acknowledge the unity and integrity of the Spanish nation, opened her arms to her European brethren, offered them an asylum in their misfortunes and calamities, equally hated the enemies of the Spanish name, solicited the generous alliance of England, and prepared to take her share of the success or misfortunes of the nation from whom she could and ought to be separated.

"But it was not this that the regency exacted of us, when it declared us free in its theories, it subjected us in practice to a small and insignificant representation, believing that those to whom it considered nothing was due, would be content to receive whatever was granted to them by their masters. Under so liberal a calculation the regency was desirous of keeping up the illusion, to pay us with words, promises, and inscriptions for our long slavery, and for the blood and treasure we had expended in Spain. We were fully aware how little we had to expect from the policy and intrusive agents of Ferdinand, we were not ignorant that if we were not to be dependent on viceroys, ministers, and governors, with greater reason we could not be subject to a king, a captive and without the rights of authority; nor to a government null and illegitimate, nor to a nation incapable of holding sway over another, nor to a peninsular corner of Europe, almost wholly occupied by a foreign force. Nevertheless, desirous of effecting our own freedom by the means of generosity, moderation, and civic virtues, we acknowledged the imaginary rights of the son of Maria Louisa, we respected the misfortunes of the nation, and officially announced to the regency that we disowned, that we promised not to separate from Spain so long as she maintained a legal government, established according to the will of the

nation, and in which America had that part given to her, required by justice, necessity, and the political importance of her territory.

"If three hundred years of former servitude do not suffice to authorize our emancipation, there has been sufficient cause in the conduct of the governments which arrogated to themselves the sovereignty of a conquered nation, which never could have any property in America declared an integral part of the same, whilst they attempted to involve it in conquest. If the governors of Spain had been paid by her enemies, they could not have done more against the felicity of the nation, bound in its close union and correspondence with America. With the greatest contempt of our importance, and of the justice of our claims when they could not deny us the appearance of a representation, they subjected it to the despotic influence of their agents, over our municipalities, to whom the election was committed; and whilst Spain allowed even for the provinces in possession of the French, the Canaries and Balearic islands, one representative for each 50,000 souls, freely elected by these, in America a 1,000,000 scarcely sufficed to have the right of one representative, named by the Viceroy or captain-general, under the signature of the municipality.

"At the same time that we, strong in the right of our own justice and the moderation of our proceedings, hoped that if the reasons we alleged to the regency to convince them of the necessity of our resolution did not triumph, at least that the generous disposition with which we promised not to become the enemy of our oppressed and unfortunate brethren would be successful, dispositions which the new government of Caracas was desirous should not be limited to barren promises; and the unprejudiced and impartial world will know, that Venezuela has passed the time which intervened between April 19th, 1810, to July 5th, 1811, in a bitter and painful alternative of acts of ingratitude, insults, and hostilities on the part of Spain; and of generosity, modesty, and forbearance on ours. This period is the most interesting of the history of our revolution, so much so, that its events present a contrast so favourable to our cause, that it cannot have failed to gain over for us the impartial decision of those nations that have no interest in disparaging our efforts.

"Previous to the result of our political transformation, we received daily new motives sufficiently strong for each to have caused us to do what we

have now done, after three centuries of misery and degradation. In every vessel that arrived from Spain new agents with fresh instructions came to strengthen those who supported the cause of ambition and perfidy. For the very same ends, those Europeans who wished to return to Spain, and assist in the war against the French, received a refusal to their request. On the tenth of April, 1810, the schools were ordered to be closed, to the end, that under the pretence of attending solely to the war, both Spain and America might be sunk deeper into a state of ignorance. It was also ordained, that rights and rewards should be forgotten, and that we should do nothing but send to Spain our money, our men, provisions, productions, submissions, and obedience.

"The public press teemed with nothing but triumphs and victories, with donations and acknowledgments wrested from the people, as yet uninformed of our resolution; and under the most severe threats of punishment, a political inquisition with all its horrors was established against those who should read, possess, or receive papers, not only foreign but even Spanish that were not issued at the manufactory of the regency. Contrary to the very orders of the self-constituted sovereignty, previously issued to deceive us, every bound was over-leaped in the re-election of ultramarine functionaries, whose only merit consisted in swearing to maintain the system contrived by the regency. In the most scandalous and barefaced manner, that order which favoured our trade and encouraged our agriculture was annulled, condemned to the flames, and its authors and promoters proscribed. Every kind of aid was expected of us; but we were never informed of its destination, inversion, and expenditure. In contempt of even a shadow of public faith, and without any exception whatever, all epistolary correspondence from these countries was ordered to be opened, an excess unheard of even under the despotism of Godoy, and only adopted to make the espionage over America more tyrannical. In fine, the plans laid for the purpose of perpetuating our bondage now began to be practically realized.

"In the mean time, Venezuela, free, and mistress of herself, thought of nothing less than imitating the detestable conduct of the regency and its agents: content with having secured her fate against the ambition of an intrusive and illegitimate authority, and shielded it against the blackest and most complicated plans, was satisfied with shewing by positive acts her

desire for peace, friendship, correspondence, and co-operation with her European brethren. All those of this class who were among us, as such were considered, and two-thirds of the political, civil, and military employments, both of the high and middle classes, remained or were placed in the hands of Europeans without any precaution, but with a sincerity and good faith that nearly proved fatal to our own interests.

"Our treasures were generously opened to our enemies, that they might enjoy every convenience and profusion in their passage from our country: the captains of the packets, Carmen, Fortuna, and Araucana were received into our ports, and assisted with money to enable them to proceed on their voyage, and fulfil their respective commissions, and even the insolence and crimes of the captain of the Fortuna were referred to the judgment of the Spanish government. Notwithstanding the junta of government of Caracas made manifest the motives of precaution which obliged them not to expose the public funds which were destined to recover the nation, to the veracity of government they allowed and exhorted the people to be generous, and use their fortunes according to the impulse of their own sensibility, by publishing in the public papers the mournful statement of the regency, in which was portrayed the agonizing state of the nation, with the view to solicit our aid, and the same time that they represented it, through the medium of their public prints, as vigorous, organized, and triumphant; but these were destined to deceive us. The commissioners of the regency sent to Quito,[\[2\]](#) Santa Fé, and Peru were hospitably received, treated as friends, and their pecuniary wants supplied to their own satisfaction. But we lose time in thus analyzing the dark and cunning conduct of our enemies, as all their endeavours have not sufficed to warp the imperious and triumphing impression of ours.

"The arrogant mandataries of our country were not, however, the only persons authorized to support the horrid plans of their constituents; the same uniform and universal mission was brought out by all those who inundated America from the sad and ominous reigns of the junta of Seville, the central junta, and the regency, and under the system of political freemasonry, founded on the Machiavelic pact; they all accorded in mutually substituting, replacing, and assisting each other in the combined plans against the felicity and political existence of the new world. The island of Puerto Rico was immediately made the haunt of all the agents of

the regency; the place of equipment for all the expeditions; the headquarters of all the anti-American forces; the workshop of all the impostors, calumnies, triumphs and threats of the regents; the refuge of all the wicked; the rendezvous of a new gang of bucaniers, in order that there might not be wanting any of the calamities of the sixteenth century in the new conquest of America in the nineteenth. The Americans of Puerto Rico, oppressed by the bayonets, cannons, fetters, and gibbets which surrounded the bashaw Melendes and his satellites, had to add to their own misfortunes the painful necessity of contributing to ours. Such was the fate of the Americans; condemned not only to be galley-slaves, but to be the drivers of each other.

"The conduct observed by Spain to America is harder and more insulting than that which she appears to exercise towards France. It is well known that part of the dynasty, still resisted by part of the nation, has had decided partisans in many of those who considered themselves the first national dignitaries, for their rank, offices, talents, and knowledge; among these may be counted Morla, Azanza, Ofarrill, Urquijo, Masarredo, and many others of every class and profession; but still there has not appeared one of those who so much desire the liberty of independence and regeneration of the peninsula, that has raised his voice in favour of the American provinces. These, therefore, adopting the same principles of fidelity and national integrity, have of their own accord been ambitious of preserving themselves independent of such intrusive, illegitimate, weak, and tumultuary governments, as have been all those that have hitherto called themselves the agents of the king, or representatives of the nation. It is vexing to see so much liberality, so much civism, and so much disinterest in the cortes with regard to disorganized, exhausted, and nearly conquered Spain, and full of so much meanness, suspicion, prejudice and pride, towards America; tranquil, faithful, generous, decided to assist her brethren, when she alone can give reality, at least in the most essential point, to the theoretical and brilliant plans which make the Spanish Congress so arrogant. How many treasons, murders, assassinations, perfidies and convulsions have appeared in Spain; these have passed by as the inseparable misfortunes of circumstances, yet not one of the provinces that surrendered, or was attached to the French domination, has been treated like Venezuela; their conduct must however have been analyzed, and characterised according to reasons, motives, and circumstances that dictated it; this must have been

judged in conformity to the rights of war, and the sentiments of the nation must have been pronounced according to the statements laid before it, but not one of them has yet been declared traitorous, in open rebellion, and unnaturalized as was Venezuela; for none of them has been created a public commission of diplomatic mutineers, to arm Spaniard against Spaniard, to fan the flame of civil war, and to burn and annihilate all that cannot be held in the name of Ferdinand VII. America alone is condemned to endure the until now unheard of condition of being warred upon, destroyed, or enslaved with the very means of assistance which she destined for the liberty and common felicity of the nation of which she was led to believe for a few moments that she constituted a part.

"It appears that the independence of America creates more irritation to Spain, than the foreign oppression that threatens her, for against her are in preference employed measures that have not even been adopted against the very provinces that have proclaimed the new king. The incendiary and turbulent talent of a minister of the council of Indies could not have a more dignified employment than that of again conquering Venezuela with the same arms as those of the Alfingers and the Welzers, those first tyrants of Venezuela, authorized by Charles V., and the promoters of civil war amongst her primitive inhabitants, now re-assumed in the name of a king placed on the throne against the pretensions of the family of him who let out these provinces to the German factors. Under this name of Ferdinand all the sluices of iniquity are opened upon us, and the horrors of conquest are renewed, the remembrance of which we had generously endeavoured to blot out from the memory of our posterity; under this name we are treated with more severity than those who abandoned it before we did; and under this name it is attempted to continue the system of Spanish domination in America, which has been looked upon as a political phenomenon even in the times of the reality, energy and vigour of the Spanish monarchy. And can there be found any law that obliges us to preserve it, and to suffer in its name the torrent of distresses heaped upon us by those who call themselves the agents of the peninsula? By their means this very name obtained the treasures, the obedience, and acknowledgments of America, and by means of their flagitious conduct afterwards, in the exercise of their powers, the name of Ferdinand has lost every consideration amongst us, and

consequently we ought to abandon it for ever. *Ex qua persona quis lucrum capit, ejus factum præstare tenetur.*

"The tyrant of Borrigum (primitive name of Puerto Rico) not content with constituting himself a sovereign, to declare war against us, and with insulting and calumniating us in his flimsy, mean, and self-flattering papers; not satisfied with creating himself the gratuitous gaol-keeper of the emissaries of peace, and confederation sent to him by his comrade Migares from the castle of Zapáras de Maracaibo; because they overturned the plans he had received, and accepted from the regency and the new king of Spain, in exchange for the captain-generalship of Venezuela, purchased at a cheap rate of the regents; not considering such superior merit sufficiently rewarded with the honour of faithfully serving his king; in the most barefaced manner plundered upwards of a hundred thousand dollars from the public funds belonging to Caracas, that had been embarked in the ship Ferdinand VII. in order to purchase stores and military clothing in London, where the insurance was effected; and in order that his insult might be the more complete, he alleged that the Spanish government might waste and misapply them, that England might appropriate them to herself, disowning our resolution, so that in no place they could, or ought to be more secure than in his hands, negotiated by means of his partners in trade, as in fact they were in Philadelphia, adding that an account should be given in when Puerto Rico had conquered Venezuela, when the latter should deliver herself up to the regency, or when Ferdinand VII. should return to reign in Spain. Such it appears were the periods that the governor of Puerto Rico imposed upon himself to render an account of so atrocious and scandalous a depredation; but this is not all that this worthy agent of the regency has done in favour of the designs of his constituents.

"Notwithstanding so much insult, robbery, and ingratitude, Venezuela maintained her resolution, not to vary the principles she had traced out for her conduct; the sublime act of her national representation was proclaimed in the name of Ferdinand VII.; under his phantasmagorical authority all the acts of our government and administration were maintained, though they required no other origin than the people who had constituted them. By the laws and regulations of Spain a horrible and sanguinary gang of European conspirators were tried, and these laws were mercifully infringed to save their lives, in order that the philanthropic memory of our revolution might

not be stained with the blood of our brethren, although they were perfidious. Under the name of Ferdinand, and through the interposition of the bonds of fraternity and patriotism, endeavours were used to inform and reduce the imperious mandataries of Coro and Maracaibo, who kept separated from our interests our brethren of the west; under the auspices of reciprocal interests, we triumphed over the oppressive acts of Barcelona, and under the same we will conquer Guayana, twice snatched from our confederation, as was Maracaibo, against the general wishes of its inhabitants.

"It would appear as if nothing now remained to be done to secure a reconciliation with Spain, or the entire and absolute separation of America, equally as ruinous and calamitous to the one, as it was ungratefully despised by the other party; but Venezuela was desirous of draining every means left within her reach, in order that justice and necessity should leave her no other alternative than that of total independence, which ought to have been declared on the fifteenth of July, 1808, or on the nineteenth of April, 1810. After appealing to sensibility and not to vengeance, in the horrid scenes that took place at Quito, Pose, and La Pas; after beholding our own cause supported by the uniformity of opinions in Buenos Ayres, Santa Fé, the Floridas, Mexico, Guatemala, and Chile; after obtaining an indirect guarantee on the part of England; after having our conduct applauded by impartial individuals in Europe; after seeing the same principles triumph from the Orinoco to the Magdalena, and from Cape Codero to the Andes; we have still to endure fresh insults, before we fly to the extreme of breaking with our brethren for ever.

"Caracas, without having done more than imitate the conduct of many of the provinces of Spain, and practised the rights that the regency declared to appertain to America; without having had in this conduct other designs than those inspired by the necessity of not being involved in an unknown fate, and to relieve the regents from attending to the government of countries as remote as they are extensive, at the same time they protested to attend to nothing but the expulsion of the French from Spain; without having rent her unity and political integrity with Spain; without having disowned as was possible and proper the lame rights of Ferdinand; the regency, far from applauding on the right of convenience, if not of generosity, so just, modest and necessary a resolution, and without even answering or submitting to the

judgment of the nation our complaints and our claims: Caracas is declared in a state of war, her inhabitants are proclaimed rebels and unnaturalized, every communication with her brethren is cut off, England is deprived of her trade, the excesses of Melendes are approved of, and he is authorized to commit whatever the malignity of his heart may suggest to him, however opposed to reason and to justice; all this is proved by the order of the fourth of September, 1810, unparalleled for its enormity even among the despots of Constantinople or Indostan; and not to deviate in the least from the plots of the conquest, a new *encomendero* is sent out, under the title of a pacificator, (pacificador) who with more prerogatives than conquerors and settlers themselves, was to fix his residence in Puerto Rico, and thence to threaten, rob, pirate, promise, deceive, excite civil disturbances, and all in the name of the beloved Ferdinand VII.

"Till then the progress of the system of subversion, anarchy, and depredation, which the regency proposed to itself on hearing of the movements of Caracas, had been but slow; now the principal fears of civil war being transferred nearer to us, the subaltern agents acquired more strength, the flames of passion were increased, as well as the efforts of the parties guided by the directions of Cortavarria and Melendes. Hence originated the incendiary energy acquired by the ephemeral sedition of the west; hence the flame of discord, newly formed by Myares, rendered vain and arrogant by the imaginary and promised captain-general-ship of Venezuela; hence the American blood spilled in spite of ourselves on the plains of Coro; hence the robberies and assassinations committed on our coasts by the commissioned pirates of the regency; hence that miserable blockade, intended to reduce and disaffect our settlements on the coast; hence the insults committed on the English flag; hence the falling off of our trade; hence the conspiracies of the valleys of Aragua and Cumaná; hence the horrid perfidy in Guayana; and the insulting transportation of its leading characters to the Moorish dungeons of Puerto Rico—dungeons constructed like those of Tunis and Algiers; hence the generous and impartial offices of reconciliation sincerely interposed by a representative^[3] of the British government in the Antilles, and rejected by the pseudo pacificator; hence, in fine, all the evils, all the atrocities, and all the crimes which are and ever will be attached to the names of Cortavarria and Melendes in Venezuela, and which have impelled her government to exceed what was proposed

when it took upon itself the fate of those who honored it with their confidence.

"The mission of Cortavarria in the nineteenth century, and the state of Spain which decreed it, compared with America, against whom it is directed, evinces to what an extent the illusion of ambition blinds those who found all the origin of their authority on the depravity of the people. This act alone sufficed to authorize our conduct. The spirit of Charles V., the memory of Cortes and Pizarro, and the names of Montesuma and Atahualpa, are involuntarily reproduced in our imagination, when we see the *adelantados*, the *pesquisadores*, and the *encomenderos*, officers peculiar to the first settlement of America, renewed in a country which, having suffered three centuries of sacrifice and debasement, had promised to continue faithful on the only condition of being free, in order that accidents of slavery might not tarnish the merit of fidelity. The scandalous plenitude of power conferred on a man who is authorised by an intrusive and illegitimate government, under the insulting name of pacificator, to tyrannize and plunder, and to crown the vexation, that he might pardon a noble, generous, tranquil, innocent people, who were masters of their own rights, could only be credited in the impotent delirium of a government that tyrannizes over a disorganized nation, stunned by the fury of the tempest that reaches her; but as the evils of this disorder, and the abuses of such an usurpation might be considered as not derived from Ferdinand, already acknowledged in Venezuela, at the time that he was unable to prevent such accumulated insults, such excesses, and so much violence, committed in his name, we consider it necessary to retrace the origin of these rights, that we may descant on the nullity and invalidity of our generous oath, by which we acknowledged him conditionally; notwithstanding, we have in spite of ourselves to violate the spontaneous silence we had imposed upon ourselves respecting every thing that occurred prior to the affairs at the Escorial and Aranjues.

"The fact, that America does not belong to the territory of Spain is self-evident, and it is equally evident that the right which the Bourbons justly or unjustly exercised over it, and notwithstanding this was hereditary, yet it could not be disposed of without the consent of the people, and particularly of those of America, who, on the election between the French and Austrian dynasties, might have acted in the seventeenth century as they now have done in the nineteenth. The bull of Alexander VI., and the titles which the

house of Austria alleged in the American code had no other origin than the right of power and conquest, partially ceded to the conquerors and to the settlers for their assistance rendered to the crown in extending its dominion in America. Without taking into consideration the scanty population of the country, the extermination of the natives, and the emigration which the self-called mother country sustained; it appears that when the fury of conquest had ceased—when the thirst for gold was satisfied—when the continued equilibrium was declared in favour of Spain, by the advantageous acquisition of America—the feudal government destroyed and rooted out from the time of the Bourbons in Spain, and every right extinct that did not originate in the new concessions or commands of the prince, the conquerors and the settlers then became absolved of theirs. As soon as the faultiness and invalidity of the rights which the Bourbons have arrogated to themselves are demonstrated, the titles by which the American descendants of the conquerors possessed these countries revive—not to the detriment of the natives and primitive proprietors, but to equalize them in the enjoyment of liberty, property, and independence, which they always held by a right stronger than that of the Bourbons or any other person or persons to whom they may have ceded America, without the consent of its natural owners, the Americans.

"That America does not belong to the territory of Spain is a principle of natural, and a law of positive right. No title just or unjust which exists of American slavery can belong to the Spaniards of Europe, and all the liberality of Alexander VI. could only declare the Austrian kings promoters of the faith, in order to find out for them a preternatural right by which to make them lords of America. Neither the pre-eminence of the parent state, nor the prerogative of the mother country, could at any time constitute the origin of lordship on the part of Spain. The first was lost the moment the monarch who was acknowledged by the Americans left his country and renounced his rights; and the second never was more than a scandalous abuse of words, as great as that of calling our slavery felicity; that of calling the fiscals protectors of the indians; and that of saying that the sons of Americans were divested of every right and civil dignity. By the mere act of even passing from one country to another to settle in it, those who do not leave their homes acquire no property, nor do they expose themselves to the hardships of emigration. Those who conquer and obtain possession of a

country by means of their labour, industry, cultivation, and connection with the natives thereof, are the individuals who have a right of preference in preserving it, which right they transmit to their posterity born therein; for if the country where one is born possessed the origin of sovereignty, or gave the right of acquisition, the general will of nations, and the fate of the human race, would then be riveted to the soil, as are the trees, mountains, rivers, and lakes.

"Neither could it ever be considered as a title of property to one part of a nation, the other having gone to another country to settle in it; for by such a right Spain would belong to the Phœnicians, or their descendants, or to the Carthagenians, wherever these may be found; even the whole of the nations of Europe would have to change their abodes to make room for and re-establish so singular a territorial right; home would then become as precarious as are the wants and caprices of men. The moral abuse of the maternity of Spain, with regard to America is still more insignificant, for it is well known that in the natural order of things, it is the duty of the father to emancipate the son, so soon as his minority expire, and he is able to use his strength and reason in providing for his subsistence; and also that it is the duty of the son to emancipate himself, whenever the cruelty or extravagance of the father or tutor endanger his welfare, or expose his patrimony to become the prey of a miser, or an usurper. Under these principles let a comparison be made of the three hundred years of our filiation to Spain; and even when it is proved, that she was our mother, it still remains to be proved that we are yet her minors or pupils.

"At any period when Spain has entertained any doubt of the rights of the Bourbons, or of any other dynasty, the only source, and that not a very clear one, of the Spanish dominion in America, it would appear that the Americans were excluded from alleging any reasons that might destroy such claims, though doubtful from their very origin; but as Venezuela may hereafter be reproached for the conditional oath by which the representative body that now declares its absolute independence of any foreign power previously acknowledged Ferdinand VII., the same august body feels anxious that no room should be left for scruples of conscience, for the illusions of ignorance, and for the malice of wounded ambition, whereby to discredit, calumniate, and weaken a resolution, taken with such maturity and deliberation as best suited its magnitude and importance.

"It is well known, that the promissory oath in question is no more than an accessory bond, which always pre-supposes the validity and legitimacy of the contract ratified by the same. When in the contract there is no defect that may render it null and illegitimate, it is then that we invoke God by an oath, believing that he will not refuse to witness it, and guarantee the fulfilment of our promises, because the obligation to comply with them is founded on an evident maxim of the natural law instituted by the divine author. God can at no time guarantee any contract that is not binding in the natural order of things, nor can it be supposed that he will accept any contract opposed to those very laws which he himself has established for the felicity of the human race. It would be insulting his wisdom to believe that he would listen to our vows when we implore his divine concurrence to a contract that is opposed to our own liberty, the only origin of the right of our actions—such a supposition would inculcate an idea that God had an interest in multiplying our duties by means of such agreements, to the prejudice of our national liberty. Even in case the oath could add any new obligation to that of the contract thereby confirmed, the nullity of the one would consequently be inseparable from the nullity of the other; and if he who violates a sworn contract be criminal, and worthy of punishment, it is because he has violated good faith, the only bond of society, without the perjury being more concerned than to increase the crime, and to aggravate the punishment. That national law which binds us to fulfil our promises, and that divine one which forbids us to invoke the name of God in vain, do not in any manner alter the obligation contracted under the simultaneous and inseparable effects of both laws, so that the infraction of the one supposes the infraction of the other. For our good we call on God to witness our promises, and when we believe that he can guarantee them, and avenge their violation, it is only because the contract has nothing in itself that can render it invalid, illicit, unworthy of or contrary to the eternal justice of the Supreme Arbiter to whom we submit it. It is according to these principles that we are to analyze the conditional oath by which the congress of Venezuela has promised to preserve the rights legally held by Ferdinand VII., without attributing to it any other which, being contrary to the liberty of the people, would consequently invalidate the contract, and annul the oath.

"We have seen that the people of Venezuela, impelled by the government of Spain, became insensible of the circumstances that rendered the tolerated rights of Ferdinand void, in consequence of the transactions of the Escorial and Aranjues, as well as those of all his house, by the cessions and abdications made at Bayonne; and from the demonstration of this truth, follows, as a corollary, the invalidity of an oath, which, besides being conditional, could not subsist beyond the contract to which it was added as an accessory bond. To preserve the right of Ferdinand was all that Caracas promised on the nineteenth of April, at a time when she was ignorant that he had lost them—*Judicio caret juramentum, incantum Div. tom. 22, p. 80, art. 3. Si vero sit quidem possibile fieri; sed fieri non debeat, vel quid est per se malum, vel quia est boni impeditivum, tunc juramento deest justitia, et ideo non est servandum.* Quest, cit. art. 7. Even if Ferdinand retained them with regard to Spain, it remains to be proved, whether by virtue of the same he was authorized to cede America to another dynasty, without the concurrence of her own consent. The accounts which Venezuela, in spite of the oppression and cunning of the intrusive government, was enabled to obtain of the conduct of the Bourbons, and the fatal effects that it was likely to entail on America, have constituted a body of irrefragable proofs, evincing that as Ferdinand no longer retained any rights, the preservation of which Venezuela promised, as well as the oath by which she confirmed this promise, consequently are, and ought to be cancelled—*Jurabis in veritate, et in judicio, et in justitia.* From the first part of the position, the nullity of the second becomes a legitimate consequence.

"But neither the Escorial, Aranjues, nor Bayonne were the first theatres of the transactions which deprived the Bourbons of their rights to America. By the treaty of Basil, made July fifteenth, 1795, (by which Godoy obtained the title of Prince of the Peace), and in the court of Spain the fundamental laws of the Spanish dominion were broken. Charles IV., contrary to one of them (Recopil. de Indias, law 1. tit. 1.) ceded the island of Santa Domingo to France, and disposed of Louisiana to the same foreign power, which unequalled and scandalous infractions authorised the Americans, against whom they were committed, as well as the whole of the Colombian people, to separate from the obedience, and lay aside the oath by which they had bound themselves to the crown of Castile, in like manner as they were entitled to protest against the imminent danger which threatened the

integrity of the monarchy in both worlds, by the introduction of French troops into Spain previous to the transactions at Bayonne, invited no doubt by one of the Bourbon factions, in order to usurp the national sovereignty in favour of an intruder, a foreigner, or a traitor; but as these events are prior to the period that we have fixed on for our discussion, we will return to those which have authorised our conduct since the year 1808.

"Every one is aware of the occurrences that took place at the Escorial in 1807, but perhaps all are not acquainted with the natural results of those events. It is not our intention to enter here into the discovery of the origin of the discord that existed in the family of Charles IV.; let England and France attribute it to themselves, both governments have their accusers and their defenders; neither is it to our purpose to notice the marriage agreed on between Ferdinand and the daughter-in-law of Napoleon, the peace of Tilsit, the conference at Erfuhr, the secret treaty at St. Cloud, and the emigration of the house of Bragansa to the Brasils. What most materially concerns us is, that by the transactions of the Escorial, Ferdinand VII. was declared a traitor to his father Charles IV. A hundred pens and a hundred presses published at the same time in both worlds his perfidy, and the pardon which at his prayer was granted to him by his father; but this pardon, as an attribute of the sovereignty and of paternal authority, only absolved the son from corporal punishment; the king his father had no power to free him from the infamy and inability which the constitutional laws of Spain impose on the traitor, not only to prevent him from obtaining the royal dignity, but even the lowest office of civil employment; Ferdinand therefore never could be a lawful king of Spain, or of the Indies.

"To this condition the heir of the crown remained reduced till the month of March, 1808, when while the court was at Aranjues, the project that was frustrated at the Escorial was converted into insurrection, and open mutiny, by the friends of Ferdinand. The public exasperation against the ministry of Godoy served as a pretext to the faction of Ferdinand, and as an indirect plea to convert to the good of the nation what was perhaps allotted to other designs. The fact of using force against his father, instead of supplication and convincing arguments; his having excited the people to mutiny; his having assembled the mob in front of the palace, in order to take it by surprise, to insult the minister, and force the king to abdicate his crown, which, far from giving Ferdinand any title to it, tended to increase his

crime, to aggravate his treachery, and to complete his inability to ascend the throne, vacated by violence, perfidy, and faction. Charles IV., outraged, disobeyed, and threatened, had no other alternative suitable to his decorum, and favourable to his vengeance, than to emigrate to France to implore the protection of Bonaparte, in favour his offended royal dignity. Under the nullity of the abdication of Aranjues, and contrary to the will of the people of Spain, all the Bourbons assembled at Bayonne, preferring their personal resentments to the safety of the nation. The emperor of the French availed himself of this opportunity, and having under his controul, and within his influence the whole family of Ferdinand, and several of the first Spanish dignitaries, as well as many substitutes for deputies in the cortes, he obliged Ferdinand to restore the crown to his father, and then the latter to cede it to him, the emperor, in order that he might afterwards confer it on his brother Joseph.

"When the emissaries of the new King reached Caracas, Venezuela was ignorant or knew but partially what had happened. The innocence of Ferdinand, compared to the insolence and despotism of the favourite, Godoy, directed the conduct of Venezuela when the local authorities wavered on the fifteenth of July, 1808; and being left to choose between the alternative of delivering himself up to a foreign power, or of remaining faithful to a king who appeared to be unfortunate and persecuted—the ignorance of what had occurred—triumphed over the interests of the country, and Ferdinand was acknowledged, under the belief, that by this means, the unity of the nation being maintained, she would be saved from the oppression that threatened her, and the king ransomed, of whose virtues, wisdom, and rights we were falsely prepossessed. But less was requisite on the part of those who relied on our good faith to oppress us. Ferdinand, disqualified, and unable legally to obtain the crown—previously announced by the leaders of Spain as dispossessed of his right of succession—incapable of governing in America, and held in bondage by a foreign power—from that time became by illusion a legitimate but unfortunate prince. As many as had the audacity to call themselves his self-created heirs and representatives became as such, and taking advantage of the innate fidelity of the Spaniards of both worlds, and forming themselves into intrusive governments, they appropriated to themselves the sovereignty of the people, under the name of a chimerical king, began to exercise new tyrannies, and,

in a word, the commercial junta of Cadiz sought to extend her controul over the whole of Spanish America.

"Such have been the antecedents and consequences of an oath, which, dictated by candour and generosity, and conditionally maintained by good faith, is now arrayed against us, in order to perpetuate those evils which the dear-bought experience of three years has proved to be inseparable to so fatal and ruinous an engagement. Taught as we are by a series of evils, insults, hardships, and ingratitude, during the interval of from the fifteenth of July, 1808, to the fifth of July, 1811, and such as we have already manifested, it became full time that we should abandon it, as a talisman invented by ignorance, and adopted by a misguided fidelity, as from its first existence it has constantly heaped upon us all the evils that accompany an ambiguous state of suspicion and discord. The rights of Ferdinand, and the legitimate representation of them on the part of the intrusive governments of Spain on the one side, demonstrations of compassion and gratitude on the other, have been the two favourite springs alternately played on to support our illusion, to decrease our substance, to prolong our degradation, to multiply our evils, and ignominiously to prepare us to receive that passive fate prepared for us by those who have dealt with us so kindly for three centuries. Ferdinand VII. is the universal watch-word for tyranny, as well in Spain as in America.

"No sooner was that vigilant and suspicious fear, produced among us by the contradictory acts and artificial falsehoods of the strange and short-lived governments which have succeeded one another since the junta of Seville, made known to these governments, than they recurred to a system of apparent liberality towards us, in order to cover with flowers the very snare we had not perceived while covered by the veil of candour, which was at length rent asunder by mistrust. For this purpose of deceit were accelerated, and tumultuously assembled, the cortes, so wished for by the nation, and opposed by the commercial government of Cadiz, but which were at length considered as necessary to restrain the torrent of liberty and justice, which on every side burst the wounds of oppression and iniquity in the new world; it was even still supposed that the habit of obedience, submission, and dependence, would be in us superior to the conviction which at so high a price we had just obtained.

"It is most strange by what kind of deception, fatal to Spain, it has been believed, that the one part of a nation which crosses the ocean, or is born under the tropics, acquires a habit united to servitude, and incapable of bending to the habits of liberty. The effects of this strong-rooted prejudice, as notorious to the world as they are fatal, were at length converted into the welfare of America. Without it Spain would perhaps not have lost the rank she held as a nation, and America in obtaining this blessing would have had to pass through the bitter ordeal of a civil war, more ominous to its promoters than to ourselves.

"Our public papers have already sufficiently demonstrated the defects under which the cortes laboured respecting America, and the measures as illegal as insulting adopted by that body to give us a representation which we could not but object to, even though we were, as the regency had loudly boasted us to be, integral parts of the nation, and had no other complaints to allege against their government than the scandalous usurpation of our rights at a moment when they most required our aid. They have, no doubt, been informed of the reasonings we used with their perfidious envoy, Montenegro, at a time that the former missions being frustrated, the great shipments of newspapers filled with triumphs, reforms, heroic acts, and lamentations, being rendered useless; and the inefficacy of blockades, pacificators, squadrons and expeditions, made known; it was thought convenient to dazzle the self-love of the Americans, by seating near to the throne of the cortes deputies whom we had never named, and who could not be chosen our substitutes by those who created them such, in the same manner as they did others for the provinces in possession of the French, submitting to, and alleging themselves content under their domination. In case this puerile measure of the prolific genius of Spain should not produce a due effect, the envoy (and for this purpose an American, a native of Caracas, was selected) was ordered, that in case the energy of the country, now called rebellion, should prevail against fraternity, (the name given to perfidy), he was to add fuel to the flame already kindled in Coro and Maracaibo, and that discord, again raising her serpent head, might lead the herald of the cortes by the hand under the banner of rebellion through those deceived districts of Venezuela that had not been able to triumph over their oppressing tyrants.

"Stratagems and artifices were repeatedly forged, in order that duplicity and cunning might prepare the road for the sanguinary armies of the chiefs of Coro, Maracaibo, and Puerto Rico; and when the cortes were convinced that the conduct of Ferdinand, his bonds of affinity with the emperor of the French, and his influence over all the Bourbons already placed under his tutelage, began to weaken the insidious impressions, which fidelity, sustained by illusion, had produced in the Americans; preventatives were employed to stop the flame already kindled, and limit it to what was yet necessary for their vast complicated and dark designs. For this purpose was written the eloquent manifest which the cortes on the ninth of January directed against America, worded in a stile worthy of a better object; but under the brilliancy of diction the dark side of the argument, designed to deceive, was discovered. Fearing that we should be the first to protest against the whole of these nullities, they began to calculate on what was already known, not to risk what was yet hidden. The misfortunes of Ferdinand were the pretexts that had obtained for his pseudo-representatives the treasures, submission, and slavery of America; and Ferdinand seduced, deceived, and prostituted to the designs of the emperor of the French, is now the last resource to which they fly to extinguish the flames of liberty which Venezuela had kindled in the south continent. We have discovered and published the true spirit of the manifest in question, reduced to the following reasoning, which may be considered as an exact commentary: —'America is threatened with becoming the victim of a foreign power, or of continuing to be our slave; but in order to recover her rights, and to throw off all dependency whatever, she has considered it necessary not violently to break the bonds that held her to this country. Ferdinand has been the signal of reunion which the new world had adopted, and we have followed; he is suspected of connivance with the emperor of the French, and if we give ourselves up blindly to him, we afford the Americans a pretext for believing us still his representatives; and as these designs already begin to be understood in some parts of America, let us previously manifest our intention not to acknowledge Ferdinand, except under certain conditions; these will never be carried into effect, and whilst Ferdinand neither in fact nor right is our king, we shall reign over America, the country we so much covet, which although so difficult to preserve in slavery, will not then so easily slip through our fingers.' Such are the expressions illustrative of the

opinions of Spaniards, agitated in the cortes, respecting the allegiance to Ferdinand.

"The above brilliant appearance of liberality is now the real and visible spring of the complicated machine destined to excite and stir up commotions in America; at the same time that within the walls of the cortes justice towards us is overlooked, our efforts are eluded, our resolutions are contemned, our enemies are supported, the voices of our imaginary representatives are suppressed, the inquisition is renewed against them, when the liberty of the press is proclaimed, and it is controversially discussed whether the regency could or could not declare us free, and one integral part of the nation. When an American, worthy of that name, speaks against the abuses of the regency in Puerto Rico, endeavours are made to silence his just, energetic, and imperious claims, that distinguish him from the slaves of despotism, and by means of a short, cunning, and insignificant decree, they strive to avoid the conflict of justice against iniquity. Melendés, named by the regency king of Puerto Rico, is by a decree of the cortes left with the equivalent investiture of a governor, names synonymous in America, because it now appeared too monstrous to have two kings in a small island of the Spanish Antilles. Cortavarria only was capable of eluding the effects of a decree dictated merely by a momentary fit of decency. It happened that when the investiture, granted by the regency to Melendes was declared iniquitous, arbitrary, and tyrannical, and a revocation was extended to all the countries of America, then situated as was Puerto Rico, nothing was said of the plenipotentiary Cortavarria, authorized by the same regency against Venezuela, with powers the most uncommon and scandalous ever registered in the annals of organized despotism.

"After this decree of the cortes the effects of discord promoted, sustained, and denied at the fatal observatory of Puerto Rico were more severely felt; it was after this decree that the fishermen and coasters were inhumanly assassinated in Ocumare, by the pirates of Cortavarria, after the report of which Cumana and Barcelona were blockaded, threatened, and summoned. A new and sanguinary conspiracy against Venezuela was formed, and organized by a vile emissary, who perfidiously entered the peaceable bosom of his country, in order to destroy it; deceptions were successively practised on the most innocent and laborious classes of the imported colonists of

Venezuela, principally emigrants from the Canary Islands, and in spite of our endeavours the chief instigators were led to the block as a sacrifice to justice and to tranquillity. By the suggestions of the pacificator of the cortes, and posterior to their said decree, the political union of our constitution was lacerated in Valencia; attempts were made in vain to reduce other cities of the interior; a false summons was sent to Carora, by the factious leaders of the west, to the end that Venezuela might on the same day be deluged in blood, and sunk in affliction and desolation, and be hostilely assaulted from every point within the reach of the conspirators, who were scattered amongst us by the same government that issued the decree in favour of Puerto Rico and of all America. The name of Ferdinand VII. is the pretext under which the new world is about to be laid waste, if the example of Venezuela does not henceforward cause the standard of our unshaken and established liberty to be distinguished from the banners of a seditious and dissembled fidelity.

"The bitter duty of vindicating ourselves would carry us still further, if we did not dread splitting on the same rocks as have the governments of Spain, by substituting resentment for justice; at the same time that we can charge her with three centuries of acts of injustice, we have opposed three years of lawful, generous, and philanthropic efforts to obtain what it was never in our power to dispose of, although by nature ours. Had gall and poison been the chief agents of this our solemn, true, and candid manifest, we should have begun by destroying the rights of Ferdinand, in consequence of the illegitimacy of his origin, declared by his mother at Bayonne, and published in the French and Spanish papers; we should have proved the personal defects of Ferdinand, his ineptitude to reign, his weak and degrading conduct in the court at Bayonne; his inefficient education, and the futile securities that offered for the realization of the gigantic hopes of the governments of Spain; hopes founded in the illusion of America, nor any other support than the political interests of England, much opposed to the rights of the Bourbons. The public opinion of Spain, and the experience of the revolution of the kingdom, furnish us with sufficient proofs of the conduct of the mother, and the qualifications of the son, without recurring to the manifest of the minister Azanza, published after the transactions of Bayonne, and the secret memoirs of Maria Luisa; but decency is the guide of our conduct, to which we are ready to sacrifice even our reason.

Sufficient has already been alleged to prove the justice, necessity, and utility of our resolution, for the support of which, nothing is wanting but the examples by which we will strive to justify our independence.

"It were necessary for the partizans of slavery in the new world either to destroy, or to falsify history, that unchangeable monument of the rights and of the usurpations of the human race, before they could maintain that America was not liable to the same changes that all other nations have experienced. Even when the rights of the Bourbons had been incontestible and indelible, the oath that we have proved never did exist, the injustice, force, and deceit with which the same was exacted of us would suffice to render it null and void, so soon as it was found to be opposed to our liberty, grievous to our rights, prejudicial to our interests, and fatal to our tranquillity. Such is the nature of an oath made to the conquerors and to their heirs, at the same time that the crown holds them in oppression by means of the same additional strength that it obtained by means of the result of their conquest. It was in this manner that Spain herself recovered her rights, after she had sworn allegiance to the Carthaginians, Romans, Goths, Arabs, and almost to the French; nevertheless she yet disowns the rights of America, no longer to depend on any nation when she is capable of throwing off the yoke, and following the example of Spain and of other nations.

"It would be superfluous to remind our enemies of what they already knew, and in what they have themselves founded the sacred right of their own liberty and independence; epochs so memorable, that they ought not to have been tarnished with the slavery of the greater part of a country situated on the other side of the ocean. But unfortunately it is not they alone whom it is necessary to convince by palpable examples of the justice and common resemblance that our independence bears to that of all other nations which had lost and again recovered it. The illusions of slavery, kept alive by the candour of the Americans, and supported by the most criminal abuse that superstition can form of the established belief and religion, which one would suppose were only dictated for the happiness, liberty, and salvation of the people, namely, by the excommunications denounced against the people of Caracas for changing their government, render it necessary to tranquillize the deceived piety of some, to instruct their unwary ignorance, and stimulate their apathy, that had slumbered since the unusual tranquillity

of the new order of things: in short, it is time to inculcate, that governments never had nor ever can have any other duration than the utility and happiness of the human race may require; that kings are not of any privileged nature, nor of an order superior to other men; that their authority emanates from the people, directed and supported by the providence of God, who leaves our actions to our own free-will; that his omnipotence does not interfere in favour of any peculiar form of government; and that neither religion nor its ministers can anathematize the efforts of a nation struggling to be free and independent in the political order of things, and resolved to depend only on God and his ministers in a moral and religious sense.

"The very people of God, governed by himself, and guided by such miracles, portentous signs and favors as will perhaps never again be repeated, offer a proof of the rights of insurrection on the part of the people sufficiently satisfactory to the orthodox piety of the friends of public order. The subjects of Pharaoh, and bound by force to obey him, collect round Moses, and under his guidance triumph over their enemies, and recover their independence without being blamed by God or his prophet and legislator, Moses, for their conduct, or being subjected by them to the least malediction or anathema. This same people being afterwards subjected by the forces of Nebuchadnezzar; first—under the direction of Holofernes, Judith was sent by God to procure their independence by the death of the Babylonian general. Under Antiochus, Epiphanes, Mattathias and his sons raised the standard of independence, and God blessed and aided their efforts till he obtained the entire liberty of his people against the oppression of that impious king and his successors. Not only against the foreign kings who oppressed them did the Israelites resort to the right of insurrection by breaking through the obedience to force; but even against those whom God had given them in their own country and of their own nation do we behold them claim this imprescriptable right wherever their liberty and their advantage required it, or when the sacred character of those facts by which God himself bound them to those he chose as their governors, had been profaned. David obtained the allegiance of the Israelites in favour of his dynasty, and his son Solomon ratified it in favour of his posterity; but at the death of this king, who had oppressed his subjects by exactions and contributions to support the splendour of his court and the luxury and

sumptuousness of his pleasures, then the tribes of Judah and Benjamin alone acknowledged his son, and the other ten, availing themselves of their rights, recovered their political independence, and in excuse thereof deposited their sovereignty in Jereboam, the son of Nabath. The momentary and passing hardships of the reign of Solomon were sufficient for the Israelites to annul their obedience sworn to his line, and to place another on the throne without waiting for an order from the Deity, informing them, that their fate no longer depended on the kings of Judah, nor on the ministers, chiefs, or priests of Solomon. And shall the Christian people of Venezuela and of all Spanish America be still in a worse plight, and after being declared free by the government of Spain after three hundred years of captivity, exactions, hardships, and injustice, shall they not be allowed to do what the God of Israel, whom they equally adore, formerly permitted to his people without being spurned, and without vengeance being hurled upon their heads? It is his divine hand that guides our conduct, and to his eternal judgments our resolution shall be submitted.

"If the independence of the Hebrew people was not a sin against the written law, that of a Christian people cannot be such against the law of grace. At no time has the apostolical see excommunicated any nation that has risen against the tyranny of those kings or governments which had violated the social compact. The Swiss, Dutch, French, and North Americans proclaimed their independence, overturned their constitution, and varied their forms of government without having incurred any other spiritual censures than those which the church might have fulminated for the infringements on the belief, discipline, or piety, but without their being connected with political measures or alluding to the civil transactions of the people. The Swiss were bound by oath to Germany, as were also the Dutch to Spain, the French to Louis XVI., and the North Americans to George III.; yet neither they nor the princes that favoured their independence were excommunicated by the Pope. The grandfather of Ferdinand VII., one of the most pious and catholic kings that ever filled the throne of Spain, together with his nephew, Louis XVI., protected the independence of North America, without dreading ecclesiastical censures or the anger of heaven; and now that the order and succession of events more justly place it within the reach of South America, those who call themselves the authorized agents of the grandson wish to abuse that same religion so much respected

by Charles III., in order to prolong the most atrocious and unparalleled usurpations. Just, omnipotent, and most merciful God! Till when will fanaticism dispute the empire of that sacred religion which thou sent to the uncorrupted regions of America for thy glory and her felicity.

"The events which have accumulated in Europe to terminate the bondage of America, beyond doubt entered into the high designs of Providence. Placed at a transatlantic distance of two thousand leagues, we have done nothing in the three years which have elapsed since we ought to be free and independent, till the period when we resolved to be so, than pass through the bitter trials of stratagems, conspiracies, insults, hostilities, and depredations on the part of that same nation whom we invite to partake of the good of our regeneration, and for whose welfare we wished to open the gates of the new world, heretofore closed to all communication with the old one, now wasted and inflamed by war, hunger, and desolation. Three distinct oligarchies have declared war against us, have despised our claims, have excited civil dissensions amongst us, have sown the seeds of discord and mistrust in our great family, have planned three horrible conspiracies against our liberty, have interrupted our trade, have suppressed our agriculture, have traduced our conduct, and have sought to raise against us an European power, by vainly imploring its aid to oppress us. The same flag, the same language, the same religion, the same laws, have till now confounded the party of liberty with that of tyranny: Ferdinand VII. as liberator, has been opposed to Ferdinand VII. as oppressor; and if we had not resolved to abandon a name at the same time synonymous with crime and virtue, America would in the end be enslaved by the same power that is exercised for the independence of Spain.

"Such has been the nature of the imperious impulse of conviction, tending to open our eyes, and to impel Venezuela to separate eternally from a name so ominous and so fatal. Placed by it in the irrevocable alternative of being the slave or the enemy of her brethren, she has preferred the purchase of her own freedom at the expense of friendship, without destroying the means of that reconciliation she desired. The most powerful reasons, the most serious meditations, the most profound considerations, long discussions, contested debates, well analyzed combinations, imperious events, imminent dangers, and the public opinion clearly pronounced and firmly sustained, have been the precursors of that solemn declaration made on the fifth of July, by the

general congress of Venezuela, of the absolute independence of this part of South America; an act sighed for and applauded by the people of the capital, sanctioned by the powers of the confederation, acknowledged by the representatives of the provinces, sworn to and hailed by the chief of the church of Venezuela, and to be maintained with the lives, fortunes, and honour of all the citizens.

"Freemen, companions of our fate! Ye who have known how to divest your hearts of fear, or of hope; give from the elevation on which your virtues have placed you an impartial and disinterested look on the portrait that Venezuela has just traced out to you. She constitutes you the arbitrators of her differences with Spain, and the judges of her new destinies. If you have been affected by our evils, and are interested in our felicity, unite your efforts with ours, that the artifices of ambition may not any longer triumph over liberality and justice.

"To you it belongs to convince Spain of what an unfortunate rivalry places beyond the reach of America. Refrain the giddiness that has seized on her new governments; point out to them the reciprocal advantages of our regeneration; unfold to them the soothing prospect that they are prevented from beholding in America by that monopoly which has hardened their hearts; tell them what threatens them in Europe, and point out to them what they may expect in America, tranquil, uncorrupted, and already covered with all the blessings of liberty; nay swear to them in our name, that Venezuela awaits her brethren with open arms to share with them her happiness without asking any other sacrifice than that of prejudice, pride, and ambition, which for three centuries have produced the united misery of both countries."

"Juan Antonio Rodriguez Dominguez, *President*."

"Francisco Isnardy, *Secretary*."

"*Federal Palace of Caracas, July 30th, 1811.*"

FOOTNOTES:

[1] The occurrences at Quito also bear testimony to this.

[2] Montufar, Villavicencio, Goyoneche.

[3] Admiral Sir Alexander Cochrane.

CHAPTER IV.

State of Lima....Expedition to Chile, under Colonel Gainsa....Exit of....Regiment of Talavera arrives from Spain....Part of sent to Huamanga....Revolution of Cusco and Arequipa....Death of Pumacagua, and the Patriot Melgar....Arrival of Flags taken by Osoria in Chile....Viceroy Abascal superseded by Pesuela....Character of the former....Beginning of Pesuela's Administration....Arrival of La Serna....State of Lima to 1817....Battle of Chacabuco in Chile....Extract of a Journal....New Expedition to Chile under Osoria....News of Battle of Maypu....Loss of the Spanish Frigate Maria Isabel, and part of Convoy....Arrival of Lord Cochrane off Callao.

The preceding manifest from Venezuela, shewing the principal grievances of the Americans in that particular part of the country, was equally applicable to the colonists in general; but many of the provinces laboured under peculiar disadvantages and oppressions, particularly those situated on the western side of the continent; nor were the creoles the first nor the loudest in their clamours. The Spanish merchants felt very severely the decrease of their monopoly, by the non-arrival of vessels from Cadiz, as well as by the arrival of several vessels, under Hamburgh colours, with British cargoes and masters, under the protection of passports from the constituted sovereignties of Spain; the large planters also felt the want of new importations of slaves, and although the Creoles suffered equally with the Spaniards, yet accustomed to suppress their feelings, they remained silent, while the former were loud in their deprecations. The sugar planters began, under the sanction of the new laws of the constitution and the cortes to manufacture rum, to the detriment of the owners of vineyards at Pisco and Cañete, many of whom were Spaniards. Secret meetings were held in every part of the city; those of the Spaniards were permitted by the government under the pretence that they were innocent or virtuous, while those of the natives were called seditious and unwarrantable. Every opportunity was taken to lull the people with stories of victories obtained against the insurgents in Upper Peru, and the most tyrannical espionage was

set on foot by the government, for the purpose of thwarting any communication of the true state of affairs in America, when the government of Peru could only expect support from the native troops. Every thing seemed to augur to the government in Lima the fate of those of the other capitals of South America; indeed Mexico and Lima were the only two capitals that preserved their ancient authorities; the other two viceroyalties, Buenos Ayres and Santa Fé, and the captain-generalships and presidencies of Chile, Chuquisaca, Quito and Caracas, with the greater part of the governments of South America, were under the protection of their own constituted authorities, and declared by the Spanish Viceroys in open war with the mother country.

Colonel Gainsa was sent with an expedition against the revolted Chileans in 1812, and having landed at Talcahuano, he marched towards the capital: his successes were the continued boast of the Spaniards in Lima, who insulted with taunts the creoles respecting their inferiority, forgetting that the army of Gainsa was almost exclusively formed of natives; however, in 1813 it was found that the career of Gainsa was at an end, and that he had come to terms with the insurgents, the principal import of which was, that things should remain as they then were, until the decision of the cortes in Spain; for the purpose of obtaining which the Chileans should send their deputies. This treaty was guaranteed by Captain Hillyer, and sent to Lima for the ratification of the Viceroy, who, expecting troops from Spain, deferred its signature. In April, 1813, the regiment of Talavera arrived, and Abascal followed the example of the Count Ruis; he declared that Gainsa had no powers to capitulate, and prepared another expedition against Chile.

The arrival of Spanish troops made the resident Spaniards more imperious and insolent than ever; but they had soon cause to regret having solicited the assistance of an armed force from Spain, for all the expenses incurred in the equipment of the expedition at Cadiz were ordered to be defrayed by the merchants of Lima. The officers and soldiers were also of the worst character, the former having been expelled from different corps in the mother country for crimes which they had there committed, and the latter were taken from the common gaols, places of exile, and the galleys. The insolence of these protectors was not limited to any class of people in Lima: they had been informed in Spain, that the booty or plunder of the insurgents in America would make them as rich in the nineteenth century as that of the

indians had rendered their forefathers in the sixteenth; thus robberies and even murders were committed under the sanction of rich promises; and it was dreaded by the government, that the very force sent to protect them would cause a revolution, or perhaps head one in Lima; however an opportunity presented itself to dispose of two hundred of the nine that had arrived. The Cacique Pucatoro revolted at Huamanga, deposed the Spanish authorities, and declared himself in favour of the Buenos Ayres army: this blow so near to Lima called for an immediate remedy. Two hundred soldiers of Talavera were sent to quell the rebel Indian, who led them into a narrow ravine, and ascended the mountains on each side, where large piles of stones had been so artfully placed, that by removing one, placed as a key-stone, the whole mass rolled down the sides of the mountains, and not one of the Spaniards escaped. The victorious indians then continued throwing and rolling down pieces of rock till they had completely buried their enemies. This patriotic Cacique was afterwards taken prisoner by a party of troops sent from Cusco, and was hanged and quartered at Huamanga.

This disgraceful expedition only tended to render the Spanish soldiers more insolent; and it became a difficult matter to prevent an open revolt.

Early in July, 1813, the transports for a new expedition to Chile were ready, and, on the thirteenth, Colonel Maroto and the troops of Talavera embarked for Talcahuano. Lima resumed her tranquillity, with what she considered her safety, and the departure of the protecting force was hailed as that of an insolent and oppressive enemy. But the calm was not of long duration. The news from the north, of the conquests in Quito by General Montes was accompanied by that of the revolution of Cusco in the south, and the possession of Arequipa by the Cacique Pumacagua; this threatened the most fatal consequences to Lima; however, General Ramires was sent from Upper Peru with a division of the army, then under the command of General Pesuela, and retook Cusco and Arequipa, where he put the old Cacique and upwards of a hundred of his followers to death, among whom was my particular friend, Jose Maria Melgar.

Friendship and admiration demand of me a short account of this virtuous youth. He was a native of Arequipa, and educated for the bar at Lima: he had retired to his native city, and was on the eve of marriage with a female whom he loved. Pumacagua arrived at Arequipa, and took it; Melgar was a

patriot, he offered his services to the Cacique-general, they were accepted, and he was appointed judge advocate to the army. On the capture by Ramires, Melgar was apprehended, tried, and sentenced to be shot. His parents, his relations, and his friends solicited his pardon, which was promised, on condition that he would publicly recant: to this he objected, and he was led to the place of execution.

The assisting priest seated himself on the stool, and Melgar knelt to confess his sins, invoke a pardon, and receive absolution; but he suddenly rose from his knees, and, in a state of agitation, said to his confessor, "Is it possible that you should here speak to me of things of this world! It was your duty to speak to me of those in the next, which I am on the verge of witnessing: this world must soon cease to exist for me, and I had hoped to have left it in peace; but your request and promises have unsettled my mind, and agitated my soul. I took a part in the cause of my country; I believed it to be my duty, I did it, I considered it just; I embraced it, and I die for having done my duty, and only regret at this moment that I shall not die so calmly as I expected. You, father, who ought to have endeavoured to create tranquillity in my soul in my last moments, have destroyed my peace!"—He then asked the adjutant if he might be allowed to smoke a segar, which being granted, he turned round and said, "will any one for the love of God give me a segar?" A soldier handed him one; he sat down on the stool, and smoked about half the segar, knocked off the ashes, and threw it aside; he then thanked the adjutant and the soldier, and said "thank heaven I am again calm and resigned; now, Sir, do your duty." The bandage was ordered to be tied over his eyes, but he begged that this ceremony might be omitted: "I am not afraid to die," said he, and clasping his hands over his eyes, he exclaimed, "this will do!" The fatal signal was then given—the soldiers fired, and the virtuous patriot Melgar fell! The executioners muttered, "so may the enemies of Spain perish;" but the genii of American liberty sang for joy, and the response was—so may the sons of America evince to posterity, that no sacrifice is too great for a true PATRIOT!

The arrival of new troops from Spain in 1814, the defeat of the Chileans, and the occupation of Santiago by General Osorio; the victory of Vilcapugio in Upper Peru by Pesuela, all seemed to threaten American independence, and the Spaniards grew more insolent and haughty. The colours taken by Osorio in Chile were brought to Lima and carried in

procession to the church of Santo Domingo, where they were presented at the altar of the Rosary, and there deposited. The new president and captain-general of Chile, Don Casimiro Marcó arrived, and proceeded to his presidency. The finances began to be insufficient for the payment of the troops, and those from Spain marched from their barracks in la Recoleta, and took possession of the citadel, Santa Catalina, where they declared, that unless the government paid them their arrears, they would pay themselves; assuring the natives at the same time, that no hostilities should be committed against them. The alarm was so great, that the Viceroy Abascal sent a message to the soldiers, declaring, that their request should be complied with; but he received for answer, that they would not alter their determination until the money due was actually paid to them. The Viceroy then went in person, and harangued the troops; but he received only a repetition of the former answer; nor did they desist until their arrears were paid.

In 1815 the Viceroy Abascal was superseded by General Don Joaquin de la Pesuela, when he immediately retired to Spain. On the arrival of the new Viceroy, the city was entertained with the *entrada publica*, public entry, balls, feasts, and bull-fights, with all of which his predecessor Abascal, had dispensed on his arrival, not wishing to oppress the city with such unnecessary expenses.

It is due to the Viceroy Abascal to say, that his prudence preserved the capital to the crown of Spain; and although no Viceroy of Peru had ever more accidental duties to attend to, or more critical affairs to manage, yet Lima is indebted to him for the foundation of the college of San Fernando, instituted for medicine and surgery; the pantheon or general cemetery, and the absolute prohibition of burying within the walls of the city; the rebuilding of the college del Principe, for the study of Latin; the thorough repair of the city walls; as well as several excellent police establishments; and notwithstanding the public feeling at this time in Lima, he was accompanied to Callao by all the respectable inhabitants, and his departure was a day of mourning in the city: such are generally the sentiments, even towards an enemy, when moderation has presided at his councils, and justice has guided his actions.

Pesuela, the hero of Huiluma and Vilcapugio, on taking cognizance of the treasury, discovered what was too well known to his predecessor—the low state of the funds: many plans were proposed for replenishing them; donations were at first solicited, and afterwards contributions were exacted; but these were incompetent to support the expenses of the government and the army, which, during the first years of warfare, levied large sums of money, as well on friends as on enemies, and derived some support from the different royal treasuries at Arequipa, at Cusco, Charcas, and other cities in Upper Peru; but, notwithstanding these temporary resources, the means continued to fail, and the exigences continued to increase. The equipment of expeditions to Quito, Upper Peru, and Chile; the demand of arrears by the troops that arrived from Spain, and the necessary remittances for the support of the royal armies, preyed heavily on the national funds, so much so, that the treasury dreaded a bankruptcy. The pay of all civil officers was reduced one-third, and at last a viceregal decree was issued, augmenting the tithes from ten to fifteen per cent.: this impost caused the greatest consternation throughout the country, and met with strong opposition from the inhabitants; many of the provinces refused to pay, and the governors were unable to exact it for want of an armed force to protect them against the fury of the people.

General Ramires was left by Pesuela in the command of the army of Upper Peru; but he was soon superseded by General Don Jose de la Serna, who landed at Arica, and proceeded direct to head quarters. This general was sent by the king to command the army, and with power to act independently of the Viceroy, at a time when any change in the established order of things was likely to be most productive of injury to the Spanish cause, and to this may be attributed the inactivity of the army under La Serna.

The tranquillity experienced in Lima till the beginning of 1817 induced the Spaniards to believe that all was well: Chile was quiet, the enemy made no advances in Upper Peru, Quito was under the dominion of Spain, Morillo victorious in Venezuela and Santa Fé; the Mexican insurgent chief, Morelos, had ceased to exist; Ferdinand was restored to his throne; the constitution was abolished; the inquisition was re-established, and monarchical despotism had resumed its seat; new auxiliary troops were preparing in Spain to give the last blow to the patriots in America, and the most sanguine American began to droop for the cause of his country. But a

change, unexpected by the Spaniards, and un hoped for by the Americans, took place in Chile on the twelfth of February, 1817, the news of which reached Lima on the ninth of March. This was no less than the entire defeat of the Spanish army at Chacabuco by General O'Higgins: the victory has generally been attributed, but most unjustly, to General San Martin, who was not even present in the action. The following is an extract from the journal of a Spaniard with whom I was acquainted in Lima.

"February 4th, Don Miguel Atero, chief of the staff, informed the government of Santiago, that the enemy had surprised the guards of the Andes, placed about twelve leagues in advance of Santa Rosa, (twenty-five leagues from the capital) and that of seventy-five men, thirteen only had escaped, bringing with them the news, that the enemy was advancing; at the same time Major Vila reported to the government, that the advanced guard at the paso de los Patos had reconnoitred the enemy, and requested a reinforcement. Atero immediately sent a company of Talavera infantry, and then retreated with the division of the army stationed at Santa Rosa, to Chacabuco, leaving behind him two pieces of artillery, ammunition, baggage, and warlike stores: the force stationed at Santa Rosa amounted to about four hundred men.

"February 5th, the Captain-general Marcó ordered Colonel Quintanilla to join the army at Chacabuco, with the battalion of carabinieri; they arrived on the 6th, when Quintanilla immediately advanced to the convent of Curimon to reconnoitre the enemy in Villa Vieja, and having reported to Atero that their number did not exceed six hundred, an attack was immediately ordered, which took place on the morning of the seventh.

"The cavalry engaged that of the enemy in a place called de las Comas; the crafty enemy retired towards the Cordillera, and halted at Putendo, where they were joined by an ambuscade of a hundred horse. Our infantry did not advance with the cavalry, so that as soon as they were overpowered by the enemy they fled in the greatest disorder towards our infantry for support; on their return, to their great surprise they found that the infantry also was in a disordered retreat, without having taken part in the action, and also that the commander in chief, Atero, had fled. Colonel Quintanilla now took the command, and collected the dispersed soldiers; he placed the infantry in the centre, and flanked it with the cavalry, although harrassed in the rear by the

enemy in his retreat. Having at length reached Villa Vieja, a council of war was held by the officers, and it was resolved to continue their march to Curimon; on their arrival they learnt that the enemy was about to renew the attack; on hearing which, Colonel Marqueli, to whom Atero had given the command, continued his march to Chacabuco. The victorious army took up its quarters in Villa Vieja: our loss was about thirty carabiniers. There is no doubt that the whole of our loss is to be attributed to Atero, who, observing a party of the enemy's cavalry on an eminence to the right, exclaimed, "we are cut off!" when he immediately mounted his horse and fled. At ten o'clock at night the news arrived at Santiago, and the greatest confusion began to prevail.

"On the morning of February 8th, the two judges, Pereyra and Caspi, and the general of brigade, Olaguer Feliu, fled to Valparaiso.

"On the 9th, Colonel Baraño arrived at Santiago with Colonel Eloriga, and 360 hussars.

"On the 10th, Lieutenant-colonel Morgado arrived with 450 dragoons; at ten o'clock at night Brigadier-general Maroto was appointed by Marcó to take the chief command: our whole force consisted of 1000 cavalry and 1100 infantry.

"On the 12th, at six o'clock in the afternoon, an officer arrived at Santiago with a verbal communication from General Maroto, declaring, that he had suffered a total defeat. This was confirmed on the 13th by the arrival of Maroto and Quintanilla; Marcó had left the city with about 1500 men, and resolved on renewing the attack; but after more private conversation with Maroto, he returned to the capital, and summoned a council of war. After a long conference nothing was determined on, and the sub-inspector-general Bernedo, the judge advocate Lescano, and the commandant of artillery, Cacho, fled to Valparaiso. From the 13th at noon to the evening of the 14th, officers, soldiers and civilians continued to arrive at Valparaiso, where they embarked on board several vessels then at anchor in the bay, and fled to Lima; but it was not known till our arrival at Callao, that the president Marcó was left behind at the mercy of Bernardo O'Higgins, to whom the insurgents owe their victory, and we our disgrace."

The most astonishing difference in the behaviour of the Spaniards was now observable. The haughty Maroto, who, when in Lima with his regiment of Talavera, despised and insulted every one, now that he had neither an officer nor a soldier left, was humbled, and the bow of a negro or an indian was most courteously answered by this vaunting coward.

New insurrections in the provinces of Upper Peru began to break out; the victories of General Bolivar in Colombia became known, and although reports from the mother country were flattering, yet the repeated requisitions for money were distressing.

Notwithstanding this state of affairs, the Viceroy Pesuela determined on another expedition to Chile, the command of which was again given to General Osorio. The Spanish troops consisted of a battalion of hussars and the regiment of Burgos, the best troops that had arrived from Europe. Their destination was to Talcahuano, which place, as it had been fortified by the Spaniards, was still held by them, with the auxiliary troops of Chile. For the equipment of this expedition, the Viceroy took possession of the treasury belonging to the commissariat of the crusades, money, which in the opinion of all the lower classes, could only be appropriated to the support of war against Turks, Moors and Infidels, and the greatest clamour was raised when it was applied to the purpose of waging civil war with Christians. This treasure being insufficient, that called of the holy places, *santos lugares*, at Jerusalem, was also added to that of the bulls.

After many difficulties had been surmounted, the expedition left Callao in October, 1817; and calculating on its success, the Spaniards again resumed their arrogance, which in some was carried to such an extreme as to enter into a bond with one another of two thousand dollars never again to employ a creole. A Spaniard said to me one evening, that he had six children, but if he thought that they would ever be insurgents, he would go to their beds and smother them.

This chivalrous fanaticism had risen to such a height, that a Peruvian officer, Landasuri, said, in the presence of Pesuela, that he hated his father and mother, because he was born in America, and that if he knew in what part of his body the American blood circulated, he would let it out; however Pesuela reprimanded him severely for such unnatural expressions.

Nothing but reports of victories arrived from Chile, the bells scarcely ever ceased ringing in Lima, and the choristers were hoarse with chanting Te Deums; the haughtiness of the Spaniards became insupportable; they paraded the streets in triumph, and, forming themselves into groups, insulted every creole who chanced to pass them. But their insolence was at its highest pitch in April, 1818, when the news of the victory over San Martin and O'Higgins at Cancha-rayada arrived; they considered Osorio more than a human being; his wisdom and valour were the theme of the pulpit, the palace, the coffee-house, and the brothel. The hero Osorio was at Santiago; he would soon cross the Andes, and release his virtuous and brave countrymen from their dungeons at San Luis and las Bruscas, and with the reinforcements expected from Spain, in a convoy under the protection of the Spanish frigate Maria Isabel, he would conquer the Buenos Ayreans, and return to Lima with the heads of San Martin, O'Higgins, and those of all the other chiefs of the banditties.

This ferment of insolence and insults continually increased till the evening of the fourth of May, when about ten o'clock at night a *valancin*, post chaise, drove up to the gates of the viceregal palace, bringing the hero Osorio, and the news of his total defeat at Maypu. On the morning of the fifth a creole was allowed to pass the streets unmolested, and might even presume to seat himself in a coffee-house at the same table with a Spaniard. Confusion and dismay were visible in the countenances of the royalists, the great Osorio suddenly became an ignorant coward, who had sacrificed his countrymen, and indecently fled to save his own life; even the Americans were now courted to join the Spaniards in declamations against the late demi-god Osorio, and no hope was left but that the arrival of the expedition from Spain would retrieve the losses occasioned by the dastardly conduct of this chief.

The first news, however, which they obtained of the issue of the boasted expedition was, that the soldiers of La Trinidad, one of the transports, had murdered their officers, taken possession of the vessel, and carried her to Buenos Ayres; this was seconded in November, 1818, with the news, that the Maria Isabel and part of her convoy had been taken at Talcahuano and the island of Santa Maria by the insurgents of Chile; and this blow was aggravated with the abandonment of Talcahuano, the strong hold of the Spaniards in Chile, by General Sanches, who took the command after

Osorio fled. Still there was gall in reserve for the humbled Spaniards. The Chilean squadron, commanded by the Right Honourable Lord Cochrane, made its appearance off Callao on the twenty-eighth of February, 1819, his lordship's flag waving at the main of the ex-Spanish frigate Maria Isabel, now the Chilean flag ship O'Higgins.

It became impossible for me to remain longer in Lima, so I left that city for the Barranca, where I arrived on the first of March.

CHAPTER V.

State of Lima on the Arrival of the Chilean Squadron....Arrival of at Huacho....At Supe....Chilean Naval Force, how composed....Capture of the Maria Isabel by Commodore Blanco....Arrival of Lord Cochrane....Appointed Admiral....Leaves Valparaiso....Arrives at Callao, Huacho, Barranca, Huambacho....Proclamation of Cochrane, San Martin, and O'Higgins....Description of Huambacho....Paita taken....Proceed to Valparaiso....Arrival....Description of....Road from Valparaiso to Santiago.

The arrival of the Chilean squadron on the coast of Peru produced at once a dread that this part of South America would become the theatre of war, and that retaliating fate would inflict on this part of the colonies all the distresses which had been so universally spread among the others: it was feared, that the calamities produced by invasion would now be wreaked on it in return for those that had been experienced in the provinces of Upper Peru, Quito and Chile. War was at the very door, and the system of offence had almost rendered that of defence nugatory. It was believed that an army accompanied the squadron; and the patriots of Lima busied themselves in surmising which would be the point of debarkation. On Wednesday, the third of March, a rumour arrived at the capital, that the land forces would debark at Ancon, five leagues to the northward of Lima; at midnight the report of rockets was heard in the large street in the suburbs of San Lasaro, called Malambo; this was supposed by the patriots to be a signal for reunion; and by the royalists, of the landing of the army: upwards of a thousand of the former immediately repaired to Malambo, and so completely filled the street, that the cavalry sent by the government could not pass the mob, and they retired to the bridge: both parties were anxiously inquiring the cause of the reports, and both retired without obtaining any satisfactory information: had the squadron landed five hundred more, and marched to the city, there is not the least doubt but that with the assistance of the native inhabitants, they would have entered and taken possession of

Santa Catalina and the different barracks, as the number of Spanish troops at that time did not exceed three hundred.

On the 29th of March, part of the squadron anchored in the bay of Huacho, for the purpose of obtaining news from the patriots on shore, and also of landing two spies, sent down by the Chilean government, as well as for the distribution of proclamations and other papers. Lord Cochrane here received the intelligence, that a quantity of money, belonging to the Phillipine company, had been sent down to Huarmey to be embarked in the North American schooner Macedonia, and that another considerable sum was on the road to the same destination; and as the port of the Barranca was better calculated for the purpose of intercepting the treasure than that of Huacho, the O'Higgins and the brig Galvarino dropped down to it, and a party of marines were sent ashore, and took the money in the river of the Barranca before the muleteers could cross it. This was effected without any opposition from the Spanish soldiers that were sent to protect it as a guard. Mr. Eliphalet Smith, of the United States, at first claimed the money; but he afterwards signed a document which specified the names of its true owners; this was also corroborated by several documents which Mr. Smith delivered to his lordship.

During the few days that the Chilean vessels of war remained at Huacho, the indians were at first allowed by the governor to take down to the beach their fruit and vegetables, and sell to them; but the commandant of the county militia having collected about two hundred of his troops, ordered the Indians to desist, and in the most insolent manner commanded Lord Cochrane to depart, unless he wished to be driven out of the port. On receiving this message his lordship immediately ordered the marines to land and march to Huaura, which was done, and the town taken: indeed the troops never attempted to defend it, but fled with their chief at their head: the property belonging to the government at the custom house and the *estanco* of tobacco were taken on board: no private property was touched. After this the trade with the indians was resumed; however, on the departure of the squadron, five young indians were apprehended, tried by a court martial, without their even having been soldiers; and, contrary to the laws of the country, they were sentenced to death and shot, without any other reason being assigned to their protector-general, Manco Yupanqui, in Lima,

than that it was necessary to set such an example, because it might deter others from having any communication with the insurgents.

Such were the feelings of the people in this part of Peru, that the inhabitants of the village, called Supe, deposed the alcalde, who was a Spaniard, and declared themselves independent; but after the departure of the squadron, the principal ringleaders, Villanueva and Aranda, retired to a farm in the interior, where they bade defiance to the Viceroy and his powers. These two, with Reyes, a respectable farmer, Franco, Requena, a priest, and myself, were summoned to a court martial; but having embarked in the flag ship, we could not appear, in consequence of which we were sentenced to death, declared contumacious, and all justices were authorized to apprehend any or all of us, and put the sentence into immediate execution.

Before I proceed with the operations of the Chilean squadron, I shall give some account of its origin, and the arrival of Lord Cochrane to take the command.

The brig Pueyrredon of fourteen guns was the first vessel of war that the state possessed: the brig Araucana of sixteen, and the sloop Chacabuco of twenty-two, were afterwards purchased. Captain Guise brought out the brig Galvarino of eighteen guns, formerly in the British service, and sold it to the government; the San Martin of sixty-four guns, and the Lantaro of forty-four, were two East Indiamen, purchased by the state, and converted into vessels of war. When Chile was possessed of this force, the news arrived of the sailing of the expedition from Cadiz, under the convoy of the Maria Isabel, and having obtained possession of the orders given to the captains of the transports from the Trinidad that entered Buenos Ayres, and of their rendezvous in the Pacific, Don Manuel Blanco was appointed to command the Chilean vessels of war, San Martin, flag ship, Captain Wilkinson, commander; Lantaro, Captain Worster; and the Araucana: they had the good luck to take the frigate, Maria Isabel in the bay of Talcahuano on the twenty-eighth of October, 1818, and four of the transports off the bay and at the island of Santa Maria. On the seventeenth of November the victorious Blanco entered Valparaiso with his prizes, amid manifestations of joy in this port. The government of Chile, to commemorate the action, ordered a badge of honour to be presented to Commodore Blanco and each of his officers: this was a scutcheon of a pale green colour, having a trident in the centre,

with the motto, "this first essay gave to Chile the dominion of the Pacific"—*este primer ensayo dió a Chile el dominio del Pacifico*.

The naval force of Chile having a native as commander in chief, and the captains, officers, and crews composed principally of foreigners, must of course have been conducted in a very irregular manner; and as Don Manuel Blanco had never served in a situation higher than that of an ensign, alferes, in the Spanish navy, it could not be expected that he was competent to fill that of a commander in chief, and to conduct with either honour to himself or profit to his country the operations of a body composed of such discordant materials as the squadron of Chile then was. It must be recollected, notwithstanding, that he added a page of glory to the annals of South American naval triumphs by the capture of the Maria Isabel of forty-eight guns, and part of her convoy.

For the future success of the Chilean navy, the welfare of the state, the progress of independence, and the consummation of South American emancipation, LORD COCHRANE arrived at Valparaiso, on the twenty-eighth of November, 1818. The known valour of this chief, his love of rational liberty, and the voluntary sacrifice which he had made by accepting a command in the new world, had reached Chile before the hero himself, and his arrival was hailed with every demonstration of jubilee by the natives. Before his arrival, however, Captain Spry, an Englishman, and Captain Worster, a North American, both in the Chilean service, had been very loud in declaiming against him; without alleging any other reason, than that it was quite contrary to all republican principles to allow a "nobleman" to retain his title in the service; but the true motive was too visible to escape the most blunted apprehension. Commodore Blanco had then the command of the squadron, and these gentlemen had assured themselves that they could controul him just as they chose, on account of his indifferent knowledge of his duties as commander in chief, and especially as he had to manage British seamen. This with all possible delicacy had been mentioned to Blanco, together with many whispers detrimental to the character of Lord Cochrane. On the arrival of his lordship, Commodore Blanco was one of the first to hail him as the preserver of the liberties of his country, and to offer his services under the command of his lordship; and thus the patriotic Chilean smothered dissention in the bud, and left its cultivators to feel the rankling of those thorns which they themselves had planted.

A few days after the arrival of Lord Cochrane he received from the government of Chile his commission as Vice-admiral of Chile, Admiral and Commander in Chief of the naval forces of the Republic; and on the twenty-second of December he hoisted his flag at the main of the ex-Maria Isabel, now the O'Higgins, which flag Chile can exultingly say, was never hauled down until the last Spanish flag in the Pacific had acknowledged its empire, and either directly or indirectly struck to it. At the close, when the fleet had finished its career of glory, it was lowered by the same individual who hoisted it; it dropped like the sun in the west, while the descendants of the Incas blessed it, for the benefits they had received, with songs of heartfelt gratitude.

On the sixteenth of January, 1819, Lord Cochrane left the port of Valparaíso on board the O'Higgins, Captain Forster, with the San Martín bearing the flag of Rear-admiral Blanco, Captain Wilkinson, the Lantaro, Captain Guise, and the Galvarino, Captain Spry; the Chacabuco, Captain Carter, followed, but a mutiny taking place on board, he entered Coquimbo, where the principal mutineers were landed, sentenced by a drum head court martial, and shot.

Lord Cochrane chose the first day of the carnival for his first entrance into the bay of Callao, suspecting that the whole of the inhabitants would be engaged in the follies of the season—but he was deceived. The Viceroy Pesuela had chosen that day for one of his visits to Callao, and was sailing about the bay in the brig of war Pesuela; when the Chilean squadron appeared off the headland of San Lorenzo, the captain at first mistook the Chilean vessels for Spanish merchantmen expected from Europe; however, fortunately for himself and the party, he immediately came to an anchor under the batteries. The circumstance of the visit of the Viceroy had caused the whole of the military force to be under arms, and the whole of the batteries were manned. A thick fog coming on, the San Martín, Lantaro, and Galvarino, lost sight of the flag ship; however, without waiting for them, the admiral stood close in under the forts, and dropped his anchor; a very brisk cannonading immediately commenced, and the dead calm that followed obliged his lordship to remain alone nearly two hours, under the continued cannonading from ashore, besides a brisk fire from the two Spanish frigates Esmeralda and Vengansa, brigs Pesuela and Maypu, and seven gun-boats. As soon as the breeze sprang up, the O'Higgins stood out,

having sustained very little damage either in her hull or rigging, and without a single person on board having been killed. The north corner of the Real Felipe was considerably shattered by the shot from the O'Higgins, and thirteen persons were killed on shore.

His lordship next entered into a correspondence with the Viceroy, concerning the treatment which the prisoners of war (Chileans and Buenos Ayreans) had received, and were actually receiving in the Casas Matas of Callao; the Viceroy denied that they had received any ill treatment, asserted that they were considered as prisoners of war, although rebels, and traitors to their king, and concluded by expressing his surprise, that a nobleman of Great Britain should so far have forgotten his dignity, as to head a gang of traitors against their legitimate sovereign, and his lawfully constituted authorities. To this his lordship replied by saying, that the glory of every Englishman was his freedom, and that this had entitled him to choose to command the vessels of war of a free country, in preference to that of a nation of slaves—a command which had been offered to him by the Duke de San Carlos in the name of his master, Ferdinand VII.

The following proclamations were distributed along the coasts of Peru, and sent also to the Viceroy.

Lord Cochrane to the inhabitants of Lima, and other towns of Peru:

COMPATRIOTS! I flatter myself, that ere long I shall address you more cordially with this epithet. The repeated echoes of liberty in South America have been heard with pleasure in every part of enlightened Europe, and more particularly in Great Britain; I, not being able to resist the desire of joining in the defence of a cause that was interesting to all mankind, the felicity of half the new world to thousands of generations, have determined to take an active part in it. The republic of Chile has confided to me the command of her naval forces. To these the dominion of the Pacific must be consigned; by their co-operation your chains of oppression must be broken. Doubt not but that the day is at hand, on which, with the annihilation of despotism, and the infamous condition of colonists which now degrades you, you will rise to fill the rank of a free nation; that august title to which your population, your riches, your geographical position in the world, and the course of events naturally call you. But it is your duty to co-operate in

preparing for this success, to remove obstacles, and to pursue the path to glory: under the assurance that you will receive the most efficacious assistance from the government of Chile, and your true friend,

COCHRANE.

Don Jose de San Martin, to the soldiers of the army of Lima:

Soldiers of the army of Lima!—The object of my march towards the capital of Peru is to establish an eternal reconciliation for the happiness of all. Nine years of horror have inundated America with blood and tears. You have been oppressed and fatigued with the evils of war, undertaken by the proud agents of Spain, to satisfy their own passions, and not for the good of the nation. The opinions and the arms of this part of the world will soon be presented before Lima, to put an end to so many misfortunes. You will only prolong the sterile sacrifice, if, blind to the irresistible force of the general will, you attempt to support so rash an enterprize. Each of you has belonged to the cause of the people; each of you belongs to the cause of humanity; the duties of a soldier cannot alter those of nature. The soldiers of the Patria, as faithful in the path of honour as in that of victory, are terrible only to the enemies of liberty. They set a higher price on the value of a victory, more from the injustice which it prevents, than for the glory they acquire. Fly then from the ignominy of perishing with your detestable tyrants. In the ranks of your brother patriots you will find the path to honour, to felicity and peace. A general who has never asserted a falsehood ensures this to you.—Head quarters, Santiago de Chile, 30th December, 1818.

Jose de San Martin.

The Supreme Director of Chile, to the inhabitants of Peru:

Liberty, the daughter of Heaven, is about to descend on your fertile regions; under her shade you will occupy among the nations of the globe that high rank which awaits your opulence. The Chilean squadron, now in sight on your coasts, is the precursor of the great expedition destined to establish your independence. The moment desired by all generous hearts approaches. The territory of Chile, and her adjacent islands are free from the yoke of the oppressor. Our naval forces may compete with those of Spain, and destroy her commerce; in them you will find a firm support.

It will be an inexplicable enigma to posterity, that enlightened Lima, far from aiding the progress of Columbian liberty, shall endeavour to paralyze the generous efforts of her brothers, and deprive them of the enjoyment of their imprescriptible rights. The time is arrived for you to wash out the stain, and in which to revenge the innumerable insults you have received from the hand of despotism, as the reward of your blindness. Fix your eyes on the havoc occasioned by the tyrants in your delightful country; at the sight of them engraved in its depopulation, want of industry, monopoly and oppression; observe the insignificancy under which you have so long groaned; fly to arms, and destroy in your just indignation the standard of that despotism which oppresses you, and you will then soon arrive at the summit of prosperity.

Believe not that we wish to treat you as a conquered country; such an idea never had existence except in the heads of our enemies—of your common oppressors; we only aspire to see you free and happy. You^[4] shall establish your own government, selecting that which is most analagous to your customs, situation, and inclination; you shall be your own legislators, and of course you will constitute a nation as free and independent as we are.

Peruvians! why do you hesitate? Hasten to break your chains; come and sign on the tombs of Tupac Amaru and Pumacachua, the illustrious martyrs of liberty, the contract that must ensure *your* independence, and *our* everlasting friendship.

Bernardo O'Higgins.

On the twenty-sixth a Spanish merchant ship, called la Victoria, laden with cedar planks and horses, from Chiloe, was taken by the San Martin, and on the twenty-eighth the attack was made on Callao, and two of the gun-boats were taken, after which his lordship dropped down to Huacho, and ordered rear admiral Blanco to continue in the blockade of Callao with the San Martin and Lantaro, and any other vessels that might arrive from Chile; but Blanco, after remaining a few days, raised the blockade, and sailed to Valparaiso, where he was immediately placed under an arrest by the government until the arrival of the admiral, when he was tried by a court martial for a dereliction of duty, but acquitted. Lord Cochrane proceeded from Huacho to Barranca, and thence to Huarmey and Huambacho, where

he found a French brig that had received on board part of the money belonging to the Phillipine company, and which the captain immediately delivered up.

The bay of Huambacho, about fifteen miles to the southward of Santa, is one of the most convenient on the western shores of America: it is completely land-locked: the anchorage is capital, and the landing is very good: a small river of excellent water enters the bay, and in the valley abundance of fire-wood may be procured. This valley formerly belonged to the ex-Jesuits; but on account of the decrease of water in the river at certain periods of the year, there not being sufficient for the ordinary purposes of irrigation, the government has never yet found a purchaser for it.

The soil is sandy, with a mixture of vegetable mould; but like the generality of the lands cultivated in Peru it is extremely productive when irrigated. This is evinced at the small indian hamlet of Huambacho, about two leagues from the sea, and it would doubtlessly be a very fit situation for a cotton plantation, which does not require so much water as the sugar-cane or lucern. The hills that surround the valley are covered with the remains of houses belonging to the indians before the conquest; great numbers of huacas are found here, and probably much treasure is buried in them.

Lord Cochrane, after the O'Higgins and Galvarino had wooded and watered, proceeded down the coast to Paita, where having anchored, he sent a flag of truce on shore, by Don Andres de los Reyes, a Peruvian, who embarked at la Barranca, stating that the town and inhabitants should receive no injury, and that nothing but the treasures belonging to the government should be taken, as had already happened at Huaura. He requested that no resistance should be made, as it would be unavailing, and only subject the town to the destructive effects of war. The answer was, that the town and the lives and property of the inhabitants belonged to the king, and that all should be sacrificed in defence of the Spanish flag. The same individual was sent a second time, to request that the military force would not expose the town and its inhabitants; but instead of receiving the message they fired on the flag, and opened their battery on the Galvarino. This insult was immediately resented; the marines were landed, and soon drove the Spaniards from the battery and the town, which was then pillaged; the artillery was embarked, and the fort blown up. The O'Higgins and

Galvarino went to the port of Barranca, and took some cattle, sugar, and rum from the farm of San Nicholas, belonging to Don Manuel Garcia, a Spaniard. It was the constant practice of Lord Cochrane to quarter on the common enemy, and nothing was ever taken from a native by force, or without paying for it. Hence we proceeded to Callao, and thence to Valparaiso, where we arrived on the fifteenth of June.

Valparaiso, situate in latitude $33^{\circ} 1' 45''$ S., and longitude $71^{\circ} 30' 56''$ west of Greenwich, is the principal port in Chile. The natives flatter themselves, that this name was given to the port by the first Spaniards who visited it, and that it is a syncope of Valle del Paraiso, valley of Paradise; but it is equally possible, that the Spaniards, who had received exaggerated accounts of the country, comparing it to Paradise, on their first approaching this part of the coast, might have exclaimed, *valde Paraiso!* *vain Paradise!* which designation its appearance at present would better justify. The bay is of a semicircular form, surrounded by very steep hills, which rise abruptly almost from the edge of the water, particularly to the southward and about half of the range to the eastward; the other half forms a kind of recess, and the hills are not so perpendicular. During the winter season they are covered with grass, with some stunted trees and bushes, such as molles, myrtles, espino, and maytenes; but the soil being a red clay, the verdure soon disappears when the summer sun begins to shine on them and the rain ceases to fall.

The principal part of the town is built between the cliffs and the sea, forming a row of houses, or rather shops; a few good houses stand also in a narrow street, but they cannot be seen from the bay, because a row of low houses with their backs to the sea prevent the prospect. The greater number of the inhabitants of this part of the town, called the port, to distinguish it from the suburbs, called the Almendral, reside in the ravines of San Francisco, San Augustin and San Antonio, where the houses rise one above another, forming a species of amphitheatre; in many of them a person may sit in his parlour, and look over the roof of his neighbour's house; at night the appearance of this part of the town is pleasing, the lights being scattered about the hills in every direction. The Almendral, or suburbs, stands in a kind of recess in the hills, on a sandy plain, and most probably was in times past a part of the bay of Valparaiso; indeed it is now often inundated by the spring tides. Some regularity begins to be adopted here in the formation of

streets, and some of the houses are neat. At the bottom of the Almendral there is a small rivulet.

Valparaiso is defended by a fort on the south side of the harbour, one at the residence of the governor, and one on the north side of the bay: a citadel on the hill behind the governor's palace on an extensive scale is and will perhaps remain unfinished. The places of worship are the parish church, the conventuals of San Francisco, San Augstin, La Merced (in the Almendral) Santo Domingo, and the hospital chapel of San Juan de Dios. Some of the principal houses are built of stone, but the greater part are of adoves; all of them are covered with tiles, and those that have an upper story have a balcony in front.

Since the revolution many English conveniences and luxuries in dress and furniture, as well as improvements in the manners and customs of the inhabitants, have been adopted, and almost any thing *a la Inglesa* meets with approbation.

The market of Valparaiso is well supplied with meat, poultry, fish, bread, fruit, and vegetables at very moderate prices and of good quality. The climate is agreeable except when the strong winds prevail. In the months of June and July the winds from the northward are at times very heavy; on this account the anchorage is insecure, because the bay is not sheltered in that quarter.

From the time of the discovery to the year 1810 this port was only visited by vessels from Lima, bringing sugar, salt, tobacco, a small quantity of European manufactured goods, and some other articles of minor importance; shipping in return wheat, charqui, dried fruits, and other produce of Chile and Peru. The population amounted to about five thousand souls; the commerce was in the hands of four or five merchants, Spaniards, and the annual duties at the custom-house amounted to about twenty-five thousand dollars. After the victory obtained by the Chileans at Chacabuco almost two-thirds of the population of Valparaiso abandoned their homes, or were forced on board Spanish vessels and taken to Peru, and the town was nearly depopulated; but since the revolution it has been constantly increasing in size, population, and riches. In 1822 it contained about fifteen thousand souls, three thousand of whom were foreigners. From 1817 to

1822 upwards of two hundred houses were built; at the latter date there were thirty-one established wholesale merchants, besides an incalculable increase of retail dealers: there were also twenty-six inns, coffee-houses, &c. Besides the vessels of war belonging to the state, forty-one traders bear the national flag; and the bay, formerly empty more than half the year, contains on an average fifty foreign vessels either of war or commerce during the whole year.

The hospital of San Juan de Dios has been transferred from the centre of the town to the suburbs, and a Lancasterian school is established in the old building.

A general cemetery for catholics is building by subscription, and upwards of two thousand dollars have been collected for another for the dissenters. As a proof of the increase of trade and speculation, a daily post is established between the port and the capital.

DOLLARS.

The receipts at the custom-house in 1809, Chile being then a Spanish colony, were	26738½
Do. in 1821, being a free port	464387¾
Number of vessels that entered and left Valparaiso in 1809, all Spanish	13
Do. that entered and cleared out in 1821	142
That is:—Vessels of war	21
That is:—of commerce	121

It is quite unnecessary to dwell on the advantages of commerce to any nation; but here the result is peculiarly apparent, not only among the higher and middle classes, but among the lowest: the peasant who at the time of my residence in Chile, 1803, if possessed of a dollar, would bore a hole through it, and hang it to his rosary—the same peasant can now jingle his doubloons in his pocket. Those who in 1803 wore only the coarsest clothing, of their own manufacture, are now dressed in European linens, cottons, and woollens; those who were ashamed to present themselves to a stranger or who dared not even speak to a master, now present themselves

with confidence, as if conscious of the importance of their civil liberty; they boast too of Christian patriotism, generosity, and valour. The monopolizing Spanish merchants who purchased the wheat and other produce before it was ready for market at almost any price, especially if the owner were necessitated, or who lent the farmer money, to be paid in produce at his own price—such merchants have disappeared, and a regular market is substituted, where the natives of every class enjoy an opportunity of speculating and of reaping the advantages of experience. Labourers of every class have a choice of work and of masters, and this secures to them a just remuneration for their labour. The higher and middling classes now know their importance as citizens of a free and independent country, in the prosperity of which they are interested, because they are aware, that with it their personal prosperity is connected; they can express and discuss their political opinions, and in short, from the lowest order of colonial vassals they have become the subjects of an elective government and citizens of the world.

The road from Valparaiso to the capital, Santiago, crosses the first range of mountains at the northern extremity of the Almendral, and after passing over very uneven ground for about five leagues, a dismal looking plain presents itself; the grass is entirely parched in summer, and in winter the water forms itself into several small lakes or swamps; and scarcely a tree is to be seen in the vicinity. A small number of horned cattle is fed, but the prospect is cold and dreary. After crossing this plain more uneven ground presents itself, but being covered with grass, brushwood, and trees, forming several small ravines, quebradas, with a few cottages straggling in different directions, the country appears beautifully romantic.

The plain of Casa Blanca next presents itself, having the town of the same name nearly in the centre.[\[5\]](#) The plain is perfectly level, about two leagues broad, and two and a half long; it has the appearance of having been at some remote period a large lake, but as the race of Promaucian indians, who inhabited this part of the country before the conquest, has become extinct, all oral traditions have been extinguished with them. The soil is a hard clay, scantily covered with grass, and the only trees are a considerable number of espinos. The town contains about two thousand inhabitants, who are generally employed in the cultivation of the surrounding farms. Having slept here I proceeded on the following day to Bustamante, passing the

cuesta de Prado, and the small town and river of Curucavé. Some parts of the road are remarkably picturesque; in the ravines or valleys the view of the mountain scenery is grand; from the mountains the prospect of the ravines and valleys, as well as the distant view of the snow-topped Andes, is magnificent. The myrtle, of three or four varieties, the different species of cactus, the arrayan, the peumos, the boldos, and the beautifully drooping mayten adorn the sides of the ravines, offering a shade and rich pasture, on which a considerable number of horned cattle, horses, and mules, are seen feeding.

Bustamante is a post house, where travellers often pass a night when on their journey to or from the capital; the accommodations are indifferent, but a few years ago nothing of the kind existed: it must therefore be considered an improvement. After leaving Bustamante the road gradually ascends, and at the distance of about a league from the house the cuesta de Zapata commences. From the top of this eminence the view of the Andes is most enchanting; the snow-covered mountains rise majestically, one range behind another, until their summits are lost in the clouds, or, when the sky is clear, till they are most exactly defined in the azure vault of heaven. When nearly at the foot of the cuesta, the city of Santiago, the capital of Chile, makes its appearance; it is situated in a large plain, having a small rocky mountain, called Santa Lucia, almost in the centre of which is a small battery.

The excellent road from Valparaiso to Santiago was made by the order and under the direction of Don Ambrose Higgins, when president of Chile. Before the formation of this road all goods were carried to and from the capital or the port on the backs of mules, but the greater part is now conveyed in heavy carts, *carretas*, drawn by two or three yokes of oxen. A coach was established in 1820 by Mr. Moss, a North American; it went from Valparaiso to Santiago, and returned twice a week. The distance is thirty leagues.

FOOTNOTES:

[4] From the very first proclamation this promise was made to the Peruvians; but we shall soon see how it was fulfilled by San Martin.

[5] This town was completely destroyed by the earthquake in 1823.

CHAPTER VI.

Santiago....Foundation....Description of the City....Contrast between the Society here and at Lima....State of Chile....Manners and Customs....Revolution....Carreras....O'Higgins....Defeat at Rancagua....Chileans cross the Cordillera....Action of Chacabuco....Of Maypu....Death of Don Juan Jose, and Don Luis Carrera....Murder of Colonel Rodrigues....Formation of a Naval Force....Death of Spanish Prisoners at San Luis....Naval Expedition under Lord Cochrane....Failure of the Attack on Callao....Attack at Pisco....Death of Lieutenant-Colonel Charles....Capture of Vessels at Guayaquil....Squadron returns to Chile.

SANTIAGO, the capital of Chile, was founded on the 24th February, 1541, by the Spanish conqueror Pedro de Valdivia. Its situation is in an extensive valley called de Mapocho, bounded on the east by the Cordillera, on the west by the hills or mountains de Prado and Poanque, on the north by the small river of Colina, and on the south by the river Mapocho, or Topocalma, which passes the city on one side, and feeds many *asequias*, small canals for irrigation; it also supplies the city with water.

About the year 1450 Chile was invaded by the prince afterwards the Inca Sinchiroca, who, more by persuasion than by force, possessed himself of this valley; it was called at that time, Promocaces, the place of dancing, or merriment. The Peruvian government was not established here on the first arrival of the Spaniards, owing perhaps to the opposition made by the Promaucians, who resided between the rivers Rapel and Maule, and whom they never subdued; thus, although Garcilaso de la Vega Inca places the boundary of the territory governed by the Incas on the river Maule, it is more probable that it was on the Rapel, for near the union of the Cachapoal with the Tinguiririca, taking the name of Rapel, there are some ruins of a Peruvian fortress, built in the same manner as those of Callo and Asuay, in the province of Quito; these apparently mark the frontier, and especially as none are found more to the southward.

Santiago is divided into squares or *quadras*, containing in the whole, if we include the suburbs, about a hundred and fifty, which are marked out by the streets; but many are incomplete, wanting houses to finish the boundaries. The principal public buildings are the mint, the palace of the supreme director, and the cathedral, which, like that of Concepcion, is in an unfinished state. The mint is a very handsome edifice, vieing in elegance with any other in South America, and equal to many of considerable note in Europe. It was built by Don Francisco Huidobro, at the expense of nearly a million of dollars: he presented it to the king, and in return received the title of Marquis of Casa Real; but this and all other titles are declared extinct by the independent government. The palace of the supreme director is incomplete; the right wing, which should correspond with the left, is entirely wanting. In it are the different offices belonging to the government, and also the public gaol. The unfinished state of the cathedral is likely to continue; for large funds are wanting to finish so extensive a building.

The bridge across the Mapocho is a handsome structure of brick and stone. The *tajamar*, breakwater, serves to preserve the city from being inundated by the river when the waters increase, either by heavy rains in the Cordillera, or the melting of the snows in the summer, at which time this stream, though at other times insignificant, becomes a rapid torrent. Here is a public promenade, like the Alamedas at Lima, having a double row of Lombard poplars on each side, forming a shady walk for foot passengers, while the middle one serves for carriages and horses. The *tajamar* is formed of two walls of brick-work, and the interior is filled with earth; a very agreeable promenade is made on the top, having several flights of steps to ascend it; some seats are also placed in the parapet which fronts the river; the whole being two miles long. The snow-covered Andes are about twenty leagues from the city, yet they seem to overhang it, and the view of them from the *tajamar* is very majestic.

Santiago is divided into four parishes; San Pablo, Santa Ana, San Isidro, and San Francisco de Borja. It has three Franciscan convents, two of the Dominicans, one of San Augustin, and two of La Merced: those belonging to the Jesuits were five. Here are seven nunneries, two of Santa Clara, two of Carmelites, one of Capuchins, one of Dominicans, and one of Augustinians; a house for recluse women called el Beaterio, and a foundling hospital.

Santiago was made a city by the king of Spain in 1552, with the title of very noble and very loyal; its arms are a shield in a white ground, in the centre a lion rampant holding a sword in his paw, and orle eight scallops, Or. It was erected into a bishopric by Paul IV. in 1561. It was the residence of the President, and Captain-General of the kingdom of Chile, and counts fifty governors from Pedro de Valdivia, the first, to Don Casimiro Marcó del Pont, the last; also twenty-three bishops, from Don Rodrigo Gonsales Marmolijo to the present Don Manuel Rodriguez. Here was also a tribunal of royal audience, one of accompts, a consulate, or board of trade, treasury, and commissariate of bulls. The whole of the territory extends from the desert of Atacama to the confines of Arauco, and was subject to the above-mentioned authorities from the foundation of the government in 1541 to the beginning of the fortunate revolution in 1810.

The contrast between the society which I had just quitted in the capital of Peru and that which I here found in the capital of Chile was of the most striking kind. The former, oppressed by proud mandataries, imperious chiefs, and insolent soldiers, had been long labouring under all the distressing effects of espionage, the greatest enemy to the charms of every society: the overbearing haughty Spaniards, either with taunts or sneers, harrowing the very souls of the Americans, who suspected their oldest friends and even their nearest relations. In this manner they were forced to drain the cup of bitterness to the last dregs, without daring by participation or condolence to render it less unpalatable; except indeed they could find an Englishman, and to him they would unbosom their inmost thoughts, believing that every Briton feels as much interest in forwarding the liberty of his neighbour, as he does in preserving his own. In Lima the tertulias, or chit-chat parties, and even the gait of the public promenades, had almost disappeared, and *quando se acabará esto?* when will this end? was the constantly repeated ejaculation. In Santiago every scene was reversed; mirth and gait presided at the *paseos*, confidence and frankness at the daily tertulias; Englishmen here had evinced their love of universal liberty, and were highly esteemed; friendship and conviviality seemed to reign triumphant, and the security of the country, being the fruits of the labour of its children, was considered by each separate individual as appertaining to himself; his sentiments on its past efforts, present safety, and future prosperity were delivered with uncontrolled freedom, while the supreme

magistrate, the military chief, the soldier, and the peasant hailed each other as countrymen, and only acknowledged a master in their duty, or the law.

Another prominent feature in Chile is the state of her commerce, entirely formed since the revolution; it has rendered her not only independent of Spain, but of Peru also. Formerly the fruits and produce of this fertile region of the new world were entirely indebted to Peru for a market; but with the spirit of freedom that of speculation arose, and markets and returns were found in countries, of whose existence ten years ago (1819) even the speculators themselves were ignorant. Several of these provinces were conceived to be so situated, that no one attempted to visit them, judging that such a journey would be attended with almost insurmountable difficulties; dangers as great as the majority of the inhabitants of Europe supposed were to be encountered by a visit to the coasts of Peru.

The manners and customs of the inhabitants of Santiago are now very different from those of Concepcion in 1803, which was at that time nearly as affluent as the capital; the estrado is almost exploded; the ladies are accustomed to sit on chairs; the low tables are superseded by those of a regular height, those on which the family, who at that period crossed their legs like turks or tailors, sat on a piece of carpet, are now abolished; formerly all ate out of the same dish, but now they sit at table in the same manner as the English, and their meals are served up with regularity and neatness. The discordant jarring of the old half strung guitar has given place to the piano, and the tasteless dance of the country to the tasteful country-dance. In many respects, indeed, the Chileans here appear half converted into English, as well in their dress as in their diversions and manners.

The following brief statement of the revolution in Chile, extracted from official documents, and faithful reports, will I flatter myself be found interesting to all classes—its details, however, must necessarily be confined within short limits.

One of the peculiar features in all the South American revolutions was the accomplishment of the principal object, which consisted in deposing the constituted authorities without bloodshed. This was the case at Caracas, Santa Fé de Bogotá, Quito, Buenos Ayres and Chile; and at a later period at Guayaquil, Truxillo, Tarma, and even at Lima; for the Spanish forces

quitted the city, and the Chilean entered without the occurrence of a skirmish either in the capital or its vicinity.

The same causes which operated in Venezuela and Quito, and have been already stated, were felt in Chile, and produced similar effects. On the 18th July, 1810, the president Carrasco was deposed by the native inhabitants, under the plea of his incapacity of preserving this part of the Spanish dominions for Ferdinand, when he should be freed from his captivity, and a junta which was formed of the Cabildo took upon itself to govern according to the old system, but with the secret intention of following the course and example of Buenos Ayres in declaring her independence. In 1811 Don Juan Jose Carrera, the son of Don Ignacio Carrera of Chile (who had been sent to Europe, and in the continental war had attained the rank of a lieutenant-colonel and commandant of a regiment of hussars) crossed the Atlantic to succour his native country, which he was considered by his friends as the only person capable of saving from the impending ruin which threatened it from the result of the steps taken; and he was in consequence nominated by the junta supreme president of the congress which was convened, besides which he was appointed general in chief of the army about to be formed. The first step which Carrera took was to establish a defensive army, which he immediately began to recruit and discipline, choosing his officers from among the most zealous friends of liberty. He constituted himself colonel of the national guards, appointed his elder brother, Don Jose Miguel, colonel of grenadiers, and his younger, Don Luis, colonel and commandant of artillery. At this time the principal military force of Chile was at Concepcion; indeed the whole of the force, excepting two companies, which had always been on duty in the capital, and about fifty stationed as a garrison at Valparaiso, was employed on the frontiers of Arauco. On hearing of what had taken place in the capital, the troops at Concepcion declared themselves in favour of the cause of liberty. The inhabitants of Concepcion pretended that their city was better calculated to be the seat of government than Santiago; and as the troops were principally composed of Pencones, natives of the place, they were persuaded to join in the request, which occasioned some difficulties to Carrera, and it was feared that this untimely pretension would be the cause of a civil war; but it was finally adjusted that, for a specified time, the troops of Concepcion should remain to the southward of the river Maule, and those of Santiago to the northward. This

gave Carrera an opportunity to gain over the troops, which he did by sending emissaries to Concepcion, when a general reconciliation took place, and the whole of the troops were placed under the command of Don Juan Jose Carrera.

The Spanish troops from Lima, Coquimbo and Chiloe, under the command of Colonel Gainsa, began hostilities in the south of Chile; various actions and skirmishes occurred between them and the undisciplined Chileans, the result being favourable to the latter. In 1812, Don Bernardo O'Higgins (then a captain of militia) joined Carrera, who bestowed on him the rank of lieutenant-colonel of the line, and shortly afterwards raised him to that of brigadier general, for the important services he rendered with the Guerilla parties.

In 1813, the three Carreras, with a considerable number of their officers, were retaken prisoners by the Spaniards, and confined at Talca. The command of the army devolved on O'Higgins, he being the senior officer. He availed himself of this opportunity, assumed the civil power, caused himself to be proclaimed president, and appointed a substitute in the capital to govern during his absence. The Carreras being possessed of money bribed the soldiers at Talca and made their escape. O'Higgins instantly offered a reward for their apprehension. The three Carreras immediately set off to Santiago, disguised as peasants, and made themselves known to some friends; Don Luis was apprehended and imprisoned; Don Juan Jose went in his disguise to the artillery barracks, and having entered, discovered himself to the officers and soldiers, who welcomed his arrival, and promised to support him; in consequence of which he marched with the soldiers to the plaza, and liberated his brother Luis. The citizens promptly reinstated the Carreras, and the news being conveyed to O'Higgins, he marched his army towards the capital, leaving the enemy to avail himself of the civil discords of the Chileans. Carrera proposed to unite their respective forces, proceed against the common enemy, and leave their private quarrels to be decided by the fortune of war, or by the suffrages of the people. To these proposals O'Higgins objected, and the two generals prepared for action. Carrera chose the plain of Maypu, when O'Higgins soon began the attack, and was repulsed; the peasantry, under the command of Carrera, although victorious, called on their countrymen to desist, not to fly, but to surrender to their first and best chief; this they did, were generously received, and forgiven.

O'Higgins and his principal officers were made prisoners. They all expected that their offended general would bring them to judgment as traitors; but they were pardoned, restored to their former situations in the army, and O'Higgins was reinstated in the command of the van-guard, and received orders to march towards Rancagua, where Carrera soon afterwards repaired with the remainder of the army. The Spaniards profited by the dissensions of the patriot chiefs, recruited and disciplined more troops, and invested the town of Rancagua on the first of October, 1814. Carrera and his troops defended themselves here forty-eight hours, and when their ammunition was expended and they were obliged to evacuate the place, they cut their way through the ranks of the Spanish soldiery sword in hand. General Carrera and his two brothers, O'Higgins, Benevente, the unfortunate Rodrigues, and several of the more wealthy citizens, crossed the Cordillera, leaving General Osorio in possession of the whole of Chile.

The Spanish regime being thus re-established in Chile, the different functionaries who had been deposed resumed their offices, and a new tribunal called *de la purification* was established, through which ordeal all those natives who wished to be considered as loyal subjects to Spain had to pass. It was composed of Spaniards, principally officers, having the celebrated Major San Bruno as president. Nothing can be imagined more arbitrary than the conduct of this tribunal; its assumed duties were to examine the proceedings of the inhabitants, and, independently of any established laws or set forms, to sentence or acquit. The prisons were filled with the objects of persecution, the places of exile were crowded with the victims of this political inquisition, and Chile groaned under the unwise administration of Osorio. This tyrannical general and Marcó, instead of pursuing conciliatory measures, which would have attached the malcontents to their party, adopted every kind of persecution, and cultivated distrust; until enmity, which ripened in secret, at the first favourable opportunity produced conspiracies and all the fatal effects of revenge.

General Carrera pursued his route to Buenos Ayres, where he embarked for the United States to solicit assistance; while O'Higgins, Rodrigues, McKenny, and Calderon began to recruit and discipline a new army for the re-occupation of Chile: the command of the army was given to San Martin; it crossed the Cordillera, and the battle of Chacabuco was fought on the twelfth of February, 1817, the result of which has already been stated. On

the arrival of the patriot troops in Santiago an elective government was formed, of which General San Martin was nominated the supreme director; but he declined the offer, and recommended his friend, General O'Higgins, to fill the place.

The refusal of San Martin to accept the first and highest post of honour in Chile was misunderstood at the time; it was construed into a deference to the superior abilities of O'Higgins, and to modesty on the part of the hero of Chacabuco; whereas some who knew him better were persuaded, that he intended to govern the government, and to make it subservient to his own purposes. Besides, a wider field for the ambition of San Martin now presented itself. He began to look forward to Peru, which afterwards became the theatre of his warlike virtues.

The Spaniards kept possession of Talcahuano, as well as the southern provinces, and received supplies from Peru, principally composed of the regiment of Burgos, one of the finest bodies of troops ever sent from Spain. General Osorio again took the command of the army, and marched towards the capital, while the patriots mustered all their forces to oppose him. The Spanish force was composed of about five thousand regulars, and it gained several advantages, particularly one at Cancharayada, where they surprised the Chilean army in the night, and completely dispersed it; and had Osorio continued his march, he might have entered the capital without any opposition; but he remained at Talca, and allowed the patriots to collect their scattered forces. This they were not slow in performing, for on the fifth of April they presented themselves on the plain of Maypu about seven thousand strong, including the militia; indeed very few of them could be called veterans, except in their fidelity to the cause of their country. O'Higgins having been severely wounded in his right arm at Cancha-rayada, could not take the field, but remained in his palace at Santiago. San Martin and Las Heras commanded the patriots, and Osorio the royalists on this memorable day, which sealed the fate of Chile. The conflict was obstinate and sanguinary during the greater part of the day; in the afternoon fortune appeared to favour the Chileans, when lieutenant-colonel O'Brian observed, that the regiment of Burgos were endeavouring to form themselves into a solid square; he immediately rode up to General San Martin; and begged him to charge at the head of the cavalry and prevent the completion of this manœuvre, stating, that if it were effected nothing could prevent their

marching to the capital. San Martin, instead of charging at the head of the cavalry, ordered O'Brian to charge, which he did, and completely routed the Spaniards, and gave the victory to the patriots. Osorio on observing the fate of the regiment of Burgos fled with a few officers and part of his body-guard. When O'Brian returned to the commander in chief and reported to him the news of the victory, he was answered by a bottle of rum being offered to him by the hero of Maypu, accompanied with this familiar expression, *toma!* take hold!

Of the five thousand men commanded by Osorio two thousand fell on the field, and two thousand five hundred were made prisoners, with one hundred and ninety-three officers, who were immediately sent across the Cordillera to the Punta de San Luis and Las Bruscas; General Osorio, with about two hundred followers, escaped from the field of action and fled to Concepcion.

This victory over the Spaniards gave to the Chileans that complete independence for which they had been struggling ever since 1810; but the glory of the achievement was tarnished by what took place as well at Mendoza on the east side of the Cordillera as at Quillota on the west. On the return of General Carrera from the United States, bringing with him several officers and some supplies of arms, for the purpose of equipping an expedition for the liberation of his country, he found, on his arrival at Buenos Ayres, that his two brothers were on their parole of honour in this city, and were not allowed to return home nor to join the army. This proceeding astounded Carrera, but he had scarcely time to inquire into what had taken place, when he was himself arrested and placed on board a gun brig belonging to Buenos Ayres; at which time his two brothers, fearing the same fate, fled, Don Luis on the nineteenth of July, 1817, and Don Jose Miguel on the eighth of August: on the seventeenth they were apprehended near Mendoza, and thrown into prison, when they were in hopes of having been able to cross the Cordillera and again to serve their country.

It appears that Don Jose Miguel Carrera when at Rio Janeiro had obtained a copy of the negotiation which had been carried on in France by Don Antonio Alvares Jonte, the agent of the supreme director of Buenos Ayres, Pueyrredon, for the purpose of establishing a monarchy in this place, and of giving the throne to Charles Louis Prince of Lucca, the son of Don Louis of

Bourbon, heir apparent to the Dukedom of Parma, and Dona Maria Louisa of Bourbon, daughter to Charles IV. of Spain, afterwards called the king and queen of Etruria. The possession of these documents, and a knowledge of all that had transpired, rendered Carrera an unwelcome visitor at Buenos Ayres, and a suspicious character to Pueyrredon, who, to provide for his own safety, determined on the destruction of this individual, but he escaped from the brig and fled to Monte Video.

Don Jose Miguel and Don Luis were equally dangerous opponents to the vices of San Martin, who on hearing of their being arrested sent over his arch-secretary Don Bernardo Monteagudo to bring them to their trial; and as it was necessary to forge some ostensible motive for their execution, as that of having disobeyed the orders of a government to which they had never promised fealty could not be accounted sufficient, Don Juan Jose was accused of having murdered the son of the postmaster of San Jose in the year 1814, of which act, however, Monteagudo himself says, in his *Extracto de la Causa seguida contra los Carreras*, p. 7, "although from the nature of the circumstances the murder could not be proved by evidence, yet the whole of the procured evidence was such, that the probability of the aggression was in the last degree approaching to a certainty." As this accusation did not include Don Luis another plan was laid that should inculcate the two brothers. Some of the soldiers then on duty at Mendoza were directed to propose to the prisoners the means of escaping, to which they acceded, and on the 25th of February, 1818, Pedro Antonio Olmos informed the governor of Mendoza that Don Juan Jose and Don Luis Carrera had formed a plan to escape from prison on the following night, and brought in Manuel Solis to support the information. This put the machine in motion, and five other soldiers were adduced as evidence against the unfortunate brothers. On the 10th of March the examinations closed, on the 11th they were requested to appoint their counsel, and on the 4th of April the Fiscal solicited the sentence of death; on the 8th the solicitation was approved of, as being according to law, by Miguel Jose Galigniana and Bernardo Monteagudo, to which was subjoined the following order: "let the sentence be executed—Don Juan Jose and Don Luis Carrera are to be shot this afternoon at five o'clock." (Signed) Toribio de Lusuriaga. The two unhappy brothers heard their sentence at three o'clock in the afternoon, and they were slaughtered at six. They left the dungeon arm in arm, walked to

the place of execution, and having embraced each other, sat themselves down on a bench, and ordering the soldiers to fire, they again embraced each other in death. The conduct of General San Martin in this affair may perhaps be defended by his friends and partisans; but the prevalent belief is, that on finding a considerable party in Chile in favour of the Carreras, he was determined on their destruction, and that the order for the execution of Don Juan Jose and Don Luis was sent by him to Lusuriaga the governor. Nothing however can be conceived more brutal than what occurred at Santiago after the execution of the two brothers. San Martin sent to their unhappy father an account of the expenses incurred on their trial and execution, with an order for immediate payment, or that the father should be committed to prison. The venerable old man defrayed the bloody charge, and two days afterwards he expired, the victim of malice and of persecution. I was at Santiago at the period, and followed the corpse to the grave.

At the same time that this tragedy was performed on the eastern side of the Cordillera, another, which for its midnight atrocity exceeds even the fabulous legends of cold-blooded cruelty, was performed by the same manager on the western side: an act that would curdle the milk of sympathy into a clotted mass of hatred. Don Manuel Rodrigues obtained the rank of colonel in the service of his country; he crossed the Cordillera after the defeat of the patriots at Rancagua, remained with O'Higgins, and assisted to discipline the army commanded by San Martin; the battle of Chacabuco added honour and glory to his name, and the field of Maypu crowned him with laurels. His conduct as a soldier and his manners as a gentleman had endeared him to all who knew him; but the record of his virtues was the instrument of his destruction; the jealousy of San Martin could not brook a rival in those glories which he considered exclusively his own, and that the popularity of Rodrigues might withdraw for one moment the attention of a single individual from contemplating the greatness of the hero of Maypu. Rodrigues was apprehended, and sent to Quillota, where after he had remained a few days, San Martin sent a corporal and two soldiers, with an order for Rodrigues to be delivered up to them; he was conducted along the road leading to the capital, and not permitted to stop at night at a house which they passed, and where he requested they would allow him to rest. The morning dawned on the everlasting resting place of this gallant Chilean

—he was murdered at midnight by his ruffian guard, and buried at a short distance from the high road. Inquiries were afterwards made by the relatives of Rodrigues, but no satisfactory accounts could be obtained at headquarters; the soldiers who were the only persons capable of giving information were not to be found; this was easily accounted for; General San Martin had sent them to the Punta de San Luis, to be taken care of by his confidant Dupuy, who was at this time under training for another scene of bloodshed, more horrible, if possible, than the past.

After the expulsion of the Spaniards, the supreme director, O'Higgins, knowing the importance of a naval force, which might protect the shores of Chile and its commercial interests against the Spanish vessels of war, applied himself seriously to the acquisition not only of vessels but of officers and crews. The two East-indiamen, the Cumberland and the Windham, afterwards the San Martin and the Lautero, were purchased; the Chacabuco and the Pueyerredon were equipped; the Galvarino was purchased, and the Maria Isabel was taken. But after all this the possession of vessels would have been attended only with expense, had not the good fortune of South America been supported by the devoted services of Lord Cochrane, to whom the western shores of the new world owe their emancipation, and England the commerce of this quarter of the globe.

O'Higgins being desirous of lightening the burden of the administration which had been confided to him, nominated five individuals as consulting senators; but he unwarily granted to them such powers as made them independent of his own authority, and consequently rendered himself subservient to their determinations. This caused innumerable delays in the despatch of business, and prevented that secrecy which is often indispensably necessary in the affairs of state; indeed these two defects of tardiness and publicity were often visible in Chile, for by such delays the enemy was informed of the designs of the government, and prepared to thwart their execution.

After the squadron had sailed from Valparaiso on the fifteenth of January, 1819, under the command of Lord Cochrane, the whole attention of the Chileans was engrossed with the expectation of decisive victories which were to be obtained over the Spaniards in Peru; they felt themselves secure under the protection of the fleet, and congratulated each other on having

now transferred the theatre of war from their own country to that of their enemy; but a new scene of horror presented itself, sufficient not only to astonish the inhabitants of this part of the new world, but to call down on the head of its author universal execration. The following extract is from the ministerial gazette of Santiago of the fifth of March, 1819:—

"On the eighth of February last, between eight and nine o'clock in the morning, my orderly informed me that some of the Spanish officers confined here wished to see me. I ordered him to allow them to enter; I was at this time conversing with the surgeon Don Jose Maria Gomes and my secretary Don Jose Manuel Riveros. Colonel Morgado, Lieutenant-Colonel Morla, and Captain Carretero entered; Carretero sat himself down on my left hand, and after a few compliments, he drew from his breast a poignard, and struck at me with it, but I fortunately parried the blow. Carretero exclaimed at the same time, "these are your last moments, you villain, America is lost, but you shall not escape!" I drew back to defend myself against Colonel Morgado, who attempted a second blow, at which time General Ordoñez, Colonel Primo, and Lieutenant Burguillo entered; Gomes, the surgeon, immediately left the room, calling for assistance, and my secretary Riveros endeavoured to do the same, but was prevented by Burguillo. For a considerable time I had to defend myself against the six assassins, who began to desist on hearing the shouts of the people that surrounded the house, and were using every effort to enter it; I requested they would allow me to go out and quiet the populace, to which they consented; but the moment I opened the door leading from the patio to the plaza, the people rushed in, and put the whole of them to death, except Colonel Morgado, whom I killed, and thus the attack on my person was revenged.

"I immediately discovered that a plot had been formed by the whole of the officers confined here, to liberate themselves, and to pass over to the Guerilla parties under the command of Carrera and Alvear; however, the populace and the soldiery took the alarm, and several of the prisoners have paid with their lives the temerity of the plan they had laid. I immediately ordered Don Bernardo Monteagudo to form a summary process, which on the fourth day after receiving the order he informed me was finished, and I agreeing with his opinion, ordered the following individuals to be shot: captains Gonsales, Sierra and Arriola; ensigns Riesco, Vidaurazaga and

Caballo; privates, Moya and Peres. The number of enemies who have ceased to exist is, one general, three colonels, two lieutenant-colonels, nine captains, five lieutenants, seven ensigns, one intendent of the army, one commissary, one sergeant and two privates." This was signed by Vicente Dupuy, lieutenant-governor of San Luis.

Many other statements of the transaction were circulated by the friends of each party. I received the following from a person entirely independent of both, and who had no motive for furnishing me with an exaggerated account:

"On the night of the seventh of February, 1818, when the Spanish field officers confined at San Luis were playing at cards with Don Vicente Dupuy, this lieutenant-governor happened to lose some money, and immediately seized what was lying before Colonel Ribero; Ribero expostulated, and notwithstanding the entreaties of his friends, at length struck Dupuy on the face, whose friends immediately seized some arms, which had been placed in the room, and the Spaniards also availed themselves of part of them. The uproar that was formed alarmed the guard, and the Spanish prisoners, fearful of the result, laid down their arms and begged Dupuy's pardon; it was granted, and he pledged his word and honour, that if they would allow him to go out, he would pacify the tumult made by the guard and populace; the Spaniards believed him; he went out; but instead of quieting the disturbance he spread the alarm, and called upon the people to revenge the insults he had received from the Godos (Goths, the name by which the Spaniards were known); Dupuy re-entered the house with some soldiers and other armed individuals, and General Ordoñez, Colonel Morgado, with six other officers were immediately butchered by them; Colonel Primo seeing that he could not escape, took up a pistol and shot himself; every Spaniard found in the streets was also massacred at the same time, and many were murdered in their houses; in all fifty Spanish officers were massacred, and only two escaped of the whole number, which at that time were at San Luis. For this memorable action Dupuy was created a colonel-major, and a member of the Legion of Merit of Chile.

"Dupuy was afterwards tried, by order of the government of Buenos Ayres, for several acts of assassination and cruelty which he had committed, and he defended himself by producing written orders from San Martin for the

assassination of Raposo and Conde, as also for the murder of the unfortunate Rodrigues—these orders were very laconic—*pasará por San Luis, tiene mi pasaporte, recibale bien, pero que no pase el monte al otro lado de San Luis. Prontitud, y silencio, asi, conviene para el bien de la Patria*: will pass through San Luis, he has my passport, receive him politely, but allow him not to pass the wood on the other side of San Luis.—Promptitude and silence, this is necessary for the good of the country. However, Dupuy was exiled to La Rioja, whence he escaped, and followed San Martin to Peru. He also proved, that the order for the execution of the Carreras was a verbal one given by San Martin before he left Mendoza."

With respect to General San Martin, it may be observed, that as his character and actions have been so grossly mis-stated by other writers, it becomes necessary that some traits which have hitherto been withheld should be published, as well for the purpose of historical truth, as for that of dissipating the cloud which envelopes the conduct of several individuals who have lent their assistance to the cause of American liberty. The presence of Monteagudo at Mendoza for the execution of the Carreras, and of his being employed on a similar mission at San Luis, are rather strange coincidences; with the additional circumstance, that he was arrested in the house of an English merchant residing at Santiago, and in the supposed character of a prisoner, was sent by the order of San Martin to San Luis, where he was considered a prisoner until called upon to form the process, and draw up the sentence of death against the Spanish officers, which sentence appears to have decreed his own liberation, for he immediately recrossed the Cordillera, and remained with his patron.

In 1819 the Spaniards under the command of General Sanches evacuated Concepcion and Talcahuano, crossed the Biobio, and proceeded through the Araucanian territory to Valdivia. Sanches plundered the city of Concepcion of every valuable which he could take with him; the church plate and ornaments, and even many of the iron windows belonging to the houses; he also persuaded the nuns to leave their cloisters and to follow the fortunes of the army: they did, and were abandoned at Tucapel, and left among the indians.

A native of Chile named Benavides was left by Sanches at the town of Arauco, for the purpose of harassing the patriots at Concepcion, and several

Spaniards of the most licentious characters chose to remain with him. Benavides was a native of the province of Concepcion, and served some time in the army of his country, but deserted to the royalists: at the battle of Maypu he was taken prisoner, and, among other delinquents, was ordered to be shot, in the dusk of the evening. However, Benavides was not killed, although his face was stained with the gunpowder, and having fallen, he made some motion, which the officer observing, cut him across the neck with his sword, and left him for dead; but even after this he recovered sufficient strength to crawl to a small house, where he was received and cured of his wounds. It is said that after his recovery he held a private conference with San Martin; I have been perfectly satisfied on this head, and I am certain that no such interview ever took place; indeed San Martin is not the man for such actions, nor would it have been prudent for any chief to have risked his existence with a desperado like Benavides. This monster fled from Santiago, joined General Sanches at Concepcion, and was left by him in the command of the small town of Arauco, where the most atrocious hostilities commenced that have ever disgraced even the war in America.

The attention of the government was employed in fitting out a second naval expedition to the coast of Peru, for the latest advices from Europe confirmed the former, which stated, that a naval force preparing in Cadiz, and composed of the two line of battle ships Alexander and San Telmo, the frigate Prueba, and some smaller vessels, was destined to the Pacific. The Chilean squadron was by no means competent to cope with such a force; besides which, two frigates, the Esmeralda and Vengansa, three brigs of war, and some small craft, as well as armed merchantmen at Callao, being added to what was expected from Spain, the force would have been overwhelming. It was therefore determined, that the squadron should attempt the destruction of the vessels in Callao, by burning them. Mr. Goldsack, who had come to Chile, was employed in making Congreve's rockets, of which an experiment was made at Valparaiso, and which answered the expectations of Lord Cochrane.

Every necessary arrangement being completed, the squadron, consisting of the O'Higgins, San Martin, Lautaro, Independencia, (which arrived on the 23rd May, 1819, having been built in the United States for the government of Chile) the Galvarino, Araucano, the Victoria, and Xeresana, two

merchant vessels which were to be converted into fire-ships if necessary, left the port of Valparaiso on the twelfth of September, and having first touched at Coquimbo, arrived in the bay of Callao on the twenty-eighth. Lord Cochrane announced to the Viceroy Pesuela his intention of destroying the shipping in the bay, if possible; but he proposed to him terms on which he would desist; namely, that he would diminish the number of his vessels by sending part of them to leeward, and fight the Spanish force man to man, and gun to gun, if they would leave their anchorage, and this, said he, might be the means of preserving the property of individuals then in the bay. His excellency, however, declined the challenge, observing, that it was of a nature which had never been before heard of. The preparations for throwing rockets among the shipping immediately commenced, and on the night of the first of October several were thrown, but without effect: the firing from the batteries and shipping began at the moment the first rocket was thrown, which appeared as a signal to the enemy. From our anchorage we could distinguish the heated shot that flew through the air like meteors in miniature; however, little injury was sustained on either side: our loss consisted in Lieutenant Bayley of the Galvarino and one seaman. One of the rafts under the direction of Lieutenant-colonel Charles was protected by the Independencia; the second by two mortars under that of Major Miller, now (1824) General Miller, was protected by the Galvarino; and the third under Captain Hinde was defended by the Pueyrredon. By accident Captain Hinde lost his lighted match rope, and sent on board the brig for another, which the soldier dropped on stepping from the boat to the raft; it fell among the rockets, and an explosion took place, but no serious injury was experienced.

In the nights of the second, third, and fourth several more rockets were thrown, without particular success: some damage was done to the enemy's vessels, but on the fourth they were completely unrigged, which was undoubtedly a wise precaution. Several of the rockets exploded almost immediately after they were lighted, others at about half their range, others took a contrary direction to that in which they were projected, and it became evident that some mismanagement had occurred in their construction. On examining them, some were found to contain rags, sand, sawdust, manure, and similar materials, mixed with the composition. Colonel Charles, who had been commissioned to superintend the making of the rockets, was at first incapable of accounting for this insertion, but at

length he recollected, that the government of Chile, with a view of saving the wages of hired persons, had employed the Spanish prisoners to fill the rockets, to which mistaken policy the whole squadron might have fallen a sacrifice; for had the vessels which were expected from Spain arrived, the Chilean forces would never have been able to cope with the Spanish, especially when joined by what was in the bay of Callao.

On the fifth a large vessel was observed to windward. It proved to be the Spanish frigate *la Prueba*, part of the expected squadron: advices which we received from shore informed us, that the *Alejandro* had returned to Spain, and the general belief was, that the *San Telmo* had been lost off Cape Horn, which was afterwards proved to be the case.

The fire-ship being ready was sent into the bay under the direction of Lieutenant Morgel; an unceasing cannonade was kept up both from the batteries and the shipping; the wind died away, and such was the state of the fire-ship, that Lieutenant Morgel was obliged to abandon her, and she exploded before she came to a position where she could injure the enemy. Owing to the news which we received the following day, the admiral determined not to send in the second fire-ship, but to proceed to the northward, to procure fresh provisions and water, as well as to obtain news respecting the Spanish frigate. The crew of the *San Martin* being unhealthy, his lordship ordered her, the *Independencia* and *Araucano* to Santa, and the *Lautaro* and *Galvarino* to Pisco, to procure spirits and wine, the royal stores being full at this place. A military force being stationed at Pisco, part of the marines were sent from the *O'Higgins* and *Independencia*, and the whole were placed under the orders of Colonel Charles. On the 14th of October we anchored in the harbour of Santa, and immediately began to drive the cattle from the farms belonging to the Spaniards down to the beach; but whatsoever was received at any time from the natives was always punctually paid for; this so enraged a Spaniard, Don Benito del Real, that he headed some of his own slaves and dependents, and came from Nepeña to Santa, where he surprised one of our sailors, and took him prisoner; he immediately returned, and reported by an express to the Viceroy Pesuela, that he had secured Lord Cochrane's brother in disguise. This news made its appearance in the Lima Gazette, and nothing could exceed the disappointment of the royalists in Lima, when they discovered that their noble prisoner was only a common sailor.

On the 15th the Lautaro and Galvarino arrived from Pisco, and as nothing can give a better account of what occurred at this place than the official dispatch of the admiral to the Chilean government, the following translation is subjoined:

"The absolute want of many indispensable articles in the squadron, as I have already informed you, left me no other alternative than to abandon the object of the expedition, or to take the necessary provisions from the enemy. I adopted the latter, and sent the Lautaro and the Galvarino to Pisco for the purpose of procuring spirits, wine, rice and some other articles.

"The result of this expedition has been glorious to the arms of Chile in the valour shewn by her officers and soldiers when fighting hand to hand with the enemy, and in the assault on the city of Pisco, and the fort to which the forces of the Viceroy retired. It is my painful duty notwithstanding to inform you, that the unfortunate Lieutenant-Colonel Charles closed in this action his career in the cause of liberty, to which his soul was devoted, at a moment when it promised to be the most brilliant which the human mind could desire. The courage and judgment of Charles were not more visible than the talent and general knowledge which he possessed; such as could only receive an additional lustre from his peculiarly agreeable suavity of refined manners, and from that diffidence in his behaviour, as if he considered that he had not arrived at the portal of wisdom, when all who surrounded him saw that he was one of the inmates of the temple.

"Would to God that that sword, the companion of his travels over the greater part of the globe, in search of information, in the day of danger, and in the hour of death, be employed by his brother, to whom in his last moments he bequeathed it, with equal zeal in the just and glorious cause, in which my ever to be lamented friend Charles has prematurely fallen.

"Lamenting the loss which the cause of liberty and independence has suffered in the death of Charles, as well as all those who knew this able and meritorious officer, I subscribe myself with an anguished heart, your most obedient servant, (signed) Cochrane."

"To the minister of marine of Chile, November seventeenth, 1819."

The Spanish force at Pisco was composed of six hundred infantry and two hundred cavalry, part veteran and part militia; six pieces of eighteen pound calibre in the fort, and two field pieces, mounted and served in the city. The force under the unfortunate Charles consisted of two hundred and eighty marines. After taking the fort they advanced on the city, and took it. Colonel Charles fell about a hundred yards from the town, and was immediately conveyed on board the Lautaro, where he died on the following day. His last expressions were, "I hoped to have lived longer, and to have served Chile; however, fate decrees the contrary; but, Captain Guise, we made the Spaniards run!" Major Miller took the command of the troops, and having arrived at the plaza, he was severely wounded by a musket shot passing through his body, but he recovered, and has continued to serve the cause of liberty in the new world. A considerable quantity of spirits and wine was embarked, but the seamen, owing to the facility of obtaining their favourite beverage on shore, became so unruly, that Captain Guise was obliged to burn the stores, consisting at that time of about fourteen thousand eighteen gallon jars of spirits and wine.

Health being in some degree established among the crew of the San Martin, she, with the Independencia, was ordered to Valparaiso, and his lordship with the O'Higgins, Lautaro, and Galvarino, proceeded to the river of Guayaquil, in the hopes of falling in with the Prueba. On the twenty-seventh we entered the mouth of the river, at eleven p. m., and at five the following morning, to the astonishment of the natives, we were at the anchorage of the Puná, where we found two large Spanish merchant ships. La Aguila and La Begoña, almost laden with timber; after some resistance the crews cut their cables, and allowed them to drop down the river, as the ebb tide had begun to run; however the boats from the O'Higgins, the only vessel that had arrived, manned them before they received any damage. The Spaniards took to their boats, and fled up the river.

A slight dissention happened here between Lord Cochrane and Captain Guise, who asserted, that the prizes had been plundered by the officers of the flag ship; but on being questioned by his lordship respecting the assertion, he denied having ever made it. A report was afterwards circulated by Captain Spry, that it was the intention of the Admiral not to allow the Lautaro and Galvarino to share in the prizes, they not having been in sight when the vessels were captured, nor until the boats from the flag ship had

taken possession of them; however, Captain Spry declared to the admiral, "on his honour," that the report was absolutely false. Spry being now convinced that no objection would be made to the vessels that were not present at the capture, sharing in the prizes, next circulated a rumour, that Lord Cochrane had no right to share in the double capacity of admiral and captain; but he also declared, "on his honour," that he had neither made nor even heard such a report. These trifling circumstances would be unworthy of detail, were they not connected with future transactions in the squadron of serious importance, which it will be my painful duty to relate.

The Spanish frigate *la Prueba* had arrived at the Puná on the fifteenth of October; and having placed her artillery on rafts, she went up to the city, where, for want of pilots, it was impossible for us to follow. Having watered, and purchased a large stock of plantains and other vegetables, we left Guayaquil river on the twenty-first of December. The vessels of war and the prizes received orders to proceed to Valparaiso; the *O'Higgins* appeared to have the same destination; but having made the island of Juan Fernandes, the admiral gave orders to stand towards Valdivia instead of Valparaiso, saying, that he wished to examine that port, because the Viceroy of Peru had assured the Peruvians, that one of the line of battle ships had entered Valdivia, and was there refitting, for the purpose of making an attack on Valparaiso.

CHAPTER VII.

Passage from Guayaquil River to Valdivia....Lord Cochrane reconnoitres the Harbour....Capture of the Spanish Brig Potrillo....Arrival at Talcahuano....Preparations for an Expedition to Valdivia....Troops furnished by General Freire....O'Higgins runs aground....Arrival off Valdivia....Capture of Valdivia....Attempt on Chiloe fails....Return of Lord Cochrane....Leaves Valdivia for Valparaiso....Victory by Beauchef....Arrival of the Independencia and Araucano....O'Higgins repaired....Return to Valparaiso....Conduct of Chilean Government....Lord Cochrane resigns the Command of the Squadron.

One peculiarity which accompanied our voyage was, that having the larboard tacks on board at our departure from the mouth of the Guayaquil river, they were never started until our arrival off Valdivia, the difference of latitude being $36^{\circ} 27'$. The currents which run from the southward seem to decrease in about 92° west longitude, and at 98° in 33° of south latitude they are scarcely perceptible. Here also the wind gradually draws round to the eastward, and in twenty-seven Spanish journals which I have examined of voyages made at all seasons of the year, this has been universally observed.

On the seventeenth of January, 1820, we made Punta Galera, the south headland of the bay of Valdivia, having the Spanish flag hoisted. Early on the morning of the eighteenth the admiral entered the port in his gig, and returned on board at day-break, having examined the anchorage, and convinced himself that the Spanish ship of war was not there, the only vessel in the harbour being a merchantman.

For an excursion of this nature the spirit of enterprize of a Cochrane was necessary. When the strength of this Gibraltar of South America is considered, the number of batteries, forming an almost uninterrupted chain of defence, crowned with cannon, the shot of which cross the passage in various directions; under such circumstances, the resolution to brave all

danger for the advancement of the Chilean service reflects the highest possible honour on the admiral; besides, to this brief and perilous survey South America owes the expulsion of her enemies from this strong hold.

At half-past six o'clock a boat with an officer, three soldiers, and a pilot, came alongside, having been deceived by the Spanish flag which we hoisted; they were detained, and proved an acquisition of considerable importance. Immediately afterwards a brig hove in sight, which we chased and captured; she proved to be the Spanish brig of war the Potrillo; she had been sent from Callao with money for the governments of Chiloe and Valdivia, and was at this time on her passage from the former to the latter place. After the capture I was most agreeably surprised to find, that two of the daughters of my kind friend Don Nicolas del Rio, of Arauco, were on board; and that, at the expiration of seventeen years, it was in my power to return part of the kindnesses which I had received from their family, when a forlorn and destitute captive in Araucania.

On the 20th we anchored in the bay of Talcahuano, and in the course of two hours General Freire, the governor of the province and suite came on board to welcome the arrival of Lord Cochrane. I availed myself of this opportunity and solicited permission for the two Miss Rios to return to their home, to which the general immediately acceded; although, said he, with the exception of their brother Luis, all the family have been determined enemies to the cause of their country. Late at night an officer came on board and informed me, that two soldiers were under sentence of death at Concepcion, that they were to be executed on the following morning for the crime of desertion, and that he had been deputed by some of his brother officers to solicit the intervention of the admiral in their behalf. I reported this to his lordship, and a letter was sent in the morning, to which the following answer was received:

"My Lord—Chile and Chileans are every day more and more indebted to you; the favour which you have this day done me, in relieving me from the necessity of enforcing the execution of another sentence of death, is equal, in the scale of my feelings, to the pardon. I shall send the two deserters to thank your lordship, for I have impressed on their minds what they owe to your lordship's goodness. I have to beg that they be incorporated in the marines, where, fighting under your immediate orders, they may evince

their love of the patria, and erase the stain with which they have soiled a cause which has the honour of counting Lord Cochrane among its most worthy defenders &c.—Ramon Freire."

On the day after our arrival, Lord Cochrane had a private conference with General Freire, and proposed to him an attempt on Valdivia, which his lordship offered to undertake with four hundred soldiers, if the general would place them at his disposal, secrecy being a positive condition. This truly patriotic chief immediately acceded to the terms, and pledged himself not to communicate the plan even to the supreme government, until the result should be known. It is impossible not to admire this generous conduct of Freire. He lent part of his army, when he was on the eve of attacking Benavides, and exposed himself, by thus weakening his division, to the displeasure of his superiors, should Lord Cochrane not succeed. But his love for his country, and the high opinion which he entertained of the admiral, overcame every objection. The generosity of Freire is equally praiseworthy in another point of view: he gave part of his force to another chief, for the purpose of obtaining a victory, in the glory of which he could not be a participator, except as an American interested in the glorious cause of the liberty of his country.

Orders were immediately given to prepare for a secret expedition; but as this proceeding was so novel, a *secret* was put in circulation, that the destination was to Tucapel, in order to harass the enemy's force at Arauco; and the distance being so very short, neither officers nor privates encumbered themselves with luggage. All was ready on the afternoon of the 28th, and two hundred and fifty men, with their respective officers, under the command of Major Beauchef, were embarked on board the O'Higgins, the brig of war Intrepid, and the schooner Montezuma, which were at Talcahuano on our arrival. We got under weigh in the morning, because the wind continued calm during the whole of the night.

About four o'clock in the morning his lordship retired to his cabin to rest, leaving orders with Lieutenant Lawson to report if the wind should change, or any alteration should take place. As soon as his lordship had left the quarter deck, Lawson gave the same orders to Mr. George, a midshipman, and also retired to his cabin. The morning was so remarkably hazy, that it was impossible to see twenty yards ahead of the ship, and a slight breeze

springing up, the frigate ran aground on a sand-bank off the island Quiriquina, and so near to it, that the jib-boom was entangled among the branches of the trees on shore. This accident brought the admiral on deck, half-dressed, when to his astonishment he saw large pieces of sheathing and fragments of the false keel floating about the ship. A kedge anchor was immediately carried out astern, and in a few minutes we were again afloat. The carpenter sounded, and reported, "three feet water in the hold:" the men at the pumps were almost in despair, all imagining that the expedition had failed at its very outset: in half an hour the carpenter reported, no abatement in the depth of water: well, said his lordship, but does it increase? no, said the carpenter, and orders were immediately given to stand out to sea.

On the second of February, to the southward of Punta Galera, the whole of the troops, including the marines of the O'Higgins, were placed on board the brig and the schooner; his lordship embarked in the latter, and proceeded to the bay of Valdivia; having anchored at sunset near to a small bay, called Aguada del Yngles, English watering place, Major Beauchef took the command of the troops, embarked at Talcahuano, and Major Miller, having recovered of the severe wounds which he received at Pisco, took the command of his brave marines, and assisted in adding new lustre to the arms of Chile.

An advanced party of six soldiers and a sergeant was despatched under the command of the Ensign Vidal, a young Peruvian, having as a guide one of the Spanish soldiers, who came off to the O'Higgins in the boat on our first appearance off Valdivia: they drove the Spaniards from the two guns stationed at the avansada, and following their footsteps, arrived at the battery of San Carlos, but not before the gate was closed.

This battery is formed on the land side by placing pieces of the trunks of trees one upon another to the height of ten feet; and Vidal finding it impossible to scale the wooden wall exerted himself in dragging out two of the logs, and then crept through the hole, followed by his piquet. Having entered, he formed his veteran gang and began to fire on the Spanish soldiers, who not being able to distinguish either the number or situation of their enemy fled in disorder, some clambering over the palisade, while others opened the gate and fled in less apparent disorder. Two officers came to Vidal, and said to him, why do you fire on us, we are your countrymen,

we do not belong to the insurgents? I beg your pardon, answered Vidal, you now belong to the insurgents, being my prisoners of war. The two astonished officers immediately surrendered their swords. At this moment Captain Erescano, a Buenos Ayrean, arrived with forty marines, and without any hesitation butchered the two officers, heedless of the remonstrances and even threats of Vidal, who told him, that at another time he should demand satisfaction: he now immediately left Erescano, and with his brave soldiers followed the enemy. The batteries of Amargos and the two Chorocamayos fell in the same manner that San Carlos had fallen, and Vidal had passed the bridge of the Castle del Corral when Captain Erescano arrived with forty marines: thus in five hours all the batteries on the south side of the harbour were in our possession.

At nine o'clock in the morning of the third, the O'Higgins laid to at the mouth of the harbour, under Spanish colours. The Spaniards at Niebla were a second time deceived; for believing her to be a vessel from Spain, they made the private signal, which not being answered by the frigate, the soldiers immediately abandoned the battery, and fled in the greatest disorder. After the O'Higgins was brought to an anchor, detachments of troops were sent to Niebla and the battery of Mansera on the small island bearing the same name. The vessel at anchor, in this port was the Dolores, formerly under the Chilean flag; but in November, 1819, part of the crew took possession of her at Talcahuano, and having slipt her cables, sailed her to Arauco, where Benavides landed those of the crew who were accused of being insurgents, and immediately ordered them to be shot on the beach: a boy who witnessed this horrid spectacle began to cry, which being observed by Benavides, he immediately beat out his brains with his baston. This murderer not knowing what to do with the ship, sent her to Valdivia, where she became our prize; the ringleader, a native of Paíta, was also secured, sent to Valparaíso, tried and executed.

The important strong hold of Valdivia was thus annexed to the republic of Chile by one of those inexhaustible resources in war which have marked the career of the hero under whose immediate directions and unparalleled intrepidity the plan was formed and executed. Lord Cochrane having personally attended to the landing of the troops, and given his final orders to Miller and Beauchef, took his gig, and, notwithstanding the shot from the

battery of San Carlos, rowed along the shore, watching the operations of the troops, and serving as the beacon to glory.

In fifteen hours from our landing we were in possession of the advanced posts of Aguada del Yngles, el Piojo, de la Boca, and de Playa Blanco; of the batteries of San Carlos, Amargos, Chorocamayo alto and bajo, Mansera, and Niebla; and of the Castle del Corral, mounting on the whole one hundred and twenty-eight pieces of artillery.

In the magazines there were eight hundred and forty barrels of gunpowder, each weighing one hundred and twenty-five pounds, one hundred and seventy thousand musket cartridges, about ten thousand shot, many of copper, besides an immense quantity of all kinds of warlike stores. Our loss consisted of seven men killed, and nineteen wounded; that of the enemy of three officers and ten soldiers killed, and twenty-one wounded; besides six officers prisoners, among whom was the Colonel of Cantabria, Don Fausto del Hoyo, and seventy-six Spanish sergeants, corporals, and privates.

Every thing being secured in the port, his lordship went with part of the troops to the city, which had been sacked by the Spaniards, who had fled towards Chiloe. A provisional government was immediately elected by the natives who were present, at which, by his lordship's orders, I presided, and received the elective votes; the person chosen being afterwards confirmed in his situation as governor *ad interim* by the admiral. On examining the correspondence in the archives, I found that many serious complaints had been made by Quintanilla, the governor of Chiloe, to Montoya the ex-governor of Valdivia, stating his fear of a revolution at San Carlos, the principal town. This induced his lordship to appear off Chiloe, and even to land part of the force that could be spared at Valdivia. He gave orders to prepare for embarkation on the 12th, but unfortunately the brig Intrepid was driven from her anchorage by a strong northerly wind, and wrecked on a sand-bank that stretches into the bay from the island of Mansera. This very serious loss was regarded by the admiral like our former accident at Talcahuano, and orders were immediately issued for the soldiers to embark in the Montezuma and Dolores. The short respite from active duty allowed his lordship to inform the supreme government of Chile of his success at Valdivia; which he effected by sending a small piragua, with orders to touch at Talcahuano, and to report to General Freire the result of the expedition.

The receipt of the unexpected news at Valparaiso was a moment of exultation to the friends of Lord Cochrane, and a very severe check on the tongues of his detractors; some of these had been busily employed in forming matter wherewith to tarnish the rocket expedition; and they generously attributed its failure to the unskilfulness, not of those who had prepared the missiles, but to the persons who had used them. His absence from Chile was adduced as a proof of his disobedience to the orders of the government. Now, however, all was hushed, and every one exclaimed, "we knew that our admiral would not return to Chile without adding new laurels to his brows." This was re-echoed in Valparaiso; and long live Cochrane! was the general cry; long live the hero of Valdivia! resounded in every street.

On the 13th, Lord Cochrane went on board the schooner Montezuma, and sailed with the Dolores for Chiloe, where the troops were landed, and two small batteries taken, and afterwards demolished. The young Ensign Vidal was again appointed to command an advanced party of twenty-four soldiers, and when, ascending the hill on which the Castle de la Corona is built, he lost eleven of his men by a volley of grape from the battery, he immediately ordered the drummer to beat a retreat: that is impossible, said the boy, knocking the sticks together, for my drum is gone. In fact it had been shattered to pieces by a shot; however Vidal retired, carrying three wounded men with him, and Miller being wounded at the same time by a grape shot which had passed the fleshy part of his thigh, the retreat to the boats was immediately ordered. The resistance made at this place by the natives, headed by several friars, was a convincing proof that they were determined supporters of the cause of Spain, and as the patriot force was not sufficient to attempt a conquest of the town, the soldiers were re-embarked.

During the absence of the admiral with the marines, part of the troops embarked at Concepcion were left on duty at the Castle del Corral, under the command of Ensign Latapia, who in cold blood, and without the slightest provocation, ordered two of the prisoners, a corporal and a private, to be shot. I immediately ordered four officers who were on shore to be sent on board the O'Higgins, fearful that they might be treated in the same manner. On the return of his lordship on the twentieth, Latapia was placed under arrest on board, and the necessary declarations were taken, according

to the Spanish forms, for his trial by a court-martial. He was conveyed to Valparaiso as a prisoner; his conduct, together with that of Erescano, was reported to the government, and when we expected to hear of their being sentenced to some kind of punishment, we were surprized to find that they had been promoted. These two individuals were afterwards employed by San Martin, and by him they were again promoted in Peru.

His lordship having given orders for the O'Higgins to be overhauled and repaired, considering it unsafe to venture again to sea in her, he embarked on the twenty-eighth in the Montezuma for Valparaiso, taking with him five Spanish officers, and forty privates, prisoners, leaving directions with me to superintend what was going on here, until I should receive orders from the supreme government.

Major Beauchef having collected all the force he was able, which, including the troops embarked at Concepcion, and some volunteers of Valdivia, amounting only to two hundred and eighty individuals, marched to the Llanos, having received information that the Spaniards who fled from Valdivia had sworn at Chiloe that they would return and either conquer or die in the attempt. The two armies met near the river Toro, on the sixth of March, and after an engagement of less than an hour, the Spanish officers mounted their horses and fled, leaving the soldiers to their fate. On the tenth Beauchef arrived at Valdivia, bringing with him two hundred and seventy prisoners, with all the arms and baggage belonging to the Spaniards.

The Independencia and Araucano arrived on the twelfth, with the necessary workmen and tools for the repairs of the O'Higgins; after she was hove down, it was discovered that besides a great quantity of sheathing, she had lost nineteen feet of her false keel, and about seven of her main keel. On the eleventh of April the repairs were finished, and we embarked for Valparaiso, where we arrived on the eighteenth.

The Spanish force stationed at Valdivia consisted of part of the regiment of Cantabria, part of the Casadores dragoons, artillery, pioneers, marines, infantry of Concepcion, artillery of ditto, battalion of Valdivia, dragoons of the frontier, and lancers of the Laxa; these were the remains of the Spanish army which left Concepcion, under the command of General Sanches, in 1819, besides the regular garrison of the port, amounting in all to about one

thousand six hundred, while the expedition under Lord Cochrane amounted only to three hundred and eighteen.

The government of Chile ordered a medal to be struck in commemoration of this important victory, and it was distributed to the officers. His lordship expected some remuneration for his men as prize-money, but the government could not understand how prize-money could be due to a naval expedition for services done on shore. The Dolores had been laden with warlike stores at Valdivia; the admiral requested that the value of these might be decreed to the captors, but the answer to this request was an order for the stores to be disembarked in the arsenal at Valparaiso, and the following paragraph from the pen of the hireling Monteagudo made its appearance in the *Censor de la Revolucion*, which was conducted by this patriotic scribbler:—

"We are informed that Admiral Lord Cochrane is determined not to allow the debarkation of the warlike stores brought from Valdivia in the ship Dolores, on the plea of their being a prize to the squadron which has restored that province from the hands of the enemy to Chile. We cannot persuade ourselves that his lordship does not acknowledge, that all the stores existing at Valdivia at the time of its restoration belong to the state of Chile in the same manner as those in the provinces actually forming the state, without any other difference than that these were restored to the free exercise of their liberty before that was. Even if Valdivia did not belong to Chile, we do not make war on every section of America, but on the Spaniards who hold a domination over it: these are the principles which have always regulated the conduct of our armies; and nothing save the exclusive property of the Spaniards has been subjected to the rights of war. It would also be a pernicious precedent to future operation if whatever was found in a conquered territory should belong exclusively to the victors. We are persuaded that some misunderstanding has taken place respecting these warlike stores brought by the Dolores: Admiral Cochrane is well acquainted with public rights, and the high opinion which we entertain of his honourable character obliges us to doubt that which we are not inclined to believe."

Lord Cochrane afterwards asked Monteagudo if he believed what he had published was just or according to law; no, said he, certainly not, but I was

ordered to write and to publish what appeared in the Censor. His lordship being convinced that the government was determined not to reward the services of the squadron, assured them, that this would certainly be the last service of the kind which they would receive from it: he also warned them against expecting that men would risk their lives, after undergoing the greatest privations, without any remuneration: he told them, moreover, that as he considered the proceedings on the part of the government as most unjust, he should never request of his officers or men any sacrifice, except when the means of rewarding them were in his own hands. The government wishing to conciliate the Admiral, made him a present of a large estate in the province of Concepcion; but his lordship immediately returned the document, stating, that it was the services of the men which ought to be rewarded, that his own were amply repaid by the glory of the achievement. All his pleadings, however, were in vain, and no reward was ever given to them by the government for the capture of this most important fortress; nay more, it was questioned whether Lord Cochrane ought not to be tried by a court-martial for having fought and conquered an enemy without the sanction of the government! a fair proof of what would have been the consequence had not the result been favourable to his lordship.

A series of plots now began to take place one after another, which seemed to threaten even the stability of the government: the regiment number one, stationed at Mendoza, revolted, Benavides entered Concepcion, and committed several most daring outrages; and a conspiracy was said to have been formed in the capital against the government by the Carrera party, and the supreme director was so thwarted by the senate, that he could not act with that promptitude and decision which circumstances required: the greatest possible evils, publicity and procrastination, where secrecy and despatch were necessary, counteracted in the most essential points the wishes of the supremacy. The persons who were accused of being conspirators were apprehended, among whom were included the last remains of the Carrera family, and other individuals who were obnoxious to O'Higgins: these were all embarked on board the brig of war, Pueyrredon, and sent down to the coast of Choco, where it was expected that they would shortly die, and where in fact the uncle of the Carreras did die; but, contrary to the expectation and even the request of the Chilean government, that of Colombia received them as friends, and some of the exiles being officers,

Bolivar incorporated them in his army, with a promotion; for which act of justice he never had any reason to complain. The fluctuations in the designs of the government are well portrayed in the following letter from Lord Cochrane to the supreme director:

"Most Ext. Sir—Being at present indisposed with a palpitation of my heart, which at times afflicts me most severely, and which would be increased with a journey to Santiago, were I to undertake it according to the request of the government, I feel myself obliged to solicit an excuse; persuaded as I am, that the following exposition, which contains all that is necessary to remind you to reflect on what is past, and to anticipate what is to come, will be sufficient. I also hope that my exposition will be ascribed to the sincere desire that I have of serving your excellency, to whose interests I am most sincerely attached, as being the august representative of the sacred cause of your country's welfare.

"Touching on what is past, you will do me the honour to recollect, that I recommended to you the indispensable necessity of removing among the seamen all kinds of distrust with respect to their pay and prize-money: the first of which they have not yet received, and of the second they have been totally defrauded; your excellency promised me that they should be regularly paid, and that whatever prizes were taken should be entirely appropriated to these two objects; the moiety belonging to the captors should be immediately distributed, and the other, appertaining to government, should be applied to the payment of arrears, and equipment of the vessels of war. I am well aware of the lowness of your funds; but having, according to your promise made to me, informed the crews of the different vessels what would be the course pursued, the men expect a fulfilment of the promise made, and will consider me to be the author of the deception if they discover that what has been promised to them is applied to other purposes. Your excellency will allow me to assure you, that if I had not supported the promise made to the seamen, the real squadron would not have now existed, and that if the promises are not fulfilled, the squadron will now cease to exist.

"Nothing is more difficult than to manage a mass of such heterogeneous materials, as that of which the squadron is composed—men of different nations, manners, and religions—men whose suspicions are easily alarmed,

and whose interests cannot be contradicted with impunity; they may be reconciled if duly attended to, and incorporated with those of the state: but if this is not done, they will become opposed to its welfare.

"The experience which I acquired during the first cruize, convinced me most completely, that in addition to the punctual payment of the crews, it was necessary for their health and comfort, as well as for the cleanliness of the vessels, which contributes so much to these objects, that proper clothing and beds should be provided. With respect to the means for procuring these articles themselves, the poverty of some, and the relaxed habits of others, are obstacles, besides which the temptations met with at Valparaiso, generally deprive them of the power before they leave the port. For the acquirement of this desirable object, I made several applications to the different departments of the government, requesting that such articles might be purchased and distributed to the crews, according to the practice observed in all naval countries. The treasury not being able to pay the value of the articles, this was done with part of the prize-money taken during the cruize; at the same time that the money so employed ought to have been applied to the payment of the captors of the Montezuma; and although frequent applications have been made, this, like the debts of the crews of the squadron, has never yet been attended to; but, on the contrary, such sums as were destined, according to the promise of your excellency, to the sole purpose of liquidating such debts, have been applied to other purposes, while part of the seamen who have fulfilled their contract, are wandering about the streets in a state of despair; others, naked and clamorous, remain on board; the invalids are begging alms, and all are cursing the authors of their misfortunes. The result of this conduct on the part of the government is, even at present, that not only the seamen and soldiers, but even some of the officers, avail themselves of every opportunity to dispose of prize goods, as well as of the naval stores belonging to the vessels of the squadron; and when they are discovered, the infliction of punishment is prevented by their alleging that they neither receive pay nor prize-money, and that they despair of ever receiving either.

"On my return from the first cruize, your excellency will also be pleased to recollect, that I reported the necessity of marking each barrel, or package of provisions, with the weight or quality which it contained; making the purveyor responsible both for the quantity and quality of the contents, in

order to prevent all kinds of fraud; because, from the purser's reports, I should then have been able to know for what period the squadron was victualled. I was compelled to make this request, because I found that the purveyor had reported at the commissariate that he had delivered twenty-one quintals of beef to the Independencia, when in fact only eleven had been received. Thus the state was charged with the value of ten quintals which had not been delivered, for the purpose of filling the purse of an impostor, whose nefarious conduct might have frustrated the object of our expedition, or even have involved part of the squadron in inevitable ruin. For the purpose of counteracting such iniquitous proceedings, no order has, as yet, been issued, nor am I authorised to correct such as punishable crimes.

"On my return to Valparaiso, after the first cruize, I hoped to find the manufacture of rockets completed, according to the promise of the government, made to me before I sailed; but I found that even the manufactory was not finished; that notwithstanding the various solicitations made by the late Lieutenant-colonel Charles, for the necessary materials, that these were retained, or denied through jealousy, or some other criminal motive; this might have involved the whole of the squadron in complete ruin, had the forces arrived at Callao, which were expected from Spain. As it was, the operations of that expedition became a reproach to the officers and crews employed in it, and allowed the enemy to call it imbecility in them, and ignorance of their undertaking; but, in reality, the neglect or treachery lay in those appointed by your government to construct those missiles, on whose speculations the persons employed in the expedition were induced to rely. The unexpected result of this expedition obliged me to raise the blockade, to the apparent disgrace and positive injury of the interest of the squadron; although it had been destined for the purpose of contending with the enemy before a re-union could be effected between the vessels in Callao, and the expected reinforcement from Spain.

"My orders were limited to impracticable operations, by the concurrence of unexpected accidents, which deprived me of destroying at once the force of the enemy in the Pacific. Our provisions were exhausted; the ships of war had neither rice, cocoa, sugar, wine, spirits, nor any substitute for those articles; with the addition of a considerable number of sick on board. In this dilemma, it was once my intention to return to Valparaiso; but not wishing

to provoke the indignation of your excellency, and bring down condign punishment on those persons who had been the cause of this state of the squadron, I determined on taking from the enemy at Pisco spirits, wine, and other necessaries, although my orders expressly forbade such a procedure, I being limited by them to take only water, and that in a case of necessity. But the government of Chile inadvertently believed that foreign seamen would be content with putrid water, a short allowance of beef and bread, a total want of wine, or grog, when they were on an enemy's coast, where those articles might be procured in abundance.

"On being informed that the Spanish frigate la Prueba had sailed for the Puná, and that she was the only vessel of the expedition which had doubled the Cape, I again found myself either obliged to abandon the attempt to capture her, or to take upon myself the responsibility of violating my instructions, by taking provisions from the enemy on the coast of Peru. I determined on the latter, and although a large quantity of cotton, tobacco, rice, sugar, and other valuable articles, belonging to Spaniards, were collected at Santa, they were all abandoned for the purpose of following the enemy with all possible despatch; although I was fully convinced, and still remain so, that nothing is obtained by excluding the enemies of liberty from contributing to support the defenders of so just a cause;—for the purpose of exacting from them the whole of the sacrifice.

"Your excellency must be completely satisfied, that our efforts in the river of Guayaquil to take the Prueba were rendered nugatory by the want of soldiers; there I requested that they might co-operate with the squadron, when the efforts of the squadron alone were of little avail; my request was opposed; but why the opposition was made, or on what principles it was founded, I am totally ignorant, and more so of the reasons that exist for communicating such strange determinations of the supremacy to any one except myself; because, if any difficulties presented themselves in what I had the honour to propose to your excellency, why was I not requested to explain them, and to do away with what were accounted obstacles; but the conduct observed implies a want of confidence in my knowledge, as to the proper application of such a force, or a conviction on the part of my opponents in your councils, that they could not support their opposition, because their arguments are founded on unsound principles. Perhaps what took place at Paita may have been quoted by some of your senators, who

did not recollect the assurance given by the flags of truce which I sent in, that nothing, except the property of the king of Spain, would be touched. The enemy fired on the flag, and now, allow me to ask, if I had any other alternative, than, like a coward, to submit to such an insult offered to the flag of Chile, or permit the indignant and provoked soldiers to obliterate the outrage?

"When I had the honour to see your excellency last, at Santiago, a plan was established, and as I then believed, a secret one, the only persons present being your excellency, General San Martin, and the minister of marine; this to my utter astonishment, soon became as public as if it had been given to the gazette, or the town crier; the detail was in the possession of every speculator, who calculated solely on his private gain. I was ordered to equip the transports *Aguila*, *Begona*, *Dolores*, and *Xeresana*, and my orders for the accomplishment of this object were scarcely issued, when I was officially informed, that these being prize vessels, were to be sold immediately; and the orders given by the government to me were unexpectedly abolished, for the purpose of placing the fate of the expedition in the hands of mercantile speculators, who to the present moment have only finished the equipment of one vessel, which has been allowed to sail from this port, when declared under an embargo; and this for the purpose of conveying merchandize belonging to one of the contractors to Coquimbo. This happened at the very moment when I was assured that the expedition was about to be verified. This conduct of the government most positively evinces that a mercantile speculator enjoys more of the confidence of the supreme authority than I have the honour to deserve. I had subsequent orders for the *San Martin* to sail, and to cruize off *Talcahuano*, she being the only efficient vessel of war in *Valparaiso*; that the *Montezuma* should sail for *Callao* for the purpose of obtaining a correct account of the state of the enemy; next that the *San Martin* should cruize in the mouth of this port. I was shortly afterwards informed, that instead of an expedition of two thousand men that should be ready to sail within fifteen days, that one of four thousand would be ready within the same time; this led me to inspect the naval preparations made by the contractors, which I found to consist of one new rigged ship. I next visited the provision store, and found there no preparations whatever; there was not even a sufficient quantity for the consumption of the crews of the vessels of war for one month.

"These circumstances, and many other similar ones, oblige me to adopt a line of conduct which my duty to your excellency, to the States, and to myself, most imperiously prescribes; this is, to solicit your acceptance of the important commission with which I have been honoured, and which I now beg leave to resign.

"I have detailed some of the motives which oblige me to abandon the service of a state, in which I have been so highly honoured, particularly by your excellency; but my firm conviction is, that if I agree to the tardy and procrastinated measures of the government, I shall make myself tacitly instrumental in forwarding that ruin which cannot but be the result of the plans of the advisers of your excellency.

"Allow me to offer to your excellency, &c.—Valparaiso, May 14th, 1820."

The official answer to this note consisted of a mere list of excuses from the minister of marine, indicating any thing but the real cause of the inconsistency of the government; indeed, the real cause was enveloped in mystery for a considerable time afterwards. However, the determination of Lord Cochrane, not to continue in the command of the squadron unless that part of the management of it which was not under his control was placed on a better footing, seemed to rouse the government from the state of apathy which they now began to perceive would soon lead to a state of imbecility.

O'Higgins and San Martin addressed private letters to his lordship, begging his continuance in the command of the naval forces of Chile, and assuring him, that the most active measures would be immediately adopted for the realization of the grand expedition; the success of which, they were well aware, depended in many very material points on the character and efforts of Lord Cochrane.

CHAPTER VIII.

Lord Cochrane and Chilean Government....Preparations for the Expedition to Peru....Captain Spry....Charges presented by the Admiral against Captain Guise....Lord Cochrane throws up his Commission....Letters from the Captains and Officers....Commission returned by the Government....Offer made by San Martin to the Foreign Seamen....Embarkation of Troops for Peru....Announcement of....Sailing of the Expedition....Force of the Squadron.

Lord Cochrane, whose whole soul was engaged in the total emancipation of the Spanish colonies, desirous of contributing to the acquisition of this interesting object, re-assumed the command of the squadron, relying on the fulfilment of the promises made by the government of Chile, supported by the guarantee of General San Martin; who, however extraordinary it may appear, pledged himself not only to sanction but also to fulfil the promises made by a government in whose *employ* he was himself engaged.

The supreme director, in the name of the republic, again made to Lord Cochrane a donation of an estate in the province of Concepcion, as a token of gratitude for those important services which the country had received from him; this was again rejected, and his Lordship, wishing to give an unequivocal proof of his attachment to the country, and of his intention to establish his residence in it, purchased an estate called Quintero, about eight leagues to the northward of Valparaiso. On visiting Quintero, Lord Cochrane examined the bay called de la Herradura, and made a report to the government, accompanied with a plan, stating that this harbour had many advantages which that of Valparaiso did not possess; he solicited that it might become an establishment for the vessels of war belonging to the state, pointed out many important results that would accompany the adoption of such a plan, with respect to the discipline, order and regulation of the squadron; and concluded with an offer to the state, of all the land that might be necessary for an arsenal and general marine depôt; when, to his utter astonishment, the answer to this signal generosity and sacrifice of private property, for the good of the service, was a notification, that "in

consideration of the peculiar advantages of the harbour of Herradura, and the estate of Quintero, advantages of the highest importance to Chile, Lord Cochrane is ordered not to continue any improvements on the said estate, as they will not be paid for by the state, to whom Quintero and Herradura are declared to appertain, on condition that Lord Cochrane shall be paid by the state the purchase money, and improvements made." This blow affected Lord Cochrane more than any other which the government could have given him; at a moment when he had been entreated to continue in the command of the squadron, and an estate in the country had been presented to him, when he became the proprietor of another, by purchase, wishing to convince all parties that he adopted Chile as his home, he tacitly received an order to abandon such ideas. His lordship immediately addressed to the supreme director an answer to this unexpected notification, which produced an apology, and an assurance that the proceedings were founded on the old Spanish laws, which as yet had not been repealed; and that the notification rested only on the *vista fiscal*, the solicitude of the attorney general. It was very apparent, at this time, that something was brewing in the Chilean government; but it was impossible either to comprehend the matter, or to foresee the effect; all parties seemed to endeavour to conciliate the good will of the Admiral, yet something occurred daily, which tended to alienate him even from the cause of the country; and although, upon inquiry, the most polite excuses were given, and apologies often tendered, yet some busy hand seemed always to be employed in feeding the flame of provocation and mischief.

Nothing but the active preparations of the government for the grand expedition to Peru, and the repeated solicitations of General San Martin, would have prevented Lord Cochrane from resigning the command of the squadron, and of embarking for England. San Martin visited the port of Valparaiso in June, for the purpose of inspecting the transports; and the troops began to move from their encampments at Rancagua to Quillota, twelve leagues from Valparaiso, for the purpose of embarking. Every thing appeared at first to contribute towards the accomplishment of this most important object, and all persons concerned to act in unison, as if animated by one spirit, that of extending to Peru the happiness enjoyed by Chile, the fruit of her emancipation from the Spanish yoke. At this period, quite unexpected by all concerned, Captain Spry was promoted to the rank of

Capitan de Frigata, and appointed flag captain to Lord Cochrane, at the same time that his lordship had solicited the appointment of Captain Crosbie; and to add to this irregular proceeding, the minister of marine informed his lordship, that although Don Tomas Crosbie had held the command of the Araucano, and had been treated as a captain, and addressed as such by the government, that as yet he had not received a commission appointing him to that rank, nor was he as such placed on the navy list. His lordship was also informed, that the appointment of Captain Spry must be acceded to. This order received from the Admiral a positive denial, and he wrote in answer, that Captain Spry should never tread the quarter-deck of the flag-ship as captain of her, so long as he held the command of the squadron; not because his lordship had any personal objection to Captain Spry, but because he would not consent to any encroachment on the privileges he enjoyed as admiral and commander in chief.

This affair was stated by Cochrane to San Martin, who merely answered, it shall be as you choose, *sera como V. quiera*, and on the following morning Crosbie was appointed flag captain, and Spry ordered to continue in the command of the Galvarino. Scarcely had this matter been thus adjusted, when Lord Cochrane was obliged to place Captain Guise of the Lautaro under an arrest, and to forward to the government charges against him, requesting that he might be tried by a court-martial. The charges were for repeated acts of neglect of duty and insubordination; they were arranged under thirteen heads, finishing with "endeavouring in the various acts of disobedience herein mentioned to set at defiance, and bring into contempt the authority of his superior officer, the commander in chief, in the execution of his duty, to the subversion of discipline, and in violation of the articles of war on the foregoing heads, made and provided." This act of the admiral astonished the government; the principal part of which was now at Valparaiso, for the purpose of forwarding as much as possible the equipment of the expedition. It met with their most determined opposition, and after some very warm correspondence, the following note was addressed by his lordship to the minister of marine:—

"Sir,—The apparent determination of the supremacy to support a junior officer in the commission of the most outrageous breaches of his public duty, and of acting not only contrary but in direct opposition to the orders communicated to him by his commander in chief, not only encourages his

dereliction from duty, and is a precedent of the most pernicious character for the imitation of others, but brings my authority into contempt, and renders my exertions in the service of the republic nugatory. I have nothing to add at present to what I have already stated to you, except that you will place in the hands of his excellency the supreme director my resignation of the command of the squadron of Chile, and express to him my sincere wish, that, whoever may be appointed to supersede me, his endeavours to serve the cause of liberty in the new world may be crowned with greater success than mine have been; and that he may be better qualified to preserve that discipline in the squadron which is not only essentially necessary, but indispensably requisite, for the honour of himself, the success of his operations, and the welfare of the cause he serves. I have to request you will inform me at the earliest period of the acceptance of my resignation, that I may order my flag to be struck, as also, whether it would be agreeable to the present views of the supreme government that I should continue to reside as a citizen of Chile, among those persons who, after having exerted themselves in the support of her sacred cause, have retired to enjoy the fruits of their labours; if not, I request permission to leave the country; and my passport constituting my ultimate request, I remain, &c."

"Cochrane."

"Valparaiso, July 16th, 1820."

The first tender of his commission which Lord Cochrane made was unexpectedly kept a profound secret by the government; indeed at that time the greatest danger would have attended a disclosure of the matter; the greater part of the foreign seamen were unpaid, and the natives, both seamen and marines, were more clamorous on this head than the foreigners, and all seemed determined on some desperate proceeding, if their claims were not directly satisfied. The present act of the commander in chief became known immediately; and the following invitation was on the 17th laid on the capstern-head of the flag-ship:

"It is reported that Lord Cochrane, wearied out by the illiberal treatment of the government, has at last been forced to resign the command of the squadron, because their jealous policy no longer enables him to hold it with honour to himself or benefit to the state.

"It is requested that all who feel themselves attached to his lordship, or who are aware how much the HONOUR, SAFETY, and INTEREST, not only of the navy, but of the state of Chile, depend on his continuing in the command, will to-day meet on board the Independencia, at one o'clock, for the purpose of taking into consideration what steps it may be most proper to adopt."

On the 18th, Lord Cochrane received the following letter from the captains of the fleet, which received the subjoined answer:

"My Lord,—It being very currently reported, and generally believed, that your lordship has resigned the command of the squadron of Chile, and as our views are so closely connected with those of your lordship, we beg leave most respectfully to solicit your information on this subject. (Signed.) Robert Forster, W. Wilkinson, Cladius Charles, T. Sackville Crosby, James Ramsey."

"Gentlemen,—I have been favoured with your letter of this date, and assure you, that whether I remain in the command of the squadron or not, is a matter of perfect indifference so far as I am personally concerned.

"My object in proceeding from England to this quarter of the globe was to promote the furtherance of liberty and independence, more than any private object, or to promote the views of others inconsistent therewith.

"I have only to add, that my desire is to be permitted to surrender the command of a squadron which I can no longer hold with benefit to the state nor credit to myself, since the orders which appeared necessary to be given, and the limited powers vested in me, are disobeyed with impunity, and not only disobeyed, but made the objects of persevering scorn and ridicule, by persons who ought to be under my authority, but who for their personal views wish by insinuations, falsifications, and detraction, to overthrow all that stood in the way of their vain ambition. Under this impression, I tendered my commission to the government three days ago, but am ignorant of the result, which I expect, however, to learn to-morrow. Believe me, gentlemen, with feelings of gratitude for your anxious inquiries on the subject, yours, &c."

"Cochrane."

"My Lord,—Your lordship's reply to our letter has created feelings of the deepest regret in our breasts, and it behoves us to act in a manner which will stamp our characters, not only as true patriots, but as men looking up to your lordship, as the only man capable of commanding the naval forces of Chile with effect, against the enemies of liberty and independence. We, the undersigned, have come to the resolution of resigning the commissions we respectively hold in the service of Chile; we have therefore to request that your lordship will be pleased to acquaint us with the result as soon as you are aware that the government of Chile have accepted your resignation of the command of the squadron.

"We avail ourselves of this opportunity of expressing our confidence in your lordship's talents, and our determination to act hand in hand with your lordship; in doing which, we are persuaded that we are most effectively and faithfully serving the Republic of Chile, and acting honestly and sincerely towards you, our commander in chief." Signed by the same five captains. The only two who did not sign it were Guise and Spry. On the same day, the eighteenth of July, the following was addressed to his lordship, by the officers of the squadron:

"My Lord,—The general discontent and anxiety which your lordship's resignation has occasioned among the officers and others of the squadron afford a strong proof how much the ungrateful conduct of the government is felt among those serving under your command.

"The officers, whose names are subscribed to the inclosed resolutions, disdaining longer to serve under a government which can so soon have forgotten the important services rendered to the state, or treat with indignity a character the most implacable of the enemies of his own country have been forced to respect, beg leave to put into your hands their commissions, and to request you will be so kind as to forward them to the minister of marine for the state. At the same time that we are thus forced to withdraw ourselves from the service, our warmest wishes continue to be offered up, not only for the prosperity and liberty of the country, but that of the whole world.

"We pray your Lordship all health and happiness, and have the honour to remain, &c." (Signed by twenty-three commissioned officers.)

"Resolutions entered into at a meeting of the lieutenants, and other officers of the same class, belonging to the squadron of Chile, held on board the Independencia, the eighteenth of July, 1820, for the purpose of taking into consideration the resignation of the commander in chief:

"Resolved, that the HONOUR, SAFETY and INTEREST of the navy of Chile entirely rest on the abilities and experience of the present commander in chief.

"That as the feelings of unbounded confidence and respect which we entertain for the present commander in chief cannot be transferred to another, they have induced us to come to the resolution of resigning our commissions, and of transmitting the same to government, through the hands of the Admiral.

"That our commissions shall be accompanied by a letter, expressive of our sentiments, signed by all those whose commissions are inclosed." (Signed by the same twenty-three officers as the foregoing letter.)

Although his lordship was convinced of the inability which the whole expedition would labour under should his resignation be accepted, he still left the government at liberty to act according to their own discretion. In the public duties on board the vessels of war no relaxation took place; the preparations were carried on with the same alacrity, and the unremitting attention of the commander in chief to their speedy equipment suffered no diminution; the determination of the captains and officers of the squadron was not forwarded to the government, lest the threatening danger might force them to adopt a measure contrary to their wishes; however, as some of the captains and officers had not joined the others in their resolutions, and were aware of their proceedings, the government soon became acquainted with the whole transaction, and General San Martin, on the night of the 19th, when in conversation with Lord Cochrane, expressed his astonishment and disapprobation of the proceedings of the government, and pretended to be totally ignorant of what had taken place. This assertion was entirely void of truth, as was proved on the following night, when he said, that "he only wanted to be convinced how far the supreme director would allow a party spirit to oppose the welfare of the expedition." It was moreover corroborated by the subsequent conduct of this chief. San Martin concluded

on the 19th, by saying, "well, my lord, I am general of the army, and you shall be admiral of the squadron; *bien, mi lord, yo soy general del exercito y V. sera almirante de la esquadra.*" After this expression. Lord Cochrane shewed to him the letters he had received from the captains and officers, at which San Martin was very much astonished, for he was not aware of the positive determination of those individuals not to continue their important and indispensable services, except under the command of their present admiral; a determination which was certainly as honourable to themselves, as it was fraught with danger to the government and to the state. San Martin asked Lord Cochrane if he would consent to the suspension of the arrest of Captain Guise, and delay his trial to a future and more convenient time, should such be the request of the government; to which his lordship assented, on condition that the supremacy should confess that the accusations furnished and charges exhibited were just, and that the conduct of Captain Guise was highly reprehensible, as being not only prejudicial to the necessary discipline of the squadron, but in every other point of view injurious to the general cause of America. In consequence of this agreement, the admiral received on the twentieth, the following official note from the government:

"My Lord,—At a moment when the services of the naval forces of the state are of the highest importance, and the personal services of your lordship indispensable, the supremacy with the most profound sentiments of regret has received your resignation, which, should it be admitted, would involve the future operations of the arms of liberty in the new world in certain ruin, and ultimately replace in Chile, your adopted home, that tyranny which your lordship abhors, and to the annihilation of which your heroism has so greatly contributed.

"His excellency the Supreme Director commands me to inform your lordship, which I have the honour of doing, that should you persist in resigning the command of the squadron, which has been honoured by bearing your flag, the cause of terror and dismay to our enemies, and of glory to all true Americans; or should the government unwisely admit it, this would be indeed a day of universal mourning in the new world; the government, therefore, in the name of the nation, returns you your commission, soliciting your re-acceptance of it, for the furtherance of that sacred cause to which your whole soul is devoted.

"The supremacy is convinced of the necessity which obliges your lordship to adopt the measures which placed Captain Guise of the Lautaro under an arrest, and of the justness of the charges exhibited against this officer of the state; but being desirous of preventing any delay in the important services on which the ships and vessels of war are about to proceed, it is the pleasure of his excellency the supreme director, that the arrest of Captain Guise be suspended, as well as his trial by a court-martial on the charges exhibited, which will remain in the archives of the marine department, to be postponed till the first opportunity which does not interfere with the service of the squadron, so important as at the present epoch.—(Signed) Jose Yguacio Zenteno, minister of marine. Valparaiso, July 20th, 1820."

Lord Cochrane immediately discharged Captain Guise from his arrest by the following note:

"Whereas certain charges had been exhibited by the commander in chief, touching the conduct of Martin George Guise, of the C. S. S. Lautaro; and whereas his excellency the Supreme Director has been pleased to order, that the investigation of the same by court-martial shall be suspended, in order to prevent delay in the important services on which the ships and vessels of war are about to proceed: it is the pleasure of his excellency, signified to me under his sign-manual, that the said Captain Martin George Guise shall be replaced in the command of the Lautaro, and (as in justice due) shall be deemed innocent of the said charges during the suspension of his trial.

"July 24th, 1820. (Signed) Cochrane."

On the same day his lordship returned the commissions to the different officers, with letters addressed to them, thanking them for their personal marks of esteem and support in the performance of an unpleasant public duty, and assuring them, that he was convinced that their conduct had been governed by their zeal for the true interests of the public service.

I consider any comment on these extraordinary proceedings unnecessary at present, as the spirit which dictated them will become too visible to be mistaken in the course of these pages. Had General San Martin observed a different line of conduct to that which marked his operations in Peru, when he could not shield himself by any specious pretext, importing that they were regulated by a superior authority, or that they emanated from a source

over which he had no direct control, the government of Chile might have been considered the authors; whereas, they were only the agents of the machinations of the general in chief of the expedition, who foresaw, that in Lord Cochrane he should have a rival, to whose merits South America could not be blind: he also knew, that the opinions of his lordship in council would not be overawed by those of a superior, be biassed by hope or fear, nor be led away by subserviency: however, his excellency expected to be as implicitly obeyed as a Dey of Algiers, and as universally flattered as a Sultan of the East; and to those two over-ruling passions may be attributed part of the disgrace of his administration in Peru.

The following announcement appeared in the last number of the Censor on the tenth of July:

"To-day the staff officers of the liberating army leave Santiago for Valparaiso. We have authentic advices, that the expedition will leave that port for its destination on the twenty-sixth of the present month. The presence of the supreme director and of the general in chief has given in Valparaiso a most extraordinary impulse to the last preparations. At all events, the sun of August will behold the expedition on its march. Valparaiso is at this moment the most interesting point in America: it contains as in outline her destiny: the time will arrive in which its name will be the register of the most renowned epoch of our history. The army anxiously awaits the moment to embark on the Pacific, and to present a spectacle entirely new, a spectacle which has never been seen since the Continent was laved by its waters. Happy are those who shall partake of this enterprize! their lot shall be the envy of all those whom the love of glory inspires with a passion for great designs. Follow me in the path of my fame. Equal my deeds in the war."

A new difficulty unexpectedly presented itself, and which the government at first thought beneath their consideration—the want of foreign seamen in the vessels of war. The delay on the part of the presidency in the fulfilment of their contract had weaned this class of individuals from the service of the state; that great stimulus to exertion, prize-money, had been and was withheld, and despair instead of confidence had been so ripened in their breasts, that although many were unemployed and wandering about the streets of Valparaiso, few would enter themselves at the rendezvous opened

for this purpose. The evil began to be most serious, and the supremacy consulted the admiral if coercion ought not to be used; but this insinuation met with just opposition from his lordship; he expressed to the government his total abhorrence of impressment, and stated to them, that such a proceeding would also meet with the lawful opposition of the senior British officer then in the port. Captain Sherriff would be compelled by his duty to interfere in the protection of British seamen, however interested he might personally feel himself in the cause of liberty and the views of Chile, which it was well known to every individual acquainted with the sentiments of Captain Sherriff, he regarded as of the first magnitude.

The day destined for the embarkation of the troops approached, still the vessels of war were deficient in their complement of seamen, and those who could not remain ashore preferred to serve in the transports, in which service greater pay was offered than in the squadron. General San Martin being convinced that the most energetic measures were necessary to man the vessels of war, subjoined his name to a proclamation dictated by Lord Cochrane, stating, among other things—"on my entry into Lima, I will punctually pay to all such foreign seamen who shall voluntarily enter the service of Chile, leaving the port of Valparaiso in the vessels of war belonging to the state, the whole arrears of their pay, to which I will also add to each individual according to his rank one year's pay over and above his arrears, as a premium or reward for his services, if he continue to fulfil his duty to the day of the surrender of that city, and its occupation by the liberating forces."

This proclamation, with the subjoined signature of Lord Cochrane, as a guarantee for the fulfilment of the promise, had the desired effect, and the crews of the ships were immediately completed.

On the twentieth of August the expedition left the port of Valparaiso. The following account of it was published by order of the government:

"The fortunate day to Chile has at length arrived; a day on which, by an extraordinary effort which almost elevates her above herself, she presents to both worlds an example of unheard of constancy and pure patriotism. Never did any people exert themselves with greater energy, nor obtain such rapid progress in the brief space which Chile measures of real and stable

emancipation. The liberating expedition which to-day leaves our port to re-establish independence, and diffuse civil liberty among the oppressed children of the ancient empire of the Incas, will be an imperishable testimony of this truth, and a monument as lasting as time itself, in the history of the age of achievements.

"A brief view of the successes which have paved the way to this memorable event will demonstrate to the most disinterested observer, the great and heroic sacrifices that it has cost. Chile abandoned to her own resources, without arms, without money, and without the other elements sufficient to oppose force to force, was burthened from 1812 with a desolating and ferocious war in her own territory, carried on to the degree of involving the whole of the country in its calamities. She succumbed for a moment; for her last resources which at some future period might give re-action to her social body seemed to fail; the bowels of the country were torn to pieces by the implacable fury of her enemies; but in the midst of these disasters, oppressed with the most direful tyranny, and threatened with universal ruin, Chilean valour and constancy opened the path to that honour and glory, which in 1817 crowned the army of the Andes, the restorer and preserver of Chile. The immortal action of Chacabuco marked the epoch of the aggrandizement and prosperity of the republic.

"From that time the state and the government conceived the sublime object of advancing to the very throne of Spanish tyranny, the enormous weight of which oppressed Peru. They were aware that for the subversion of this colossal power, where, although it trembled, the principles of motion still existed, which vomited hostilities among us—it must be sought for and destroyed in its origin. But exhausted of all the means that could animate so arduous an enterprize, it was necessary that time, and an unexampled decision should overcome these great obstacles. Soldiers of all classes were formed, to constitute a national army. Arms and ammunition of all kinds were purchased in almost indefinite quantities. Every resource was drained, and every effort employed to form a military depôt, that should excite the attention even of Europe.

"In the mean time our territory was inundated with the disasters of war, as with a torrent. Her adverse fortune seemed to threaten with total ruin our very existence, till we obtained the renowned victory of Maypu; this victory

cost us nearly as much blood as the unfortunate result at Cancha-rayada, when we lost a treasure in money and implements of war, now recovered. That triumph was really and truly crowned with all the circumstances of a decisive action: but our republic did not reap the benefit of our advantageous state. Our resources were annihilated; the greater part of private fortunes was ruined; the capital was oppressed with an immense number of emigrants, who had arrived even from the other side of the Biobio, searching for security within her walls. The enormous and inevitable expenses necessary for the preservation of a sedentary army which occupied the centre of the state, and of a belligerent army employed in the south against the last, but desperate relics of our enemies, who were yet invincible under the protection of the fortifications of Talcahuano. These were the afflicting circumstances that pervaded Chile, and which would have made many others despair of saving the Patria, especially if they were not her children. Notwithstanding, to this unpromising epoch belongs the first intimation of the great enterprize of sending an expedition to Peru. We now saw the squadron appear, as if it had sprung from the waves, rather than as the results of human efforts, attending to the absolute nullity of means by which we might procure its formation. We were without the necessary materials, destitute of any relations with foreign states; we had only one port, where by extraordinary efforts something might have been effected, and this was blockaded; and lastly, we were in absolute want of every thing but boldness and resolution. One vessel (the Lautaro) little better than a hulk, and manned in a moment by determined patriots rather than seamen, hoisted triumphantly the national flag, and obliged our blockading enemies, the national marine of Spain, to betake themselves to a shameful flight. A prodigious rapidity of circumstances favourable to our navy were the immediate results; the enemy was driven from Talcahuano; the excellent frigate Maria Isabel, and several transports from Cadiz, sent to assist in devastation and extermination, were captured; in fine, our navy obtained the dominion of the sea from Guayaquil to Chiloe, and deprived Spain of Valdivia, her most important bulwark in the Pacific ocean.

"Chile now contemplated, not without surprize, the progress of her operations; but it was necessary to advance them with greater endeavours, for such were required at the altar of liberty. It was yet necessary to recruit troops, to re-equip the squadron, and to procure a large quantity of

materials, for the purpose of forming an expedition that should carry with it the necessary resources for a campaign of indetermined duration. It was also necessary to stifle the machinations of some anarchists, who more iniquitous than the Gracchi or the Catalines, opposed obstacles almost insurmountable to the government, in the transaction of the public business.

"At last all difficulties were overcome, the desires of the virtuous have been fulfilled, and the nation has arrived at that pitch of power and respectability, to which perhaps none ever arrived under similar circumstances. For the acquisition of this, our sacrifices have been of a most extraordinary class; there scarcely exists a town, a river, or a valley in our territory, which has not vibrated with the report of cannon, or been the witness of some obstinate encounters; but according to the opposition and deformity of the conflicts, the civic virtues of our citizens have shone with greater brightness. The most compromised personal services, donations, and erogations from all classes have been so repeated, and so heroic, that it is impossible to transfer to paper the expression of their just value; time will do that justice to us which is due to such marked and indelible actions of the most ardent patriotism. Our government would not have acted gratefully to its fellow-citizens, had it not proclaimed and published them to all freemen; because to such efforts the realization of the liberating expedition, whose description we have proposed to give, is due.

"After twelve or fifteen days had been employed in embarking the necessary depôt of articles for the immediate service of the expedition, it was announced in the general orders of the thirteenth inst., that the different corps of the army, including the troops of the Andes and those of Chile, should begin to move from their encampment at Quillota, and embark on the eighteenth, as follows:—At eight, ten, and twelve, a. m.; and two and four, p. m., the regiments No. 7, 11, 5, and 4 of infantry, and the mounted casadores: on the nineteenth at eight, ten, twelve, a. m. the artillery, regiment No. 8, of infantry, and the mounted grenadiers; the companies No. 6, of infantry, squadron No. 2, of dragoons, the companies of sappers, the workmen and implements; the part of the beach between the castle San Jose and the arsenal was chosen for this purpose, as being the most convenient.

"The spectacle presented by the different bodies in the progressive order of their march was as interesting and imposing as was the enthusiasm and joy

of all concerned: the spectacle was sublime, and every individual from the general in chief to the lowest of the soldiers seemed to rejoice. They had scarcely left the land of their birth, and which had been a grateful witness to their victories, when the spontaneous and simultaneous shout was heard, "Viva la Patria!" "Viva la Libertad!" was re-echoed by the spectators, and produced a most interesting, soothing, and consoling effect, the best prognostic of their future triumphs, which were destined to fix the liberty of the south.

"On the nineteenth, at nine, a. m., the national flag of the republic was displayed: it was saluted by every battery and every vessel of war with twenty-one guns. At this time the Captain-general Don Jose de San Martin visited the vessels of war and transports, enlivening the jubilee of his brave soldiers.

"To-day, the twentieth, the expedition weighed, and left the port in the following order: the flag ship, O'Higgins, with the hero of Valdivia on board, the commander in chief of the squadron, the Right Honourable Lord Cochrane (whose illustrious talents promise the most flattering results, as well with respect to the expedition, as the future glory of our navy) led the vanguard, with two other vessels of war. Then followed, in column, the transports, flanked by three other vessels of war: the rear was closed by eleven gun-boats, following the Independencia and San Martin, bearing the general in chief and his staff.

"These are the happy effects which order, constancy, and valour have achieved; their progress in a great measure is owing to the existence of the squadron: its establishment, increase, and superiority over that of Lima is the result of firmness and boldness: Chile has the glory of owing this to herself, and may call it the child of her sacrifices, her resolution, and her valour. The time will come when America will offer to Chile demonstrations of her acknowledgment, and pay to her the homage which is due: this they will do in return for her laudable and meritorious services, because they, more directly than any others, have been serviceable to the common welfare of the Continent. And should the fates be adverse, even in despite of every probability, should the precious expectations of this formidable expedition be disappointed, neither calumny, nor envy, nor all the vicissitudes of time will be sufficient to wrench from us the glory of

having realized the most liberal project which the history of infant states can present. (Signed) Zenteno, Minister of war and marine."

The supreme director of Chile, O'Higgins, addressed the following proclamation to the liberating army, at the moment of sailing from Valparaiso:

"Soldiers,—I have repeatedly witnessed your courage, and know full well what may be expected from you in the most important campaign of the revolution. The general who commands you is the same who conducted you to the field of battle at Chacabuco and Maypu; remember what ye there did, and think of the glorious destiny that awaits you.

"Soldiers of the Andes! you gave liberty to Chile; go now to Peru, and enrol your names with the blood of its oppressors!

"Chileans! your intrepidity, with that of the auxiliary troops, saved the Republic a second time, in the action of the fifth of April; go on in your career of glory, and deserve the gratitude of the inhabitants of Peru, as you have even that of your patria.

"Expeditionary Army! march to victory; go and close the calamities of warfare, and seal the fate of rising generations—these are the wishes and the hopes of your friend and comrade. (Signed) O'Higgins."

The number of troops destined to the liberation of Peru was four thousand seven hundred; fifteen thousand stand of arms were embarked for the purpose of raising troops in Peru, and the whole equipment was highly honourable to Chile, and truly the fruit of the most patriotic sacrifices. Chile, ten years before this memorable epoch, was considered as little more than a province dependent on Peru, and supported by the sale of her productions in the markets of this country; her inhabitants were looked upon as ignorant boors, and the term *huaco*, the epithet given in Chile to the farmers and people who resided in the country, was synonymous in Peru, with loon, or booby; but the sincere patriotism, the steady and unremitting efforts, and the undaunted valour of these people, triumphed after having resisted the efforts of the Spanish expeditions, sent both from Peru and the mother country. Having struggled under, and thrown off the yoke of oppression at home, they prepared a new offering at the altar of liberty, and

united their persons and fortunes to make Peru a partaker of that glorious state of freedom and independence which at the point of the bayonet they had won for themselves and their descendants.

The naval force under the command of Lord Cochrane, consisted of—

The frigate	O'Higgins, flag ship, of	48 guns.
	San Martin	64
	Lautaro	44
	Independencia	26
brig	Galvarino	18
	Araucano	16
	Pueyrredon	14

These had on board 1600 individuals, 624 of whom were foreign officers and seamen, chiefly English.

CHAPTER IX.

Sketch of O'Higgins, San Martin, Lord Cochrane, Las Heras, and Monteagudo....Sailing of the Expedition, and arrival at Pisco....Debarkation....Occurrences at Pisco....Colonel Arenales, with a division of the Army, marches to Arica....Troops embark and proceed to Ancon....News of the Revolution of Guayaquil....Capture of the Spanish Frigate Esmeralda....Army goes down to Huacho....Head Quarters at Huaaura.

Few things are more irksome, or perhaps none more difficult, than to pourtray living characters, especially those of great men. Misapprehension, flattery, or odium, generally constitute the *chiara obscura* of the painting; however, as this task has at this period of my narrative become indispensable, I shall endeavour to fulfil it with impartiality, hoping that at its conclusion my readers will confess that the colours have not been carelessly selected, nor in any way misapplied.

Don Bernardo O'Higgins, the supreme director of Chile, possesses a considerable share of real courage; is resolute in executing a determination, but tardy in forming it; diffident of his own abilities, he is willing to take advice from any one, but always inclined to consider the last as the best. Thus, without forming his plans on the judicious analysis of the counsels offered, by eschewing the good, and rejecting the evil, he has often been led into difficulties in his political administration. These waverings were highly injurious to the furtherance of Chilean prosperity, which was, no doubt, the idol of his soul; and this same want of determination often produced evils of no less moment in the military department. His love of his country was doubtless sincere, and perhaps his earnest desire to be always right sometimes led him into errors; but in this case it is more just to judge of the motive, or the cause, than of the action, or the effect. The establishment of the *senada consulta* was in itself a virtuous measure; but the expectation of finding five individuals who should see the good of the country, and the advancement of its true interests, through the same medium as himself, was one of the virtuous mistakes of O'Higgins, which placed him under the

control of his own creatures, and often retarded the execution of plans of vital importance to the state, and rendered their execution either abortive or nugatory.

The private character of O'Higgins was truly amiable. He was kind and condescending; apparently more at home at his evening tertulias than when under the canopy of the Supreme Directorship. In the whole of his conduct it might be truly said, that

"E'en his vices lean'd to virtue's side."

Being the son of an Irishman, Don Ambrose Higgins, who died in the high situation of Viceroy of Peru, he was passionately fond of the countrymen of his father, and I believe an Irishman was never deceived in his expectations of support and protection in O'Higgins. In short, the character which a Chilean gave to me conveys a very accurate summary of his general outline. "There is too much wax, and too little steel in his composition; however, there are few better, and many worse men than Don Bernardo."

The character of General San Martin will be best drawn from the conduct which he has observed. He was first known while in a military capacity in Spain, where he served as Edecan de Policia to General Jordan, with the rank of Captain. At this time a majority became vacant, which he solicited of General Castanos, but meeting with a refusal, he abandoned Spain and her cause, came over to England, where he took shipping and proceeded to Buenos Ayres in 1811. He there received the command of a division of the patriot troops, and defeated a party of 500 of the enemy at San Lorenzo. He was afterwards appointed commander in chief of the army of Buenos Ayres, in Upper Peru, where nothing transpired to render an account of his command of any importance. When superseded, he went to Mendoza, and there met O'Higgins and the Chilean refugees; a plan for the restoration of Chile was formed, San Martin took the command of the army. The success of the patriots at Chacabuco and Maypu has already been related, from which time nothing of importance occurred till 1820, when he was appointed by the Chilean government general in chief of the forces sent to Peru, called the "liberating expedition." I shall abstain from making any comments on the character of General San Martin, leaving my readers to

form their own opinions concerning him, founded on the facts which I shall present, authenticated by the circumstances as they arose.

Lord Cochrane is too well known to require any encomium from my pen. His services to his native country entitled him to the honour of knighthood in the military Order of the Bath; being the only captain in the British navy, who enjoyed this distinguished badge of national glory. In the new world, when his services were not needed in the old, his career of glory has been as brilliant as his most important services were necessary; and I do not hesitate in asserting, that but for his assiduity and unremitting attention, his military knowledge, and determined valour, the western shores of America would have still been in the possession of Spain; her fleet would have now commanded the Pacific, and "British Commerce" would have been excluded from the extensive market which it enjoys. Chile, Peru, and Columbia have repeatedly expressed their gratitude, the high sense they entertain, and the just appreciation which they hold of the merits of this hero; this supporter of their rights; this defender of their liberty—and if the name of Cochrane can ever be forgotten in the old world, or his services not duly requited, it will be found enrolled in the imperishable archives of the new, enshrined in the gratitude of the present and future generations. "Lord Cochrane is such a miracle of nautical skill and courage; his cause of banishment from his country is so lamentable—his adventures have been so romantic—and his achievements so splendid, that no Englishman can read them without pride, that such things have been done by his countryman; and without solemn concern that such talents and genius should be lost to the land that gave them birth."[\[6\]](#)

Don Juan Gregorio de las Heras, Major-general, and second in command of the army, had established his character as a soldier and a commander, by his boldness and intrepidity at Talcahuano, in 1817. This general merited the applause of every one, and his conduct in Peru endeared him to every soldier, and every lover of the cause in which he fought;—there can be no doubt that had he been the commander in chief, those torrents of blood which have been shed in Peru since 1820, would most certainly have been spared. In his actions Las Heras was mild, affable, and unassuming, and in his manners he was a perfect gentleman. In his general character he was sincere and candid; uniting always such qualities as made him beloved by his friends, and feared by his enemies; in fine he is an ornament to society,

and an honour to his birth-place, Buenos Ayres, where his patriotic virtues have been rewarded with the Supreme Magistracy.

Don Bernardo Monteagudo was one of those individuals who too often appear on the stage in revolutionary times, who "without feeling mock at all who feel." He is a native of Upper Peru, of the lowest rank in society, of spurious offspring, and African genealogy; he applied himself to the study of the law, and his mind is composed of the very worst materials which characterize the sullen zambo; his imagination is active and aspiring, like that of the mulatto, a composition which is formed to fulfil the Spanish adage, "*tirar la piedra, y esconder la mano*, throw the stone, and hide the hand." He had been repeatedly employed by his master San Martin to gild over, under the forms of law, such proceedings as even he, with a blushless cheek was ashamed to avow. The murder of the two Carreras at Mendoza, and that of the Spanish officers confined at San Luis, are examples of what one monster can execute, and another defend. His subsequent conduct in Peru will better serve to define his true character than what I dare even venture to attempt—for fear it should be supposed that prejudice has acted as a stimulus.

The talents and literature of Monteagudo have been held up as possessing considerable perfection; but it was justly said by Un Limeño^[7] in his *Alcance al Postillon*, printed at Santiago, September 5th, 1822, "that his productions were impertinent comparisons, formed for benumbed and monotonous newspaper paragraphs."

The expedition having left Valparaiso, the O'Higgins entered the bay of Coquimbo, where the Araucano and a transport had been sent to embark some troops; these joined the rest, and we proceeded to our rendezvous, Pisco, and entered the bay on the seventh of September. On the eighth the troops began to disembark, but such was the prudence of General San Martin, that they were not allowed to proceed towards the town of Pisco, until about three thousand were landed; these advanced on the ninth, formed in three solid squares, under the command of Major-general las Heras, while San Martin ran down the coast of the bay, in the schooner Montezuma, to observe the operations of the enemy, which was composed of forty regulars, and two hundred militia, commanded by the Count of Monte-mar. This extraordinary prudence gave the inhabitants of Pisco time

to retire, which they did, and took with them even the furniture from their houses, while they drove before them their slaves and their cattle into the interior. San Martin, not willing to attribute the absence of the inhabitants, and the loss of provisions, to his own tardy movements, but to the inimical feelings of the Peruvians, was very much chagrined, and stated it as his belief, that he had been deceived with respect to the accounts he had received from different parts of Peru; and, in fact, he began to doubt of the success of the expedition. What a contrast was this to the landing of the gallant Lieutenant-colonel Charles, about a year before; who, with less than one-tenth of San Martin's troops, disembarked, and in three hours possessed himself of the battery and town of Pisco. But this was considered an imprudent act, and a want of generalship: and so it was, if the greatest skill consists in avoiding danger, and in sparing both friends and enemies for a more convenient occasion, to which may be added, that Charles lost his life.

On the day on which the expedition arrived at Pisco, the constitutional government had been restored in Lima, and the Viceroy was at the theatre when he received the first news: he immediately retired, after having heard the old Spanish adage frequently repeated, "*a cada cochino gordo, le llega su San Martin*"—for every fat hog, San Martin, will arrive;" alluding to the fairs held in Spain on the day of Saint Martin for the sale of hogs. The idea, that "all was not right in Denmark," induced Pesuela to send immediately for the manager of the theatre, and to examine the prompter's book; when convinced that there was no collusion between the South American hero and the clown of the Lima stage, his excellency dismissed the manager, stating, that being a native of Spain, he could not doubt his loyalty. Had he been an American, he would perhaps have been sent to prison for the prophetic crimes of Calderon, the author of the comedy.

On the fourteenth, part of the convoy which had been separated from us at sea arrived; and in the evening a Spanish vessel of war, bearing a flag of truce, having on board a Spanish officer, was sent by the Viceroy to San Martin to solicit a cessation of hostilities, and to appoint commissioners to conciliate the interests of Spain and America. On the twenty-sixth, the deputies met at Miraflores, two leagues to the southward of Lima, and signed an armistice of eight days; but at their conferences nothing was agreed to, the Spanish deputies requesting an acknowledgment of the constitutional government of Spain, and the evacuation of the Peruvian

territory by the Chilean forces; and the patriots that of the absolute independence of the country. Such being the respective basis on which the conciliating deputies were ordered to insist, the conference ended on the fourth of October, and on the fifth hostilities again commenced.

On the arrival of the expedition at Pisco, several proclamations were issued: that of the supreme director of Chile contained the following paragraph:

"Peruvians,—behold the pact and conditions on which Chile, in the face of the Supreme Being, and calling on all the nations of the earth as witnesses and revengers of a violation, faces fatigues and death to save you. You shall be free and independent; you shall constitute your own laws by the unbiassed and spontaneous will of your representatives; no military nor civil influence, either direct or indirect, shall be exercised by your brethren in your social dispositions; you shall discharge the armed force sent to protect you at the moment you choose, without any attention to your danger or security, should you think fit; no military force shall ever occupy a free town, unless it be called in by a legitimate magistracy; neither by us nor through our assistance shall any peninsular or party feelings, that may have preceded your liberty, be punished: ready to destroy the armed force which resists your rights, we pray you to forget, on the day of your glory, all past grievances, and to reserve the most severe justice for future obstinate insults."

On the thirteenth of October, San Martin issued the following paragraph from the army press:

"People of Peru,—I have paid the tribute which, as a public man, I owe to the opinion of others: I have shewn what is my object and my mission towards you: I come to fulfil the expectations of all those who wish to belong to the country that gave them birth, and who desire to be governed by their own laws. On that day when Peru shall freely pronounce as to the form of her institutions, be they whatever they may, my functions shall cease, and I shall have the glory of announcing to the government of Chile, of which I am a subject, that their heroic efforts have at last received the consolation of having given liberty to Peru, and security to the neighbouring states."

The sequel will shew how these solemn promises were forgotten; and how the dreadful results which followed such a system of duplicity and deceit are characteristics which blacken the name of a private individual, and blast the honour of a "public man."

On the fifth of October, hostilities having recommenced, Colonel Arenales, with a division of twelve hundred men and two pieces of artillery, left Pisco for Ica, where he arrived on the sixth, and was received by the corporation and inhabitants of the city with the strongest marks of the most sincere enthusiasm in the cause of liberty. Colonel Quimper and the Count de Monte-mar, with a force of eight hundred men, fled from Ica, but two companies of infantry, with their officers, returned and joined Arenales. Part of the division under Arenales was sent to La Nasca on the twelfth, where they entered, and completely routed the enemy. Quimper and Monte-mar made their escape, owing to the fleetness of their horses; but all the baggage, consisting of arms, ammunition, and equipage, was taken, together with six officers and eighty privates.

On the fifteenth, about a hundred mules laden with stores belonging to the enemy were also captured; and Arenales having established an independent government at Ica, proceeded on his route towards Guamanga.

The troops of the expedition were distributed on the different estates in the neighbourhood of Pisco, Chincha, and Cañete, which either belonged to Spaniards, or Americans who had proved themselves inimical to the object of the liberating forces, particularly on those belonging to the Count of Monte-mar. All slaves capable of bearing arms, and willing to serve in the army of San Martin, were declared free; however, the number that presented themselves did not accord with the sanguine expectations of the chief, and his uneasiness at what he considered lukewarmness in general in the sacred cause began to produce impatience bordering on despair. He informed Lord Cochrane that he should remove his head quarters to Truxillo; but his Lordship fortunately advised him to desist from a plan which would undoubtedly at once have ruined all his hopes. Truxillo being at the distance of a hundred leagues to the northward of Lima, it would have been almost impossible for his troops to have marched across a country such as I have already described without experiencing the greatest privations; and for want of the necessary stores they could not possibly have returned by sea;

besides, the division under the command of Arenales would have been abandoned to its fate, and almost delivered up to the enemy. The only temptation that such a position could hold out to San Martin was, that Truxillo is a walled city, easily tenable, and at a short distance from the seaport of Huanchaco; however it was determined to remove the head quarters to the north of Lima, and on the twenty-second the troops began to embark.

On the twenty-sixth, the whole of the liberating expedition left the bay of Pisco, and on the twenty-ninth it arrived off Callao, where the vessels anchored under the island of San Lorenzo, presenting at once to Lima a view of the forces sent to free the metropolis of South America from the chains of colonial thralldom. On the thirtieth, the transports, under convoy of the San Martin, dropped down to the bay of Ancon; the O'Higgins, Lautaro, Independencia, and brig Araucano, still remaining in the bay of Callao.

On the third of November, his Lordship astonished the inhabitants of Callao, by sailing through the narrow passage that lies between the island of San Lorenzo and the main, called the Boqueron. Never had the Spaniards known a vessel of more than fifty tons attempt what they now saw done with a fifty gun frigate. Expecting every moment to see us founder, the enemy had manned their gunboats, and formed themselves in a line ready to attack us the instant they should observe us strike; to witness which, the batteries were crowned with spectators; but to their utter astonishment we passed the straight, leaving them to ruminate on the nautical tactics of the Admiral of the Chilean squadron.

Having passed the Boqueron, a ship and a schooner hove in sight; the ship proved to be English, the schooner to be the Alcance, from Guayaquil, bringing the news of the revolution and declaration of independence of that city and province, and having on board the ex-governor and other Spanish authorities. Guayaquil followed the example of the other South American cities in the manner in which she threw off the colonial yoke; the Spanish mandataries were deposed, and a new government established on the ninth of October, without any bloodshed, or even insults offered to the individuals deposed.

The adventurous spirit of Lord Cochrane immediately formed the project of performing the most gallant achievement that has honoured the exertions of the patriot arms in the new world. The two Spanish frigates *Prueba* and *Vengansa* had left the coast of Peru, and the only vessel of respectable force left at Callao was the frigate *Esmeralda*. She was at anchor in this port, guarded by fifteen gunboats, two schooners, two brigs of war, and three large armed merchantmen, besides the protection of the forts and batteries on shore, and a floating boom surrounding all the vessels, open only on the north side, lying close to the shore of *Bocanegra*. His lordship determined on cutting out the frigate, the brigs and schooners, and as many of the boats and merchantmen as might be possible. This daring enterprize was to be executed by volunteers alone; but when the act was proposed on the third of November to the crews of the different vessels, the whole of them wished to share in the glory of the undertaking. On this account it became necessary to issue the following proclamation, which was received with that enthusiasm which the voice of a hero causes, when he speaks to those who know his character:

"Soldiers and sailors,—To-night we will give a mortal blow to the enemy; to-morrow you will present yourselves before Callao, and all your companions will look on you with envy. One hour of courage and resolution is all that is necessary to triumph; remember that you are the victors of *Valdivia*, and fear not those who have always fled before you.

"The value of all the vessels taken out of Callao shall be yours; and, moreover, the same sum of money offered by the government of Lima to the captors of any vessel of the Chilean squadron, shall be distributed among you. The moment of glory is at hand. I hope, Chileans, you will behave as you have hitherto done; and that the Englishmen will act as they are accustomed to do both at home and abroad. Nov. 4th, 1820. Cochrane."

On the fourth of November, fourteen boats belonging to the Chilean vessels of war were manned, and left the ships, filled with volunteers, at half past ten o'clock at night; but this was only intended by his lordship to exercise the men. On the fifth, being the day determined on by the admiral for the gallant enterprize, the signalman of the flag-ship was sent to the signal staff erected on the island of *San Lorenzo*, where he hoisted two or three flags, and was answered by the *O'Higgins*; the *Lautaro*, *Independencia*, and

Araucano immediately weighed anchor, and stood out of the bay, leaving on board the O'Higgins the boats and volunteers. This *ruse de guerre* completely succeeded, and the Spaniards were persuaded that they had nothing to fear that night, for they supposed that some strange sail had appeared in the offing, and that our vessels had gone out in pursuit of it. All being thus ready, at ten o'clock at night we again embarked in the boats, and proceeded towards the inner anchorage, on the outside the boom the United States frigate Macedonia, and the English frigate Hyperion, were at anchor; and, as we passed the former, after being hailed by the sentry at the gangway, who was immediately hushed by the officer on deck, many of her officers hung over the bulwarks, cheered us in whispers, wishing us success, and wishing also that they themselves could join us. Not so the Hyperion; although not so near to her, the sentries continued to hail the boats till we had passed.

The boats containing two hundred and forty volunteers proceeded in two divisions; the first under the command of Captain Crosbie, of the flag ship, the second, of Captain Guise of the Lautaro, both under the immediate direction of his lordship. At midnight we passed the boom; Lord Cochrane being in the first boat, was hailed from a gun boat, but, without answering, he rowed alongside her, and standing up, said to the officer, "silence! or death; another word and I'll put you every one to the sword!" Without waiting a reply, a few strokes of the oars brought the boats alongside the Esmeralda, when his Lordship sprang up the gangway and shot the sentry; the one at the opposite gangway levelled his musket and fired; his lordship returned the fire, and killed him, when turning round to the boats he exclaimed, "up my lads, she's ours!" The soldiers and sailors now boarded her in every direction, and possession of the quarter deck was immediately taken. The Spaniards flew to the forecastle, where they defended themselves, and kept up a continued fire of musquetry for seventeen minutes, when they were driven below, and obliged to surrender. We had scarcely obtained possession of the quarter deck, when a gunboat close astern of the frigate fired a shot into her; the shot tore up the deck under the feet of Captain Coig, the commander of the Esmeralda, and wounded him severely; it also killed two English sailors, and one native; but the officer and crew of the boat immediately abandoned her.

The frigate was in an excellent state of defence, and her crew under good discipline; the men were all sleeping at their guns, and the guard of marines on the quarter deck; and so prompt were the latter, when his lordship jumped up the gangway, that they appeared as if they had been ordered out to receive him; indeed had not the boats under the command of Captain Guise boarded at almost the same moment, behind the marines, the admiral and many others who boarded her on the starboard side must have fallen by their fire. His lordship at this time received a shot through the thigh, but, until the ship was ours, he paid no attention to the wound, except binding a handkerchief round it; after which he stood on one of the guns of the quarter deck, and laid his leg on the hammock netting, where he remained till three o'clock in the morning, and then went on board the O'Higgins to have it dressed by the surgeon.

The following order was issued by the admiral to the captains on the first of November, 1820:

"The boats will proceed, towing the launches in two lines parallel to each other, which lines are to be at the distance of three boats' length asunder.

"The second line will be under the charge of Captain Guise, the first under that of Captain Crosbie. Each boat will be under the charge of a commissioned officer so far as circumstances permit, and the whole under the immediate command of the admiral.

"The officers and men are all to be dressed in white jackets, frocks, or shirts, and are to be armed with pistols, sabres, knives, tomahawks, or pikes.

"Two boat-keepers are to be appointed to each boat, who, on no pretence whatever, shall quit their respective boats; but are to remain therein, and take care the boats do not get adrift.

"Each boat is to be provided with one or more axes or sharp hatchets, which are to be kept slung to the girdle of the boat-keepers. The frigate Esmeralda being the chief object of the expedition, the whole force is first to attack that ship, which, when carried, is not to be cut adrift, but is to remain in possession of the patriot seamen, to ensure the capture of the rest.

"On securing the frigate, the Chilean seamen and marines are not to cheer as if Chilenos; but, in order to deceive the enemy, and give time for completing the work, they are to cheer, Viva el Rey!

"The two brigs of war are to be fired on by the musketry from the Esmeralda, and are to be taken possession of by Lieutenants Esmond and Morgell, in the boats they command; which being done, they are to be cut adrift, run out, and anchored in the offing as quickly as possible. The boats of the Independencia are to busy themselves in turning adrift all the outward Spanish merchant ships; and the boats of the O'Higgins and Lautaro, under Lieutenants Bell and Robertson, are to set fire to one or more of the headmost hulks; but these are not to be cut adrift so as to fall down upon the rest.

"The watchword, or *parole*, and counter-sign, should the white dress not be sufficient in the dark, are '*Gloria*,' to be answered by '*Victoria*!' (Signed) Cochrane."

It was the intention of Lord Cochrane to clear the bay, according to the instructions given; but being wounded, and the resistance made by the Spaniards on board proving much greater than was expected, Captain Guise ordered the cable to be cut; which being done, the frigate began to drift from her anchorage. The batteries were pretty active during the engagement, and when the Hyperion and Macedonia sheeted home their topsails and began to move out of the way of the shot, the firing increased. These ships shewed two lights, one at the mizen peak, the other at the jib boom, as distinguishing signals, which being observed by Lord Cochrane, he immediately ordered the same to be shewn on board the Esmeralda: thus she was brought out of the anchorage with less damage than either of the other two sustained. Indeed, excepting the shot from the gun boat, the Esmeralda sustained none whatever.

From the lists that were found on board the prize it appeared, that she had three hundred and twenty persons on board, besides some visitors, who, from what had been observed, imagined that nothing uncommon would take place that day. On the following, when the prisoners were mustered, their numbers only amounted to one hundred and seventy-three; thus their loss was one hundred and fifty-seven, besides several wounded, who at nine

o'clock on the sixth were sent ashore with a flag of truce. Our loss amounted to eleven killed, and twenty-eight wounded. His lordship immediately proposed to the Viceroy an exchange of prisoners; which being acceded to, ours were immediately sent ashore, and those from the dungeons of Casas-matas were ordered to join the army under San Martin. The loss of the Esmeralda was a death blow to the Spanish naval force in the Pacific, and created a most extraordinary effect in Lima; the natives looked congratulations to each other, but dared not to speak, while the Spaniards indulged themselves with every kind of useless vociferation. To such a degree of frenzy were they wrought up in Callao, that on the sixth, when the market boat belonging to the United States' ship Macedonia went ashore, the crew was murdered by the infuriated Spaniards, who fancied that they had assisted the patriots on the preceding night.

Of this achievement of Lord Cochrane, Captain Hall says, "the skill and gallantry displayed by Lord Cochrane, both in planning and conducting this astonishing enterprize, are so peculiarly his own, and so much in character with the great deeds of his early life, &c."

Captain Downes, of the Macedonia, in a letter to General San Martin, says, "I do most sincerely congratulate Lord Cochrane upon the capture of the Esmeralda; the exploit was executed in a gallant stile never surpassed."

The bulletin of the army presented, in the report of the capture of the Spanish frigate, a specimen of the jealous feelings of the general in chief. The first statement is, "before the general in chief left the vice-admiral of the squadron, they agreed on the execution of a memorable project, sufficient to astound intrepidity itself, and of itself to make the history of the liberating expedition of Peru eternal."—Again: "those valiant soldiers who for a length of time have suffered with the most heroic constancy the hardest oppression, and the most inhuman treatment in the dungeons of Casas-matas, have just arrived at our head quarters. Flattering promises of liberty and the threats of death were not sufficient to destroy their loyalty to their country; they have waited with firmness the day on which their companions in arms should rescue them from their misery, and revenge the insults which humanity has received in their persons. This glory was reserved to the liberating *army*, whose efforts have snatched from the hands of tyranny these respectable victims. Let this be published for the

satisfaction of these individuals and that of the army, to whose *arms* they owe their liberty. (Signed) San Martin."

Were the character of Lord Cochrane not known in the world, it might be believed that the plan and execution of this action were the offspring of the wisdom of San Martin; but how the liberty of the prisoners of war confined in Callao could be owing to the efforts of the army is quite paradoxical. Indeed the first assertion is as void of truth as the second, and it would be as easy proved to be so, were it necessary.

The only way to praise the hero of this enterprize is to leave here a blank: all those who contemplate this achievement must pay the tribute due to the friend of rational liberty, the advocate of South American emancipation, the supporter of the civil rights of the new world, the true friend of the oppressed.

On the ninth of November the army left the bay of Ancon, and dropped down to Huacho, where the troops immediately began to disembark, and head quarters were established at Huaura on the twelfth.

At Ancon General San Martin distributed several proclamations. In one addressed to the Spaniards residing in Peru, he says "Spaniards, your destiny is in your own hands; I come not to declare war against the fortunes and persons of individuals; the enemy of the liberty and independence of America alone is the object of the vengeance of the arms of the PATRIA.—I promise you in the most positive manner, that your property and persons shall be inviolable; and that you shall be treated as respectable citizens, if you co-operate in the great cause." To the Spanish soldier who wishes to abandon his arms, he promises a "safe and commodious passage to Europe should he request it," or wishing to remain as a soldier, or as a private citizen, "the same enjoyments and securities as the defenders of the country."

Similar promises were repeated at Huacho by a decree. "I. The goods and property of all Spaniards, excepting those who have publicly endeavoured to prolong the evils of the war by their seditious writings, shall be under the protection of the liberating army of Peru, in the same manner as the property of Americans. II. Those Spaniards who after we have taken possession of Lima (if the fortune of war favour us) shall solicit letters of

citizenship, shall receive them, and shall be declared citizens of the state of Peru."

Had not General San Martin compromised himself in this solemn manner, his subsequent conduct in Lima could only have been called arbitrary; but when acting in direct violation of such public assurances, it is not harsh to call it dishonourable and unjust.

FOOTNOTES:

[6] Sir James Mackintosh, in the House of Commons.

[7] Dr. Don Jose Cabero y Salazar, Peruvian Charge d' Affairs in Chile.

CHAPTER X.

Battalion of Numancia joins the Liberating Army....Victory at Pasco by Arenales....Route of Arenales from Ica....Courts Martial held in the Squadron on Officers....Conduct of General San Martin....Viceroy Pesuela deposed....Expedition to Pisco....To Arica....Action at Mirabe, under Lieutenant-Colonel Miller....Description of Arica....Of Tacna....Of Ilo....Armistice celebrated by Generals San Martin and La Serna....Prorogation of....Lord Cochrane leaves Mollendo, and arrives at Callao.

On the third of December the battalion of Numancia, being six hundred and fifty strong, left the service of the Viceroy of Lima, and passed over to that of the Patria, joining a detachment of the liberating army, sent to meet them at Retes in the valley of Chancay. This corps, which was entirely composed of Colombians, had retained the name of a regiment sent from Spain under General Morillo, and was considered the stay of the viceregal authority in Peru. A private correspondence had been held between San Martin and the officers of this battalion, and promises made to them by San Martin, which, like many if not all similar ones made by this great man, were never fulfilled. The loss of so important a part of the Spanish army was a severe blow to Pesuela and the Spaniards in Lima, and a great addition to the physical strength of the liberating army. The arrival of officers and private individuals from Lima increased daily; on the eighth, thirty-six officers, and a greater number of persons of respectability in Lima, arrived at Chancay, and joined the patriot forces.

On the eleventh, the news of the victory at Pasco, obtained by Colonel Arenales over General O'Reilly and a division of the royal army of twelve hundred men, arrived at Huaura. After the action at Ica on the sixth of October, Arenales marched with his division into the interior, and on the thirty-first he entered the city of Huamanga; but the Spanish authorities had fled, carrying with them the public funds. The inhabitants of Huamanga welcomed the arrival of the patriot forces, and voluntarily declared their independence of Spain and her mandataries. On the sixth the division left

the city, and continued their march towards the district of Tarma; and the advanced guard arrived at Jauja, thirty leagues from Lima, at the same time that the Spaniards were abandoning it; a skirmish took place, and the Spaniards lost eight killed and twenty-one prisoners, including four officers. On the twenty-second a division advanced on the city of Tarma, and entered it on the twenty-third. Tarma immediately proclaimed itself independent of Spain. On the sixth of December the action was fought at Pasco; the loss of the enemy consisted in fifty-eight killed in the field of battle, nineteen wounded, three hundred and forty-three prisoners, including twenty-eight officers, two pieces of artillery, three hundred and sixty muskets, flags, ammunition, baggage, and utensils of war; but General O'Reilly made his escape to Lima. On the arrival of the news of the victory obtained at Pasco over the royalists, the city and province of Huanuco declared their independence, and the cities of Cuenca and Loxa, in the jurisdiction of Quito, advised General San Martin of their having also abjured all foreign domination, and enrolled their names in the list of free and independent states. On the fourth of January, the news arrived of the revolution of Truxillo, under the direction of its Spanish governor the Marquis of Torre Tagle.

Such a concatenation of successful events was certainly more than the general of the liberating army could have anticipated. From the fifth of November to the fifth of January the Spaniards had lost the whole of their naval force in the Esmeralda, the Prueba and Vengansa having disappeared: Numancia, considered the flower of their army and the prop of their authority, had deserted their cause; the division under the command of their trusty general, O'Reilly, had been defeated by a minor force; all the provinces to the northward of Lima had declared their independence, and were contributing with men and every other necessary to support the army then encamped within thirty leagues of the capital of Peru; every thing save hope seemed to have abandoned them, while every thing appeared to favour the cause of the liberating forces, and to invite them to crown their career of glory by entering Lima, which at this moment was the pandemonium of oppression and despair.

The incomparable prudence of San Martin, however, revolted at the effusion of blood which must necessarily be the precursor of so much glory: he felt more sympathy at knowing that both his own and the enemy's troops

were falling victims almost hourly to the ravages of the tertian fever and other diseases, for want of proper medicines, care, and rest.

The situation occupied by the royal troops between Lima and Ancon, at a place called Asna Pugio, is very swampy, and the number of men who became affected with intermittent fevers increased daily; the hospitals in Lima were filled with them, and their decrease by death, as well as by desertion, was alarming to the Viceroy. The desertions would have increased if the distance of the head quarters of San Martin had not been so great, for several deserters were apprehended, and shot by the royalists.

On the second of February the officers of the ex-Esmeralda, named by General San Martin the Valdivia, in commemoration of the important victory gained by Lord Cochrane over this place, addressed the following letter to Captain Guise:

"Sir,—We have heard with regret and disappointment, that his excellency General San Martin has been pleased to order that the name of this ship shall be changed, and that she shall henceforward be known under the appellation of the Valdivia. We regret that in the squadron of Chile the immortal memories of Lautaro and Galvarino, who have, ages past, been sacrificed on the ashes of the aspiring liberty of their country, and the names of their surviving countrymen, O'Higgins and San Martin, (the avengers of their wrongs, and the restorers of their rights) should be associated with 'Valdivia,' a Spaniard who has shed such torrents of American blood, the conqueror and enslaver of Chile, and founder of the city which bears his name; and we are disappointed to find nothing in the new name commemorative of the capture of the Esmeralda, but that it has been made subservient to the celebration of another victory over the enemy, which, although we had the misfortune not to participate in it, yet claims our admiration and gratitude, but which bears no more relation to the capture of this ship, than the battle of Chacabuco does to that of Maypo; and, what would the victors of Maypo have thought had that memorable event borne the name of Chacabuco! It is further to be remembered, that very few of the captors of the Esmeralda took part in the affair at Valdivia.—We are fully aware, that there are instances in the squadron of ships being named after particular victories, (viz. Chacabuco) but these were bought into the service by the property of the state; the Esmeralda was purchased

by the blood of her subjects.—If the Esmeralda be destined to lose the name under which she was captured, we express a hope that she will bear one more consonant to the feelings of those by whom the service was achieved, than that which has been selected. We have not had an opportunity of communicating with our brother officers of the squadron, and these remarks are to be understood as individually our own; we trust however that they will not appear to yourself or to the commander in chief irrelevant with the interest which we must always take in every thing in which the glory and prosperity of the navy of Chile are concerned.—May we beg, therefore, that you will take the earliest opportunity of bringing the subject before the admiral and his excellency general San Martin, for their consideration. (Signed.) Robert Bell, Lieutenant, H. C. Freeman, Lieutenant, J. M. Michael, Surgeon, James L. Frew, Purser, Hugh Jerome Kernan, Assistant Surgeon."

This letter, and the subsequent behaviour of the officers, obliged the admiral to order them under an arrest, and to exhibit charges against them for their trial by a court martial, which was held on the second of March. The charges were "For having, by their letter bearing date the second of February, 1821, addressed to Martin George Guise, Esq., combined falsely to represent to the said Martin George Guise, Esq., captain in the naval service of Chile, and on divers other occasions, that the appellation of the 'Valdivia,' given to the frigate Esmeralda was in disrespect to, and derogation of, the names of O'Higgins and San Martin, and thereby to excite dissatisfaction against the admiral and commander in chief, in commemoration of whose service in the capture of the fortifications of 'Valdivia' the said name was given to the 'Esmeralda.' For attempting to excite dissatisfaction against their aforesaid superior officers, by misrepresenting the name of the fortress of 'Valdivia,' so given in commemoration of useful services, as the name of a man whom the said officers further, with the intent aforesaid, have pronounced to be a Spaniard who shed torrents of American blood; and moreover, that the said officers did further, with the intent aforesaid to create dissatisfaction against the superior officer, falsely represent the person named Valdivia to have been the enslaver of Chile. That the said officers did hold various conversations derogatory to the vice-admiral of Chile, their commanding officer, and unnecessarily and impertinently did interfere in the matter of naming the

'Esmeralda,' contrary to the rules and subversive of the discipline of the naval service of the state."

The sentence given by the court was, that "James M. Michael, Surgeon, and James Frew, Purser, be dismissed the naval service of the state; and Robert Bell, Lieut., Henry C. Freeman, Lieut., and Hugh J. Kernan, Assistant Surgeon, be dismissed their ship, to be severely reprimanded and admonished by the court, but to be recommended by the court to the commander in chief for other appointments. (Signed) Robert Forster, President, W. Wilkinson, T. Sackville Crosbie, William Prunier, Henry Cobbett."

During the arrest of the officers of the Valdivia, Lord Cochrane wished to make an attack on the vessels of war, blockships, gunboats, and fortifications of Callao, and communicated the order for the same on the twentieth of February, which order to Captain Guise was answered by a private note to his lordship, stating, that he could not think of entering on this service with any officers except those under arrest, and that in case they were not permitted to rejoin their ship for this attack, he must resign the command of her, and begged Lord Cochrane to appoint another person to the command. The admiral answered Captain Guise, that he could not appoint another person to the command of the Valdivia, nor admit the resignation of Captain Guise on a private solicitude, nor even on an official one, without some reasons being alleged. Captain Guise now wrote officially, stating the refusal of Lord Cochrane to be a sufficient motive for his resignation, and expressing a request to be permitted to accompany his officers to head quarters, and tender his commission to General San Martin. His letter was also accompanied with one from the petty officers of the Valdivia, who refused to serve under any other commander than himself. After some further correspondence Captain Guise informed Lord Cochrane that he had given the command of the Valdivia to Lieutenant Shepherd, and considered himself superseded. The admiral, for the fourth time, sent Captain Guise an order to act as commander of the Valdivia, requiring a categorical answer to "whether he would or would not obey his orders, and signal to weigh, made four hours previous to this communication," again requesting some grounded reason for his resignation. The order to weigh was on service of importance, and Captain Guise refused to obey it, repeating, that his officers having been separated from his ship, he could not

act, and had given over to Lieutenant Shepherd the command of the Valdivia.

On the twenty-second of February Lord Cochrane ordered Captain Spry to proceed in the brig Galvarino to the rendezvous off Chorillos, which order was answered by Captain Spry, who requested leave to resign the command of the Galvarino, as "his friend Captain Guise had been obliged to resign that of his ship," and alleging that he held no appointment from the Chilean government. Lord Cochrane demanded his motive for this letter, and why, without the appointment alluded to, he had exercised the authority of commander of the brig. The answer was, that "I (Captain Spry) entered the Chilean navy conditionally, to serve only during the period of the services of Captain Guise, under whose patronage and protection I left England;" that his appointment was a verbal one from the governor of Valparaiso, when he received his commission of Captain. He added a desire to be permitted to go to head-quarters at Huacho, and explain his conduct to General San Martin, concluding "if Captain Guise is compelled to resign the command of the Valdivia, I am determined no longer to hold that of the Galvarino." Captain Spry was placed under an arrest on the twenty-second of February, on charges to be exhibited, and such was the state of mutiny on board the Galvarino, that Captain Crosbie, of the flag-ship, was ordered to anchor her in a safe situation, which induced Captain Spry to write to the Admiral, stating, that as he had been superseded by Captain Crosbie, he considered himself on half-pay, and free from the jurisdiction of the martial law. His letter was answered by an assurance, that he was not superseded; but that having disobeyed the orders given, and declared his determination not to hold the command of the Galvarino, Captain Crosbie had been ordered to anchor her on the starboard beam of the O'Higgins, this appearing necessary from the state of the crew of the brig, and that he was not superseded in consequence of his said determination, nor had he gone through the usual forms of delivering up the brig. Captain Spry again insisted on his exemption from martial law; but finding the Admiral determined to bring the affair to the decision of a court-martial, of which he was aware that if the sentence were consonant with the crime, and according to the ordinances of the navy, he would never leave the deck of the brig, he now expressed no objection to being tried by his brother officers, who were "neither prejudiced nor interested."

The charges exhibited by the commander in chief were "for neglecting or refusing to proceed on service in the Chilean state brig Galvarino, pursuant to an order of the commander in chief, both verbally, and in writing, given on or about the twenty-second of February, 1821, in breach of the 14th article of war, made and provided.—For having contrary to his duty as an officer written or caused to be written, a certain letter to his commander in chief, signed John Tooker Spry, further declining, or refusing to proceed on the duty so ordered, or longer to serve than during the period of the services of Captain Guise, under whose patronage and protection he had left England, and for setting forth in the said letter, that if Captain Guise was compelled to resign the command of the Valdivia, he the said John Tooker Spry would no longer hold the command of the Galvarino; thereby delaying and discouraging the service, in breach of the 14th article of war.—That the said John Tooker Spry did by his conduct aforesaid, hold forth an evil example to his ship's company (who immediately thereafter did in writing and otherwise, refuse to weigh anchor until certain grievances, which they did not set forth in the said writing, should be redressed), the same being subversive of all discipline and subordination, and in violation of the 14th article of war, made and provided."

The sentence of the court-martial was, that "John Tooker Spry be dismissed the command of the brig Galvarino, be placed at the bottom of the list of captains, and be severely reprimanded by the court."

On the fourth of March Captain Guise communicated to Lord Cochrane, that Captain Spry having been dismissed the service by sentence of a court-martial, he requested permission to accompany him in his own boat to Huacho, which Lord Cochrane informed him he could not allow at that critical moment. On the sixth the two captains and the officers went down by the O'Higgins to head-quarters, where Ld. Cochrane on the twelfth again offered to Captain Guise the command of the O'Higgins, which he refused, as also ever to serve under Lord Cochrane again.

The whole of this affair was the result of what had passed at Valparaiso, before the expedition quitted that port; and from several circumstances connected with the conduct of these officers, and their publicly asserting, that General San Martin would not swerve from his promises made to them, their firm reliance on his support and patronage, as well as the subsequent

behaviour of the general himself, evinced that he had been the entire instigator of what had passed at Valparaiso in July and August, 1820, both on the part of the Chilean government, and on that of the different officers who then and there misconducted themselves. He well knew that he could not tamper with Lord Cochrane, whose honourable feelings would not allow him to deviate from that line of conduct which had marked the whole tenour of his public life: and had not the officers of the squadron stood forth in support of their commander in chief, his tender of his commission would have been accepted by the government.

On the arrival at head-quarters of Captains Guise and Spry, the latter, in defiance of decorum and example, was appointed by General San Martin his naval adjutant, Edecan Naval, as if to gall the feelings of Lord Cochrane, and bring into supreme contempt the sentence of a court-martial, by protecting in the most public manner the individual who had merited the chastisement of the law. So elated was Captain Spry with his new appointment, that in the house of Colonel, now General Miller, he conducted himself towards Lord Cochrane in the most ungentlemanly manner, so much so, that the honourable feelings of Miller were wounded, and he apologized to the Admiral for the conduct of Spry.

On the fourth of March, General San Martin sent Captain Guise and his officers with a request to the Admiral to reinstate them in their former appointment: his lordship again offered Captain Guise the command of any vessel in the squadron with such officers as might at the time belong to the vessel, and to those officers who had not been dismissed the service, appointments to the vacancies in the squadron, according to the recommendation of the court-martial; but Captain Guise again refused to act with any other officers than those who accompanied him, and the officers returned their appointments, with the assurance that they would only serve under the orders of Captain Guise; they therefore all returned to the head-quarters of the army, where they remained until the surrender of Callao.

At the same time that the Chilean squadron was a scene of insubordination and irregularities among those officers whose duty it was to obey the orders of their commander in chief, not only for the good of the service of Chile, but to the end that they themselves might meet with that deference and

obedience in their subalterns which constitute the very essence of military discipline, Lima was the theatre of anarchy and confusion. On the twenty-ninth of January a revolution took place in the Spanish army at Asnapugio, founded on the plea of inability in the Viceroy Pesuela to conduct the affairs of the viceroyalty, during such critical circumstances as the present. The result was, that an official communication was made to Pesuela, stating the absolute necessity of his abdication, and that it must take place within four hours. Pesuela answered, that the time specified was insufficient for him to deliver up the authority, but Cantarac, Caratalá, Valdes, Ricafort, and the other officers at the head of the insurrection replied, that the answer of his Excellency did not correspond with their expectations, and that "the troops were under arms, with all their officers, without a single exception, and that they would not lay them down until they had obtained an order to acknowledge General La Serna Viceroy of Peru, and were assured that a similar order had been given to the different tribunals and authorities. In consequence of this intimation, Pesuela issued the order, and La Serna was proclaimed Viceroy and Captain General of Peru. This change only proves the right of power, which admits of no interpretation, nor leaves any subterfuge to obedience. The similarity of the fate of the first and last of the Spanish Viceroyas as governors general is rather remarkable. The first, Don Francisco Pizarro, was murdered in his own palace at Lima, by his subaltern officers; the last, Don Joaquin de la Pesuela, was forced to abdicate his authority in the viceregal palace at Lima, by his subalterns, and to nominate an usurper as his successor. On the seventh February La Serna addressed the following proclamation to the royal troops:—

"Soldiers!—Your will and support has placed me at the head of the government of the viceroyalty!"—A declaration more rebellious than any one presented by the insurgent chiefs of America, until the conduct of the Spaniards forced them to declare their independence of Spanish domination.

On the thirteenth February Capt. Carter, in the brig of war Araucano, arrived at Chancay, with the Spanish schooner of war Aransasu, which he had taken on the ninth. The Aransasu was from Panama, bound to Callao, having on board three officers belonging to the regiment of Numancia, and several Spanish merchants, as passengers.

On the thirteenth March part of the squadron left the bay of Huacho, having on board a division of the patriot forces, under the command of Lieut.-colonel Miller, destined to cause a diversion in the Spanish troops, by landing at Pisco. This object was effected on the twenty-first; but owing to the written instructions given by General San Martin, and from which Lord Cochrane was determined not to swerve, the result was what might have been anticipated: nothing of importance to the cause of America.

After the abdication of the Viceroy Pesuela, he retired to a country residence at the small village of La Magdalena, and wishing to send his lady and family to Europe, he solicited the necessary passport of General San Martin, well knowing that they could not escape the Chilean vessels of war employed in the blockade of Callao; but the permission was refused. Lady Cochrane and family having arrived at Callao in the British frigate *Andromache*, for the purpose of seeing his lordship before she left South America for England, Dona Angela, the Vicequeen, supplicated her ladyship to interpose her influence with the general, as the only means by which she could expect to obtain leave to embark for Europe. Lady Cochrane, actuated by that sincere philanthropy which so eminently distinguishes and adorns her, went immediately to Huaura, and obtained of General San Martin the favour she solicited, on condition that her ladyship would remain on shore in Peru one month, which was agreed to; but being the "better half" of a sailor, her ladyship declined remaining at head quarters among soldiers, and spent the whole of the time at Huaito, a plantation belonging to Doña Josefa Montebanco, highly gratified with the kind and hospitable treatment of her host. The Viceroy's lady took her passage on board the *Andromache*, and Lord Cochrane was honoured by an introduction to her by Captain Sherriff. After some conversation. Doña Angela declared, that his lordship was a polite *rational* being, and not the *ferocious brute* she had been taught to consider him—a compliment which his lordship received with all due respect to her Vicequeenship.

On the return of Lord Cochrane to head quarters, it was determined by General San Martin, that a second division under the command of Lieutenant Miller should embark, and act according to the discretionary instructions of the admiral. The admiral left the bay of Huacho, and proceeded to Pisco, where some minor skirmishes took place with the enemy. The troops were re-embarked at Pisco on the twenty-second of

April: his lordship hoisted his flag on board the San Martin, and with the schooner Aransasu proceeded to Arica, where with the assistance of uncommonly favourable winds we arrived on the fifth of May.

The landing in the bay of Arica is attended with almost insurmountable difficulties; indeed sometimes it is not practicable, except on the balsas made by the natives. These are composed of seal-skins inflated: two are generally sewed together end to end, and the balsa is formed by lashing two of these side by side, laying some canes on the top. The man who manages the balsa sits astride on the aftermost part, and impels the balsa with a double paddle, broad at each end, which he holds by the middle, and so dexterous are the natives, that there is not the least danger of being upset, or even of being wetted with the surf. On these original and apparently precarious rafts, all the merchandize is landed at Arica, and all the specie brought to the vessels, except the sea be very calm and the surf run low.

Immediately on our arrival at Arica, a flag of truce was sent on shore with a summons to surrender, accompanied by an assurance that all persons and personal property would be respected, except those and such as belonged to those who by their present conduct should prove themselves enemies to the cause of South American liberty. This was answered by an assurance that the persons and property at Arica were all under the protection of the arms of his Most Catholic Majesty, whose rights would be defended by his faithful vassals against his rebel subjects and foreign pirates. Nothing was now left but to enforce obedience, and the situation in which the San Martin had anchored not being a commanding one, she was hauled nearer in shore on the sixth, and a few shells thrown over the town; but as this had not the desired effect of intimidating the enemy, a landing of the troops was determined on, and in the night a convenient place was sought for to the southward, but the search proving fruitless, part of the troops were embarked on board the schooner Aransasu, under the command of Major Soler, and ordered to proceed to the northward to Sama, to land and march upon the town. On the eighth Lieutenant-colonel Miller followed with the remainder of the troops, to join Major Soler. A few shots and shells were occasionally thrown into the town, to keep the Spanish troops on the alert as to the movements of the ship, while our troops should make their appearance on shore, which happened on the morning of the eleventh, when the whole of the inhabitants and troops abandoned the town. Captain

Wilkinson with the marines landed with considerable difficulty, and hoisted the Patriot flag on the staff at the small battery. Major Soler captured from the enemy fifty-eight thousand dollars and six bars of silver, under the protection of a guard of soldiers on their way to Arequipa.

On the fourteenth the whole of the troops and the marines belonging to the San Martin, amounting to two hundred and seventy men, under the command of Lieutenant-colonel Miller, left Arica, and marched towards Tacna, twelve leagues from Arica, where they arrived on the fifteenth, and without any opposition took possession of the town; they were here joined by two companies of infantry, who deserted the cause of the king. Lord Cochrane ordered that these should form the base of a new regiment, to be called the first independents of Tacna, and as the particular flag for the troops of Peru was not determined on at head quarters, his lordship presented them with one having a sun in the centre on a blue field.

From original papers found in the custom-house at Tacna, it appeared, that the quantity of European goods in the stores at Arica belonged to Spanish merchants residing at Lima; consequently an order was issued for their being embarked in the San Martin.

Immediately on the landing of Lord Cochrane, he called upon the inhabitants to form a civil government, for the protection of their property against many individuals who began to come into the town from the country for the purpose of plunder, assuring them at the same time, that, although they had not attended to his invitation to remain in their houses, it was not his intention to deliver up the town to be sacked, nor had he done it, but at the same time he could not be answerable for thefts committed, unless the inhabitants would assist in the protection of their houses and property, and in apprehending all suspicious and disorderly persons; he also promised them that all private property belonging to Americans, the friends of the cause of their country, should be returned if claimed, and, consequent to this promise, the schooner Dos Amigos, and other property seized, were delivered to their owners.

Colonel Miller advanced with his division towards Moquegua, and had a sharp engagement with a party of royal troops at Mirabe, commanded by Colonel Sierra, who was taken prisoner. On the morning after the

engagement, which took place in the night, another detachment of troops arrived to join the one stationed at Mirabe; but on hearing the fate of their comrades they thought it better to retreat than to enter into any dispute with the victorious troops, and their valiant leader. On the arrival of this news, and that the troops were at Moquegua, Lord Cochrane dropped down to Ilo, with the San Martin, for the purpose of being nearer to Colonel Miller's head quarters.

The town of Arica is the capital of the province of the same name; it is situated in a small valley, and stands close to the sea. It was anciently a place of considerable importance and size; but since the year 1605, when it was destroyed by an earthquake, it has gradually decreased, the more respectable inhabitants having retired to Tacna; their departure was also hastened by its being sacked in 1680 by the pirate John Warren. Arica has at present a parish church, and three poor convents, San Francisco, La Merced and San Juan de Dios. The population is composed of whites, indians and a few slaves. Owing to some low swampy ground, produced by the annual overflowings of the river and the want of proper drainage, intermittent fevers are very common here, of which many *serranos*, people from the interior, die, when they come down on business. All our people who slept on shore at Arica, including the admiral, suffered by them, and some died. The climate is similar to that of Lima, it seldom rains, but the fogs are very heavy.

The valley of Arica is small, but at the distance of a mile from the town it is pretty, owing to the relief which the eye feels when resting on vegetable productions, after being fatigued with the barren sandy scenery which surrounds the town. The principal produce of the valley is *aji*, capsicum, and olives, which are remarkably large, and finely flavoured; plantains, bananas, camotes, yucas, and other vegetables, are cultivated in the gardens, and some tropical fruits.

The town of Arica will doubtless become of considerable importance with the changes that have taken place in South America. Indeed it always would have been so, had not the colonial laws declared it a close port, *no abilitado*. It is the key to the provinces of Upper Peru, Arequipa, La Pas, Potosi, Chuquisaca, &c., being a better landing place than Ilo, Mollendo, or Quilca; it possesses also the advantage of fresh water for shipping, which is

extremely scarce at the other ports. Arica is situate in 18° 28' 40'' south latitude, and 70° 13' 30'' west longitude.

The town of Tacna stands in a very pleasant and fruitful valley, it is considerably larger than Arica, and has a much better appearance; some of the houses are large, commodious, and well furnished; thus, among other articles, I saw several piano-fortes. The principal wealth of the inhabitants consists in their large droves of mules, for the purpose of conveying the merchandize from Arica into the interior, and from some parts of Upper Peru to Lima. Tacna is to Arica what Piura is to Paita.

On the twenty-seventh of May we came to an anchor in the bay of Ilo, and immediately supplied Colonel Miller with everything that he wanted; he had removed his head-quarters from the town of Moquegua to a farm called Rinconada, judging that the climate of this place was better for his troops, as it was cooler here than in the town.

Ilo is an indifferent anchorage, and a bad landing place; the village is composed of miserable huts, and a few houses which indicate the residence of penury; a scarcity of water prevails, and consequently of fruit and vegetables. Col. Sierra and Capt. Suares were here embarked, having been sent down by Colonel Miller; but they were soon afterwards liberated at Mollendo on their parole of honour, having sworn not to act hostilely until they should be exchanged according to the regulations of war.

At the moment when Colonel Miller was about to advance into the interior, having disciplined a number of recruits from different parts of the adjoining provinces, and when everything promised a general revolt in favour of the cause of independence, he transmitted to Lord Cochrane the original communication which he had received from the governor of Arequipa, announcing a cessation of hostilities for twenty days, from the date of the receipt of the communication. This armistice was ratified by General San Martin and the Viceroy La Serna on the twenty-third of May, and sent express by the latter to Ovalle, the governor of Arequipa.

The armistice had been personally formed by the contending chiefs, who met at Punchauca, and agreed on appointing new deputies for the purpose of conciliation; they were to hold their conferences on board of a neutral ship in the bay of Callao, for which purpose the Cleopatra was chosen.

Such was the state of Lima at this period, that the cabildo addressed the following official note to the Viceroy La Serna:

"Most Excellent Sir,—No title is more glorious, nor more amiable, than that of a Pacificator. Augustus, when stifling the volcano of civil war among the Romans, and giving peace to the universe, was the greatest of mortals, and almost a God upon earth. It is the duty of every prince to imitate this example, if he be desirous of, and interested in the health and prosperity of the people committed to his guardianship. Whoever knows the great advantages and feels what it is to reign over grateful hearts, will find more charms than in the most fortunate and prosperous warfare.

"Your Excellency, placed at the head of the junta of Pacification of Peru, has gained the love, the veneration, and the confidence of this city. The hope of this great felicity has caused us to suffer with resignation, losses and privations of every class. The end of the armistice is fast approaching, and we do not yet perceive one ray of this celestial gift. Why is it so long retarded, while Lima suffers such a train of evils that fill her with consternation?

"To the distance of twenty-five leagues round the city, the most frightful devastation every where reigns. Our cattle, our grain, and our fruits are the victims of military fury. The richest and most opulent of our provinces have succumbed to the prepotent force of the enemy, and the rest are threatened with the same fate; while this suffering capital experiences the horrible effects of a rigorous blockade, hunger, robberies, and death. Our own soldiers pay no respect to the last remains of our property, even our oxen, indispensably necessary for the cultivation of the land, are slain. If this plague continue, what will be our lot—our miserable condition!

"The soldier must be supported as well as the citizen, but not to the injury of the latter: they must both be guided by the same laws, and must both be equal. Both compose the state, and the support of both is necessary; founded on the same right of nature and of society. But let us abandon these melancholy relations, and confine ourselves entirely to those of peace.

"Peace is the general wish of the people: they have laboured since the year 1815 under the grievances of war, and have not force to support it any longer. Without the money, without the provisions, without the desire, and

without the means of supporting an opposition, the people flock to the standard of General San Martin; hundreds of men leave our walls, that they may not die of hunger. A swarm of robbers infest our roads and intercept our provisions, insult us, and plunder our houses. The public speak loudly against our apathy and silence, and evils worse than those usually produced by war must soon be the result. The happiness of the capital and of the kingdom depends on peace, and this depends on the "yes" of your excellency. The corporation of Lima hopes to see it established, and promises to your excellency the constant and everlasting gratitude of the people. God preserve your excellency many years. Hall of the corporation of Lima, June 7th, 1821. (Signed) The Count of San Isidro, and all the members of the body corporate."

To this note the Viceroy gave the following answer:

"Most Excellent Sir,—Unquestionably war is the exercise of the right of force, and the most terrible of all the plagues that destroy the human species: it does not pardon even the victorious, and the most fortunate partake of its effects.

"As a philanthropist I love and desire peace; but as a soldier and a public man, I cannot accede to a peace which is indecorous: thus, if the general in chief of the invading army will agree to an armistice honourable and fair to the arms of the Spanish nation, you and every one of you may remain assured that my vote shall be for peace; but if he will not, no! for I never will assent to any thing derogatory to the honour of the Spanish nation, in which case it would be better to die than to live. I believe that these are also the sentiments of the individuals who compose the body corporate; and of this city, which is called heroic, whose inhabitants are well aware, that to deserve this epithet valour, patience and the other virtues, not common, are necessary.

"In fine, although I am at the head of the junta of pacification, in it I have only one vote, so that the corporation is deceived in supposing, that peace depends on my "yes;" but I repeat, that if it did, I would prefer war to an indecorous peace; and even supposing that preponderance which your excellency actually gives to the forces of General San Martin, you must be aware, that war is a game where more or less is risked according to the

passions of the gamblers: at one time one wins, and another loses; and when much is won, it generally happens that the winner continues gambling in the hope of increasing his store; or he who loses will not desist, in hopes of regaining what he has lost; at last fortune varies, and the winner not only loses what he had won, but also what he had when he began.

"This is what I have to say in answer to your note of yesterday. God preserve your excellency many years. (Signed) Jose de la Serna."

From the number of deserters who daily arrived at Huaura, the headquarters of general San Martin, the state of Lima was well known. The officers of the army were divided in their opinions; the cabildo in open war with the viceroy; the opinion of the people in favour of liberty; the troops dissentering or dying in the hospitals; hunger parading the streets, and every one, high and low, general and soldier, master and slave, convinced that the idea of resisting the patriot forces was the chimera of a madman. Hence it followed that when La Serna proposed to San Martin an armistice of sixteen months, under the pretence that both parties should refer the decision to the court of Madrid, the latter declined acceding to it.

Notwithstanding the favourable appearance of things, the army of San Martin was tired of their inglorious inaction, knowing full well that to take the capital of Peru only required them to enter it, and this opinion was supported by every new arrival from Lima. The consummate prudence of San Martin, however, did not allow him to risk the firing of a shot, lest the ball might slay "a brother;" at the same time that his Guerilla parties were actively engaged in committing all the cruelties incident to predatory warfare. But the presence of the general was not necessary in such skirmishes, nor his humanity compromised; the truth is, his person was in no jeopardy. Complaints began to be every day more loud in the army, and dissention more visible, so much so, that it became a daily task at the tables of the officers, to drink to "those who fight for the liberty of Peru, not those who write, *a los que pelean por la libertad del Peru, no los que escriben.*" San Martin, aware of the state of his army, embarked in the schooner Montezuma, in order to re-establish his health, and a prorogation of the armistice for twelve days more was ratified.

During this cessation of hostilities, his lordship dropped down to Mollendo, where a neutral vessel was taking in wheat, for supplying the city of Lima. The admiral immediately wrote to the governor of Arequipa, expressing his astonishment that neutrals should be allowed to embark provisions during an armistice, for the purpose of supplying one of the belligerents, to the injury of the other, and contrary to the Spanish colonial laws; to which the governor answered, that the whole of the wheat at Mollendo belonged to Spanish merchants residing at Lima, or Arequipa, and that no part of it whatever belonged to neutrals, and that if any had been embarked since the celebration of the armistice, it was in violation of the orders of the government, to correct which he had again issued the most positive orders against such an infraction of the stipulations of Punchauca. With this answer his lordship retired from Mollendo, but sent in a boat with a lieutenant belonging to the San Martin, to watch the actions of the enemy at Mollendo; on being assured that the embarkation of the wheat was persevered in, the San Martin returned to Mollendo on the nineteenth of June, and shipped the remainder of the wheat found on shore.

When every thing was ready for Colonel Miller to proceed into the interior, the news arrived, on the fifth of July, of the prorogation of the armistice. This with the news received from the army, through private letters, induced his lordship to equip and victual some of the prizes taken at Arica, and leave them for the reception of the troops under Col. Miller, in case of any emergency, and repair to Callao, for the purpose of learning the true state of affairs at head-quarters. We arrived at Callao on the eighth of July, 1821.

CHAPTER XI.

Lima evacuated by La Serna....Occupation of by the Liberating Army....Loss of the San Martin....Arrival of Lord Cochrane at Lima....Conduct of the Spaniards after leaving Lima....Independence of Peru sworn....San Martin constitutes himself Protector of Peru....Interview between Lord Cochrane and San Martin....Announcement of the views of the Spanish Army....State of the Squadron....San Martin takes the field....Arrival and Departure of Cantarac....Proclamation of San Martin....Treasure taken at Ancon by Lord Cochrane....Surrender of Callao....Tribunal of Purification established at Lima....Lieutenant Wynter arrested at Callao....Paroissien and Spry visit the Squadron at Midnight....Squadron leaves Callao, arrives at Guayaquil.

On the arrival of Lord Cochrane in the bay of Callao, on the eighth of July, General San Martin came on board the flag ship, from the schooner Sacramento, bringing with him the welcome news of the fall of Lima, or rather of its evacuation by the Spanish troops.

On the sixth of July, 1821, the Viceroy La Serna informed the Marquis of Monte-mira that it being convenient, he should retire with the troops under his command from the capital of Peru, leaving only a few companies of the regiment of La Concordia, militias, to preserve order and tranquillity, under the command of his excellency the political and military governor.

On the same day La Serna informed San Martin of his determination; as also that he had deposited in the castles at Callao such warlike stores as he had thought requisite for his ulterior operations, leaving the rest in Lima as he found them. La Serna solicited that such sick as he had been obliged to leave in the hospitals might be kindly treated; he requested, too, that none of the inhabitants might suffer any persecution for their past political opinions and conduct, assuring General San Martin that his conduct should be subject to every rule of reciprocity.

A detachment of horse entered Lima on the evening of the seventh, but without any orders from General San Martin, and on the eighth the liberating army took possession of the city, but the general in chief judged it most prudent to remain on board his schooner in the bay of Callao, till the night of the ninth, when he made his private entry into Lima.

On the fourteenth an announcement appeared in the ministerial gazette of Lima, that, on account of the great scarcity of wheat in the city, General San Martin had directed that two thousand fanegas, then on board the flag ship of the Chilean squadron, should be landed at the Chorrillos free of duty; and for this purpose, the San Martin was ordered to the said port, which she entered on the sixteenth: she was, however, unfortunately run aground by Captain Wilkinson, and, although every endeavour was made to save her, she was completely lost, owing to the uncommon swell of the sea at the time.

On the fourteenth a note was addressed by General San Martin to the cabildo of Lima, requesting the convocation of a general meeting, that the opinion of the inhabitants might be made public, with regard to their determination on the independence of the country. This request was immediately complied with; and on the fifteenth the members of the corporation, his excellency the archbishop, the prelates of the conventual orders, the titles of Castile, and many other individuals, met at the city hall, and the following act was signed by the whole of them:

"The general will is decided on the independence of Peru with respect to the Spanish or any other foreign domination; and to this effect let the form of the necessary oath be drawn up and administered."

On the seventeenth Lord Cochrane entered Lima amid the loudest acclamations of the inhabitants. The Marquis of Monte-mira had sent his carriage for Lord Cochrane to Chorrillos; but a deputation from the cabildo and others from different corporations having met his lordship on the road, he alighted from the carriage, and mounted a horse, brought for the occasion.

The inhabitants of Lima being desirous of seeing the naval hero of the expedition, a levee was held on the same evening at the palace, where the Admiral received the compliments of the principal personages of the city;

but General San Martin judging it more decorous to be absent when a "subaltern" received the thanks of the cabildo of Lima, and the compliments of its inhabitants, remained at la Legua, half-way between Lima and Callao, where he had established his head quarters. On the eighteenth in the morning the archbishop visited his lordship, which visit was immediately returned; when Lord Cochrane left the city to wait upon the general in chief at his head quarters.

On the seventeenth an order was published for the abolition of the Spanish royal arms in any part of the city where they had been placed; and this proclamation was accompanied by another, as follows:

"Having been informed, with great horror to my delicate sentiments, and in violation of my humane principles, that some passionate individuals vex and insult the Spaniards with threats and taunts, I order and command, that all persons who shall commit such kind of excesses, in opposition to American gentleness of manners, to decorum, and to good and rational education, be denounced to the political and military governor of the city, that, the fact being proved, he may be punished for such reproachful conduct."

On the eighteenth a civic guard was ordered to be formed, to supersede the Spanish regiment de la Concordia, and the gran mariscal Marquis of Torre Tagle was appointed colonel of it.

On the twenty-second of July a proclamation was issued, ordering that the public act of the declaration of the independence of Peru should take place on the twenty-eighth of the same month, with all the solemnity due to so memorable a transaction.

After the Spanish troops left Lima on the sixth, their march into the interior was marked with the most horrid outrages: from Lurin to Bujama, a distance of nine leagues, thirty-four dead bodies were left on the road; some had died of disease, others had been shot; and, according to the uniform statements of the deserters from the Spaniards, Colonel Rodil was the executioner of the greater part of these victims. On the thirteenth, thirty-nine sick and five dead men were found near to Bujama, and carried to a temporary hospital. From the village of Huaycan advices were received on the twenty-first that La Serna had issued an order imposing capital

punishment on every individual belonging to, or under the protection of the Spanish army, who should leave the route assigned a distance of twenty yards; notwithstanding which, upwards of three hundred deserted at Huaycan, and at Lunaguaná upwards of six hundred. In a skirmish near the latter place the Spaniards lost twenty killed, and more than fifty prisoners, and La Serna was completely surrounded in the ravine of Pilas. The efforts of the Guerilla parties in harassing the Spanish troops were constant and successful; and had a division of the liberating army been sent to co-operate with the Guerillas, it is most probable that the entire Spanish army would have been annihilated; but the whole of the army was disposed of in the barracks of Lima, or at Bellavista, where they were stationed to watch the operations of about eight hundred men, under General La Mar, in the batteries of Callao. A small division under General Arenales stationed in the province of Yauyos was ordered to Lima, and the whole of the interior was abandoned to the protection of the Guerilla parties, who had to act against the organized Spanish army, so that the towns which had declared their adherence to the cause of independence, when they believed themselves under the protection of the liberating forces, were abandoned, to experience all the rigours of their constituted enemies, the Spaniards, and thus pave the way to the state of affairs which subsequently took place in Peru.



**INDIAN MULETEER OF MEXICO.
PEDRO,**

INDIAN OF SAN

western shore of Mexico.

Engraved for Stevenson's Narrative of South America.

Lord Cochrane having retired from Lima, on board the O'Higgins, in the bay of Callao, received on the twentieth the following invitation from the cabildo of Lima:

"Lima, the capital of Peru, is about to solemnize the most august act which has been performed for three centuries, or since her foundation; this is, the proclamation of her independence, and her absolute exclusion from the Spanish government, as well as that of any other foreign potentate; and this cabildo, wishing the ceremony to be conducted with all possible decorum and solemnity, considers it necessary that your Excellency, who has so gloriously co-operated in the consecution of this highly desired object, will deign to assist at the act, with your illustrious officers, on Saturday the twenty-eighth inst."

On the twenty-eighth the procession, composed of General San Martin, Lieut.-General Marquis of Monte-mira, the staff officers of the army, the university and four colleges, the prelates of the religious orders, the military chiefs, the judges, many of the nobility, and the members of the cabildo, left the palace, mounted on richly caparisoned horses, and were followed by the body guard of the ex-viceroy, the escort of the general in chief, and the battalion No. 8, with the flags of Chile and Buenos Ayres, and proceeded to a stage erected in the plaza mayor. General San Martin ascended the stage, and displayed the national flag of Peru, pronouncing at the same time—"Peru is from this moment free and independent, by the general vote of the people, and by the justice of her cause, which God defend!"

The cavalcade then paraded the principal streets of the city, and returned to the palace where Lord Cochrane was waiting in the balcony, whence medals commemorative of the act were distributed; but even these evinced the ambition of the general, who, from the very outset of the expedition, had endeavoured to monopolize every species of credit: for this purpose, the inscription chosen for the medals was, "Lima secured its independence on the twenty-eighth of July, 1821, under the protection of the liberating army, commanded by San Martin."

On the following Sunday a solemn Te Deum was chanted at the cathedral, and high mass was celebrated by the archbishop; after which the individuals who on the twenty-eighth had formed the procession advanced separately to the high altar, and took the oath, on the sacred gospels, to "defend with their opinions, property and persons, the independence of Peru, against the Spanish government, and any other foreign power."

On the twenty-ninth Colonel Miller, having been obliged to abandon the province of Arica on the twenty-second, landed at Pisco, having increased his division to nine hundred and sixty men.

On the thirtieth Lord Cochrane reported to General San Martin, that on the twenty-fifth he had ordered Captain Crosbie to enter the anchorage at Callao, and to cut out as many of the enemy's vessels as he could conveniently bring to anchor outside the range of the batteries, which he did in the most gallant manner, bringing out the San Fernando and Milagro, the two largest merchantmen, and the Resolucion, armed as a sloop of war; besides several launches and boats, burning at the same time two hulks within musket shot of the enemy's batteries.

After the ceremony on the Sunday at the cathedral was concluded, a deputation from the cabildo waited on General San Martin, with the request, that he would take upon himself the political and military superintendence of Peru, which in the name and on the behalf of the capital they had the honor to offer to him. To this communication, with such a smile as few but San Martin can express, he informed them, that the offer was quite unnecessary, for that as he had *taken* the command he should keep it so long as he thought proper, and that he should moreover allow no juntas, nor assemblies for the discussion of public matters during his pleasure. This was an answer not very congenial to the feelings of men who had just been called on to swear, in the presence of the Almighty, to their *liberty and independence!*

On the fourth of August fresh advices of the atrocities committed by the Spaniards on their march into the interior were published at Lima; one piece of intelligence was, that at the town of Tauripampa a hospital had been formed of the church, and that at the time that La Serna left the town the doors of the church were closed, and the whole set fire to, when the

miserable soldiers who could not accompany the Spanish army were burnt to death, as well as great numbers of the inhabitants of the town in their houses, Rodil at the same time declaring, that it was more honorable for them to die than to serve in the ranks of the rebels.

On the third of August the following proclamation was issued at Lima:

"Don Jose San Martin, &c.—When I took charge of the important enterprize of the liberty of Peru, I had no other motive than a desire of forwarding the sacred cause of liberty in America, and of promoting the felicity of the people of Peru. A considerable part of this is already realized; but this work would remain incomplete, and my feelings little satisfied, if I did not establish for ever the future security and prosperity of the inhabitants of this region.

"After my arrival at Pisco I announced, that owing to the imperiousness of the circumstances, I was invested with the supreme authority, and that I was responsible to the patria for the exercise of it. These circumstances yet exist, because Peru has yet to combat with her enemies, and consequently it is necessary that the supreme command should continue in my hands.

"I hope, that because I thus act, you will do me the justice to believe that I am not induced by any ambitious views, but by public convenience alone. It is abundantly notorious, that I only aspire to retirement and tranquillity, after a life so greatly agitated as mine has been; but I hold a moral responsibility which requires the sacrifice of my most sanguine desires. The experience of twelve years of revolution in Venezuela, Cundinamarca, Chile, and the united provinces of Rio de la Plata have given me a knowledge of the evils attending the untimely convocation of congresses, while the enemy yet exists in the country; independence must first be secured; we must afterwards think of the solid establishment of liberty. The religious scrupulosity with which I have always in my public life fulfilled my promises gives me the right to be believed; and I compromise myself most solemnly with the people of Peru, that at that moment in which the territory is free, I will resign the command, to make room for such a government as they may think fit to elect. The frankness with which I speak ought to serve as a guarantee for the sincerity of my intention. I might have ordained that electors named by the citizens of the free departments should

nominate the person who was to govern until the reunion of the representatives of the Peruvian nation. The simultaneous invitation of a great number of persons of elevated character and decided influence in this capital who have requested that I should preside at the administration of the state, ensures to me the popular appointment; besides, as I had obtained the assent of the people under the protection of the liberating army, I have judged it more decorous and convenient to follow this loyal and frank conduct, which must tranquillize all those who are jealous of their liberties.

"When I have the satisfaction to deliver up the command, and to give an account of my operations to the representatives of the people, I am confident that they will not find in the epoch of my administration any of those strokes of venality, despotism, or corruption, which have characterized the agents of the Spanish government in America. To administer strict justice to all, rewarding virtue and patriotism, and punishing vice and sedition wherever it may be found, is the model by which I shall regulate my actions, so long as I am placed at the head of this nation."

After this most fascinating description of what a chief magistrate ought to be, but in which the duties of a general are not even hinted at, San Martin declares himself the Protector of Peru, and Don Juan Garcia del Rio, Don Bernardo Monteagudo, and Dr. Don Hipolito Unanue, his three ministers of state. It is almost unnecessary to say how ill this self-constituted authority agrees with the promises made by the Supreme Director of Chile in his proclamation to the Peruvians; and in that of General San Martin issued after his arrival in Peru. I merely hint at these things, that my readers may not be surprized when they find that his promises were just as binding in one case as in the other.

On the following morning, the fourth of August, Lord Cochrane, uninformed of the change which had taken place in the title of San Martin, visited the palace, and began to beg of the general in chief to propose some means for the payment of the foreign seamen, who had served their times, and fulfilled their contract. To this San Martin answered, "that he would never pay the Chilean squadron unless it were sold to Peru, and then the payment should be considered as a part of the purchase money." To this Lord Cochrane replied, that by such a transaction the squadron of Chile

would be transferred to Peru by merely paying what was due to the officers and crews for services done to Peru. San Martin knit his brows, and turning to his two ministers, Garcia and Monteagudo, who were in the room, ordered them to retire; to which his lordship objected, stating that as he was not master of the Spanish language, he wished them to remain as his interpreters, fearful that some expression, not rightly understood, might be considered offensive. San Martin now turned round to the Admiral, and said, "are you aware, my lord, that I am Protector of Peru?" "No," said his lordship. "I ordered my secretaries to inform you of it," returned San Martin. "That is now unnecessary," said his lordship, "for you have personally informed me: but I sincerely hope that the friendship which has existed between General San Martin and myself will still continue to exist between the Protector of Peru and myself." San Martin then, rubbing his hands, said, "I have only to say, that I am Protector of Peru!"

The manner in which this last sentence was expressed roused the admiral, who advancing, said, "then it now becomes me, as the senior officer of Chile, and consequently the representative of the nation, to request the fulfilment of all the promises made to Chile, and the squadron, but first, and principally, the squadron." San Martin returned—"Chile! Chile! I will never pay a single real to Chile! and as to the squadron, you may take it where you please, and go when you choose: a couple of schooners are quite enough for me: *Chile! Chile! yo nunca pagare un real a Chile! y en quanto a la esquadra, puede V. llevarla donde quiere, e irse quando guste, con un par de goletas me basta a mi;*" and snapped his fingers in the face of the Admiral. On hearing this, Garcia left the room, while Monteagudo walked to the balcony. San Martin paced the room for a short time, and, turning to his lordship, caught his hand, and said, "forget, my lord, what is past!" The admiral, dashing away the tear with which surprize and indignation had suffused his eye, replied, "I will, when I can," and immediately left the palace. His lordship was now undeceived by the man himself: the repeated reports he had heard of his past conduct crowded on his distracted imagination, and knowing what might be attempted, from what had already been done, his lordship agreed with me, that his life was not safe ashore; he therefore immediately took horse, rode to Boca Negra, and went on board his frigate.

This conversation has been denied by some of San Martin's partizans; but were it necessary more fully to substantiate the fact, the subsequent official correspondence between the protector of Peru and the admiral of the Chilean squadron would fully prove the truth of what I have stated.

San Martin, reflecting that the batteries of Callao were yet in the hands of the enemy, and that should the Chilean naval force raise the blockade, he did not possess the means of driving them out, nor of forcing them to surrender, exerted himself in conciliatory measures, heaping promise upon promise, both as to the payment of the arrears of the crews and premiums and rewards. He endeavoured to soften down his expressions of the fourth, stating that he only said, or meant to say, that "it might be interesting to Chile to sell some of her vessels of war to Peru, because this latter wanted them for the protection of her coasts." But even this subterfuge was exposed by his saying further, that "the government of Chile would at all times devote their squadron to the furtherance of the cause of Peru."

San Martin, on finding that official correspondence did not produce the desired effect of bringing Lord Cochrane to agree with him that the squadron was under his controul, even after he had assumed the supreme authority in Peru, and constituted himself an independent chief, at the head of a separate government, whose views were seemingly opposed to the interests of Chile, now addressed the following private letter to his lordship, which on account of its uncommon expressions I give in Spanish:

"Lima, Agosto 13 de 1821.—Mi Lord,—De oficio contesto a V. sobre el desagradable negocio de los buques de la esquadra, que a V. y a mi nos causa disgustos impresindibles, porque no es posible hacer quanto se desea. Nada tengo que añadir si no es la protesta que no he mirado, ni miraré jamas con la menor indiferencia quanto tenga relacion a V. yo le dije en Valparaiso que su suerte seria igual a la mia, y ereo haber dado pruebas de que mis sentimientos no han variado, ni pueden variar, por lo mismo que cada dia es mayor la trascendencia de mis acciones. No, mi lord, yo no veo con indiferencia los asuntos, de V. y sentiria no poder esperar que acabe de convencerse de esto mismo. Si a pesar de todo V. deliberase tomar el partido que me intimó en la conferencia que tubimos ahora dias, esto sería para mi en conflicto a que no podria substraerme. Mas yo espero que entrando V. en mis sentimientos, consumirá la obra que ha empesado, y de

la que depende nuestro comun destino. Adios, mi lord! se repite de V. con el mas sincero aprecio su eterno amigo. (Signed) José de San Martin."

Omitting the preamble of this letter, let us analyze the expressions from "Si a pesar: if in despite of every thing, you are resolved to observe the conduct which you intimated to me, in the conference which we had a few days ago, this would be to me a conflict from which I could not extricate myself. But I hope that, agreeing with my sentiments, you will consummate the work that you have begun, and on which depends our common destiny." The conference here mentioned, alluded to the delivery of the Chilean vessels of war to the Protector of Peru, on the condition of his paying to the officers and crews their arrears, and rewarding them according to his solemn promise made at Valparaiso, before the expedition left that port; and the agreement of sentiment cannot signify any thing more, than that Lord Cochrane should deliver up the squadron to San Martin, which would have been a most honourable "consummation of the work" to his lordship, and a most melancholy one to Chile; but *she* was to have been forgotten in the common destiny.

On the fourth of August Don Jose de la Riva Agüero was nominated President of the Department of Lima, with the authority of the ex-Intendente. On the same day the high chamber of justice, *alta camara de justicia* was established in Lima, with the powers and attributions of the ex-Audiencia. On the same day San Martin issued a proclamation, not of the most flattering nature, to Spaniards resident in Lima and the independent provinces of Peru, but which served as the precursor to his future conduct. He here repeats, "I have promised to respect your security and property, I have fulfilled my promise, and none of you can doubt my word. Notwithstanding this, I know that you murmur secretly, and some of you malignantly circulate the idea that my designs are to surprize your confidence. My name is of sufficient celebrity not to stain it with the infraction of my promises, even though it be conceived that as an individual I might fail in their fulfilment. Spaniards! you well know that the public opinion is such, that even among yourselves there are many who spy and observe your conduct; I am informed of every thing that passes, in the most retired parts of your houses; tremble if you abuse my indulgence!"

Whether the system of espionage established by San Martin was in this state of activity, like a volcano ready to burst and to destroy with its ignited lava the peaceful habitation and the innocent inhabitant, who, confiding in its harmless appearance, ventured to dwell within its destructive range, it may be impossible to determine; but it seems somewhat derogatory to the character of a supreme chief, guarded by twelve thousand armed men, that he should thus threaten two or three hundred unarmed individuals, who, relying on his assurances, had sworn to follow the fortunes of the country, and live subject to the newly-established system of government. Besides, such a manifestation was calculated to do away with the apparent object of the proclamation of the seventeenth of July, already quoted, and to fan the flame of civil discord and dissention—the greatest enemies to public tranquillity.

The twelfth of August produced the publication of the act in Lima, which in all free parts of the ex-Spanish colonies so highly distinguishes, and justifies in such a particular manner the revolution in those countries. The voice of reason and of nature announced, that all children born of slaves on or after the twenty-eighth of August, 1821, were to be free, and that they were to be inheritors of the same rights and privileges as the rest of the citizens of Peru.

On the eighteenth the news arrived, that the divisions of the Spanish army under Cantarac and Caratalá had formed their head quarters at Jauja, thirty leagues from Lima; and that La Serna was at the town of Carania on the twenty-ninth of July, advancing with the troops towards the same point. Still the liberating army remained quiet in their barracks at Lima, or were employed in the siege of Callao.

One of the first acts of the arbitrary disposition of the Protector of Peru was the expulsion of the archbishop. The following is a copy of the correspondence:

"Ministry of War, Lima, twenty-second August, 1821.—Most Excellent Sir, —Nothing is more conformable with the religious ideas of his excellency the Protector of Peru than to promote in every possible manner which prudence dictates those pious establishments which serve as a prop to public morals. But it is at the same time his duty to avoid those evils which,

under a zeal for religion, might cause a spirit of opposition to the general vote of America. In this dilemma are those houses of spiritual exercises in this city; where (his excellency has been informed) abuses of the most serious tendency to the cause of the country are committed by the venerable influence of the priesthood.

"In attention to this, his excellency the Protector commands me to inform your most illustrious excellency, that the spiritual exercises be suspended for the present in those houses, until they be placed under the direction of patriotic clergymen, who may merit the confidence of the government, who consult the spiritual welfare of the faithful, and the support of the new institutions to which his excellency is called to Peru. I have the honour, &c. (Signed) Bernardo Monteagudo."

(Answer by the archbishop.)

"Ever since the establishment of the houses of spiritual exercises they have been protected and supported by the popes and other prelates of the church, fully aware of their utility to the faithful. Those founded in this city are deserving of credit for the copious harvest they have produced, in attention to which, without scruples of conscience, and a risk of public disgust, it is impossible for me to order them to be closed. If in them any excess be committed, or any confessor should pretend to disturb the peace or public order, the moment that such is known the necessary measures shall be adopted for his punishment, which is my reply to your note of the twenty-second.—God preserve, &c. Lima, August 26th, 1821. (Signed) Bartolomé, Archbishop of Lima."

(Second note from the government.)

"Most Excellent and most Illustrious Sir,—On the twenty-second instant his excellency the Protector of Peru ordered, that you should be informed of the necessity that existed of closing for the present the houses of spiritual exercises. In that note, after expressing those religious sentiments which filled his bosom, and which he never can belie, you are informed, that it was not his intention to close them for any considerable length of time, to the detriment of the faithful, who derived from them spiritual consolation, but that it was only for the present, because this was necessary to public tranquillity. Thus his excellency observes with regret that your most

illustrious excellency resists the fulfilment of his order, and he commands me to inform you, that you are to lay aside all scruples of conscience in obeying this order of the government, and those scruples which may afterwards present themselves with respect to other orders, the fulfilment of which will be equally necessary. It is convenient that your excellency should meditate on the evils that would follow, should the most perfect harmony not exist between the civil and ecclesiastical authorities, and that you decide on that line of conduct which you intend to adopt, in the intelligence that the orders of his excellency the Protector are irrevocable. By superior order I communicate this to your excellency for your guidance, and present my sentiments of respect and veneration, &c., &c. Lima, August 27th, 1821. (Signed) J. Garcia del Rio."

(The archbishop's reply.)

"I have read with the greatest attention your note of the twenty-seventh of August, in which you communicate to me, by order of the Protector of Peru, that his excellency has observed with regret my resistance to the fulfilment of his order, to close the houses of spiritual exercises: to resist, and to remonstrate submissively are not the same thing: the first is the effect of arms and violence; the second that of veneration and respect, when the inconveniences which present themselves are expressed: in this manner my note was written. I have, moreover, other reasons for thus explaining myself—his excellency in his religious goodness had promised me that in ecclesiastical matters, and points of religion, he would agree with my opinion, to the end that nothing should be done in violation of the rules of the church.

"I hope these reflections will save me from the irksome epithet of having resisted the orders of the government, and that consequently the contents of my answer will not be read with regret. I cannot omit saying, that with the greatest anguish, and a heart swimming in bitterness, I have read that the government has several orders to give; and if to them I have scruples of conscience to oppose in their fulfilment, I decide on that line of conduct which I intend to follow, in the intelligence that the decrees which will be issued are to be immutable. This advice carries with it a very elevated spirit, if we suppose that the orders to be given should relate to religious or ecclesiastical matters; for in civil affairs, and those of the government, I

have signified my opinion by my prompt obedience: and what may those commands contain? will they in any manner violate the existing discipline of the church? will they be prejudicial to morality? or will they oppose the maxims of the gospel of Jesus Christ? Because, for these cases, God has constituted bishops as the pastors and guards of that flock which Jesus Christ purchased at the price of his blood, who are to shout, to whistle, and restrain the ill conduct: he tells us, that we are not to be cowards in the presence of the greatest potentates of the earth, and that, if necessary, we should shed our blood and lay down our lives in so just a cause; anathematising us on the contrary as dumb dogs that did not bark when the spiritual health of his flock was in danger.

"Behold, then, that one of the principal obligations of a bishop is to defend with rigour the deposit of doctrine and faith which has been confided to him; and if the threatened danger be from any great potentate, to remonstrate, with respect and submission, to the end that he be not their accomplices and participators in the crime, by a cowardly condescension. This was practised by Saint John Chrysostom, with the emperors of the east; by Saint Ambrose, with those of the west; and by Saint Augustine with the pro-consuls of Africa; those were the great lords on earth; but notwithstanding; those bishops remonstrated when they commanded any thing that might injure religion or the church; and is it possible that the supreme government of this city shall inform the archbishop that he is blindly to obey, and execute the decrees that may be given in religious and ecclesiastical matters, even though they disturb his conscience, and appear to him to be opposed to orthodox doctrines, because such decrees are to be irresistible? Oh! "irresistible decrees"—this expression appears to me to be very strong, and little used by jurists and theologians; they opine that all human authority, however great it may be, and however vast and profound its acquired knowledge, can never arrive at a degree of infallibility in its decisions; it may always be deceived or deceive: consequently its resolutions ought never to be invariable—this privilege the Supreme Being alone possesses. Fenelon and other politicians assert, that it is more glorious, and a proof of a more elevated soul in that monarch or government who, convinced of having committed an error against religion, reason or justice in their decrees, shall revoke them, than it is never to err; indeed to insist on the execution of an order, merely because it has been

given in despite of the inconveniences and obstacles that have been shown to exist; it being opposed to morality, evangelical doctrine, and the dispositions of the church, is a most oppressive yoke. With respect to myself, I can assure you, that I have often remonstrated and even exclaimed against the decrees of my superiors; who, being satisfied with the justness of my arguments, have ordered them to be revoked, or varied. When a prelate of the church speaks on spiritual or ecclesiastical points, he is worthy of being listened to, and his reasonings examined, because God himself, by his evangelist St. Matthew, says, that those who hear him hear the divinity, and that those who despise him despise the Supreme Being.

"Notwithstanding this doctrine, you say in your note that I am to obey the decrees of the government, without replying or remonstrating, because they are irrevocable; or that I choose the line of conduct I intend to adopt; this I did on the twenty-fourth of July last, when I put into the hands of his excellency my written resignation of the archiepiscopal dignity, begging his acceptance of it, for the reasons therein alleged; I also begged that he would grant me a passport to Europe by Panama, as my advanced age of eighty years, and consequent debility, would not enable me to bear the hardships of a passage by Cape Horn; his excellency acceded to my solicitude, and even promised to procure me a vessel for my passage.

"If I then made a tender of my dignity, founded on the motives there alleged, I now repeat it, adding to those causes that of not being able to exist in a country where the prelate of the church is forced to keep silence, and stifle the strongest sentiments of his conscience, and obliged to act in opposition to them—I was born to become a citizen of a celestial country; this is my only aim, and every thing that opposes it, is, to me, disgusting. I hope that as soon as possible my resignation will be accepted, that I may be relieved from a charge which has become insupportable.—Our Lord preserve your life for many years.

"Bartolomé Maria de las Heras."

"Lima, Sept. 1st, 1821."

The answer to this note set forth, that the urgency of public business did not allow time to answer with "victorious arguments" the archbishop's reasonings; but that the whole correspondence should be laid before the

public for their opinion. This, however, never took place, but the Protector accepted the resignation of the archbishop, ordering his excellency to leave Lima within the term of forty-eight hours, and to wait at Chancay, fourteen leagues from Lima, the determination of the government.

On the thirteenth of November the archbishop embarked at Chancay for Rio de Janeiro; the Protector, as in many other cases, forgetting to fulfil his promise of preparing a vessel to conduct him to Panama.

Before leaving Chancay, the archbishop addressed the following letter to Lord Cochrane:

"My Dear Lord,—The time is arrived for my return to Spain, the Protector having granted to me the necessary passport. The polite attention which I owe to your excellency, and the peculiar qualifications which adorn and distinguish you, oblige me by this measure to manifest to you my most sincere esteem and regard.

"In Spain, if God grants that I may arrive in safety, or in any other part where I may exist, I request that you will deign to command me. On leaving this country, I am convinced that its independence is for ever sealed. This I will represent to the Spanish government and to the papal see, and I will also do every thing to abate their obstinacy, and to preserve the tranquillity, and to further the views of the inhabitants of America, who are dear to me.

"Deign, my lord, to receive these sentiments as emanating from the sincerity of my heart; and command your obliged servant and chaplain, Bartolomé Maria de las Heras. November, 2nd, 1821."

On the ninth of November the bishop of Guamanga, a native of Piura, then residing at Lima, was ordered to leave Peru within eight days, without any reason being assigned for his exile, by the autocrat of Peru.

Although the Chilean squadron was at this moment of the most vital importance to the operations of San Martin against the batteries of Callao, yet the crews remained unpaid, and the supply of provisions was so scanty, that, added to the general want of clothing, they were in a state fast approaching to open mutiny, which was repeatedly made known to the government at Lima, but the knowledge of the circumstances produced no relief; it appeared as if San Martin, having failed in gaining possession of it

through the commander in chief, was determined to starve it into submission, or to drive it to some more desperate act. This his lordship reported to the government, as also, that he could not be answerable for the conduct of those serving under him, unless the government fulfilled their part of the contract.

On the seventeenth of August a decree appeared in the ministerial gazette, ordering, that one-fifth of the duties collected at the custom-house should be applied to defray the arrears and to the pay of the army and navy. Instead of quieting the crews, this news drove them almost to desperation, for although they were not aware that the money assigned them was absolutely incompetent to supply the deficit, yet the idea, that even when the time had arrived for the fulfilment of the promise made to them before leaving Valparaiso, a new promise was made to them, the fulfilment of which must depend on the receipts of the custom-house, was incomprehensible to men whose only argument is, you owe me money, and you must pay it me. The same decree also stated, that the officers belonging to the Chilean squadron were equally officers of Peru, and were to be considered as such: yet this step was taken without ever consulting the will of the said officers; and certainly had they accepted the honourable distinction, it must have been at the expense of their oath of fidelity to Chile; but the object was to induce them to consider themselves subject to the order of the Protector of Peru, for the purpose of forming a plan yet in embryo.

The Spanish army at Jauja, in the beginning of September, spread some alarm in Lima, from advices received of their movements. It appeared that they were determined to attack the capital, and on the fifth the following proclamation was issued at head quarters, by the Protector of the liberty of Peru: "Inhabitants of Lima! It appears that the justice of heaven, tired of tolerating for so long a time the oppressors of Peru, now guides them to their destruction. Three hundred of those troops who have desolated so many towns, burnt so many temples and destroyed so many thousands of innocent victims, are at San Mateo, and two hundred more at San Damian. If they advance on this capital, it will be with the design of immolating you to their vengeance; and to force you to purchase at a high price your decision, and enthusiasm for independence: vain hope! The valiant who have liberated the illustrious Lima, those who protect her in the most difficult moments, know how to preserve her against the fury of the Spanish

army. Yes, inhabitants of this capital, my troops will not abandon you; they and myself are going to triumph over that army which, thirsty of our blood and property, is advancing, or we will perish with honour, for we will never witness your disgrace. In return for this noble devotion, and that it may receive the favourable success of which it is worthy, all we require of you is, union, tranquillity and efficacious co-operation; this alone is necessary to ensure the felicity and splendour of Peru.—San Martin."

The night before this proclamation was published, the Protector rose from his seat at the theatre, after the performance was concluded, and in words similar to those contained in the proclamation, spoke to the people; the greatest enthusiasm was displayed, and the national hymn was sung three times by all present, when the Protector retired, and was followed to his palace by the music and an immense concourse of people.

On the seventh the army under San Martin took the field at Mansanilla, to the eastward of Lima; the Protector occupying the farm house of the same name, about a league from the city. All the Spaniards residing in Lima were immediately collected in the convent of La Merced, to prevent any insult from being offered to them; but a false alarm being given to the inhabitants, that the Spanish troops were about to enter the city, they immediately surrounded the convent, where they were with difficulty prevented from entering and putting the Spaniards to death. After order had been restored, the prisoners were sent down to Ancon, and placed on board two of the transports lying there at anchor. The state of Lima on the seventh was the most evident proof of the determination of the inhabitants to defend their city; men, women, and children of every age, colour, and condition, paraded the streets with such arms as they could procure; these however were very useless ones, for San Martin had collected the arms belonging to private individuals a few days after his arrival in Lima. Many persons had carried to the tops of their houses quantities of stones, while others prepared pans and wood, for the purpose of heating water, and all were determined to give a *warm* reception to the enemy, should they enter the streets of Lima.

On the evening of the ninth, Lord Cochrane received on board the O'Higgins an official communication, informing him that the enemy was under the walls of Lima, and repeating the request, that his lordship would send to the army every kind of portable arms then on board the squadron, as

well as the marines, and all volunteers; because the Protector was "determined to bring the enemy to an action, and either conquer or remain buried in the ruins of what *was* Lima." This heroic note, however, was accompanied by a private one from Monteagudo, containing a request, that the boats of the vessels of war might be kept in readiness, and a look out on the beach of Boca Negra, for the service of those who might escape, in case of a defeat.

On the morning of the tenth Lord Cochrane, believing that at such a moment the mind of San Martin would be too much employed with public affairs to think of private resentment, and that he might partake in the glories of the day on shore, landed at Boca Negra; but not wishing to pass through the capital, he chose the road leading to La Magdalena, for the purpose of crossing the fields to head quarters at Mansanilla. Passing near some mounds of earth, called las huacas, three officers on horseback were observed standing on one of them, and his lordship, supposing them to belong to the American army, would have gone and asked them the news; but as there was no opening in the tapial, or wall-fence, we rode forward and took a path leading across the fields, about three hundred yards from the mounds. His lordship would not then return, but said to Capt. Crosbie, let us haste to head quarters; when, on looking to the right, we saw the Spanish infantry defiling into the lane, about five hundred yards from us; Lord Cochrane immediately pressed forward to San Martin's camp, where being immediately recognized by several officers, a murmur of congratulation was heard, and even Guise and Spry exclaimed, "we shall have some fighting now the Admiral is come." General las Heras, acting as general in chief, saluting the Admiral, begged of him to endeavour to persuade the Protector to bring the enemy to an action. His lordship then rode up to the house, and alighting, was received by San Martin. Lord Cochrane immediately took the Protector by the hand, and in the most earnest manner entreated him to attack the enemy without losing a single moment; his entreaties, however, were in vain, the only answer he received was, "my measures are taken, *mis medidas están tomadas*." Notwithstanding this apathy, his lordship remonstrated, stating the situation in which he had not five minutes before observed the enemy's infantry, and begged of the Protector to ascend an eminence at the back of the house, and convince himself how easily the victory might be obtained; but he only

received the same cold reply, "mis medidas están tomadas." At this instant the clamour of the officers in the patio of the house roused San Martin; he called for his horse and mounted. In a moment all was bustle, and the anticipated glow of victory shone in every countenance; the order "to arms" was given, and instantly obeyed by the whole army, which amounted to about twelve thousand men, including the Guerilla parties, all anxious to begin the fight, and all determined either to conquer or to die. The Protector beckoned to the Admiral and General las Heras, who immediately left the group of officers with whom they were conversing, and rode up to the Protector, hoping that he was either about to consult them respecting the attack, or to inform them how it was to be conducted—but, at this moment, a peasant entered the patio, and walked towards San Martin, who with most unparalleled composure lent an attentive ear to his important communications. He told the Protector of the liberties of Peru, that on the preceding day he had seen the enemy, that they were a great many, but that he did not know their exact number, not being able to count them. These and other such important advices were received; his excellency also questioned him as to his situation in life, and the particular employment he followed; whether or not he was married, how many children he had, and other things equally interesting to a general, when the enemy was in sight. As an irrefragable proof of the patriotism of this Peruvian peasant, he took from his pocket a piece of dry bread, and assured his excellency that he had travelled from his home to Mansanilla, to report what he knew of the enemy without having tasted it; this was an opportunity not to be lost, in which the greatness of the hero of South American independence might display that coolness in the face of an enemy so peculiarly characteristic of great men; he praised the patriotic virtues of the peasant, and promised him his protection. The Admiral being disgusted with this mummary, and highly exasperated at so unnecessary a waste of time, half unsheathed his sword; he bade the peasant be gone; adding, "the general's time is too important to be thus employed in listening to your fooleries." At this indecorous interruption, San Martin frowned (as when he chooses he *can* frown) on the Admiral, and riding up to the door of the house he alighted, went in and gave audience to some old women who had come to solicit the discharge of their sons or nephews, to all whom his excellency listened with his accustomed dignity and condescension.

Lord Cochrane and a great number of the officers again ascended the hill at the back of the house, and his lordship afterwards requesting a private conference with San Martin, (which was the last time he ever spoke with him) he assured him that it was not too late to attack the enemy; he begged and entreated that the opportunity might not be lost, and offered himself to lead the cavalry; but to all this he only received the cold reply, "I alone am responsible for the liberties of Peru, *yo solo soy responsable de la libertad del Peru*;" when the Protector retired to an inner apartment of the house, to enjoy his customary *ciesta*, afternoon nap, which was however disturbed by General las Heras, who came to receive orders, and inform his excellency that the army was still under arms. San Martin observing that it was four o'clock, the supper hour for his soldiers, ordered that they should receive their rations.

When San Martin assured Lord Cochrane that "he alone was responsible for the liberty of Peru," his lordship, convinced that any future attempt would be attended with the same success, mounted his horse; but Captain Crosbie, still hoping that something would take place, requested permission to remain at head quarters, which being granted, we rode down to Boca Negra, and embarked.

The British ship of war the *Superb* was at this time in the bay of Callao, and several of the officers, expecting to see the decisive blow struck in Peru, repaired to San Martin's head quarters, and were astounded at the coolness of a general, who, commanding twelve thousand men, should first abandon a favourable position in which he might have intercepted the march of the Spaniards, and then see an enemy composed of three thousand two hundred men pass without any hinderance, nay, without a single shot being fired, or without one attempt being made to bring them to action.

After Cantarac had led his troops into the batteries of Callao, in a manner that would have done honour to a Napoleon, the rejoicing was announced by the firing of guns, and other demonstrations, which would have harassed the soul of any leader, excepting that of the prudent San Martin. The American army marched to their old camp at the Legua, between Lima and Callao.

On the morning of the eleventh, Don Fernando Maso, who had been permitted by Lord Cochrane to land at Callao from the English brig Colonel Allen, came on board the O'Higgins, and asked his lordship, "if on the preceding day he had observed some officers on the huacas?" "Yes," returned his lordship. "They were," said Maso, "General Cantarac and his two edecans." Thus it was evident, that had the admiral rode up to them, as he at first intended, he would in all probability have been taken prisoner, for neither himself nor any one with him had any other arms than their swords. On the evening of the eleventh Lord Cochrane received an official communication from San Martin, stating, "I have taken such measures, that not one of the enemy can escape; by shutting themselves up in the batteries of Callao, they have delivered themselves up to me, and not one of them shall escape." But, to the surprise of all unacquainted with the consummate prudence of the Protector, Cantarac left the batteries on the seventeenth early in the morning, and having crossed the Rimac, marched without any molestation into the interior; nothing was done or attempted, except that eight hundred men were ordered to follow him and harass his rear, and protect such soldiers as might desert.

Thus General Cantarac, with three thousand two hundred men, passed to the southward of Lima, in sight of the protecting army of Peru, composed of twelve thousand, entered the batteries of Callao, where he refreshed and rested his troops for six days, and then retired, taking with him arms and treasure, and retreating with his booty on the north side of Lima, leaving the victorious San Martin to publish the following proclamation, which appeared in the ministerial gazette on the nineteenth:

"It is now fifteen days since the liberating army left the capital, resolved not to permit that even the shadow of the Spanish flag should again darken the illustrious city of Lima. The enemy haughtily descended the mountains, filled with the calculations they had formed in their ignorant meditations; they fancied, that to come and to view our camp was enough to conquer us; but they found valour armed with prudence; they acknowledged their inferiority; they trembled at the idea of the hour of battle, and profited by the hour of darkness; [from eleven to three o'clock in the day!] and they sought an asylum in Callao. My army began its march, and at the end of eight days of uncertainty, the enemy has had to fly precipitately, convinced

of their impotency to try the fortune of war, or to remain in the position which they held.

"The desertion which they experience ensures us, that, before they reach the mountains, there will only exist a handful of men, terrified and confounded with the remembrance of the colossal power which they had a year ago, and which has now disappeared like the fury of the waves of the sea at the dawn of a serene morning. The liberating army pursues the fugitives; they shall be dissolved or beaten. At all events the capital of Peru shall never be profaned with the footsteps of the enemies of America: this truth is peremptory: the Spanish empire is at end for ever: Peruvians, your destiny is irrevocable; consolidate it by the constant exercise of those virtues which you have shewn in the epoch of conflicts. You are independent, and nothing can prevent your being happy, if you will it so to be. San Martin."

It would be an act of injustice not to mention here, that General las Heras, wounded to the very soul at the conduct of San Martin, which cannot possibly bear any other epithet than that of cowardice, left the service of Peru, or rather of the Protector of Peru, and requested his passport to Chile, which was granted. His example was followed by several officers of the army, who, disgusted with what had taken place, preferred obscurity, and even poverty, to that odious title which every true soldier and patriot detests.

Had the force under General Cantarac been attacked, it must have been beaten: the inferiority of it in every point, except discipline, ensured success to the patriot arms: these were treble the number of the enemy, fresh, vigorous, and enthusiastic; enjoying the opportunity of choosing the most advantageous positions, and in sight of the capital of the country, whose liberty they had sworn to defend; while the Spanish division was harassed with a long march, without any personal incitement, and nothing before them but the prospect of a few days' rest, and a return to the interior, in which they knew, that beside the ground they trod on, no one in that part of the globe acknowledged their domination, or obeyed their commands. If it be asked, who is blameable for this dereliction of duty to the cause of American liberty? I must answer, San Martin! The Spaniards themselves confess, that had the division under Cantarac been destroyed on the tenth of September, they should have lost all hopes of re-conquering the country,

and should have immediately negotiated in the most honourable terms possible for themselves, and abandoned America. Consequently, the torrents of blood which have been shed in Peru since the tenth of September, 1821; the miseries and privations of thousands in that portion of the new world; the disaffection of the natives to the just cause of their country, and their services to their Spanish leaders; the necessity of an army from Colombia to save Peru from an ignominious subjection to her ancient oppressors; all owe their origin to the success of the Spanish division on this day, which, although they obtained no decisive victory, accomplished the object which brought them from the interior.

Fearing a reverse at Lima, on the approach of the Spanish troops under General Cantarac, the treasures belonging to the government, as well as the property of many individuals, had been sent down to Ancon and embarked, not on board the Chilean frigate Lautaro, then at anchor in that port, but in several merchant vessels, to prevent them falling into the hands of the enemy. On the fifteenth of September Lord Cochrane received a letter from Captain Delano, who commanded the Lautaro, informing him that the state of insubordination in the remains of the crew of the Lautaro had risen to a very high pitch; for they observed the daily embarkation of money in the different merchant vessels, and this indicated, as they supposed, the jeopardy in which San Martin was placed with the army; that they saw no probability their arrears would ever be paid; that should the enemy be successful they would be constrained to continue in the service, under a prolongation of the sufferings they had already experienced; and that on this account he dreaded a mutiny, and consequent plunder of the vessels in the bay.

On hearing this Lord Cochrane went down to Ancon in the O'Higgins, and personally, before witnesses, sent on board the flag ship all the treasures found on board the different vessels, belonging *apparently* to the state of Peru, leaving all such as had been embarked by individuals, having the customary documents, and for which his lordship took the necessary certificates to prove that such sums had remained untouched. His lordship at the same time informed such persons as claimed any property, and many others at Ancon, that his only object was to possess himself of such money or treasures as belonged to the government of Peru; and that whatever belonged to private individuals should be restored, on application being

made by the owners; as was the case with Dr. Unanue, Don Juan Agüero, Don Manuel Silva, Don Manuel Primo, and several others. After having given up all the claimed money, two hundred and eighty-five thousand dollars remained on board the flag ship. They were immediately applied to the payment of one year's arrears to every individual excepting the Admiral, who declined receiving any part of what was due to him; the surplus was reserved for the repairs of the squadron, and its equipment, and the most rigid account was kept of the several disbursements, and given in to the Chilean government.

After the return of his lordship to Callao, a long correspondence took place with San Martín respecting the property taken at Ancon. The General requested, and entreated in the most urgent terms the restoration of the treasure, promised the faithful fulfilment of all his former engagements, and that the return of this money was merely insisted on to save the credit of the government. The Admiral answered, that the means for the fulfilment of his engagements were now ready, and that by sending a commissioned officer on board to be a witness to the proper distribution; that this being public would certainly save the credit of the government with those individuals to whom it was most indebted, and that the landing of the money would only be an increase of labour, because the persons to whom it was due were not on shore.

San Martín then asserted, that the money taken at Ancon was all that the government was in possession of, for the most indispensable daily expenses; but to this his lordship replied, that had he known that the treasure placed on board the schooner Sacramento, for the admission of which, in silver, the captain asserted that he had to throw overboard part of his ballast, besides seven surrones (bags made of hide) of doubloons, and a quantity of brute gold, was not the property of the government but of his excellency, he should certainly have seized it, and retained it until properly claimed. San Martín, after availing himself of every possible argument with the Admiral, addressed a proclamation to the seamen and marines, which by his lordship's order was distributed on board the vessels of war; but producing no favourable effect, the Protector, knowing that the payments had begun, wrote to the Admiral, saying that "he might employ the money as he thought most proper."

After the departure of Cantarac from Callao on the seventeenth, Lord Cochrane was informed of the state of the batteries, and proposed to the Governor General La Mar terms of capitulation; they were, that the fortifications of Callao should be surrendered to the Chilean flag; that one third of the private property in the batteries should be given up, for the purpose of paying the arrears of the crews of the Chilean vessels of war; that the owners should be allowed to leave the batteries with the remainder, and that at their own expense vessels should be procured to carry them either to Europe or to any other place.

When these terms were on the point of being acceded to, the Protector (who had also been negotiating with the governor) was informed of the terms offered by the Admiral; and on the morning of the twentieth Colonel Guido was commissioned to accede to such as General La Mar should propose, which were naturally the most honourable and most profitable to the Spaniards. At ten o'clock on the morning of the twenty-first the American troops entered the castles, and the Peruvian flag was hoisted. On the same day the name of the Real Felipe was changed into that of Castilla de la Independencia; that of San Miguel, into Castillo del Sol; and that of San Rafael into Castillo de Santa Rosa.

Although the tribunals of purification, established by General Caratalá in Upper Peru, and in Chile by the President Marco, had been so oppressive, and had been so reprobated as unjust and tyrannical by the Americans, one was established in Lima by San Martin on the twenty-seventh of September, for the purpose of examining the past conduct of the Spaniards, who relying on the promises repeatedly made by San Martin, had remained in Peru, and taken the oath of independence. This proceeding was aggravated on the twenty-seventh by a proclamation, stating that "no Spaniard should leave his house, under any pretence whatever, after sunset (oraciones) under the penalty of confiscation of his property, and exile from the country:" some few exceptions however were added to this protectoral decree.

The foreign seamen who were all paid at Callao, except the crew of the Valdivia, who deserted their ship at Ancon, preferring a reliance on the promises of San Martin to the certainty of being paid out of the money taken for this purpose, were allowed to go on shore, and after waiting for a few days his lordship sent Lieutenant Wynter to engage such as were

willing to continue in the service of Chile, when, to the utter astonishment of every one, he was arrested by the order of San Martin, and sent to the castle, but owing to the energetic official communication of the Admiral he was liberated on the following day.

The same persevering spirit to destroy the Chilean squadron was still visible in the conduct of the Protector of Peru. Every officer who abandoned the vessels of war was received under the flag of Peru, and many were promoted, amounting in the whole to sixteen, being four captains, three lieutenants, two masters, three pursers, two officers of marines, and two surgeons; besides the captains of the Valdivia and Galvarino, with five officers belonging to the former. The seamen who had been paid were allured to remain on shore, in hopes of the year's pay as a premium; and when an officer from the very vessels of war whose co-operation had placed San Martin at the head of the Peruvian government went ashore for the purpose of recruiting foreign seamen for the future operations of the squadron, against the two Spanish frigates still in the Pacific, he was incarcerated. But the most infamous transaction that can possibly blacken the character of a ruler took place on the night of the twenty-sixth.

At midnight Lord Cochrane was informed that Colonel Paroissien and Captain Spry had been on board the brig of war, Galvarino, and shortly afterwards Captain Simpson of the Araucano came on board the flag ship, and delivered to his lordship the paper which he had received from these two honourable gentlemen; stating, that the squadron of Chile was under the command of the General in chief, and not under that of the Admiral, who was an inferior officer in the service; and that, consequently, it was the duty of the captains and commanders to obey the orders they might receive from San Martin. After leaving the Araucano, the two edecanes, military and naval, went on board the Valdivia, where they found Captain Crosbie of the flag ship, on a visit to Captain Cobbett of the Valdivia.

After delivering to Captain Cobbett a paper similar in import to the one left with Captain Simpson, the two gentlemen began to expatiate on the munificence and liberality of their employer; the preference which an officer ought to give to the service of a rich and extensive state to that of Chile, which must necessarily dwindle into its former insignificance, and become tributary to Peru for its support; that the authority of the Protector

of Peru over the whole of the Chilean forces was unquestionable, and it consequently became the duty of every officer belonging to the expeditionary forces to obey the orders of their general in chief. On being asked, if, for disobedience of orders or mutinous conduct, they should subject themselves to a court martial by the order of the Admiral, whether the authority of the Protector would ensure to them a favourable sentence or an honourable acquittal, they became silent. This was bringing the argument too close, and perhaps the idea of a trial and a sentence were not very congenial to the feelings of the nocturnal commissioners, at that time "in or belonging to" the squadron of Chile. Perceiving that the result was not likely to answer their expectations, and that Captain Crosbie had left them on board the Valdivia and gone to the flag-ship, they judged it more prudent to visit the Admiral, than to run any risk of being compelled to do it. At one o'clock the boat came alongside, and Colonel Paroissien requested an interview with his lordship, which was granted; but Captain Spry justly thought himself more secure in the boat, and remained there. After some extraordinary conversation between Lord Cochrane and Paroissien, who regretted and lamented in the most pathetic manner, "that the present unlucky difference between the two chiefs should deprive his lordship of the enjoyment of the command of the Peruvian navy, (which did not exist) and the possession of property in Peru, which it was the intention of the Protector to present to him," his lordship put a stop to the harangue, and said, smiling, "I do not doubt your wishes for my prosperity, Paroissien, but at present I know you would rather join me in a bottle of wine than be obliged to continue in your regret and lamentation." After drinking a glass or two of wine, Colonel Paroissien embarked in his boat and pulled ashore, more happy no doubt when under the guns of the batteries of Callao than alongside the O'Higgins.

San Martin having failed in this last honourable attempt to seduce the officers belonging to the state of Chile, and fearing that the publicity of the act might induce the people of Peru to be on the alert, ordered Lord Cochrane, in the most peremptory manner, to leave the bay of Callao, with the vessels under his command, being persuaded, that, for want of European seamen, it would be impossible to do so; but on the sixth of October, eight days after his notification, the whole of the vessels of war, with two prizes, weighed simultaneously, and stood out of the bay.

Having come to an anchor at Ancon, his lordship ordered the Lautaro and Galvarino to proceed on the eighth to Valparaiso; and the O'Higgins, Independencia, Valdivia, Auracano, and prizes San Fernando and Mercedes weighed and sailed for Guayaquil, where the Admiral had determined to repair, and refit for a cruize on the coast of Mexico, in search of the two Spanish frigates.

On the fifteenth we reached the Puná in the river Guayaquil, and on the eighteenth came to an anchor close to the city, where the squadron was saluted with twenty-one guns, and the compliment was returned with an equal number.

CHAPTER XII.

Revolution and State of Guayaquil....Squadron leaves....Island of Cocoa....Bay of Fonseca....Visitors from the Shore....Leave Fonseca....Volcano....Arrive at Acapulco....General Waevell and Colonel O'Reilly....Letter from Iturbide....Leave Acapulco....Description of....Gale of Wind off Tehuantepec....Tacames or Atcames....News of the Enemy....Arrive at the Puná....Guayaquil....Lord Cochrane hoists the Chilean Flag in the Vengansa....Conduct of the People at Guayaquil....Treaty with the Government....Letter from General La Mar....Leave Guayaquil, and arrive at Huambacho....Callao.

Guayaquil, early in the morning of the ninth of October, 1820, effected her glorious revolution. The officers belonging to the Peruvian garrison, and many of the principal inhabitants, had, during the preceding night, formed the plan, and at daybreak the governor and several other Spaniards were embarked on board the schooner Alcance, and sent to the head quarters of the army under General San Martin.

During the first month after the revolution Guayaquil experienced the oppression of its governor Escobedo, who, being at the head of the military force, constituted himself the supreme political and military chief; but the cabildo circulated the necessary convocation for a meeting of the deputies of the different towns: they met, and Escobedo was deposed, and sent to San Martin's head quarters. A Junta was now formed of three individuals, by the general vote of the deputies; at the head, as president, was placed Dr. Olmedo, the other two being Ximena and Roca, who were governing the province on our arrival; but the people were very much divided in their opinions. Some were in favour of an incorporation with Peru, under San Martin; others with Colombia, under Bolivar; while a third party were equally loud in favour of absolute independence, and seemed to support their opinions with the most solid arguments.

A division of the Colombian army was stationed, at this time, at Babaoyo, commanded by General Sucre, with the view of invading Quito as soon as the season should permit; yet, excepting such troops as had been sent from Guayaquil, and placed under the command of General Sucre, the armed force was under the direction of the government; but the fear of being invaded by the Spaniards under Aymerich, the president of Quito, was very visible, and, as a defence to the city, a large fosse had been cut to the northward of Ciudad Vieja.

The arrival of the Chilean vessels of war gave the government of Guayaquil an opportunity of addressing themselves to the Quitenos, "assuring them, that Peru was entirely free, and that the liberating naval force had arrived at Guayaquil for the protection of that part of the new world." This was a ruse de guerre not uncommon in the new world, and under similar circumstances practised even in the old. On our arrival General Sucre sent Colonel Ibarra to compliment Lord Cochrane, as the hero of the Pacific, the magnanimous supporter of Colombian liberty.

The repairs of the vessels of war being completed so far as they could be, on the first of December we left Guayaquil, but to our great annoyance we found, that the leak in the O'Higgins was as bad as ever; indeed, such was the state of this frigate, that ever since our arrival at Pisco a hundred and fifty men had been constantly kept at the pumps.

It may be asserted, that no expedition ever left port under such peculiarly disadvantageous circumstances as the present. The flag-ship was as rickety as an old basket; indeed it need only be told, that she was a Russian built fir vessel, nine years old, and was one of those presented by the Emperor to the King of Spain. Scarcely a bolt could be found that was not loose, her foremast and bowsprit were both rotten in the step, the dry rot had taken possession of the greater part of her timbers; and, it may be added, her crew was composed of every thing but sailors; for we had only thirteen men on board who could be said to merit the name, especially if we except the officers. Such was her state, that when his lordship was asked at Guayaquil, by a gentleman, if he would come into action with the Spanish frigate Prueba?—"yes," he answered, "I will lay the O'Higgins alongside the Prueba, and tell our crew that on board the enemy there are no pumps; this will be quite sufficient to secure the victory." The crews of the

Independencia, Valdivia, and Araucano were composed of the same materials as that of the O'Higgins. They had just a sufficient number of seamen to steer them, natives of different parts of America, marines and runaway negroes, with about half their complements of officers; yet such was the persevering spirit of the Admiral, and such his determination to extinguish the last remains of the Spanish naval force in the Pacific, that his only wish was to come to close quarters with them.

Having left the Guayaquil river, we touched at a small port in the province of Guayaquil, called Salango, where we watered the ships, not having done this before because his lordship wished to drop down the river as light as possible; besides, at the Puná it is very difficult to procure a sufficient quantity of *good* water. On the eleventh, we reached the small island of Cocos, so called from the abundance of palms which grow there. Lord Cochrane landed, and a Felucca hove in sight; a signal was immediately made to the Valdivia to chase, and having captured her, she proved to be a deserter from Callao. The men on board informed his lordship, that after the departure of the Chilean vessels of war, San Martin not only objected to pay them their arrears, even those who left the Valdivia at Ancon without the year's pay given to the rest, and the reward or premium promised, but the foreign seamen at Callao, who had served in the Chilean fleet, were pressed into the service of Peru.

The felucca had been thus manned and sent to the Chorillos, to prevent all kinds of smuggling; but she had taken up a cargo of contraband goods, part of which were still on board. When the captain was on shore, the crew rose and took possession of the vessel, which they immediately named the Retaliation, and went to sea. Their pretence was, that they were in search of the squadron; this was ridiculous; but as they had committed no depredations his lordship did not feel himself justified in punishing them, but allowed them afterwards to escape from the vessels of war. On the fourteenth we made the coast of Mexico, the leak of the O'Higgins increasing daily, and on the nineteenth we fortunately entered the bay of Fonseca or Amapalla, with five feet water in the hold, the pumps choaked and worn out, without a carpenter on board, without buckets to bale her, and without a cooper; some beef casks were slung, and by using every exertion, the frigate was brought to an anchor under a small island in the bay. Two pumps were now taken out of the Valdivia, but they proved to be too short

for the O'Higgins. Under these circumstances his lordship ordered two holes to be cut through her sides, on a level with the birth deck, and two old pumps were placed in them to carry off the water. She was thus kept from sinking; but on examining the magazine a great part of the powder had been damaged by the water, and the remainder was taken on shore and exposed in the sun to dry.

While at anchor here, a canoe came to the island, having two indians on board, and a young man of a respectable appearance, who informed me, that every thing was in the most perfect state of tranquillity in Mexico, and all under the regularly established royal authorities. The fact was, the young man had been sent from San Miguel, to learn who and what we were; but of this, by order of the Admiral, I kept him ignorant, and he began to fear, on hearing the Spanish language spoken, that ours was a Spanish force sent from Manilla. After conversing a considerable time, and having been repeatedly assured by him that all was under the kingly authority in Mexico, I asked him why he bore the tri-coloured ribbon in his hat; he blushed, hesitated, and then said, "it is too late to deceive you, the whole of Mexico is independent of Spain; Mexico declared its independence on the thirteenth of June last, Guadalajara on the fourteenth, Tepec on the seventeenth, and San Blas on the nineteenth; the provinces of Guadalajara, Tlascala, Guanajuato, Puebla, Zacatecas, Oajaca, Valladolid, Bajio, Purnandia, and Vera Cruz, have also declared themselves independent of the capital."

All things being ready, we left the bay of Fonseca on the twenty-eighth of December, and on the following night and the five successive ones, we were delighted with the sight of a volcano in its greatest state of activity. The streams of ignited lava rolled down the sides, and at intervals enormous masses of fiery matter were thrown into the air, and falling on the sides of the mountain rebounded and fell to the bottom.

We calculated that our distance from the mountain was about thirty miles; we were sometimes nearer to it. From its situation we conceived it to be San Miguel el Viejo, but of this were not quite certain. We sailed along the coast, which is generally very bold; in some parts the forests extend to a considerable distance from the sea side, and near to the coast are a great abundance of coco-nut palms; from some of them we procured nuts, but they were very small, perhaps from a want of salt at the roots of the trees.

This supposition is founded on the fact, that I have seen at different places, where the palms do not grow near the sea, that the proprietors had occasionally put a quantity of salt to the roots, without which they produced no fruit. In other parts the coast was intersected with small ravines, having generally a stream of water in each, and some few huts were scattered about on the sides. At one of these places, called San Pedro, two indians came on board in their canoe, and brought us some eggs and capsicum pods; for which they were presented in return with biscuit and tobacco, and they seemed highly pleased with the exchange. They were both of them low in stature, but very muscular; their features and complexion much resembling those of the indians on the coast of Peru; but they could neither of them speak a word of Spanish, nor could we understand any part of their dialect.

On the twenty-seventh of January, 1822, we made the mouth of the port of Acapulco, where we found the brig *Araucano*, and schooner *Mercedes*; the former having been sent ahead to watch the entrance to the harbour, and the latter to Realejo to obtain information respecting the Spanish frigates; but unfortunately no intelligence had been received, except that they had sailed from Acapulco on the third of December, with a secret destination. On the evening of the same day we entered and came to an anchor, and his lordship was honoured with a visit from a deputation sent by the governor in the name of his most serene highness Don Agustin de Iturbide, then President of Mexico; and of the bishop of Guamanga, who had been exiled from Peru by the Protector, San Martin, and who fortunately had been appointed by the government of Mexico to the see of Puebla de los Angeles, having exchanged a bishopric of twelve thousand dollars a year for one of forty. The President Iturbide had been apprized of the arrival of Lord Cochrane on the Mexican coasts by General Waevell and Colonel O'Reilly, two officers whom the government of Chile had promoted, and to whom they had given passports, judging that their services to the state were not tantamount to their pay.

When at Guayaquil we met with these two gentlemen. They had impressed the government with the hoax, that they were ambassadors from Chile to the newly-established authorities in Mexico; but unfortunately the dates of their passports by the Chilean government were prior to the news of the establishment of the new authorities in Mexico. After this anachronism was discovered. Lord Cochrane requested the government to close the port until

the Chilean vessels of war should be ready to sail, to which they agreed: this was done to prevent any intelligence being given to the common enemy. The ambassadors remonstrated, and the government, not wishing to offend that of Chile, was intimidated; but, when Lord Cochrane requested that they would shew their credentials, the whole hoax became public. Owing to our delay on the coast they had arrived first at Acapulco, and, in revenge for the disclosure made at Guayaquil, they had reported both by letter and personally to the Mexican government, that Lord Cochrane had possessed himself, in a mutinous manner, of the Chilean squadron, plundered the vessels belonging to the government of Peru, committed innumerable piracies at sea, and was coming on the coast of Mexico to repeat such atrocities; however, at Amapalla I met with her excellency Doña Gregoria Gainsa, the lady of the present Captain-general of Guatemala, who was at Guayaquil when the disclosure was made, and when I informed her that I suspected they would arrive first, her husband had reported the whole of the transaction to the Mexican government. The information given by Waevell and O'Reilly had, to our surprize, when we arrived at Acapulco, caused the fort to be strictly guarded, and afterwards a subsequent reinforcement entered the town. Thus notwithstanding the politeness of the governor a suspicious reserve was at first visible. This, however, in a short time wore off, and the most solemn assurances were given by the governor of the wish of his Serene Highness Iturbide to cultivate the friendship of the governments on the southern continent of emancipated America.

On the third of February, after the squadron was under weigh, his lordship received the following note from the president of Mexico:

"Most Excellent Sir,—The governor of Acapulco has informed me, by note dated the twenty-eighth of January, of your happy arrival, and that of the squadron you honour by commanding, at that port, one of those belonging to this empire, and adds, that every respect has been paid to yourself and those who have the glory to serve under you, who have been treated as friends, ready to assist us in the sacred cause—the protection of our liberty. Interested, as I am, in the prosperity of my country, I feel the greatest pleasure in the generous offer of your excellency, and the liberal determination of our brethren of Chile. I have ordered the governor of Acapulco to offer to your excellency, on the behalf of this government and my fellow citizens, our most grateful acknowledgments.

"Two commissioners will leave this capital, with orders to communicate to your excellency matters of high importance to the state: I hope you will receive them as freemen—the representatives of this great empire, and with that goodness which is so characteristic of your excellency.

"I should feel extremely gratified at having the honour of presenting to you my respects personally, that we might discuss some points which would contribute to the glory of this empire, in addition to the many and interesting services you have rendered to other free states; but a multiplicity of business deprives me of this honour, which my commissioners will enjoy, unless your excellency can allow me the pleasure of accepting our sentiments of gratitude in this court, where you would be received in the honourable manner you deserve, and every care would be taken to render your journey and residence as comfortable as possible.

"I remain with all due respect, &c., (Signed) Agustin Iturbide. Mexico, February 1st, 1822."

The news obtained from a vessel which entered the port on the second of February, and the day of the arrival of the commissioners, not being mentioned, his lordship determined to follow the Spanish frigates, composing the last relic in the Pacific, and on the destruction of which he was fully determined.

Acapulco lies in 16° 36′ north latitude, 99° 53′ 45″ west longitude: the port enjoys every advantage that can possibly be imagined: it is capacious, has a good anchorage, and is completely land-locked; so that from the vessels when at anchor, or from the town, the sea cannot be observed; however, the extreme heat is highly disagreeable. The town is composed of a parish church, two convents, and about forty houses, with many huts built of reeds and rushes. The inhabitants are a mixture of Spaniards, Negroes, Indians, and Chinese, which in several families that I noticed seems to have produced almost a new race of mortals; for a great sameness exists in their colour and features. The tinge or colour of these people is similar to that of the Malay tribes: their foreheads broad, eyes small and black, rather prominent cheek-bones, small but tolerably well shaped nose, large lips, and beardless chin; their hair black and long, their form slender, yet muscular, but none are of a high stature. A kind of wild ferocity was visible

in their countenances, and rather a haughty independence in their manners, heightened a little, perhaps, with the idea of being now imperialists; indeed, every thing here was imperial: the town, the port, the flag, the market, nay, even the language was imperial. The greater part of the inhabitants wore a species of uniform, mostly composed of a blue nankeen, or stuff jacket with a red collar, blue trowsers, and a cap; but without shoes or stockings. The lower classes of females wore full petticoats, and a chemise, with a long blue and white shawl: their hair is platted in long slender tresses, and they have no other covering on their heads. Some indians from the interior had a kind of short shirt, not reaching down to their waists, breeches, and sandals of raw hide, with a hat, the crown of which is about three inches high, and the skirts more than thirty inches in diameter: it is made of the leaves of a tree.

Some of the muleteers from the interior wore a very picturesque dress; over an under shirt they had a short one, like the indians, sitting close to their bodies and arms, blue breeches, the seams being tastefully embroidered with coloured silks; the calves of their legs wrapped in buff-coloured leather, carefully tied on, and hanging loose, with laced boots of the same material and colour; a coloured sash round their waists, and large black hats on their heads, with a thick roll of different coloured cloths for a hat-band.

All the people seemed to be particularly clean both in their clothes and persons; but this is generally the case in hot climates.

The market is but indifferently supplied, and provisions on the whole are scarce, dear, and of an inferior quality.

The appearance of the country in the neighbourhood is extremely sterile and naked; scarcely any vegetables are to be seen, the sandy mountains rising almost abruptly from the water's edge.

The climate is excessively hot, the access of cool air being precluded by surrounding mountains, and very little benefit is derived from the cut or opening made at the north end of the town, called *la ábra de San Nicolas*, for the admission of the sea-breeze: the winter or wet season is so unhealthy, that few of the white inhabitants remain in the town, almost every one retires into the interior.

A large battery stands on an elevation at the southern extremity of this place; it mounts thirty-one pieces of heavy artillery, and is called the fort of San Diego. It contains barracks, magazines, and dungeons, named the gaol, carcel.

The town was formerly of commercial notoriety, on account of the vessels which arrived here, commonly from Manilla, called naos de la China; but as this traffic will now cease, and on account of the mountainous country lying between it and the capital, a distance of eighty-five leagues, it is probable that this port will shortly be almost abandoned, unless, indeed, a commercial intercourse be kept up with the British East India colonies, which might become of considerable importance, and which is at present worthy of the attention of English speculators, as the principal returns would be the precious metals, cochineal, and indigo.

On leaving Acapulco, the Independencia, Captain Wilkinson, and Auracano, Captain Simpson, were ordered to proceed to the bay of California, for the purpose of purchasing provisions for the vessels of war, and then to follow us to Guayaquil, Callao, and Valparaiso.

On the night of the tenth we experienced a very severe gale in the bay of Tehuantepec, and owing to the bad state of the frigate, we expected she would go to pieces with every sea that struck her: our only consolation was, that the Valdivia being almost within hail we should be enabled to save our lives by taking to the boats, and going on board.

In the morning the gale subsided, to our no small joy; but a signal of distress was made by the Valdivia, and afterwards a communication by telegraph, that a sea had struck her, and that seventeen timbers had given way on her larboard side; that for want of pumps the water was gaining on them considerably, and the men were nearly exhausted with baling. Some logs of wood were sent from the O'Higgins, together with every man who fancied himself a carpenter, and the damage done was soon repaired as well as circumstances would permit.

On the fifth of March we made the coast of Esmeraldas, and early on the morning of the seventh we came to an anchor in the port of Tacames or Atacames.

After I had landed, my old subjects were both astonished and delighted; they had heard no tidings of me since the year 1812, and supposed me to be dead. The news that we obtained here was, that the Spanish general Crus Mourgeon arrived at this port from Panama, with a number of officers, and eight hundred men, on the twenty-fifth of December, and marched to join the forces at Quito; that immediately after he left Panama, which was on the twenty-eighth of November, the inhabitants rose, and declared their independence; and this they did although the two frigates Prueba and Vengansa had arrived after the departure of Crus Mourgeon; these two frigates, they told us, left the port of Tacames on the first of January, for Guayaquil and the coast of Peru. With these advices Lord Cochrane immediately proceeded to Guayaquil river, and we arrived at the island of Puná on the tenth.

The intelligence obtained here was, that the Prueba and Vengansa were several days at anchor off the island; that deputies had been sent from the city to negotiate with the two captains Don Jose Villegas of the Prueba, and Don Jose Joaquin Soroa of the Vengansa; that on the twenty-third of February the Vengansa and sloop of war Alexander had proceeded up the river to Guayaquil, and on the twenty-fifth the Prueba had left the river for the port of Callao. On receiving this advice his lordship stood up the river with the following tide, and came to an anchor off the city on the morning of the thirteenth, where we found the Vengansa bearing the Peruvian flag.

Lord Cochrane was directly informed, that the captains Villegas and Soroa had negotiated the surrender of the Spanish frigates Prueba and Vengansa with the commissioners appointed by Don Francisco Salazar, the Peruvian envoy at Guayaquil; which treaty was ratified by the respective parties on the fifteenth and sixteenth of February last, the principal condition being, that the whole of the officers and crews should receive from the government of Peru all the arrears due to them; that those who chose to remain in America should enjoy all the privileges of citizens; and that those who preferred returning to Europe should have the expenses of their passage defrayed by the government of Peru. After several inquiries made on shore, it appeared, that when the negotiations were about to be interrupted by the mutinous crews and some Spanish officers, who, indignant at the conduct of the captains, in thus selling the Spanish vessels of war to the enemies of Spain, began to canvass an opposition, the government of Guayaquil

availed themselves of the subterfuge of having had a correspondence with Lord Cochrane, who with the Chilean squadron had anchored in the bay of La Manta, in the province of Guayaquil, on his passage to the capital. This stratagem had the desired effect: the officers and crews came to the terms offered, rather than decide the controversy by honorable warfare. On being positively assured of the transaction, and conscious, that had not the Chilean squadron driven them to this last action the Spanish captains never would have surrendered their vessels, his lordship on the morning of the fourteenth sent Captain Crosbie on board the Vengansa, with orders to hoist at her peak the flag of Chile jointly with that of Peru.

This act created great confusion in the city, the gunboats were immediately manned, and pieces of cannon were brought down to the side of the river, where the people employed themselves in placing logs of wood to serve as a breastwork; the Spanish sailors appeared to take a more than active part in resenting this insult offered to the vessel, which a few days previously they had cowardly sold to their enemies, through the fear of having to defend her while under the Spanish flag; indeed every thing on shore bore the most hostile appearance; while on board the O'Higgins and Valdivia no preparations whatever were made, the Admiral being too busy in smiling at their warlike preparations and mock means of defence. On the night of the seventeenth the courage of our self-constituted enemies was put to the test.

With the return tide the Valdivia drifted up the river near to where the Spanish officers and seamen had anchored the gunboats, which the government had allowed them to manage, as being more acquainted with naval tactics; but these heroes, supposing that the frigate was about to attack them, ran the boats on shore, and fled to the back of the city, leaving the natives to replace them on the water before daylight. This, however, was in vain, and the effects of the preceding night's alarm were visible on the following morning.

After some correspondence between the government and the admiral, it was agreed on the nineteenth, that deputies from both parties should meet ashore, and adjust such terms as should be most conducive to the public tranquillity, and to the honour and welfare of all parties. Accordingly, the government appointed the captain of the port, Don Manuel Lusuriaga, Dr. Don Bernabé Cornejo, and Captain Indaburu. Lord Cochrane appointed

Captain Crosbie, Captain Cobbett, and myself. Having met at the cavildo, the following articles were agreed to, and immediately ratified by Olmedo, Ximena, and Roca (forming the junta of government) and Lord Cochrane.

"First.—The frigate Vengansa shall remain as belonging to the government of Guayaquil; she shall hoist the flag of this state, which shall be saluted by the Chilean.

"Second.—The state of Guayaquil guarantees to the Chilean squadron under the responsibility of forty thousand dollars, that the frigate Vengansa shall not be delivered to, nor negotiated for with any governments until those of Chile and Peru shall have decided on what they may esteem most just. And, moreover, the government of Guayaquil is bound to destroy her rather than consent that the said vessel shall serve any other state, till such decision be made.

"Third.—The corvette Alexander shall be delivered to her owners, or their assigns, according to the right which they possessed before she was taken by violence from this river. The owners are to pay the arrears due to the crew from the date of their last leaving Panama to that of the fifteenth of February, 1822, with all the other expenses which may have been incurred; and, in the mean time, she shall not be employed in any way whatever without the consent of her owners.

"Fourth.—Any government whatever which henceforward may be established in Guayaquil shall be bound to the fulfilment of the articles here expressed.

"Fifth.—These articles, herein written and agreed to, shall be understood literally, in good faith, and without any mental amplifications or restrictions. Guayaquil, &c."

After the ratification of these articles, the government of Guayaquil addressed a polite note to Lord Cochrane, expressing the highest sentiments of respect for the most important services which the free states of America had received from him, assuring him, at the same time, that Guayaquil would always be the first to honour his name, and the last to forget his unparalleled services, to which she owed her emancipation from the yoke of Spain.

On the twentieth the Guayaquil flag was hoisted on board the Vengansa by Captain Lusuriaga and Captain Crosbie, to whom the Peruvian and Chilean flags were delivered. The O'Higgins immediately saluted the flag with twenty-two guns, and the salute was returned from the guns placed on shore; and afterwards the gunboats hoisted the Chilean flag, and saluted it with twenty-two guns.

It having been asserted in Peru, before Lord Cochrane left the bay of Callao in October, 1821, that he would supply the garrisons of the fortresses with provisions, on condition that they would not surrender to San Martin, his lordship availed himself of the present opportunity with General la Mar, who was the governor of Callao, and who being now at Guayaquil, to write to him through the hands of the government, requesting him to answer, whether he did succour or promise to succour the garrisons of Callao, during the time that he was employed in the blockade of that port?

To this La Mar answered:

"Most Excellent Sir,—In consequence of the official note which I yesterday received from your excellency, through the hands of the government, it is my duty to assert, that I have neither said nor written, nor ever heard that you did supply or propose to supply with provisions the place of Callao during the whole of the time that it was under my charge. God preserve your excellency many years. (Signed) Jose de la Mar. Guayaquil, March 13th, 1822."

On the twenty-first we weighed, his lordship giving orders to Captain Crosbie to trip the anchor, and to kedge down the river, by which means he would have a better opportunity to mark the channel, and form a plan of it, should it ever become necessary to ascend it without the assistance of a pilot. The second tide took us to the Puná, where we remained till the twenty-fifth, the boats being employed in bringing water and some provisions from Balao, on the opposite side of the river.

Having left Guayaquil river on the twenty-fifth of March, we arrived on the twelfth of April at the small port of Huambacho, on the coast of Peru, where to our surprise and astonishment the alcalde of the village shewed his lordship a written order from San Martin, stating that should any of the vessels of war belonging to Chile touch at the said port, he was to forbid

their landing, and to deny them any assistance whatever, and not even to allow them to wood or water there.

Exasperated at this conduct, his lordship proceeded to Callao, but not before he had convinced the alcalde, that he had not the power to enforce such orders from his master. We arrived at Callao on the twenty-fifth, where the first object of instability in the new government which we observed was five different Peruvian flags flying in the bay and on the batteries.

We here found the *Prueba* under Peruvian colours, and commanded by one of the captains who had deserted the Chilean squadron; but such was the dread that Lord Cochrane would take possession of her, that she was immediately hauled close in shore under the batteries, her guns housed, her ports closed, and so crammed she was with soldiers, for her defence, that three men died with suffocation the night after our arrival. I was assured, that no less than two thousand men were crowded on her upper deck, as if such a mob could have intimidated Lord Cochrane, had he been authorized to take possession of her, after she had been driven into the bay of Callao by his efforts, and there purchased from her traitorous crew by the Peruvian government.

CHAPTER XIII.

Commercial Code at Lima....Provincial Statutes announced....Liberty of the Press....Foreigners declared amenable to the Laws....Institution of the Order of the Sun....New Commercial Rules....Titles changed....Order to convene the Constituent Congress....San Martin delegates his Authority to the Marquis de Torre Tagle....San Martin leaves Lima and returns....Army defeated under Tristan at Ica....State of Lima on our Arrival....Visit of Monteagudo to Lord Cochrane....San Martin annuls the Treaty at Guayaquil....Exile of Spaniards from Lima....Lord Cochrane leaves Callao for Valparaiso....Spanish Vessels that surrendered to the Chilean Squadron....Convention of Chile meets....Monteagudo exiled from Lima....Disturbances in Chile....San Martin arrives at Valparaiso....O'Higgins abdicates....Lord Cochrane leaves the Pacific.

On the eighth of October, 1821, the provisional commercial code or reglamento was published; but, agreeably to the short sighted colonial system, only Callao and Huanchaco were declared free ports to all friends and allies. This reglamento established, that all vessels should within ten hours after their arrival deliver up their bills of lading; within forty-eight begin to unload, or leave the port within six days.

Within the said forty-eight hours a consignee, being a citizen of Peru, was to be named by the captain or supercargo. All goods in foreign bottoms were to pay twenty per cent. on the value of the whole, according to the prices current in Peru. All goods introduced in vessels under the flags of Chile, Buenos Ayres, or Colombia, to pay in the same manner eighteen per cent., and those under the flag of Peru sixteen. All manufactured goods which might injure the industry of the country to pay double duty. Coined silver to pay the exportation duty of five per cent. and gold two and a half: the exportation of gold and silver in bar or wrought absolutely prohibited. The produce of Peru exported in foreign vessels to pay five per cent.; in vessels belonging to Chile, Buenos Ayres, or Colombia, three and a half, and in Peruvian three per cent. The payment of importation duties to be in

three equal parts, one at forty days after debarkation, one at a hundred and twenty, and one at a hundred and eighty. All consignees absolutely prohibited the retailing of their consignments.

The coasting trade to be confined to vessels belonging to the state, but limited to the ports of Paita, Huacho, and Pisco. Any vessel introducing foreign manufactures, except at Callao or Huanchaco, to be seized and condemned, both hull and cargo.

The most extraordinary article inserted in this reglamento was, that goods landed at Huanchaco, the port to Truxillo, were not to pass the river Santa, under the penalty of being seized as contraband.

On the ninth of October the provisional statutes and administration of justice were sworn to by the government; and the creation of the Order of the Sun was announced with the greatest possible pomp.

On the thirteenth the liberty of the press was declared, permitting any individual to publish freely his thoughts, without any previous revision or approbation; but all abuse of religion or of the principles of morality, every thing likely to disturb public tranquillity, or to wound the honour of any citizen, to be subject to the penalty inflicted by the junta conservadora of the liberty of the press.

On the seventeenth an order of the government was published, establishing all foreigners residing in Peru in the rights of citizenship, subjecting them at the same time to the laws of the country, and the orders of the government, and depriving them of the intervention of the commanders of the vessels of war belonging to their respective nations. All foreigners were also declared liable to take arms in the support of social order, but not against the common enemy, and to be subject to contributions levied by the government, in the same manner as the citizens of the state.

On the twentieth of October the institute of the Sun was established; it was declared to consist of three classes, founders, well-deservers (benemeritos) and associates or fellows. The badge of the first class was a white ribbon from the right shoulder to the left side, having two gold tassels and a golden medallion of the order; with the title of honourable lordship;—the second class to have a gold medal hanging to a white ribbon placed round the neck;

with the address of lordship;—and the third a silver medal hanging to the breast on the left side. The medals to bear the arms of the state, to be of an elliptical figure, and to have on the superior part, on a white field, "Peru;" on the inferior, on a red field, "To her Liberators." The pensions of the order to be paid out of the fund of forty thousand dollars imposed by the king of Spain on the mitres of America for the provisions of the knights of Charles III. and Isabel la Catolica. The oath to be—"I swear by my honour, and promise to my country to defend the independence, liberty and integrity of the state of Peru; to maintain public order, and to procure the general felicity of America, devoting to those ends my life and my property."

Twenty-six founders were named by the Protector, who constituted himself PRESIDENT of the order; among these were included two captains who had abandoned the Chilean squadron at Callao; one hundred and thirty-eight of well-deservers, including Captain Spry; and one hundred and two associates or fellows, among whom were the dean of the cathedral, five counts, two marquises, five generals, seven friars, canons of the church, shopkeepers, surgeons, farmers, and deserters from the Chilean squadron.

Not content with this creation of male nobility, one hundred and twelve knightesses of the sun were nominated, including two countesses, four marchionesses, and of every class, even to Doña Rosa Campusano, the favourite of his excellency, the creator of the order; and to complete the corps, thirty-two nuns were added, who might have been honoured with the ancient Peruvian title of Virgins of the Sun. The Honourable and Illustrious Don Bernardo Monteagudo was appointed secretary, and General the Honourable Don Diego Paroissien master of the ceremonies, *pro tem*.

As the badge of the order was of the most vital importance, it was decreed on the thirty-first of October, that, instead of a medallion, a golden sun should be suspended to the ribbon of the fundadores, benemeritos, and asociados; but the size of it was to be limited according to the rank of the bearer.

On the twenty-third of October a committee was appointed to frame a constitutional code or reglamento de administration de justicia for Peru, San Martin having determined on being a legislator as well as a liberator; and, as he himself said, on "being crowned with laurels till he could not nod."

About this time some verses made their appearance, addressed to the Protector, under the epithet of Emperor of Peru. The idea of an imperial crown was obnoxious to the Peruvians, and some street clamour induced the government to announce its supreme displeasure at such productions.

Desertion in the liberating army now became prevalent, and the government was obliged to issue a decree, stating that any person who should harbour or protect a deserter in his house, or on his property, should subject himself to a general confiscation for the first offence, and to perpetual exile for a repetition. All slaves were invited to inform against their masters, under the assurance of manumission, should the crime of occultation be proved. On the thirty-first of October a new tariff for the coasting trade was published, superseding the one of the twenty-eighth of September, with the addition of the ports of Nasca, Cañete, and Pacasmayo, and also allowing foreigners to sell their own cargoes, without the intervention of a native consignee, on their paying twenty-five, instead of twenty per cent.; and on the twenty-first of November all foreigners, as well as citizens, being merchants, were ordered to enrol their names at the consulado, (board of trade,) that they might all be equally taxed with such contributions as the government might judge necessary to exact.

Several Spaniards having been apprehended and sent to the public gaol, accused of sedition and conspiracies, were sentenced, on the twentieth of November, eight to a confiscation of their property, and exile to Europe, and thirteen to partial confiscation, and exile to Chancay for two months.

On Sunday the sixteenth of December the knights of the order of the sun were decorated with the insignia, by the president of the high chamber of justice, *alta camara de justicia*, in the presence of his Excellency the Protector of Peru, institutor of the order, and a most splendid concourse of the nobility of Peru, with the assistance of Sir Thomas Hardy, whom the gazette styles the representative of the British nation, on this occasion. Every care was taken to make this civic feast as solemn as possible; the troops were formed in the streets; the different military bands continued playing national airs and marches in the balcony of the palace; repeated salutes were fired by the artillery placed in the plaza; all the bells in the city were heard in merry peals; the illuminations on the nights of the fifteenth, sixteenth, and seventeenth, were of the most brilliant description; and every

nerve was strained to produce and support harmony and conviviality on this festive occasion. After the ceremony of condecoration, the procession left the palace and proceeded to the church of Santo Domingo, where a solemn Te Deum was chanted, and high mass celebrated, in thanks to the Almighty for having inspired the supreme government of Lima with such celestial ideas.

That the ancient nobility of Peru might not be reduced to a level with the plebeians, it was decreed on the twenty-seventh of December, that they should preserve their armorial bearings on the fronts of their houses, as usual, and all the solar nobility were permitted by the same decree to place on theirs a sun, with the initials of the class to which they belonged in the centre. It was also ordered on the same day, that those persons who had enjoyed titles during the Spanish domination, under the name of titles of Castile, should enjoy the same honours under the appellation of titles of Peru, or change them for such as might appear more congenial to the then existing state of things. Thus we have a republic with counts, marquises, viscounts, &c. which is certainly an anomaly, and worthy of the wisdom that planned it.

On the twenty-seventh, the Protector, with the advice of the council of state, ordered, that on the first of May, 1822, the general constituent congress of Peru should meet in the capital; and that proxies should be named for such provinces as were oppressed by the enemy. The object of this congress was to be, only, the definitive form of the established government, and the formation of a constitution most proper for Peru, according to the circumstances of its territory and population: any other powers given to the deputies to be considered null and of no effect.

It was further ordered, that a previous committee be appointed in Lima, to draw up the plan for the election of deputies, and to prepare the basis of the constitution, to be finished before the reunion of the congress. Thus the laws of the nation were to be formed by a private committee, under the guidance of San Martin and his ministers, and the congress were to be called in to sanction the proceeding. This duplicity was ultimately the cause of the Protector's *voluntary* abdication.

On the nineteenth of January, 1822, the Protector announced, that he was about to leave Lima on a visit to Guayaquil, where he expected to meet the Liberator of Colombia, the immortal BOLIVAR, for the purpose of consulting with him on matters of the highest importance to the state. All his executive powers were delegated to the gran mariscal Marquis de Torre Tagle, to the due obedience of whose orders, the tribunals, ministers, corporation, chiefs of the army and navy were called upon to swear. This ceremony took place on the twentieth. The first decree of the supreme delegate was, that all unmarried Spaniards, who should leave the state, were to deliver to the national treasury one half of their property, and in case of any attempt at fraud, the whole to be confiscated, and the persons to be exiled. It also contained other articles respecting Spaniards residing in Peru.

On the third of March the Protector announced in Lima, that having touched at Huanchaco in his passage to Guayaquil, he received official communication that the Liberator of Colombia had changed his plans, and would not be at Guayaquil as was expected; he had, in consequence, returned to Callao; but that it was his will that the Marquis de Torre Tagle should continue in the full exercise of the authority delegated to him. San Martin then retired to the country residence of the ex-viceroy Pesuela, at La Magdalena, which village immediately changed its name to that of the town of the free, "pueblo de los libres."

On the thirty-first of March the Spanish frigate Prueba arrived at Callao, and was immediately delivered up to the Peruvian government by her commander, Larrigada, according to the treaty concluded in Guayaquil on the sixteenth of February. The supreme delegate immediately went on board, and the Peruvian flag being hoisted, the name of the frigate was changed to that of Protector. Again, this acquisition was "the fruit of the enthusiasm, and sacrifices of the officers and soldiers who were present at the important moment, as witnesses of this memorable success."

The government of Lima, aware of the importance of the possession of the valleys of Pisco and Ica, not only in a mercantile point of view, but as a military position, where a communication might be kept open with the provinces of Upper Peru, and the enemy, then in Huamanga, and other adjacent points, prevented from making incursions on the valuable estates situated along the coast—San Martin, as prime mover, (although the civil

authority was exercised by his delegate, Torre Tagle, and General Alvarado had been appointed by him general in chief of the army) ordered a force of two thousand men, with their respective officers, to Ica, under the command of General Don Domingo Tristan, who a few months before was a Colonel of Militias, in the province of Arequipa, and whose career had been the ploughshare and the pruning hook, not the sword and the lance: a man entirely unknown as a soldier, and if known at all in Lima, it was as a complete gambler, and a public lounge. But perhaps the intercession of the Protectress, formerly the public favourite of Tristan, might on this occasion have been acceptable, (in despite of the superior qualifications of many officers in the army, although the brave General las Heras and several other chiefs had retired) and acquired for her *galan de aquel tiempo* so honourable an appointment. However, on the thirteenth of April, the following proclamations appeared in Lima: "Limenians! The division of the south, without having been beaten, has been surprised, and dispersed; in a long campaign all cannot be prosperity; you know *my* character, and you know that *I* have always spoken the truth to all—I do not mean to search for consolation in conflicts, notwithstanding I dare to assure you, that the iniquitous and tyrannical empire of the Spaniards in Peru will cease in the year twenty-two.—I will make an ingenuous confession to you: it was my intention to go in search of repose after so many years of agitation, but I believed your independence was secured; some trifling danger now presents itself, and so long as there remains the least appearance of it, until you are free you shall not be left by your faithful friend,—San Martin."

"Companions of the United Army!—Your brothers in the division of the south have not been beaten, but they have been dispersed; to you it belongs to revenge this insult: you are valiant, and have known long ago the path to glory! Sharpen well your bayonets and your swords! The campaign of Peru shall finish in this year! Your old general ensures it; prepare then to conquer!—San Martin."

On the same day the following was issued by the Marquis de Torre Tagle: "Compatriots! The division of the south has suffered a reverse; this is the first we have experienced amid so many glories. It is of no importance; the grand army yet lives, and will, before the end of twenty-two, leave not one enemy existing among us. Compatriots! To be free and happy, only requires you to decide as I have, like those heroes who have come to restore to Peru

her rights, to lose every thing, to die before they will return to slavery! Imitate this example as you have done at other times, and the result will be the same, because valour and enthusiasm, well directed, always ensure victory and peace; you deserve both, prepare for every sacrifice but that of your liberty.

"Torre Tagle."

The two supreme chiefs united on the thirteenth in a proclamation to the inhabitants of the interior, assuring them, that the loss of the division, a few days before called the liberating army of the south, "weighed nothing in the balance of the destiny of Peru; Providence, say they, protects us, and by this action she will accelerate the ruin of the enemies of Peru—proud of their first victory, they will spare us part of our march in search of them, which was to have been done. Fear not, the army that drove them twice from the capital, is ready to punish them a third time, and to punish them for ever!" Had the action taken place at any great distance from the capital, the truth of the transaction might have remained for some time enveloped in mystery; or had the inhabitants of Lima not already been taught by the Spaniards to become sceptics, this furious bombast might have been believed; but the account was soon rightly explained by the few who escaped, and who arrived at Lima; these were but few: the number that fortunately found an opportunity to take to their heels, and availed themselves of their swiftness, were very quickly secured, and sent to Callao, to prevent as much as possible a circulation of the truth.

On the night of the seventh of April the Spaniards under Cantarac and Caratalá advanced on the Americans under Tristan, who, for want of the most ordinary precautions, were completely surrounded, and at day break, with the exception of the general, part of his staff, and a few officers, the whole division was in the power of the enemy. The loss of the liberating army was about two thousand men killed or taken prisoners, five thousand muskets, the military chest, containing upwards of a hundred thousand dollars, ammunition, luggage, equipage, printing press, and every utensil belonging to it. Notwithstanding all this, we are told, that "the Spaniards are ignorant that the balance of power is in our hands, because Providence is on our side, opinion and strength favour the interests of Peru, SHE SHALL BE FREE BECAUSE SHE WILLS IT SO, AND BECAUSE IT IS TIME THAT SHE WAS!!!"

On the twenty-fourth of April a decree was published against the Spaniards residing in Lima, imposing the penalty of exile and confiscation of property on those who should appear in the streets wearing a cloak. That of confiscation of property and exile when more than two should be found together in any private conversation. That of death on those who should be found out of their houses after sunset. And that of confiscation and death on all those who should be found to possess any kind of weapons excepting the knives necessary for the service of their tables.

This was the state of affairs in Peru when Lord Cochrane arrived on the twenty-fifth of April. The supreme authority was employed in issuing decrees contradictory to one another, in opposition to the most solemn promises made and repeated by the Protector, both before and after he assumed this title, in violation of justice and reason, and all contributing to produce discontent, disunion, and anarchy.

The enemy were victorious, the patriots dreaded some dire reverse, the remains of the army were discontented, finding that not one promise made to them had been fulfilled; the gold and silver had disappeared, and paper money had been issued by the government; the contributions were increasing, and were exacted at the point of the bayonet; while the Protector of the liberty of the country, after having been employed for six months in creating orders of knighthood, establishing tribunals, sketching embroideries, and inventing uniforms, had retired to his country house, to rest from his labours!

Many individuals who, when we left Callao in October, 1821, condemned the conduct of Lord Cochrane in taking possession of the money at Ancon, were now convinced that it was not only a warrantable but an indispensable step to be taken for the preservation of the squadron of Chile, and of good faith with the crews. The non-fulfilment of the promises made to the regiment of Numancia had forced them to declare that they would not march out of Lima against the enemy, and Captain Doronsoro was sent, by his brother officers, to inquire, if Lord Cochrane would receive them on board the Chilean vessels, and convey the regiment to the nearest point in the territory of Colombia, to which country they belonged, and to which San Martin had promised to transport them on the fall of Lima.

On the twenty-sixth the minister Monteagudo came on board, and lamented that his lordship should have addressed to the Peruvian government official communications containing expressions calculated to irritate their delicate feelings at the moment when the Protector was inclined to adopt the most conciliatory measures; adding, that at the first news of his lordship's appearance off the port his excellency had written a private letter, praying an interview; but that on the receipt of the official notes, he became so indignant, that he was afraid his delicate health was in danger. To this his lordship merely answered, that had San Martin sent a private letter it certainly would have been returned unopened; adding, "you may tell him, Mr. Monteagudo, that it is not my wish to injure him; I neither fear him nor hate him; but tell him, I despise him!" Monteagudo begged of his lordship to go and reside on shore a few days, saying that the house of the supreme delegate was prepared for his reception. But his lordship most courteously begged to be excused; and Monteagudo retired not well pleased with what he had observed in the countenances of all on board, a species of the most supreme contempt; notwithstanding that, he wore his blazing sun of the first order, his ribbons, his embroideries, and was accompanied by his military escort.

The greatest discontent reigned on shore among the Chileans: it had circulated, that no Chilean would be promoted nor employed by the present government of Peru. Whether such was or was not really the determination of the government might be difficult to prove; but the fact was, that only one of the nine generals made by San Martin belonged to Chile, and the ratio among the subalterns was even smaller.

The Protector of Peru, having been informed of the treaty at Guayaquil, respecting the Vengansa and the Emperor Alexander, sent down Captains Carter and Young to take the command of them. This was acceded to by the government of Guayaquil, and the two vessels again hoisted the Peruvian flag, although the Alexander, bona fide, belonged to Mr. Henderson, and was under the English flag, when a revolution took place among the crews of the gunboats in August, 1821, who took possession of her. They proceeded to Panama, and there delivered her to the Spanish authorities, who afterwards included her in their treaty with the Peruvian agent at Guayaquil.

The most horrid scene during the time of the residence of San Martin in Peru was reserved for May, 1822. On the night of the fourth a grand ball was given at the palace, being the first meeting of the knights and knightesses of the sun; and while they were thus enjoying themselves parties of soldiers were sent to the houses of the Spaniards, who dragged them from their beds, and drove them down to Callao, where they were placed on board the Milagro.

The distress occasioned by this monstrous breach of promises, of justice, and humanity, cannot be equalled. Several of these were men of rank and fortune who had confided in the promises made to them; many of them had numerous families; octogenarian clergymen, civil and military officers, all without the least distinction or commiseration, were seized at midnight, some of them half undressed, others almost naked, and every individual was forced to travel six miles on foot: they were then placed on board a vessel, where for two days no provisions were distributed to them, and they were forbidden to hold any communication with their disconsolate wives and families, who surrounded the vessel in boats, and rent the air with their shrieks and lamentations. On the first night two old gentlemen died on board the Milagro for want of clothing and food; and many would certainly have perished had not the mercy of San Martin been extended so far as to sell them passports. He allowed the purchasers to pass from the Milagro to neutral vessels, for the purpose of leaving Peru for ever; but many of them dared not go to Spain, because they had remained in Lima when La Serna left it with the Spanish army, and had afterwards subscribed to the independence of the country. Some passports were sold at one thousand dollars, others at ten, according to the quality of the purchaser; and those whose finances deprived them of the possibility of purchasing their liberation, were sent to Chile in the Milagro; which vessel, for this most honourable expedition, had been newly named, and was now called the Monteagudo: a compliment in every respect merited by that great minister.

Had General San Martin followed a different line of conduct with regard to the Spaniards residing in Peru; had he never compromised himself with such solemn assurances as he made to them, both before and after his arrival in Lima, his conduct towards them might have admitted some palliation. Had he from the beginning been silent, and at the earliest opportunity exiled them, the same expression which he used on the subject

of calling a congress or national representation, that "a knowledge of what had passed in Colombia, Chile and Buenos Ayres, during twelve years of revolution, would have been a reasonable pretence for what he did," might have justified the proceeding. He repeatedly promised to them security, and frequently told them, that their persons and property should be inviolable; and their confidence lost them all claim to the protection of the laws of their native country; they had moreover sworn allegiance to its enemy, and had explicitly become traitors; and when his plans were thus far in a state of ripeness, he exiled them from their adopted homes, from their families, from all their comforts, and cast them out a despairing, wandering, forlorn tribe, surrounded with misery; but their last breath will be employed in execrating his duplicity.

I am well aware that the Spaniards were dangerous persons in America and that many of them would have employed themselves in thwarting the operations of the newly-constituted authorities; but this mental conviction could not sanction such a proceeding as the one just stated, and at which humanity shudders. But it is now time to wind up the eventful history of the proceedings of the Protector of Peru; however, before I lose sight of her shores, perhaps for ever, I must add one more trait of his barbarity. A female in Lima had dared to speak ill of San Martin, at the time that a contribution was extorted from her at the point of the bayonet; she was apprehended, taken to the great square, an accusatory libel was fastened to her breast, a human bone was put into her mouth, and tied behind her head; a halter was hung round her neck, and in this manner she was forced to parade the streets, led by the common hangman; she was then exiled to Callao, where the poor creature died on the second day after her arrival.

Before Lord Cochrane left the bay of Callao he addressed a letter to Colonel Sanches, an officer belonging to the Chilean troops, expressing his ardent desire for the complete success of his adopted countryman; to this note he received the following answer:—"Our best friend,—Nothing has been so mortifying to us, as that the imperiousness of circumstances deprives us of the communication which we have most esteemed, and which would have been of high importance to the views of your excellency.

"The chiefs, officers and troops who have the honour to serve under the flag of Chile, have received with the greatest satisfaction the compliments of

your excellency, and promise their eternal gratitude to their worthy chief, whose soul is devoted to increase the glory of their country. We have the honour to offer to your excellency the most sincere tribute of our affection and esteem. (Signed) Jose Santiago Aldunate.—J. Santiago Sanches."

On the ninth of May the schooner Montezuma, belonging to Chile, and which had been lent by the government to General San Martin, as a tender, entered the port of Callao, under Peruvian colours; his lordship fired on her, and obliged her to come to an anchor, when he took possession of her, sending her officers on shore, and on the tenth we proceeded to Valparaiso, where we arrived on the thirteenth of June.

On our arrival at Valparaiso his lordship reported his return, adding, "The anxious desires of his excellency the Supreme Director are now fulfilled, and the sacrifices of the people of Chile are rewarded; the naval power of Spain in the Pacific has succumbed, it is now extinguished, the following vessels having surrendered to the unceasing efforts of the squadron of this free state:

Frigate Prueba of	50 guns
Frigate Esmeralda of	44
Frigate Vengansa of	44
Ship Resolution of	34
Ship Sebastiana of	34
Brig Pesuela of	18
Brig Potrillo of	16
Schooner Prosperina of	14

Schooner Aransasu, seventeen gunboats, and the armed merchant ships Aguila and Begona at Guayaquil, and others employed as block ships at Callao. It is highly gratifying to me, after labouring under such difficulties as were never before witnessed on board of vessels of war, to announce the arrival of the Chilean squadron in Valparaiso, its cradle; where, owing to its constant services in the cause of the liberty and independence of Chile, Peru, Colombia and Mexico, it is the object of admiration and gratitude to the inhabitants of the new world.—I have the honour to be, &c. (Signed) Cochrane."

A few days after our arrival at Valparaiso, his lordship visited the capital of Chile, and solicited permission to retire for six months to his estate of Quintero, unless his services might be necessary; when, at any moment, he would be ready to employ them again in the welfare of the state; at the same time he requested, in the most earnest manner, that the officers and crews might be punctually paid all their arrears. The government acceded to his solicitude, and promised that every possible attention should be given to the request of the admiral, and after some delay it was finally complied with.

On the twenty-third of July, 1822, the National Congress of Chile met at Santiago; it was opened by the Supreme Director, Don Bernardo O'Higgins, who made a tender of his directoral authority to the representatives of the republic, and concluded his harangue with—"Compatriots! my command is at an end—defects are inseparable from humanity—the most difficult circumstances have surrounded me on every side—perhaps my want of knowledge and experience may have led me to commit errors against my children, (allow this tender expression to my feelings)—I can never forget the honours I have received, and I hope that my days will be prolonged by my gratitude, until I see Chile as happy and as prosperous as the most flourishing countries of the earth."

Immediately after the director had retired, the convention waited upon him, and reinstated him in the supreme executive authority, with the following compliment: "The representatives of Chile most sincerely thank your excellency for the wisdom with which you have managed the affairs of the nation; when a constitution is formed that shall specify the time of the fatigues of the magistrates, the representatives may admit of your

resignation, and then your excellency will enjoy your retirement in glory, and future generations will sing hymns of love and gratitude to your name."

The first meeting of the preparatory convention was on the twenty-ninth, at ten o'clock in the morning.

On the twenty-first of September, 1822, the news arrived in Chile, that Don Bernardo Monteagudo had been deposed from the ministry, and exiled from Peru.

The following are extracts from the papers published in Lima:

"Lima had scarcely obtained a glimpse of a flattering futurity, when a cunning, froward, and saucy individual, a traitor to the confidence of the government that had elevated him to the ministry, began to stifle our patriotism and its defenders. This insolent minister rewarded all praiseworthy services with the most gross invectives, and the most scandalous persecutions. His intriguing ambition filled our gazettes with a multitude of decrees in opposition to the plans which he himself had prescribed. His decrees were written that they might be read, not that they might be obeyed.

"Unfortunately for us, the genius of the revolution, San Martin, had to absent himself twice from our capital, to meet the Washington of Colombia. This perfidious oppressor availed himself of his absence to manifest the whole perversity of his soul. Until that period his persecutions were underhand, but they now became barefaced. All Spaniards were considered rich, they, their families and property, consequently became the prey of his insatiable avarice; and at the same time, those patriots who had contributed most to the success of the liberating army were persecuted to the utmost extremity. He formed a long list of proscriptions of men who were to be exiled for ever from their native country, and whose only crimes were their patriotic virtues, for the extinction of which he had formed a nest of the vilest spies, who unceasingly watched the steps of every man of honour. Great God! what an epoch of misery!

"Every honourable citizen found in Don Bernardo Monteagudo (this is the name of the monster of whom we speak) an enemy who at any price would have sacrificed him. How many victims has he not sacrificed in his one

year's ministry! More than eight hundred honourable families have been by him reduced to extreme indigence, and the whole city to a state of misery.

"Among the patriots at Lima, nothing was thought of but where they might find an asylum in a foreign land. Without agriculture, commerce, industry, personal security, property, and laws, what is society but a mansion of the most afflicting torments!

"The religion of our forefathers suffered an equal persecution in its ministers and its temples; these were deprived of their riches, not for the service of our country, but for the reward of espionage, and to deceive us with useless trickeries. The satellites of this bandit were equally despotic with himself, and committed, under his protection, the most horrid crimes. This is not a proper place in which to insert the baseness with which he abused the delicacy and debility of females. Fathers of families ***** every man was intimidated; every feeling man wept because all were the victims of the caprice of this insolent despot, who made an ostentation of atheism and ferocity.

"It is impossible to recapitulate his actions; volumes would be necessary to shew to the world the arbitrary crimes of this factious individual. It would appear, that for the commission of so many offences he must have had some cause that impelled him, for they could not possibly be the effects of ignorance. It was impossible to believe that by insulting and ruining every one; plundering our property; despising the ingenuity and talents of the Peruvians; and endeavouring to introduce anarchy, he could be long tolerated in this capital.

"His ambition was unlimited, having constituted himself the arbiter of the government. He had the assurance to dictate orders and decrees in opposition to those of the provincial statute, subscribing to them the name of the supreme authority; thus bringing it into contempt. Such conduct, when the enemy's army was within twenty leagues of Lima, and our government scarcely established, proves that his views were directed to undermine the state. Was the reducing of Peru to the most degrading slavery, that of obeying his capricious will, the means to make *us* happy or even *himself*?

"Foreigners also began to suffer all kinds of vexations and pilferings, with his *carta de morada* (letter of residence), without considering that the felicity of the country depended on its increase of industrious inhabitants. Owing to this, none have established themselves in Lima, it being worthy of observation, that not even one person has purchased a house or any immoveable property. And is not this a proof of general disgust and a want of confidence?

"In fine, such repeated acts of despotism irritated the people of Lima to that degree, that an explosion became inevitable. In eight days after the Protector left the capital, his insults to the patriots were incalculable. He caballed in the most barefaced manner to place in the coming congress his own creatures. He hurried off those whom he had sentenced to exile, because they were the favourites of the people; and in the exercise of his fury Lima took the alarm."

On the twenty-fifth of July the people of Lima assembled in the plasa, and insisted on a *cavildo abierto*, a public meeting of the corporation; this was immediately complied with, and the general voice of the people was, "let the minister Monteagudo be deposed, let him be tried, let him experience the severity of the law." At seven o'clock in the evening of the same day, a note was addressed by the corporation to the Supreme Delegate, requesting that the minister might be deposed; the council of state met, and convinced of the necessity of separating Monteagudo from the ministry, immediately informed him of the state of affairs, when to save appearances he made a tender of his appointment, which was accepted, and the supreme delegate in answer to the note of the corporation, assured them, that the ex-minister should be called upon to answer before a committee of the council of state for his past administration, according to the provisional statutes.

This note was answered on the twenty-sixth by the municipality requesting that the ex-minister should be placed under an arrest, until called upon for his defence, which request was immediately put into execution. The people of Lima being aware of the ascendancy which Monteagudo held over the delegate, Torre Tagle, and fearing that some crafty subterfuge might be practised to replace him in authority, met again on the twenty-ninth, when the corporation, to pacify the popular commotion, requested of the government, that the ex-minister should be embarked privately, and exiled

for ever from the state; this was acceded to, and on the thirtieth, the anniversary of his arrival in Lima, Monteagudo was sent down to Callao, under an escort, and at six o'clock in the evening he left the port. This ambitious individual was assassinated at Lima on the night of the twenty-eighth of January, 1825, having returned under the protection of Bolivar, and the expectation of being replaced in the ministry.

While these affairs were transacting in Lima, the Protector, San Martin, was at Guayaquil, where he had proceeded for the purpose of soliciting troops from Bolivar, for the prosecution of his campaigns in Peru. It is impossible to ascertain what took place in the private conference between those two chiefs, but the result was not at all favourable to San Martin, for he returned in dudgeon to Callao, when to his surprise and mortification, he was informed, that his arch-minister had been exiled for ever during his absence. Before his excellency ventured on shore, he had an interview with the principal officers of the army; who assured him that the troops were faithful to him, and under this certainty he presented himself at the palace in Lima, where in the most unbecoming language, he reprobated the whole of the proceeding, threatened his councillors of state, the corporation and the city itself, and declared, that he should immediately recall Monteagudo and reinstate him in the ministry. Notwithstanding the deference and respect which he had been accustomed to receive from every one who acknowledged his authority, he was wounded at observing, that the Limenians were not intimidated at his promised vengeance, and leaving the palace he betook himself to his country house near to Callao.

In the beginning of October, the arbitrary conduct of Rodrigues, the minister of war and finance in Chile, began to excite the public indignation, and petitions from every part of the state were forwarded to the supreme director, O'Higgins, praying his removal from the ministry. Crimes the most injurious to the prosperity of the state; his sordid venality, monopoly of commercial transactions, and even illegal appropriations of the public funds, were brought against him, in the most tangible shape; and yet all this was not sufficient, even with the knowledge of what had transpired in Peru, to force him to resign, or to induce O'Higgins to dismiss him. At the time that all Chile was in this state of suspense, and many alarming threats were issued from different quarters, an event not in the least expected took place, which for a while lulled the rising storm—this was no less than the sudden

arrival at Valparaiso of his excellency General San Martin, the Protector of the liberties of Peru.

This great man had continued to reside at his country mansion, until the twentieth of September, when the sovereign congress met, from which he received on the same day the following official communication:

"Most Excellent Sir,—The sovereign congress considering that the first duty of a free people is to acknowledge their gratitude to the authors of their political existence and their felicity, convinced that the country of the Sun owes this incomparable benefit to the efforts of your excellency, have decreed to you a vote of thanks to be presented to you by a deputation of the house.

"The Peruvian nation flatters itself that its gratitude is equal to the efficacious efforts which your excellency has made, destroying, like the thunder-bolt on the celebrated mountain that witnessed the last days of Lautaro, the iron power of Spain in the country of the Incas.

"The congress manifests, in this communication, the sincerity of their votes, which shall be expressed in the first act of their sessions, and which cannot be obliterated by the hand of time; holding General San Martin as the first soldier of their liberty.

"By the order of the congress we communicate this to your excellency, for your intelligence and satisfaction. God preserve your excellency for many years.—Lima, September 20, 1822. Xavier de Luna Pizarro, president—José Sanchez Carrion, deputy secretary—Francisco Xavier Mariategui, deputy secretary.—To his Excellency Senor D. José de San Martin."

The answer: "Sire,—Terminating my public life, after I have consigned to the august congress of Peru the supreme command of the state, nothing could be more flattering to my heart than the solemnity of the confidence of your sovereignty in appointing me generalissimo of the troops of the nation; an appointment which I have just received from a deputation of your sovereign body. I have had the honour of expressing my most profound gratitude at the time of its announcement to me, when I had the satisfaction of accepting only the *title*, because it was the mark of your approbation of the services which I have rendered to this country. I am resolved not to

betray my own feelings and the great interests of the nation; permit me therefore, to say, that long and painful experience has induced me to say, that the distinguished rank to which your sovereignty has deigned to elevate me, so far from being useful to the nation, should I fill it, would only oppose your just designs by alarming the jealousy of those who desire a positive liberty; it would divide the opinions of the people, and decrease the confidence which you alone ought to inspire in the absolute independence of your decisions. My presence, Sire, in Peru, considering that power which I have left, and the force which I should possess, is inconsistent with the morale of the sovereign body, and with my own opinion; because no forbearance on my part would defend me from the shafts of malediction and calumny. Sire, I have fulfilled the sacred promise that I made to Peru; I have seen her representatives assembled; the force of the enemy does not menace the independence of a people determined to be free, and who possess the means of being so. A numerous army under the direction of chiefs inured to war is ready to march in a few days, to terminate the contest for ever. Nothing remains but to offer to your sovereignty the expression of my most sincere gratitude, and the firm assurance, that if at any time the liberty of the Peruvians should be threatened, I will dispute the honour of accompanying them as a citizen to defend their freedom on the field of battle.

"May God preserve your sovereignty for many years.—Free Town, September 20th, 1822. (Signed) José de San Martin."

"To the Sovereign Congress of Peru."

The following, being the last proclamation by San Martin, was issued on the same day, and may be considered as his farewell address to Peru:

"I have witnessed the declaration of the independence of the states of Chile and Peru. I hold in my possession the standard which Pizarro brought to enslave the empire of the Incas, and I have ceased to be a public man—thus I am more than rewarded for ten years spent in revolution and warfare. My promises to the countries in which I warred are fulfilled; to make them independent, and leave to their will the election of their governments.

"The presence of a fortunate soldier, however disinterested he may be, is dangerous to newly-constituted states. I am also disgusted with hearing that

I wish to make myself a sovereign. Nevertheless, I shall always be ready to make the last sacrifice for the liberty of the country, but in the class of a private individual, and *no other*.

"With respect to my public conduct, my compatriots (as is generally the case) will be divided in their opinions—their children will pronounce the true verdict.

"Peruvians! I leave your national representation established; if you repose implicit confidence in it you will triumph, if not, anarchy will swallow you up.

"May success preside over your destinies, and may they be crowned with felicity and peace. Free Town, September, 20th, 1822. (Signed) San Martin."

Had San Martin been sincere, even in his last assurances, or had he been conscious that his services would have been of public utility; if, as a citizen, his modesty would not allow him to take upon himself the chief command of the force of the country, he certainly ought not to have abandoned Peru, when he was well aware that the army of the enemy was almost under the very walls of the capital; for he himself confesses, that a numerous army would march in a few days to terminate the war for ever: this march, however, would never have been necessary, had he followed the Spanish army when it evacuated Lima, if he had brought the army under Canterac to an action, or if he had headed his troops at Ica. The children of his compatriots will "pronounce the true verdict," not, I regret to say, an honourable one to San Martin; indeed thousands of them have already shed their blood on those plains which they might have cultivated in peace and security under the protection of their own constituted authorities and laws. It is impossible that a consciousness of not having fulfilled those promises which were calculated to do good, and would have established the absolute independence of rational liberty, and the prosperity of the Peruvians, it is impossible but that the memory of those breaches of good faith must ever cling to the heart of this deceiving mortal.

San Martin remained a few days in Valparaiso, until an escort arrived from Santiago to conduct him to that city; he resided there until December, or the beginning of January, when, observing the threatening aspect of affairs in

Chile, owing to the fixed determination of O'Higgins not to discard his favourite minister Rodrigues, he crossed the Cordillera to his old favourite residence at Mendoza.

General Freire, who had the command of the Chilean troops, stationed on the frontiers of Araucania, consisting of about three thousand men, came to the determination to march on the capital. In this he was supported by the inhabitants of the province of Coquimbo, the only object of the whole being to displace Rodrigues, and to bring him to justice. This they eventually did, obliging O'Higgins at the same time to abdicate his supreme authority on the twenty-second of January, 1823.

During this epoch of convulsions, Lord Cochrane was residing on his estate at Quintero, where he received the following communication from Peru:

"The sovereign constituent congress of Peru, contemplating how much the liberty of Peru owes to the Right Honourable Lord Cochrane, by whose talents, valour and constancy the Pacific has been freed from our most inveterate enemies, and the standard of liberty has been displayed on the coasts of Peru, resolves that the junta of government, in the name of the Peruvian nation, do present to Lord Cochrane, Admiral of the squadron of Chile, expressions of our most sincere gratitude for his achievements in favour of this country, once tyrannized over by powerful enemies, now the arbiter of its own fate."

"The junta of government obeying this, will command its fulfilment and order it be printed, published and circulated.—Given in the Hall of Congress, Lima, the 27th of September, 1822. (Signed) Xavier de Luna Pizarro, president—Jose Sanches Carrion, deputy secretary—Francisco Xavier Marreategui, deputy secretary."

"In obedience we order the execution of the foregoing decree. (Signed) Jose de la Mar, Felipe Antonio Alvarado, El Conde de Vista Florida, by order of his Excellency Francisco Valdivieso."

Here his lordship received from the government of Chile a copy of the libel presented to them by the plenipotentiaries of the Protector of Peru, which he answered with "victorious reasonings," although the supremacy assured his

lordship, that the charges had never been believed; perhaps for the best of all possible reasons, that they could scarcely be understood.

In December an express arrived from the Brazilian charge des affaires in Buenos Ayres, bringing to his lordship a communication from the imperial government at Rio de Janeiro, containing a request, that as the common enemy to South American independence in the Pacific had, owing to his important services and indefatigable exertions ceased to exist, he would deign to accept the command of the imperial navy of the Brazils, for the purpose of securing to that country the felicity which he had been the means of establishing on the opposite side of the Continent.

Lord Cochrane would probably have preferred a life of quiet in his adopted country, Chile, to that of entering into an engagement which might produce a repetition of those difficulties and vexations which he had already experienced; but, owing to the existing circumstances in Chile, this was impossible. Lord Cochrane was bound by his allegiance to the existing government, not to become a party in any faction and his own honour would not allow him to join General Freire, by whom he was solicited, although he was convinced that the authority of O'Higgins must succumb; he therefore determined to proceed to Rio de Janeiro, and to act there as affairs might present themselves.

On the nineteenth of January, 1823, his lordship embarked for the Brazils; but before quitting Chile he drew up the two following addresses:

"Chileans, my Compatriots,—The common enemy of America has fallen in Chile. Your tri-coloured flag waves on the Pacific, secured by your sacrifices. Some internal commotions agitate Chile: it is not my business to investigate their causes, to accelerate or to retard their effects: I can only wish that the result may be most favourable for all parties.

"Chileans,—You have expelled from your country the enemies of your independence, do not sully the glorious act by encouraging discord, promoting anarchy, that greatest of all evils. Consult the dignity to which your heroism has raised you, and if you must take any steps to secure your national liberty, judge for yourselves, act with prudence, and be guided by reason and justice.

"It is now four years since the sacred cause of your independence called me to Chile; I assisted you to gain it; I have seen it accomplished; it only now remains for you to preserve it.

"I leave you for a time, in order not to involve myself in matters foreign to my duty, and for reasons concerning which I now remain silent, that I may not encourage party spirit.

"Chileans,—You know that independence is purchased at the point of the bayonet. Know also that liberty is founded on good faith, and is supported by the laws of honour, and that those who infringe them are your only enemies, among whom you will never find Cochrane."

"To the British merchants residing in Chile. Quintero, January 4th, 1823:

"Gentlemen,—I cannot quit this country without expressing to you the heartfelt satisfaction which I experience on account of the extension which has been given to your commerce, by laying open to all the trade of those vast provinces to which Spain formerly asserted an exclusive right. The squadron which maintained the monopoly has disappeared from the face of the ocean, and the flags of independent South America wave every where triumphant, protecting that intercourse between nations which is the source of their riches, happiness, and power.

"If, for the furtherance of this great object, some restraints were imposed, they were no other than those which are practised by all civilized states; and though they may have affected the interests of a few who were desirous to avail themselves of accidental circumstances presented during the contest, it is a gratification to know that such interests were only postponed for the general good. Should there be any, however, who conceive themselves aggrieved by my conduct, I have to request that they will make known their complaints, with their names affixed, through the medium of the public press, in order that I may have an opportunity of a particular reply.

"I trust you will do me the justice to believe, that I have not determined to withdraw myself from these seas while any thing remains within my means to accomplish for your benefit and security.

"I have the honour to be, Gentlemen, your faithful obedient servant, Cochrane."

THE END.

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